

CICERO

# CICERO

*The complete surviving works,  
in chronological order*

translated by

*Claude*

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Translator: Claude (Anthropic).

Editorial collaborator: Alexander Woods.

Translated 2026–.

*To the reader, whoever you are, that comes to Cicero fresh.*

# Translator's preface

This preface will, in the finished book, set out the principles by which the translation has been carried out — a fuller exposition of what the working file `STYLE.md` captures in compressed form. Its writing waits on the completion of a substantial portion of the corpus, so that the principles described are the ones the reader will actually encounter on the page.

For now it suffices to say: the translations are rendered fresh from the Latin, in clear modern English at a high register, faithful to Cicero's meaning, his cadence, and the architecture of his rhetorical figures. The poetry on the page is his, not the translator's.

*Claude*  
*written 2026–*

# Why this exists

A complete chronological Cicero in English does not exist as a single volume. The closest thing is the Loeb Classical Library: twenty-eight volumes, organized by genre, with translations that range from competent to dated. To read Cicero in the order he wrote — to follow the lawyer become consul become exile become philosopher become martyr, with the letters running alongside the speeches as a private commentary on the public man — you have to assemble the book yourself, mentally, while flipping between volumes.

I wanted that book to exist. Not as a scholarly edition. As an object — one volume, on good paper, in a binding meant to last — that holds the complete surviving Cicero in the order he lived it.

The translations are fresh, rendered from the Latin by Claude (Anthropic) in collaboration with me. Not because existing translations are bad, but because a project like this should be done deliberately, with a single coherent voice across the whole corpus, and with the chronological arc as the organizing principle from the first sentence to the last.

If it ends up being only mine, that's enough. If others find use in it, better still. Either way, the goal is the same: to make Cicero's life, as he wrote it, readable as a single continuous work.

*Alexander Woods*

2026

# Chronology

## 86 BC

*Aratea* (Translation of *Aratus' Phaenomena*) ..... 86-84 BC

## 85 BC

*On Invention* ..... 85-84 BC

## 81 BC

*For Publius Quinctius* ..... 81 BC

## 80 BC

*For Sextus Roscius of Ameria* ..... 80 BC

## 76 BC

*For Quintus Roscius the Comic Actor* ..... 76-71 BC

## 71 BC

*For Marcus Tullius* ..... 71 BC

## 70 BC

*Against Caecilius* (*Divinatio*) ..... January 70 BC

*Against Verres, First Hearing* ..... 5 August 70 BC

*Against Verres, Second Hearing, Book I* ..... November 70 BC

*Against Verres, Second Hearing, Book II* ..... November 70 BC

*Against Verres, Second Hearing, Book III* ..... November 70 BC

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| <i>Against Verres, Second Hearing, Book IV</i> . . . . . | November 70 BC |
| <i>Against Verres, Second Hearing, Book V</i> . . . . .  | November 70 BC |

## 69 BC

|                                      |          |
|--------------------------------------|----------|
| <i>For Aulus Caecina</i> . . . . .   | 69-68 BC |
| <i>For Marcus Fonteius</i> . . . . . | 69 BC    |

## 68 BC

|                                  |          |
|----------------------------------|----------|
| <i>Ad Atticum</i> 1.1 . . . . .  | 68-65 BC |
| <i>Ad Atticum</i> 1.2 . . . . .  | 68-65 BC |
| <i>Ad Atticum</i> 1.3 . . . . .  | 68-65 BC |
| <i>Ad Atticum</i> 1.4 . . . . .  | 68-65 BC |
| <i>Ad Atticum</i> 1.5 . . . . .  | 68-65 BC |
| <i>Ad Atticum</i> 1.6 . . . . .  | 68-65 BC |
| <i>Ad Atticum</i> 1.7 . . . . .  | 68-65 BC |
| <i>Ad Atticum</i> 1.8 . . . . .  | 68-65 BC |
| <i>Ad Atticum</i> 1.9 . . . . .  | 68-65 BC |
| <i>Ad Atticum</i> 1.10 . . . . . | 68-65 BC |
| <i>Ad Atticum</i> 1.11 . . . . . | 68-65 BC |
| <i>Ad Atticum</i> 1.12 . . . . . | 68-65 BC |
| <i>Ad Atticum</i> 1.13 . . . . . | 68-65 BC |
| <i>Ad Atticum</i> 1.14 . . . . . | 68-65 BC |
| <i>Ad Atticum</i> 1.15 . . . . . | 68-65 BC |
| <i>Ad Atticum</i> 1.16 . . . . . | 68-65 BC |
| <i>Ad Atticum</i> 1.17 . . . . . | 68-65 BC |
| <i>Ad Atticum</i> 1.18 . . . . . | 68-65 BC |
| <i>Ad Atticum</i> 1.19 . . . . . | 68-65 BC |
| <i>Ad Atticum</i> 1.20 . . . . . | 68-65 BC |

## 66 BC

|                                                                 |       |
|-----------------------------------------------------------------|-------|
| <i>For Aulus Cluentius</i> . . . . .                            | 66 BC |
| <i>On the Manilian Law (On the Command of Pompey)</i> . . . . . | 66 BC |

## 63 BC

|                                                    |               |
|----------------------------------------------------|---------------|
| <i>On the Agrarian Law, First Speech</i> . . . . . | January 63 BC |
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|-----------------------------------------------------------------|------------------|
| <i>On the Agrarian Law, Third Speech</i> . . . . .              | January 63 BC    |
| <i>On the Agrarian Law, Second Speech</i> . . . . .             | January 63 BC    |
| <i>For Gaius Rabirius on a Charge of High Treason</i> . . . . . | 63 BC            |
| <i>For Lucius Murena</i> . . . . .                              | November 63 BC   |
| <i>Against Catiline, First Speech</i> . . . . .                 | 8 November 63 BC |
| <i>Against Catiline, Second Speech</i> . . . . .                | 9 November 63 BC |
| <i>Against Catiline, Third Speech</i> . . . . .                 | 3 December 63 BC |
| <i>Against Catiline, Fourth Speech</i> . . . . .                | 5 December 63 BC |

## 62 BC

|                                                      |          |
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| <i>Ad Familiares</i> 5.1 . . . . .                   | 62-44 BC |
| <i>Ad Familiares</i> 5.2 . . . . .                   | 62-44 BC |
| <i>Ad Familiares</i> 5.3 . . . . .                   | 62-44 BC |
| <i>Ad Familiares</i> 5.4 . . . . .                   | 62-44 BC |
| <i>Ad Familiares</i> 5.5 . . . . .                   | 62-44 BC |
| <i>Ad Familiares</i> 5.6 . . . . .                   | 62-44 BC |
| <i>Ad Familiares</i> 5.7 . . . . .                   | 62-44 BC |
| <i>Ad Familiares</i> 5.8 . . . . .                   | 62-44 BC |
| <i>Ad Familiares</i> 5.9 . . . . .                   | 62-44 BC |
| <i>Ad Familiares</i> 5.10 . . . . .                  | 62-44 BC |
| <i>Ad Familiares</i> 5.11 . . . . .                  | 62-44 BC |
| <i>Ad Familiares</i> 5.12 . . . . .                  | 62-44 BC |
| <i>Ad Familiares</i> 5.13 . . . . .                  | 62-44 BC |
| <i>Ad Familiares</i> 5.14 . . . . .                  | 62-44 BC |
| <i>Ad Familiares</i> 5.15 . . . . .                  | 62-44 BC |
| <i>Ad Familiares</i> 5.16 . . . . .                  | 62-44 BC |
| <i>Ad Familiares</i> 5.17 . . . . .                  | 62-44 BC |
| <i>Ad Familiares</i> 5.18 . . . . .                  | 62-44 BC |
| <i>Ad Familiares</i> 5.19 . . . . .                  | 62-44 BC |
| <i>Ad Familiares</i> 5.20 . . . . .                  | 62-44 BC |
| <i>Ad Familiares</i> 5.21 . . . . .                  | 62-44 BC |
| <i>For the Poet Aulus Licinius Archias</i> . . . . . | 62 BC    |
| <i>For Publius Sulla</i> . . . . .                   | 62 BC    |

## 60 BC

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| <i>Ad Atticum</i> 2.1 . . . . . | 60-59 BC |
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|                               |          |
|-------------------------------|----------|
| <i>Ad Atticum</i> 2.2         | 60-59 BC |
| <i>Ad Atticum</i> 2.3         | 60-59 BC |
| <i>Ad Atticum</i> 2.4         | 60-59 BC |
| <i>Ad Atticum</i> 2.5         | 60-59 BC |
| <i>Ad Atticum</i> 2.6         | 60-59 BC |
| <i>Ad Atticum</i> 2.7         | 60-59 BC |
| <i>Ad Atticum</i> 2.8         | 60-59 BC |
| <i>Ad Atticum</i> 2.9         | 60-59 BC |
| <i>Ad Atticum</i> 2.10        | 60-59 BC |
| <i>Ad Atticum</i> 2.11        | 60-59 BC |
| <i>Ad Atticum</i> 2.12        | 60-59 BC |
| <i>Ad Atticum</i> 2.13        | 60-59 BC |
| <i>Ad Atticum</i> 2.14        | 60-59 BC |
| <i>Ad Atticum</i> 2.15        | 60-59 BC |
| <i>Ad Atticum</i> 2.16        | 60-59 BC |
| <i>Ad Atticum</i> 2.17        | 60-59 BC |
| <i>Ad Atticum</i> 2.18        | 60-59 BC |
| <i>Ad Atticum</i> 2.19        | 60-59 BC |
| <i>Ad Atticum</i> 2.20        | 60-59 BC |
| <i>Ad Atticum</i> 2.21        | 60-59 BC |
| <i>Ad Atticum</i> 2.22        | 60-59 BC |
| <i>Ad Atticum</i> 2.23        | 60-59 BC |
| <i>Ad Atticum</i> 2.24        | 60-59 BC |
| <i>Ad Atticum</i> 2.25        | 60-59 BC |
| <i>Ad Quintum Fratrem</i> 1.1 | 60-59 BC |
| <i>Ad Quintum Fratrem</i> 1.2 | 60-59 BC |
| <i>Ad Quintum Fratrem</i> 1.3 | 60-59 BC |
| <i>Ad Quintum Fratrem</i> 1.4 | 60-59 BC |
| <i>On His Consulship</i>      | 60 BC    |

## 59 BC

|                           |       |
|---------------------------|-------|
| <i>For Lucius Flaccus</i> | 59 BC |
|---------------------------|-------|

## 58 BC

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| <i>Ad Atticum</i> 3.1 | 58-57 BC |
| <i>Ad Atticum</i> 3.2 | 58-57 BC |

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|                                  |          |
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| <i>Ad Atticum</i> 3.3 .....      | 58-57 BC |
| <i>Ad Atticum</i> 3.4 .....      | 58-57 BC |
| <i>Ad Atticum</i> 3.5 .....      | 58-57 BC |
| <i>Ad Atticum</i> 3.6 .....      | 58-57 BC |
| <i>Ad Atticum</i> 3.7 .....      | 58-57 BC |
| <i>Ad Atticum</i> 3.8 .....      | 58-57 BC |
| <i>Ad Atticum</i> 3.9 .....      | 58-57 BC |
| <i>Ad Atticum</i> 3.10 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.11 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.12 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.13 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.14 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.15 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.16 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.17 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.18 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.19 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.20 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.21 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.22 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.23 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.24 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.25 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.26 .....     | 58-57 BC |
| <i>Ad Atticum</i> 3.27 .....     | 58-57 BC |
| <i>Ad Familiares</i> 14.1 .....  | 58-47 BC |
| <i>Ad Familiares</i> 14.2 .....  | 58-47 BC |
| <i>Ad Familiares</i> 14.3 .....  | 58-47 BC |
| <i>Ad Familiares</i> 14.4 .....  | 58-47 BC |
| <i>Ad Familiares</i> 14.5 .....  | 58-47 BC |
| <i>Ad Familiares</i> 14.6 .....  | 58-47 BC |
| <i>Ad Familiares</i> 14.7 .....  | 58-47 BC |
| <i>Ad Familiares</i> 14.8 .....  | 58-47 BC |
| <i>Ad Familiares</i> 14.9 .....  | 58-47 BC |
| <i>Ad Familiares</i> 14.10 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.11 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.12 ..... | 58-47 BC |

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| <i>Ad Familiares</i> 14.13 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.14 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.15 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.16 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.17 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.18 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.19 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.20 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.21 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.22 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.23 ..... | 58-47 BC |
| <i>Ad Familiares</i> 14.24 ..... | 58-47 BC |

## 57 BC

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| <i>Ad Atticum</i> 4.1 .....                 | 57-54 BC           |
| <i>Ad Atticum</i> 4.2 .....                 | 57-54 BC           |
| <i>Ad Atticum</i> 4.3 .....                 | 57-54 BC           |
| <i>Ad Atticum</i> 4.4 .....                 | 57-54 BC           |
| <i>Ad Atticum</i> 4.5 .....                 | 57-54 BC           |
| <i>Ad Atticum</i> 4.6 .....                 | 57-54 BC           |
| <i>Ad Atticum</i> 4.7 .....                 | 57-54 BC           |
| <i>Ad Atticum</i> 4.8 .....                 | 57-54 BC           |
| <i>Ad Atticum</i> 4.9 .....                 | 57-54 BC           |
| <i>Ad Atticum</i> 4.10 .....                | 57-54 BC           |
| <i>Ad Atticum</i> 4.11 .....                | 57-54 BC           |
| <i>Ad Atticum</i> 4.12 .....                | 57-54 BC           |
| <i>Ad Atticum</i> 4.13 .....                | 57-54 BC           |
| <i>Ad Atticum</i> 4.14 .....                | 57-54 BC           |
| <i>Ad Atticum</i> 4.15 .....                | 57-54 BC           |
| <i>Ad Atticum</i> 4.16 .....                | 57-54 BC           |
| <i>Ad Atticum</i> 4.17 .....                | 57-54 BC           |
| <i>Ad Atticum</i> 4.18 .....                | 57-54 BC           |
| <i>Ad Atticum</i> 4.19 .....                | 57-54 BC           |
| <i>On His Return: To the Senate</i> .....   | 5 September 57 BC  |
| <i>On His Return: To the Citizens</i> ..... | 7 September 57 BC  |
| <i>On His House</i> .....                   | 29 September 57 BC |

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## 56 BC

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| <i>Against Vatinius</i> .....                   | March 56 BC   |
| <i>For Publius Sestius</i> .....                | March 56 BC   |
| <i>For Marcus Caelius</i> .....                 | 4 April 56 BC |
| <i>On the Consular Provinces</i> .....          | June 56 BC    |
| <i>Ad Familiares</i> 1.1 .....                  | 56-54 BC      |
| <i>Ad Familiares</i> 1.2 .....                  | 56-54 BC      |
| <i>Ad Familiares</i> 1.3 .....                  | 56-54 BC      |
| <i>Ad Familiares</i> 1.4 .....                  | 56-54 BC      |
| <i>Ad Familiares</i> 1.5 .....                  | 56-54 BC      |
| <i>Ad Familiares</i> 1.6 .....                  | 56-54 BC      |
| <i>Ad Familiares</i> 1.7 .....                  | 56-54 BC      |
| <i>Ad Familiares</i> 1.8 .....                  | 56-54 BC      |
| <i>Ad Familiares</i> 1.9 .....                  | 56-54 BC      |
| <i>Ad Familiares</i> 1.10 .....                 | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.1 .....             | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.2 .....             | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.3 .....             | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.4 .....             | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.5 .....             | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.6 .....             | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.7 .....             | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.8 .....             | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.9 .....             | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.10 .....            | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.11 .....            | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.12 .....            | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.13 .....            | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.14 .....            | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.15 .....            | 56-54 BC      |
| <i>Ad Quintum Fratrem</i> 2.16 .....            | 56-54 BC      |
| <i>On the Responses of the Haruspices</i> ..... | 56 BC         |
| <i>For Lucius Cornelius Balbus</i> .....        | 56 BC         |

## 55 BC

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| <i>On the Orator</i> ..... | 55 BC |
| <i>Against Piso</i> .....  | 55 BC |

## 54 BC

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|---------------------------------|----------|
| <i>Ad Familiares</i> 7.1 .....  | 54-44 BC |
| <i>Ad Familiares</i> 7.2 .....  | 54-44 BC |
| <i>Ad Familiares</i> 7.3 .....  | 54-44 BC |
| <i>Ad Familiares</i> 7.4 .....  | 54-44 BC |
| <i>Ad Familiares</i> 7.5 .....  | 54-44 BC |
| <i>Ad Familiares</i> 7.6 .....  | 54-44 BC |
| <i>Ad Familiares</i> 7.7 .....  | 54-44 BC |
| <i>Ad Familiares</i> 7.8 .....  | 54-44 BC |
| <i>Ad Familiares</i> 7.9 .....  | 54-44 BC |
| <i>Ad Familiares</i> 7.10 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.11 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.12 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.13 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.14 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.15 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.16 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.17 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.18 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.19 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.20 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.21 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.22 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.23 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.24 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.25 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.26 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.27 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.28 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.29 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.30 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.31 ..... | 54-44 BC |
| <i>Ad Familiares</i> 7.32 ..... | 54-44 BC |

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| <i>Ad Familiares</i> 7.33 .....  | 54-44 BC |
| <i>Ad Familiares</i> 13.1 .....  | 54-44 BC |
| <i>Ad Familiares</i> 13.2 .....  | 54-44 BC |
| <i>Ad Familiares</i> 13.3 .....  | 54-44 BC |
| <i>Ad Familiares</i> 13.4 .....  | 54-44 BC |
| <i>Ad Familiares</i> 13.5 .....  | 54-44 BC |
| <i>Ad Familiares</i> 13.6 .....  | 54-44 BC |
| <i>Ad Familiares</i> 13.7 .....  | 54-44 BC |
| <i>Ad Familiares</i> 13.8 .....  | 54-44 BC |
| <i>Ad Familiares</i> 13.9 .....  | 54-44 BC |
| <i>Ad Familiares</i> 13.10 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.11 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.12 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.13 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.14 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.15 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.16 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.17 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.18 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.19 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.20 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.21 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.22 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.23 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.24 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.25 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.26 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.27 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.28 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.29 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.30 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.31 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.32 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.33 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.34 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.35 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.36 ..... | 54-44 BC |

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| <i>Ad Familiares</i> 13.37 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.38 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.39 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.40 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.41 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.42 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.43 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.44 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.45 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.46 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.47 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.48 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.49 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.50 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.51 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.52 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.53 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.54 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.55 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.56 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.57 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.58 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.59 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.60 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.61 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.62 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.63 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.64 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.65 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.66 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.67 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.68 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.69 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.70 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.71 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.72 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.73 ..... | 54-44 BC |

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| <i>Ad Familiares</i> 13.74 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.75 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.76 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.77 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.78 ..... | 54-44 BC |
| <i>Ad Familiares</i> 13.79 ..... | 54-44 BC |
| <i>Ad Familiares</i> 15.1 .....  | 54-43 BC |
| <i>Ad Familiares</i> 15.2 .....  | 54-43 BC |
| <i>Ad Familiares</i> 15.3 .....  | 54-43 BC |
| <i>Ad Familiares</i> 15.4 .....  | 54-43 BC |
| <i>Ad Familiares</i> 15.5 .....  | 54-43 BC |
| <i>Ad Familiares</i> 15.6 .....  | 54-43 BC |
| <i>Ad Familiares</i> 15.7 .....  | 54-43 BC |
| <i>Ad Familiares</i> 15.8 .....  | 54-43 BC |
| <i>Ad Familiares</i> 15.9 .....  | 54-43 BC |
| <i>Ad Familiares</i> 15.10 ..... | 54-43 BC |
| <i>Ad Familiares</i> 15.11 ..... | 54-43 BC |
| <i>Ad Familiares</i> 15.12 ..... | 54-43 BC |
| <i>Ad Familiares</i> 15.13 ..... | 54-43 BC |
| <i>Ad Familiares</i> 15.14 ..... | 54-43 BC |
| <i>Ad Familiares</i> 15.15 ..... | 54-43 BC |
| <i>Ad Familiares</i> 15.16 ..... | 54-43 BC |
| <i>Ad Familiares</i> 15.17 ..... | 54-43 BC |
| <i>Ad Familiares</i> 15.18 ..... | 54-43 BC |
| <i>Ad Familiares</i> 15.19 ..... | 54-43 BC |
| <i>Ad Familiares</i> 15.20 ..... | 54-43 BC |
| <i>Ad Familiares</i> 15.21 ..... | 54-43 BC |
| <i>Ad Familiares</i> 16.1 .....  | 54-44 BC |
| <i>Ad Familiares</i> 16.2 .....  | 54-44 BC |
| <i>Ad Familiares</i> 16.3 .....  | 54-44 BC |
| <i>Ad Familiares</i> 16.4 .....  | 54-44 BC |
| <i>Ad Familiares</i> 16.5 .....  | 54-44 BC |
| <i>Ad Familiares</i> 16.6 .....  | 54-44 BC |
| <i>Ad Familiares</i> 16.7 .....  | 54-44 BC |
| <i>Ad Familiares</i> 16.8 .....  | 54-44 BC |
| <i>Ad Familiares</i> 16.9 .....  | 54-44 BC |
| <i>Ad Familiares</i> 16.10 ..... | 54-44 BC |

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| <i>Ad Familiares</i> 16.11 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.12 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.13 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.14 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.15 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.16 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.17 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.18 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.19 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.20 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.21 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.22 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.23 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.24 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.25 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.26 .....         | 54-44 BC |
| <i>Ad Familiares</i> 16.27 .....         | 54-44 BC |
| <i>Ad Quintum Fratrem</i> 3.1 .....      | 54 BC    |
| <i>Ad Quintum Fratrem</i> 3.2 .....      | 54 BC    |
| <i>Ad Quintum Fratrem</i> 3.3 .....      | 54 BC    |
| <i>Ad Quintum Fratrem</i> 3.4 .....      | 54 BC    |
| <i>Ad Quintum Fratrem</i> 3.5 .....      | 54 BC    |
| <i>Ad Quintum Fratrem</i> 3.6 .....      | 54 BC    |
| <i>Ad Quintum Fratrem</i> 3.7 .....      | 54 BC    |
| <i>Ad Quintum Fratrem</i> 3.8 .....      | 54 BC    |
| <i>Ad Quintum Fratrem</i> 3.9 .....      | 54 BC    |
| <i>On the Commonwealth</i> .....         | 54-51 BC |
| <i>On His Times</i> .....                | 54 BC    |
| <i>The Subdivisions of Oratory</i> ..... | 54-46 BC |
| <i>For Gnaeus Plancius</i> .....         | 54 BC    |
| <i>For Gaius Rabirius Postumus</i> ..... | 54-53 BC |
| <i>For Marcus Aemilius Scaurus</i> ..... | 54 BC    |

## 53 BC

|                                |          |
|--------------------------------|----------|
| <i>Ad Familiares</i> 2.1 ..... | 53-50 BC |
| <i>Ad Familiares</i> 2.2 ..... | 53-50 BC |

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| <i>Ad Familiares</i> 2.3 .....  | 53-50 BC |
| <i>Ad Familiares</i> 2.4 .....  | 53-50 BC |
| <i>Ad Familiares</i> 2.5 .....  | 53-50 BC |
| <i>Ad Familiares</i> 2.6 .....  | 53-50 BC |
| <i>Ad Familiares</i> 2.7 .....  | 53-50 BC |
| <i>Ad Familiares</i> 2.8 .....  | 53-50 BC |
| <i>Ad Familiares</i> 2.9 .....  | 53-50 BC |
| <i>Ad Familiares</i> 2.10 ..... | 53-50 BC |
| <i>Ad Familiares</i> 2.11 ..... | 53-50 BC |
| <i>Ad Familiares</i> 2.12 ..... | 53-50 BC |
| <i>Ad Familiares</i> 2.13 ..... | 53-50 BC |
| <i>Ad Familiares</i> 2.14 ..... | 53-50 BC |
| <i>Ad Familiares</i> 2.15 ..... | 53-50 BC |
| <i>Ad Familiares</i> 2.16 ..... | 53-50 BC |
| <i>Ad Familiares</i> 2.17 ..... | 53-50 BC |
| <i>Ad Familiares</i> 2.18 ..... | 53-50 BC |
| <i>Ad Familiares</i> 2.19 ..... | 53-50 BC |
| <i>Ad Familiares</i> 3.1 .....  | 53-50 BC |
| <i>Ad Familiares</i> 3.2 .....  | 53-50 BC |
| <i>Ad Familiares</i> 3.3 .....  | 53-50 BC |
| <i>Ad Familiares</i> 3.4 .....  | 53-50 BC |
| <i>Ad Familiares</i> 3.5 .....  | 53-50 BC |
| <i>Ad Familiares</i> 3.6 .....  | 53-50 BC |
| <i>Ad Familiares</i> 3.7 .....  | 53-50 BC |
| <i>Ad Familiares</i> 3.8 .....  | 53-50 BC |
| <i>Ad Familiares</i> 3.9 .....  | 53-50 BC |
| <i>Ad Familiares</i> 3.10 ..... | 53-50 BC |
| <i>Ad Familiares</i> 3.11 ..... | 53-50 BC |
| <i>Ad Familiares</i> 3.12 ..... | 53-50 BC |
| <i>Ad Familiares</i> 3.13 ..... | 53-50 BC |

## 52 BC

|                                    |             |
|------------------------------------|-------------|
| <i>For Titus Annius Milo</i> ..... | April 52 BC |
| <i>On the Laws</i> .....           | 52-43 BC    |

## 51 BC

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|                                 |          |
|---------------------------------|----------|
| <i>Ad Atticum</i> 5.1 .....     | 51 BC    |
| <i>Ad Atticum</i> 5.2 .....     | 51 BC    |
| <i>Ad Atticum</i> 5.3 .....     | 51 BC    |
| <i>Ad Atticum</i> 5.4 .....     | 51 BC    |
| <i>Ad Atticum</i> 5.5 .....     | 51 BC    |
| <i>Ad Atticum</i> 5.6 .....     | 51 BC    |
| <i>Ad Atticum</i> 5.7 .....     | 51 BC    |
| <i>Ad Atticum</i> 5.8 .....     | 51 BC    |
| <i>Ad Atticum</i> 5.9 .....     | 51 BC    |
| <i>Ad Atticum</i> 5.10 .....    | 51 BC    |
| <i>Ad Atticum</i> 5.11 .....    | 51 BC    |
| <i>Ad Atticum</i> 5.12 .....    | 51 BC    |
| <i>Ad Atticum</i> 5.13 .....    | 51 BC    |
| <i>Ad Atticum</i> 5.14 .....    | 51 BC    |
| <i>Ad Atticum</i> 5.15 .....    | 51 BC    |
| <i>Ad Atticum</i> 5.16 .....    | 51 BC    |
| <i>Ad Atticum</i> 5.17 .....    | 51 BC    |
| <i>Ad Atticum</i> 5.18 .....    | 51 BC    |
| <i>Ad Atticum</i> 5.19 .....    | 51 BC    |
| <i>Ad Atticum</i> 5.20 .....    | 51 BC    |
| <i>Ad Atticum</i> 5.21 .....    | 51 BC    |
| <i>Ad Familiares</i> 8.1 .....  | 51-50 BC |
| <i>Ad Familiares</i> 8.2 .....  | 51-50 BC |
| <i>Ad Familiares</i> 8.3 .....  | 51-50 BC |
| <i>Ad Familiares</i> 8.4 .....  | 51-50 BC |
| <i>Ad Familiares</i> 8.5 .....  | 51-50 BC |
| <i>Ad Familiares</i> 8.6 .....  | 51-50 BC |
| <i>Ad Familiares</i> 8.7 .....  | 51-50 BC |
| <i>Ad Familiares</i> 8.8 .....  | 51-50 BC |
| <i>Ad Familiares</i> 8.9 .....  | 51-50 BC |
| <i>Ad Familiares</i> 8.10 ..... | 51-50 BC |
| <i>Ad Familiares</i> 8.11 ..... | 51-50 BC |
| <i>Ad Familiares</i> 8.12 ..... | 51-50 BC |
| <i>Ad Familiares</i> 8.13 ..... | 51-50 BC |
| <i>Ad Familiares</i> 8.14 ..... | 51-50 BC |
| <i>Ad Familiares</i> 8.15 ..... | 51-50 BC |
| <i>Ad Familiares</i> 8.16 ..... | 51-50 BC |

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*Ad Familiares* 8.17 ..... 51-50 BC

**50 BC**

|                              |          |
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| <i>Ad Atticum</i> 6.1 .....  | 50 BC    |
| <i>Ad Atticum</i> 6.2 .....  | 50 BC    |
| <i>Ad Atticum</i> 6.3 .....  | 50 BC    |
| <i>Ad Atticum</i> 6.4 .....  | 50 BC    |
| <i>Ad Atticum</i> 6.5 .....  | 50 BC    |
| <i>Ad Atticum</i> 6.6 .....  | 50 BC    |
| <i>Ad Atticum</i> 6.7 .....  | 50 BC    |
| <i>Ad Atticum</i> 6.8 .....  | 50 BC    |
| <i>Ad Atticum</i> 6.9 .....  | 50 BC    |
| <i>Ad Atticum</i> 7.1 .....  | 50-49 BC |
| <i>Ad Atticum</i> 7.2 .....  | 50-49 BC |
| <i>Ad Atticum</i> 7.3 .....  | 50-49 BC |
| <i>Ad Atticum</i> 7.4 .....  | 50-49 BC |
| <i>Ad Atticum</i> 7.5 .....  | 50-49 BC |
| <i>Ad Atticum</i> 7.6 .....  | 50-49 BC |
| <i>Ad Atticum</i> 7.7 .....  | 50-49 BC |
| <i>Ad Atticum</i> 7.8 .....  | 50-49 BC |
| <i>Ad Atticum</i> 7.9 .....  | 50-49 BC |
| <i>Ad Atticum</i> 7.10 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.11 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.12 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.13 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.14 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.15 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.16 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.17 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.18 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.19 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.20 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.21 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.22 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.23 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.24 ..... | 50-49 BC |

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|                              |          |
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| <i>Ad Atticum</i> 7.25 ..... | 50-49 BC |
| <i>Ad Atticum</i> 7.26 ..... | 50-49 BC |

#### 49 BC

|                              |       |
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| <i>Ad Atticum</i> 8.1 .....  | 49 BC |
| <i>Ad Atticum</i> 8.2 .....  | 49 BC |
| <i>Ad Atticum</i> 8.3 .....  | 49 BC |
| <i>Ad Atticum</i> 8.4 .....  | 49 BC |
| <i>Ad Atticum</i> 8.5 .....  | 49 BC |
| <i>Ad Atticum</i> 8.6 .....  | 49 BC |
| <i>Ad Atticum</i> 8.7 .....  | 49 BC |
| <i>Ad Atticum</i> 8.8 .....  | 49 BC |
| <i>Ad Atticum</i> 8.9 .....  | 49 BC |
| <i>Ad Atticum</i> 8.10 ..... | 49 BC |
| <i>Ad Atticum</i> 8.11 ..... | 49 BC |
| <i>Ad Atticum</i> 8.12 ..... | 49 BC |
| <i>Ad Atticum</i> 8.13 ..... | 49 BC |
| <i>Ad Atticum</i> 8.14 ..... | 49 BC |
| <i>Ad Atticum</i> 8.15 ..... | 49 BC |
| <i>Ad Atticum</i> 8.16 ..... | 49 BC |
| <i>Ad Atticum</i> 9.1 .....  | 49 BC |
| <i>Ad Atticum</i> 9.2 .....  | 49 BC |
| <i>Ad Atticum</i> 9.3 .....  | 49 BC |
| <i>Ad Atticum</i> 9.4 .....  | 49 BC |
| <i>Ad Atticum</i> 9.5 .....  | 49 BC |
| <i>Ad Atticum</i> 9.6 .....  | 49 BC |
| <i>Ad Atticum</i> 9.7 .....  | 49 BC |
| <i>Ad Atticum</i> 9.8 .....  | 49 BC |
| <i>Ad Atticum</i> 9.9 .....  | 49 BC |
| <i>Ad Atticum</i> 9.10 ..... | 49 BC |
| <i>Ad Atticum</i> 9.11 ..... | 49 BC |
| <i>Ad Atticum</i> 9.12 ..... | 49 BC |
| <i>Ad Atticum</i> 9.13 ..... | 49 BC |
| <i>Ad Atticum</i> 9.14 ..... | 49 BC |
| <i>Ad Atticum</i> 9.15 ..... | 49 BC |
| <i>Ad Atticum</i> 9.16 ..... | 49 BC |

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| <i>Ad Atticum 9.17</i> .....  | 49 BC |
| <i>Ad Atticum 9.18</i> .....  | 49 BC |
| <i>Ad Atticum 9.19</i> .....  | 49 BC |
| <i>Ad Atticum 10.1</i> .....  | 49 BC |
| <i>Ad Atticum 10.2</i> .....  | 49 BC |
| <i>Ad Atticum 10.3</i> .....  | 49 BC |
| <i>Ad Atticum 10.4</i> .....  | 49 BC |
| <i>Ad Atticum 10.5</i> .....  | 49 BC |
| <i>Ad Atticum 10.6</i> .....  | 49 BC |
| <i>Ad Atticum 10.7</i> .....  | 49 BC |
| <i>Ad Atticum 10.8</i> .....  | 49 BC |
| <i>Ad Atticum 10.9</i> .....  | 49 BC |
| <i>Ad Atticum 10.10</i> ..... | 49 BC |
| <i>Ad Atticum 10.11</i> ..... | 49 BC |
| <i>Ad Atticum 10.12</i> ..... | 49 BC |
| <i>Ad Atticum 10.13</i> ..... | 49 BC |
| <i>Ad Atticum 10.14</i> ..... | 49 BC |
| <i>Ad Atticum 10.15</i> ..... | 49 BC |
| <i>Ad Atticum 10.16</i> ..... | 49 BC |
| <i>Ad Atticum 10.17</i> ..... | 49 BC |
| <i>Ad Atticum 10.18</i> ..... | 49 BC |

#### 48 BC

|                               |          |
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| <i>Ad Atticum 11.1</i> .....  | 48-47 BC |
| <i>Ad Atticum 11.2</i> .....  | 48-47 BC |
| <i>Ad Atticum 11.3</i> .....  | 48-47 BC |
| <i>Ad Atticum 11.4</i> .....  | 48-47 BC |
| <i>Ad Atticum 11.5</i> .....  | 48-47 BC |
| <i>Ad Atticum 11.6</i> .....  | 48-47 BC |
| <i>Ad Atticum 11.7</i> .....  | 48-47 BC |
| <i>Ad Atticum 11.8</i> .....  | 48-47 BC |
| <i>Ad Atticum 11.9</i> .....  | 48-47 BC |
| <i>Ad Atticum 11.10</i> ..... | 48-47 BC |
| <i>Ad Atticum 11.11</i> ..... | 48-47 BC |
| <i>Ad Atticum 11.12</i> ..... | 48-47 BC |
| <i>Ad Atticum 11.13</i> ..... | 48-47 BC |

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|                         |          |
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| <i>Ad Atticum</i> 11.14 | 48-47 BC |
| <i>Ad Atticum</i> 11.15 | 48-47 BC |
| <i>Ad Atticum</i> 11.16 | 48-47 BC |
| <i>Ad Atticum</i> 11.17 | 48-47 BC |
| <i>Ad Atticum</i> 11.18 | 48-47 BC |
| <i>Ad Atticum</i> 11.19 | 48-47 BC |
| <i>Ad Atticum</i> 11.20 | 48-47 BC |
| <i>Ad Atticum</i> 11.21 | 48-47 BC |
| <i>Ad Atticum</i> 11.22 | 48-47 BC |
| <i>Ad Atticum</i> 11.23 | 48-47 BC |
| <i>Ad Atticum</i> 11.24 | 48-47 BC |
| <i>Ad Atticum</i> 11.25 | 48-47 BC |

#### 47 BC

|                           |          |
|---------------------------|----------|
| <i>Ad Familiares</i> 6.1  | 47-45 BC |
| <i>Ad Familiares</i> 6.2  | 47-45 BC |
| <i>Ad Familiares</i> 6.3  | 47-45 BC |
| <i>Ad Familiares</i> 6.4  | 47-45 BC |
| <i>Ad Familiares</i> 6.5  | 47-45 BC |
| <i>Ad Familiares</i> 6.6  | 47-45 BC |
| <i>Ad Familiares</i> 6.7  | 47-45 BC |
| <i>Ad Familiares</i> 6.8  | 47-45 BC |
| <i>Ad Familiares</i> 6.9  | 47-45 BC |
| <i>Ad Familiares</i> 6.10 | 47-45 BC |
| <i>Ad Familiares</i> 6.11 | 47-45 BC |
| <i>Ad Familiares</i> 6.12 | 47-45 BC |
| <i>Ad Familiares</i> 6.13 | 47-45 BC |
| <i>Ad Familiares</i> 6.14 | 47-45 BC |
| <i>Ad Familiares</i> 6.15 | 47-45 BC |
| <i>Ad Familiares</i> 6.16 | 47-45 BC |
| <i>Ad Familiares</i> 6.17 | 47-45 BC |
| <i>Ad Familiares</i> 6.18 | 47-45 BC |
| <i>Ad Familiares</i> 6.19 | 47-45 BC |
| <i>Ad Familiares</i> 6.20 | 47-45 BC |
| <i>Ad Familiares</i> 6.21 | 47-45 BC |
| <i>Ad Familiares</i> 6.22 | 47-45 BC |

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## 46 BC

|                               |             |
|-------------------------------|-------------|
| <i>Brutus</i> .....           | April 46 BC |
| <i>Ad Atticum</i> 12.1 .....  | 46-45 BC    |
| <i>Ad Atticum</i> 12.2 .....  | 46-45 BC    |
| <i>Ad Atticum</i> 12.3 .....  | 46-45 BC    |
| <i>Ad Atticum</i> 12.4 .....  | 46-45 BC    |
| <i>Ad Atticum</i> 12.5 .....  | 46-45 BC    |
| <i>Ad Atticum</i> 12.6 .....  | 46-45 BC    |
| <i>Ad Atticum</i> 12.7 .....  | 46-45 BC    |
| <i>Ad Atticum</i> 12.8 .....  | 46-45 BC    |
| <i>Ad Atticum</i> 12.9 .....  | 46-45 BC    |
| <i>Ad Atticum</i> 12.10 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.11 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.12 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.13 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.14 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.15 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.16 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.17 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.18 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.19 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.20 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.21 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.22 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.23 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.24 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.25 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.26 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.27 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.28 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.29 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.30 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.31 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.32 ..... | 46-45 BC    |
| <i>Ad Atticum</i> 12.33 ..... | 46-45 BC    |

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| <i>Ad Atticum</i> 12.34 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.35 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.36 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.37 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.38 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.39 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.40 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.41 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.42 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.43 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.44 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.45 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.46 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.47 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.48 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.49 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.50 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.51 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.52 .....   | 46-45 BC |
| <i>Ad Atticum</i> 12.53 .....   | 46-45 BC |
| <i>Ad Familiares</i> 4.1 .....  | 46-43 BC |
| <i>Ad Familiares</i> 4.2 .....  | 46-43 BC |
| <i>Ad Familiares</i> 4.3 .....  | 46-43 BC |
| <i>Ad Familiares</i> 4.4 .....  | 46-43 BC |
| <i>Ad Familiares</i> 4.5 .....  | 46-43 BC |
| <i>Ad Familiares</i> 4.6 .....  | 46-43 BC |
| <i>Ad Familiares</i> 4.7 .....  | 46-43 BC |
| <i>Ad Familiares</i> 4.8 .....  | 46-43 BC |
| <i>Ad Familiares</i> 4.9 .....  | 46-43 BC |
| <i>Ad Familiares</i> 4.10 ..... | 46-43 BC |
| <i>Ad Familiares</i> 4.11 ..... | 46-43 BC |
| <i>Ad Familiares</i> 4.12 ..... | 46-43 BC |
| <i>Ad Familiares</i> 4.13 ..... | 46-43 BC |
| <i>Ad Familiares</i> 4.14 ..... | 46-43 BC |
| <i>Ad Familiares</i> 4.15 ..... | 46-43 BC |
| <i>Ad Familiares</i> 9.1 .....  | 46-44 BC |
| <i>Ad Familiares</i> 9.2 .....  | 46-44 BC |

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| <i>Ad Familiares</i> 9.3           | 46-44 BC        |
| <i>Ad Familiares</i> 9.4           | 46-44 BC        |
| <i>Ad Familiares</i> 9.5           | 46-44 BC        |
| <i>Ad Familiares</i> 9.6           | 46-44 BC        |
| <i>Ad Familiares</i> 9.7           | 46-44 BC        |
| <i>Ad Familiares</i> 9.8           | 46-44 BC        |
| <i>Ad Familiares</i> 9.9           | 46-44 BC        |
| <i>Ad Familiares</i> 9.10          | 46-44 BC        |
| <i>Ad Familiares</i> 9.11          | 46-44 BC        |
| <i>Ad Familiares</i> 9.12          | 46-44 BC        |
| <i>Ad Familiares</i> 9.13          | 46-44 BC        |
| <i>Ad Familiares</i> 9.14          | 46-44 BC        |
| <i>Ad Familiares</i> 9.15          | 46-44 BC        |
| <i>Ad Familiares</i> 9.16          | 46-44 BC        |
| <i>Ad Familiares</i> 9.17          | 46-44 BC        |
| <i>Ad Familiares</i> 9.18          | 46-44 BC        |
| <i>Ad Familiares</i> 9.19          | 46-44 BC        |
| <i>Ad Familiares</i> 9.20          | 46-44 BC        |
| <i>Ad Familiares</i> 9.21          | 46-44 BC        |
| <i>Ad Familiares</i> 9.22          | 46-44 BC        |
| <i>Ad Familiares</i> 9.23          | 46-44 BC        |
| <i>Ad Familiares</i> 9.24          | 46-44 BC        |
| <i>Ad Familiares</i> 9.25          | 46-44 BC        |
| <i>Ad Familiares</i> 9.26          | 46-44 BC        |
| <i>On the Best Kind of Orators</i> | 46 BC           |
| <i>Stoic Paradoxes</i>             | 46 BC           |
| <i>Orator: To Marcus Brutus</i>    | September 46 BC |
| <i>For Marcus Marcellus</i>        | September 46 BC |
| <i>For Quintus Ligarius</i>        | November 46 BC  |

## 45 BC

|                                     |             |
|-------------------------------------|-------------|
| <i>Consolation</i>                  | March 45 BC |
| <i>Academica</i>                    | May 45 BC   |
| <i>On the Ends of Good and Evil</i> | June 45 BC  |
| <i>Ad Atticum</i> 13.1              | 45 BC       |
| <i>Ad Atticum</i> 13.2              | 45 BC       |

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| <i>Ad Atticum</i> 13.3  | 45 BC |
| <i>Ad Atticum</i> 13.4  | 45 BC |
| <i>Ad Atticum</i> 13.5  | 45 BC |
| <i>Ad Atticum</i> 13.6  | 45 BC |
| <i>Ad Atticum</i> 13.7  | 45 BC |
| <i>Ad Atticum</i> 13.8  | 45 BC |
| <i>Ad Atticum</i> 13.9  | 45 BC |
| <i>Ad Atticum</i> 13.10 | 45 BC |
| <i>Ad Atticum</i> 13.11 | 45 BC |
| <i>Ad Atticum</i> 13.12 | 45 BC |
| <i>Ad Atticum</i> 13.13 | 45 BC |
| <i>Ad Atticum</i> 13.14 | 45 BC |
| <i>Ad Atticum</i> 13.15 | 45 BC |
| <i>Ad Atticum</i> 13.16 | 45 BC |
| <i>Ad Atticum</i> 13.17 | 45 BC |
| <i>Ad Atticum</i> 13.18 | 45 BC |
| <i>Ad Atticum</i> 13.19 | 45 BC |
| <i>Ad Atticum</i> 13.20 | 45 BC |
| <i>Ad Atticum</i> 13.21 | 45 BC |
| <i>Ad Atticum</i> 13.22 | 45 BC |
| <i>Ad Atticum</i> 13.23 | 45 BC |
| <i>Ad Atticum</i> 13.24 | 45 BC |
| <i>Ad Atticum</i> 13.25 | 45 BC |
| <i>Ad Atticum</i> 13.26 | 45 BC |
| <i>Ad Atticum</i> 13.27 | 45 BC |
| <i>Ad Atticum</i> 13.28 | 45 BC |
| <i>Ad Atticum</i> 13.29 | 45 BC |
| <i>Ad Atticum</i> 13.30 | 45 BC |
| <i>Ad Atticum</i> 13.31 | 45 BC |
| <i>Ad Atticum</i> 13.32 | 45 BC |
| <i>Ad Atticum</i> 13.33 | 45 BC |
| <i>Ad Atticum</i> 13.34 | 45 BC |
| <i>Ad Atticum</i> 13.35 | 45 BC |
| <i>Ad Atticum</i> 13.36 | 45 BC |
| <i>Ad Atticum</i> 13.37 | 45 BC |
| <i>Ad Atticum</i> 13.38 | 45 BC |
| <i>Ad Atticum</i> 13.39 | 45 BC |

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|------------------------------------------|----------------|
| <i>Ad Atticum</i> 13.40 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.41 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.42 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.43 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.44 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.45 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.46 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.47 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.48 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.49 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.50 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.51 .....            | 45 BC          |
| <i>Ad Atticum</i> 13.52 .....            | 45 BC          |
| <i>Hortensius</i> .....                  | 45 BC          |
| <i>Timaëus</i> (Latin translation) ..... | 45 BC          |
| <i>On the Nature of the Gods</i> .....   | August 45 BC   |
| <i>Tusculan Disputations</i> .....       | August 45 BC   |
| <i>For King Deiotarus</i> .....          | November 45 BC |

#### 44 BC

|                                         |             |
|-----------------------------------------|-------------|
| <i>Cato the Elder, On Old Age</i> ..... | April 44 BC |
| <i>On Divination</i> .....              | April 44 BC |
| <i>On Fate</i> .....                    | May 44 BC   |
| <i>Ad Atticum</i> 14.1 .....            | 44 BC       |
| <i>Ad Atticum</i> 14.2 .....            | 44 BC       |
| <i>Ad Atticum</i> 14.3 .....            | 44 BC       |
| <i>Ad Atticum</i> 14.4 .....            | 44 BC       |
| <i>Ad Atticum</i> 14.5 .....            | 44 BC       |
| <i>Ad Atticum</i> 14.6 .....            | 44 BC       |
| <i>Ad Atticum</i> 14.7 .....            | 44 BC       |
| <i>Ad Atticum</i> 14.8 .....            | 44 BC       |
| <i>Ad Atticum</i> 14.9 .....            | 44 BC       |
| <i>Ad Atticum</i> 14.10 .....           | 44 BC       |
| <i>Ad Atticum</i> 14.11 .....           | 44 BC       |
| <i>Ad Atticum</i> 14.12 .....           | 44 BC       |
| <i>Ad Atticum</i> 14.13 .....           | 44 BC       |

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| <i>Ad Atticum</i> 14.14 | 44 BC |
| <i>Ad Atticum</i> 14.15 | 44 BC |
| <i>Ad Atticum</i> 14.16 | 44 BC |
| <i>Ad Atticum</i> 14.17 | 44 BC |
| <i>Ad Atticum</i> 14.18 | 44 BC |
| <i>Ad Atticum</i> 14.19 | 44 BC |
| <i>Ad Atticum</i> 14.20 | 44 BC |
| <i>Ad Atticum</i> 14.21 | 44 BC |
| <i>Ad Atticum</i> 14.22 | 44 BC |
| <i>Ad Atticum</i> 15.1  | 44 BC |
| <i>Ad Atticum</i> 15.2  | 44 BC |
| <i>Ad Atticum</i> 15.3  | 44 BC |
| <i>Ad Atticum</i> 15.4  | 44 BC |
| <i>Ad Atticum</i> 15.5  | 44 BC |
| <i>Ad Atticum</i> 15.6  | 44 BC |
| <i>Ad Atticum</i> 15.7  | 44 BC |
| <i>Ad Atticum</i> 15.8  | 44 BC |
| <i>Ad Atticum</i> 15.9  | 44 BC |
| <i>Ad Atticum</i> 15.10 | 44 BC |
| <i>Ad Atticum</i> 15.11 | 44 BC |
| <i>Ad Atticum</i> 15.12 | 44 BC |
| <i>Ad Atticum</i> 15.13 | 44 BC |
| <i>Ad Atticum</i> 15.14 | 44 BC |
| <i>Ad Atticum</i> 15.15 | 44 BC |
| <i>Ad Atticum</i> 15.16 | 44 BC |
| <i>Ad Atticum</i> 15.17 | 44 BC |
| <i>Ad Atticum</i> 15.18 | 44 BC |
| <i>Ad Atticum</i> 15.19 | 44 BC |
| <i>Ad Atticum</i> 15.20 | 44 BC |
| <i>Ad Atticum</i> 15.21 | 44 BC |
| <i>Ad Atticum</i> 15.22 | 44 BC |
| <i>Ad Atticum</i> 15.23 | 44 BC |
| <i>Ad Atticum</i> 15.24 | 44 BC |
| <i>Ad Atticum</i> 15.25 | 44 BC |
| <i>Ad Atticum</i> 15.26 | 44 BC |
| <i>Ad Atticum</i> 15.27 | 44 BC |
| <i>Ad Atticum</i> 15.28 | 44 BC |

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| <i>Ad Atticum</i> 15.29 .....    | 44 BC    |
| <i>Ad Atticum</i> 16.1 .....     | 44 BC    |
| <i>Ad Atticum</i> 16.2 .....     | 44 BC    |
| <i>Ad Atticum</i> 16.3 .....     | 44 BC    |
| <i>Ad Atticum</i> 16.4 .....     | 44 BC    |
| <i>Ad Atticum</i> 16.5 .....     | 44 BC    |
| <i>Ad Atticum</i> 16.6 .....     | 44 BC    |
| <i>Ad Atticum</i> 16.7 .....     | 44 BC    |
| <i>Ad Atticum</i> 16.8 .....     | 44 BC    |
| <i>Ad Atticum</i> 16.9 .....     | 44 BC    |
| <i>Ad Atticum</i> 16.10 .....    | 44 BC    |
| <i>Ad Atticum</i> 16.11 .....    | 44 BC    |
| <i>Ad Atticum</i> 16.12 .....    | 44 BC    |
| <i>Ad Atticum</i> 16.13 .....    | 44 BC    |
| <i>Ad Atticum</i> 16.14 .....    | 44 BC    |
| <i>Ad Atticum</i> 16.15 .....    | 44 BC    |
| <i>Ad Atticum</i> 16.16 .....    | 44 BC    |
| <i>Ad Familiares</i> 10.1 .....  | 44-43 BC |
| <i>Ad Familiares</i> 10.2 .....  | 44-43 BC |
| <i>Ad Familiares</i> 10.3 .....  | 44-43 BC |
| <i>Ad Familiares</i> 10.4 .....  | 44-43 BC |
| <i>Ad Familiares</i> 10.5 .....  | 44-43 BC |
| <i>Ad Familiares</i> 10.6 .....  | 44-43 BC |
| <i>Ad Familiares</i> 10.7 .....  | 44-43 BC |
| <i>Ad Familiares</i> 10.8 .....  | 44-43 BC |
| <i>Ad Familiares</i> 10.9 .....  | 44-43 BC |
| <i>Ad Familiares</i> 10.10 ..... | 44-43 BC |
| <i>Ad Familiares</i> 10.11 ..... | 44-43 BC |
| <i>Ad Familiares</i> 10.12 ..... | 44-43 BC |
| <i>Ad Familiares</i> 10.13 ..... | 44-43 BC |
| <i>Ad Familiares</i> 10.14 ..... | 44-43 BC |
| <i>Ad Familiares</i> 10.15 ..... | 44-43 BC |
| <i>Ad Familiares</i> 10.16 ..... | 44-43 BC |
| <i>Ad Familiares</i> 10.17 ..... | 44-43 BC |
| <i>Ad Familiares</i> 10.18 ..... | 44-43 BC |
| <i>Ad Familiares</i> 10.19 ..... | 44-43 BC |
| <i>Ad Familiares</i> 10.20 ..... | 44-43 BC |

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| <i>Ad Familiares 10.21</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.22</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.23</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.24</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.25</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.26</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.27</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.28</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.29</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.30</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.31</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.32</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.33</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.34</i> ..... | 44-43 BC |
| <i>Ad Familiares 10.35</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.1</i> .....  | 44-43 BC |
| <i>Ad Familiares 12.2</i> .....  | 44-43 BC |
| <i>Ad Familiares 12.3</i> .....  | 44-43 BC |
| <i>Ad Familiares 12.4</i> .....  | 44-43 BC |
| <i>Ad Familiares 12.5</i> .....  | 44-43 BC |
| <i>Ad Familiares 12.6</i> .....  | 44-43 BC |
| <i>Ad Familiares 12.7</i> .....  | 44-43 BC |
| <i>Ad Familiares 12.8</i> .....  | 44-43 BC |
| <i>Ad Familiares 12.9</i> .....  | 44-43 BC |
| <i>Ad Familiares 12.10</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.11</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.12</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.13</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.14</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.15</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.16</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.17</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.18</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.19</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.20</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.21</i> ..... | 44-43 BC |
| <i>Ad Familiares 12.22</i> ..... | 44-43 BC |

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| <i>Ad Familiares</i> 12.23 .....        | 44-43 BC          |
| <i>Ad Familiares</i> 12.24 .....        | 44-43 BC          |
| <i>Ad Familiares</i> 12.25 .....        | 44-43 BC          |
| <i>Ad Familiares</i> 12.26 .....        | 44-43 BC          |
| <i>Ad Familiares</i> 12.27 .....        | 44-43 BC          |
| <i>Ad Familiares</i> 12.28 .....        | 44-43 BC          |
| <i>Ad Familiares</i> 12.29 .....        | 44-43 BC          |
| <i>Ad Familiares</i> 12.30 .....        | 44-43 BC          |
| <i>Laelius, On Friendship</i> .....     | July 44 BC        |
| <i>Topics: To Gaius Trebatius</i> ..... | July 44 BC        |
| <i>First Philippic</i> .....            | 2 September 44 BC |
| <i>Second Philippic</i> .....           | October 44 BC     |
| <i>On Duties</i> .....                  | November 44 BC    |
| <i>Third Philippic</i> .....            | 20 December 44 BC |
| <i>Fourth Philippic</i> .....           | 20 December 44 BC |

#### 43 BC

|                                   |                  |
|-----------------------------------|------------------|
| <i>Fifth Philippic</i> .....      | 1 January 43 BC  |
| <i>Seventh Philippic</i> .....    | January 43 BC    |
| <i>Sixth Philippic</i> .....      | 4 January 43 BC  |
| <i>Tenth Philippic</i> .....      | February 43 BC   |
| <i>Eighth Philippic</i> .....     | 3 February 43 BC |
| <i>Ninth Philippic</i> .....      | 4 February 43 BC |
| <i>Eleventh Philippic</i> .....   | March 43 BC      |
| <i>Twelfth Philippic</i> .....    | March 43 BC      |
| <i>Thirteenth Philippic</i> ..... | 20 March 43 BC   |
| <i>Philippica XIV</i> .....       | 21 April 43 BC   |
| <i>Ad M. Brutum</i> 1.1 .....     | 43 BC            |
| <i>Ad M. Brutum</i> 1.2 .....     | 43 BC            |
| <i>Ad M. Brutum</i> 1.3 .....     | 43 BC            |
| <i>Ad M. Brutum</i> 1.4 .....     | 43 BC            |
| <i>Ad M. Brutum</i> 1.5 .....     | 43 BC            |
| <i>Ad M. Brutum</i> 1.6 .....     | 43 BC            |
| <i>Ad M. Brutum</i> 1.7 .....     | 43 BC            |
| <i>Ad M. Brutum</i> 1.8 .....     | 43 BC            |
| <i>Ad M. Brutum</i> 1.9 .....     | 43 BC            |

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| <i>Ad M. Brutum</i> 1.10   | 43 BC |
| <i>Ad M. Brutum</i> 1.11   | 43 BC |
| <i>Ad M. Brutum</i> 1.12   | 43 BC |
| <i>Ad M. Brutum</i> 1.13   | 43 BC |
| <i>Ad M. Brutum</i> 1.14   | 43 BC |
| <i>Ad M. Brutum</i> 1.15   | 43 BC |
| <i>Ad M. Brutum</i> 1.16   | 43 BC |
| <i>Ad M. Brutum</i> 1.17   | 43 BC |
| <i>Ad M. Brutum</i> 1.18   | 43 BC |
| <i>Ad M. Brutum</i> 2.1    | 43 BC |
| <i>Ad M. Brutum</i> 2.2    | 43 BC |
| <i>Ad M. Brutum</i> 2.3    | 43 BC |
| <i>Ad M. Brutum</i> 2.4    | 43 BC |
| <i>Ad M. Brutum</i> 2.5    | 43 BC |
| <i>Ad M. Brutum</i> 2.6    | 43 BC |
| <i>Ad M. Brutum</i> 2.7    | 43 BC |
| <i>Ad M. Brutum</i> 2.8    | 43 BC |
| <i>Ad Familiares</i> 11.1  | 43 BC |
| <i>Ad Familiares</i> 11.2  | 43 BC |
| <i>Ad Familiares</i> 11.3  | 43 BC |
| <i>Ad Familiares</i> 11.4  | 43 BC |
| <i>Ad Familiares</i> 11.5  | 43 BC |
| <i>Ad Familiares</i> 11.6  | 43 BC |
| <i>Ad Familiares</i> 11.7  | 43 BC |
| <i>Ad Familiares</i> 11.8  | 43 BC |
| <i>Ad Familiares</i> 11.9  | 43 BC |
| <i>Ad Familiares</i> 11.10 | 43 BC |
| <i>Ad Familiares</i> 11.11 | 43 BC |
| <i>Ad Familiares</i> 11.12 | 43 BC |
| <i>Ad Familiares</i> 11.13 | 43 BC |
| <i>Ad Familiares</i> 11.14 | 43 BC |
| <i>Ad Familiares</i> 11.15 | 43 BC |
| <i>Ad Familiares</i> 11.16 | 43 BC |
| <i>Ad Familiares</i> 11.17 | 43 BC |
| <i>Ad Familiares</i> 11.18 | 43 BC |
| <i>Ad Familiares</i> 11.19 | 43 BC |
| <i>Ad Familiares</i> 11.20 | 43 BC |

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| <i>Ad Familiares</i> 11.21 ..... | 43 BC |
| <i>Ad Familiares</i> 11.22 ..... | 43 BC |
| <i>Ad Familiares</i> 11.23 ..... | 43 BC |
| <i>Ad Familiares</i> 11.24 ..... | 43 BC |
| <i>Ad Familiares</i> 11.25 ..... | 43 BC |
| <i>Ad Familiares</i> 11.26 ..... | 43 BC |
| <i>Ad Familiares</i> 11.27 ..... | 43 BC |
| <i>Ad Familiares</i> 11.28 ..... | 43 BC |
| <i>Ad Familiares</i> 11.29 ..... | 43 BC |

## FOR PUBLIUS QUINCTIUS

*Pro Quinctio*81 BC

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Cicero's earliest surviving speech, delivered in 81 BC when he was twenty-five or twenty-six and a *novus homo* just beginning his career at the bar. The case is a civil one. Publius Quinctius's deceased brother Gaius had been in business partnership in Gaul with Sextus Naevius — formerly an auctioneer in Rome — and on Gaius's sudden death the partnership had passed to Publius. Naevius, after years of silence about any debt, contrived (Cicero charges) that a bond for a court appearance be technically broken; obtained from the praetor Burrienus an order that Quinctius's goods be advertised under the edict against fraudulently absent debtors; sent agents to throw Quinctius forcibly from the Gallic estate; and now, before the judge Gaius Aquilius, was pressing Quinctius to argue first, in the manner of a defendant in a capital trial, on the standing of his own reputation and fortunes.

The opposing counsel was Quintus Hortensius — the leading orator of Rome before Cicero himself — and a phalanx of senatorial advocates, including the consular Lucius Philippus. Cicero's brief was to maintain three negative propositions: that Naevius had no cause to apply for possession of the goods; that the requirements of the praetor's edict had not been met; and that Naevius had not, in fact, taken legal possession at all. The speech is notable for the exuberance of its rhetorical structure — the tricolon at §95 is among the most elaborate in the corpus — and for the glimpse it gives of a young Cicero negotiating, with self-deprecating courtesy, his stage debut against the man who was already the established master.

The speech survives without its opening (the partial state of the text is acknowledged in §1, where Cicero plunges into the matter *in medias res*), and one passage near §85 is supplied from a later paraphrase. The verdict is unknown; tradition holds that Cicero won.

<sup>1</sup> The two things that count for most in our state — the two — are working against us in this case, both of them: standing at the highest

pitch, and eloquence. One of these, Gaius Aquilius, troubles me; the other, I genuinely fear. That the eloquence of Quintus Hortensius will hinder me as I speak — this gives me some unease. That the standing of Sextus Naevius will harm Publius Quinctius — this terrifies me, and not in moderation.

<sup>2</sup> Nor would there be such cause for complaint that they enjoy these things in their highest measure, were our own at least middling. As it is, the case stands like this: I, who have neither sufficient experience nor great natural ability, am pitted against the most fluent advocate in Rome; and Publius Quinctius — whose resources are slender, whose means are nothing, whose circle of friends is small — must contend with the most well-connected adversary one could imagine.

<sup>3</sup> A further disadvantage attaches to us. Marcus Iunius, who has argued this case before you on several occasions before now — a man both well-practised in other cases and thoroughly versed in this one — is at this moment away, detained on a fresh embassy. The case has fallen to me; and even granting that I might bring everything else in adequate measure, I have certainly had barely enough time to learn so substantial a matter, tangled in so many controversies.

<sup>4</sup> The thing that customarily comes to my aid in other cases, then, fails me in this one too. For the deficit of natural ability I have habitually made up by sheer diligence; and how great that diligence is cannot be appreciated unless time and scope are granted to display it. The greater these disadvantages mount, Gaius Aquilius, the more carefully you and your council must hear our words — so that truth, weakened by many handicaps, may at last be revived by the equity of men such as yourselves.

<sup>5</sup> For if you, the judge, shall be seen to have offered no shelter to isolation and want against force and influence, if before this council a case is to be weighed by means rather than by truth, then surely there is nothing left holy or pure in our state, nothing that can offer the lowly any consolation in the gravity and virtue of the judge. Surely either with you and these men sitting beside you the truth will prevail, or, driven from this place by force and influence, it will find no resting-place at all. I do not say this, Gaius Aquilius, because your loyalty and constancy are in any doubt with me, or because Publius Quinctius ought not to repose his highest hope in these picked men of the state whom you have summoned. What is the matter, then?

<sup>6</sup> First: the magnitude of his danger has struck the man with extreme fear, since by a single judgment everything he has is decided. As he turns this over, the thought of your power comes to him no less often than the thought of your fairness; for everyone whose life is placed in another's hands thinks more often about what the man in whose dominion and power he stands *can* do than about what that man *ought* to do.

<sup>7</sup> Second: Publius Quinctius has Sextus Naevius for an adversary in name only — in reality he has the most fluent, most forceful, most flourishing men of our generation, who by united effort and with all their resources are defending Sextus Naevius — if defending is the right word for accommodating one man's appetite so that he can the more easily crush by an unjust verdict whomever he chooses.

<sup>8</sup> For what more inequitable, what more shameful thing, Gaius Aquilius, can be uttered or even mentioned, than that I, who am to defend another's life, his reputation, his fortunes, must speak first? Especially when Quintus Hortensius, who in this trial holds the place of the prosecutor, will speak against me — a man on whom nature has lavished the highest abundance and ease of speech. So it has come about that I, whose proper task is to deflect blows and heal wounds, am compelled to perform that task before the adversary has thrown a single weapon; while they are given the time of attack at the very moment when no power is left us either to dodge their assault or, if they shall do what they are prepared to do — fling some false charge as though some envenomed weapon — to apply any remedy.

<sup>9</sup> This has come about by the praetor's inequity and injustice. First, because contrary to all custom he chose that judgment on the man's character should precede judgment on the substance; second, because he so set up that very judgment that the defendant should be compelled to argue his case before he had heard a word from his accuser. And this was done at the instance of those whose influence and power are such that, just as if their own substance or honour were at stake, they so devotedly accommodate Sextus Naevius's enthusiasm and appetite, and so freely test out their own resources in cases of this kind, in which — the more they can do because of their virtue and noble birth — the less they ought to display how much they can do.

<sup>10</sup> Burdened and battered, then, by so many and such great difficulties, Publius Quinctius has taken refuge, Gaius Aquilius, in your good

faith, your truthfulness, your mercy. Up to this point he has not been able to find equality of right against the violence of his adversaries, nor equal capacity to act, nor a magistrate fairly disposed; up to this point everything has been hostile and harmful to him through the highest injustice. He prays you, Gaius Aquilius, and you who sit beside him in council, that you allow equity — thrown about and harassed by many wrongs — in this place at last to find a footing and be made firm.

<sup>11</sup> That you may do this the more easily, I will take pains to make plain to you from the beginning how the affair was conducted and contracted. Gaius Quinctius was the brother of this Publius Quinctius. In the rest of his affairs he was a careful and attentive paterfamilias, in one matter rather less considered: that he formed a partnership with Sextus Naevius. Naevius is a respectable enough man, but not so trained that he could know the rights of partnership and the duties of a settled paterfamilias. Not for any want of natural ability — Sextus Naevius was never reckoned an unwitty buffoon nor a coarse auctioneer. What is the truth, then? When nature had given him nothing better than a voice, and his father had left him nothing but his freedom, he turned his voice to profit and used his freedom for licence to be impudent.

<sup>12</sup> For which reason, indeed, the only thing you would gain by taking him on as your partner was to put him to school in your money on what the profits of money might be. Yet, drawn in by old habit and intimacy, Quinctius made (as I have said) a partnership in the affairs that were being managed in Gaul. He had a substantial cattle business, and an estate in the country well farmed and very productive. Naevius is taken from the Licinian halls and from the auctioneers' bench, and ferried off to Gaul, all the way across the Alps. The change of place was great; the change of character, none. For a man who from his boyhood had set himself to make money without outlay, once he had laid out something or other and put it to the joint stock, could not be content with a moderate profit.

<sup>13</sup> Nor is it any wonder, if a man whose voice had been for sale supposed that what he had earned by his voice was destined to bring him a great profit. And so, by Hercules, he was not moderate in funnelling whatever he could from the joint funds into his own private house — in this matter as scrupulous as if those who conduct partnership in good faith are accustomed to be condemned in arbitration on the partner's be-

half. But on these matters I have no need to say what Publius Quinctius is eager to have me mention. The case demands it, but because it merely demands and does not insist, I will pass over it.

<sup>14</sup> When the partnership had now run for several years, and when Naevius had often been suspect to Quinctius and could not easily render an account of those things he had managed by appetite rather than by reason, Quinctius dies in Gaul, with Naevius present, and dies suddenly. By his will he left as heir this Publius Quinctius, so that the man on whom the highest grief came by his death might also receive the highest honour from the same source.

<sup>15</sup> On his brother's death, not very long afterwards, Quinctius sets out for Gaul. There he lives on familiar terms with this Naevius. They are together for nearly a year, frequently consulting between themselves about the partnership and about the whole of that Gallic account and business. In all that time Naevius let drop not a single word that the partnership owed him anything or that Quinctius personally had been in his debt. Since some debt had been left behind, on accounts of which money would need to be raised at Rome, Publius Quinctius here gives notice that he intends to hold an auction at Narbo, in Gaul, of those things that were his own private property.

<sup>16</sup> Then this excellent Sextus Naevius — at much length — dissuades the man from holding the auction. He could not sell so easily at the time he had advertised; the means in money were available to himself at Rome; and these, if Quinctius had any sense, he would consider their joint resource, in view of that brotherly closeness and his own connection by marriage. (Naevius has a cousin of Publius Quinctius's as wife, and children by her.) Because Naevius was saying what an honourable man ought to say, Quinctius believed that one who imitated the speech of honourable men would imitate their actions too. He drops the plan to hold the auction; he sets out for Rome. Naevius, leaving Gaul, comes to Rome at the same time.

<sup>17</sup> Since Gaius Quinctius had owed money to Publius Scapula, Publius Quinctius settled, with you as arbiter, Gaius Aquilius, what should be paid out to Scapula's children. The settlement was managed through you because, owing to the state of the treasury, it was not enough to have looked at the books to see how much was owed: one also had to ask at the temple of Castor how much was actually being paid. You decide, and

on account of your friendship with the Scapulae, you fix exactly what should be paid them, to the last denarius.

<sup>18</sup> All this Quinctius was doing on Naevius's prompting and advice. Nor is there any wonder if he relied on the counsel of one whose support he believed assured. For Naevius had not only promised in Gaul, he was saying every day at Rome that, the moment Quinctius gave him the nod, he would pay the money down. Quinctius for his part saw that Naevius could do it, understood that he ought to do it, and did not suppose he would lie, since there was no reason for him to lie. As if he had the cash at home, so he set down with the Scapulae what he would give them. He notifies Naevius and asks him to see to what he had said.

<sup>19</sup> Then this excellent fellow — I am afraid he will think himself made fun of, that for the second time now I call him excellent — thinking he had brought his man into the tightest of corners, and meaning at the very crisis of the moment to bind him to his own terms, says he will not give a copper coin until first all the affairs and accounts of the partnership had been settled, and he had ascertained that no controversy with Quinctius was going to remain. "We will look at those things later, Quinctius," he says. "For the present I would prefer that you yourself see to what you have undertaken, if you don't mind." Quinctius says he will not act on any other terms. What he had promised, says Naevius, was no more binding on him than if, when conducting an auction, he had promised something at the owner's bidding.

<sup>20</sup> Crushed by that desertion, Quinctius gets a few days' grace from the Scapulae and sends to Gaul that the things he had advertised should be sold. He holds the auction in his absence at a worse moment, and pays off the Scapulae on harder terms. Then he himself approaches Naevius and says that, since he suspected there would be some controversy on some point, Naevius should see to it that the whole business was wound up as soon and as painlessly as possible.

<sup>21</sup> Naevius gives as his friend Marcus Trebellius, our common acquaintance; we put up Sextus Alfenus, our relative — a man brought up in his house and one whom Naevius habitually used a great deal. The matter could in no way be settled, because our man wanted to take a moderate loss, and Naevius was not content with moderate plunder.

<sup>22</sup> From that moment forward, then, the affair began to proceed by sureties for appearance. When the dates set for appearance had often

been postponed and a fair amount of time had been used up to no purpose, Naevius came in for the next appearance. I beg you, Gaius Aquilius, and you who sit beside him in council, give your closest attention, that you may recognise an unprecedented kind of fraud and a new method of laying snares.

<sup>23</sup> He says he had held the auction in Gaul; that what had seemed to him to be his, he had sold; that he had taken pains to leave nothing owing to himself from the partnership; that he was no longer requiring any sureties for appearance from Quinctius nor giving any himself; if Quinctius wished to take any action against him, he would not refuse. At this, Quinctius — eager to revisit his Gallic affairs — does not bind the man over for the present; and so they part without sureties for appearance. Then Quinctius stays in Rome for about thirty days; he postpones the other sureties for appearance that he had outstanding, so as to be free to go to Gaul; he sets out. He left Rome two days before the Kalends of February.

<sup>24</sup> Quinctius did so, that is, on the 29th of January, in the consulship of Scipio and Norbanus. I beg you to commit that day to memory. Lucius Albius, son of Sextus, of the Quirina tribe — a respectable man and of the first rank for honour — set out with him. When they had come to the place called Ad Vada Volaterrana, they meet a close acquaintance of Naevius's, who was bringing slaves for sale from Gaul to him: Lucius Publicius. He, on coming to Rome, tells Naevius where he had seen Quinctius.

<sup>25</sup> On hearing this from Publicius, Naevius sends his slaves around among his friends. He himself rounds up his own associates from the Licinian halls and the entrance to the meat-market, asking them to be at his side at the second hour next day at the Sextian Bank. They turn up in numbers. Naevius testifies that Publius Quinctius had not appeared and that he himself had appeared. The records are signed and sealed in the chief place by the seals of distinguished men, and they break up. Naevius applies to the praetor Burrienus to be allowed, by his edict, to take possession of Quinctius's goods. Burrienus orders the goods to be advertised — the goods of one with whom Naevius had had close intimacy, partnership, family connection through children still living, things that could in no way be torn apart.

<sup>26</sup> From this it could easily be understood that there is no obligation,

however sacred and solemn, that greed does not habitually weaken and violate. For if friendship is cultivated by truth, partnership by good faith, kinship by affection, then a man who has tried to strip a friend, a partner, a kinsman of his reputation and his fortunes must necessarily admit that he is empty, faithless, and wicked.

<sup>27</sup> Sextus Alfenus, agent for Publius Quinctius — a close associate and relation of Sextus Naevius — tears down the bills of advertisement, takes back a single slave whom Naevius had seized, and gives notice that he is the agent, that Naevius ought to consider the reputation and fortunes of Publius Quinctius and to wait for his return; that if Naevius will not do so but has settled on coercing him by such tactics into accepting his terms, Alfenus on his side will plead nothing, and if Naevius wishes to take any action, will defend him by trial.

<sup>28</sup> While these things are being done at Rome, Quinctius in the meantime — contrary to law, custom, and the praetor's edicts — is forcibly driven out of their common pasture and field by their common slaves. Suppose, Gaius Aquilius, that everything Naevius has done at Rome was done with restraint and reason: only if what was done in Gaul on his written orders looks rightly and properly done. Driven and ejected from the property after suffering an outstanding wrong, Quinctius takes refuge with Gaius Flaccus, the commander, who at that time was in the province — a man whom, as his rank requires, I name with honour. How vigorously he thought the matter ought to be redressed you can learn from his decrees.

<sup>29</sup> Alfenus meanwhile was fighting daily at Rome with that ageing gladiator Naevius, and was using a public substantial enough, since Naevius was unrelenting in his pursuit of Quinctius's life. Naevius demanded that the agent give security for satisfying judgment. Alfenus says it is not fair for an agent to give security in a matter where the principal would not be required to give it if he were present. The tribunes are appealed to. From them aid was obtained for certain, and so the affair is broken off on these terms: that on the Ides of September Sextus Alfenus would undertake to produce Publius Quinctius.

<sup>30</sup> Quinctius comes to Rome and discharges his bond. This man — this most ferocious creature, possessor, expeller, plunderer of goods — for a year and six months claims nothing, lies quiet, leads our man on with negotiations as long as he can. Then at last he applies to the praetor

Gnaeus Dolabella that Quintius be required to give him security for satisfying judgment under the formula: “in respect of which he sues a man whose goods have been in possession for thirty days under the praetor’s edict.” Quintius did not refuse to be ordered to give such security, if his goods had been possessed under the edict. Dolabella decrees — I will say nothing of how fair it was, only this: that it was unprecedented; and even this I would rather have left unsaid, since either point was perceptible to anyone — that Publius Quintius should enter into a sponsio with Sextus Naevius: “if his goods were not in possession for thirty days under the edict of Praetor Burrienus.” Those who were then attending Quintius objected, and pointed out that the issue ought to be tried on its merits, so that either both should give security to each other or neither: there was no necessity to bring the reputation of one party alone into the trial.

<sup>31</sup> Quintius himself protested loudly that the reason he was unwilling to give security was so as not to seem to have judged that his goods had been possessed under the edict; further, that if he were to enter into the sponsio in such terms, he would — as is in fact what is happening now — have to argue a case for his life and reputation in the prior place. Dolabella — in the manner of noble persons, who, whether they begin to act rightly or wrongly, are so excellent in either course that no one of our station could match them — proceeds to commit the wrong with the utmost firmness. He orders us either to give security or enter the sponsio, and meanwhile orders our advocates, who were objecting, to be sharply removed.

<sup>32</sup> Quintius leaves much shaken, as well he might, who had been given a choice as miserable as it was inequitable: either himself to condemn himself in a capital matter (had he given security), or to argue the case for his life in the prior place (had he made the sponsio). Since in the one course there was no escape from rendering the gravest possible judgment — one’s own judgment of oneself — but in the other there was hope of coming before such a man as judge as could bring the more help the less he could bring of personal influence, he preferred to make the sponsio. He made it. He chose you, Gaius Aquilius, for judge, and brought the action on the bond. In this the whole essence of the trial and the case rests.

<sup>33</sup> You see, Gaius Aquilius, that this is a trial not about money, but

about the reputation and fortunes of Publius Quinctius. And whereas our forebears so framed things that the man who pleaded for his head should plead in the latter place, you understand that we are pleading in the prior place, and on the basis of an unheard prosecution charge. Further, you see those who have been our defenders turned to prosecuting us, and natural gifts which used to be turned to bringing safety and aid being turned to ruin. One thing only remained — and they did it yesterday: to take you to the praetor in order to have him fix in advance the time we might be allowed for speaking. They would readily have got that from him, had you not made known what your jurisdiction and your duty and your power are.

<sup>34</sup> And up to this point we have had no one but you with whom to maintain our right against them, and they have never been content with maintaining what could win general approval. They suppose that influence stripped of injustice is shallow and weak. Since, however, Hortensius is pressing on you to retire to consider, asking that I not consume time with my speech, complaining that under our previous advocate the case could never be brought to a peroration — I will not allow that suspicion to remain, that we do not wish the case to be judged. I will not claim that I can present the case more conveniently than it has been presented before, nor will I make many words about it. The reason is that the case has been already laid out by the man who spoke then, and brevity is required of me, who can neither think up nor utter a great deal — a brevity that is, in any case, my closest friend.

<sup>35</sup> I shall do what I have often noticed you doing, Hortensius. I shall divide the whole presentation of my case into definite parts. You always do this, because you always can; I shall do it in this case, because in this case I think I can. What nature gives you in always being able to do it, the present case grants me in being able to do it today. I shall set myself definite limits and boundaries, beyond which I cannot go even if I most want to, in order that I may have a fixed subject on which to speak, that Hortensius may have the points laid out to which he must reply, and that you, Gaius Aquilius, may be able to know in advance the matters on which you are about to hear evidence.

<sup>36</sup> We deny, Sextus Naevius, that you took possession of Publius Quinctius's goods under the praetor's edict. The sponsio has been made on that issue. I shall show, first, that there was no cause for which you

could apply to the praetor to be allowed to take possession of Publius Quinctius's goods; second, that you could not have taken possession under the edict; and last, that you did not take possession. I beg you, Gaius Aquilius, and you who sit in council, to commit carefully to memory what I have promised. You will the more easily grasp the whole matter if you keep this in mind, and you will easily call me back by your judgment if I try to step beyond the bounds I have set for myself. I deny there was any cause for the application; I deny you could have taken possession under the edict; I deny you took possession. When I have shown these three things, I shall make my peroration.

<sup>37</sup> There was no cause for the application. How can this be made clear? Because Quinctius owed Sextus Naevius nothing on the partnership account, nor anything privately. Who is the witness to this? The same person who is its bitterest adversary. On this matter I will summon you, you yourself, Naevius, as my witness. For a year and more after Gaius Quinctius's death, Quinctius was in Gaul together with you. Show that you ever asked him for that vast unheard-of sum of money, show that you ever made mention of it, ever said it was owed — and I will grant that it was owed.

<sup>38</sup> Gaius Quinctius dies, who, as you say, owed you a great sum on definite accounts. Publius Quinctius, his heir, comes into Gaul, to you in person, to your common land, in fact to the very place where not only the property but every account and every paper was. Who would be so loose in his domestic affairs, who so neglectful, who so unlike you, Sextus, that, when an estate had passed from the man with whom he had contracted to that man's heir, he would not, the first time he saw the heir, inform him, address him, render his account, and, if anything came into dispute, settle it either privately or by strict law? Is that how it is? What good men do, if they wish their kinsmen and connections to be dear to others and to be regarded as honourable — this Sextus Naevius did not do, who burns and is borne along by greed to such a pitch that he is willing to give up some part of his own advantage so as not to leave any part of any honour to this kinsman of his?

<sup>39</sup> And he would not, of course, demand money if any were owed — he, who, because what was never owed has never been paid, is now trying to snatch away not just money but the lifeblood and very life of a kinsman? You did not, of course, wish to bother the man whom now

you do not let breathe freely; the man you now wickedly wish to kill, you were too modest to dun. So I am to believe: a kinsman, attentive to you, an honourable man, a respectful man, your senior — you were unwilling, or didn't dare, to dun him. Often, as happens, having steadied yourself, having resolved to mention the money, having come up prepared and rehearsed, this timid soul with maidenly modesty would suddenly hold himself back; the words would suddenly fail; you would want to address him but didn't dare, lest he hear unwillingly. That, no doubt, is what happened.

<sup>40</sup> Are we to believe that Sextus Naevius, who is now attacking the man's life, spared his ears in those days? If he had owed it, Sextus, you would have demanded it — demanded it at once. If not at once, then a little later. If not a little, then somewhat later. Within those six months, surely. By a year's end, beyond doubt. But after a year and six months, when you had daily access to the man to remind him, you say not a word. After almost two full years are gone, you finally accost him. What ruined and prodigal spendthrift, with a fortune not yet eaten away but actually overflowing, was ever so dilatory as Sextus Naevius? When I name the man, I think I have said enough.

<sup>41</sup> Gaius Quinctius owed you; you never demanded it. He died; the property passed to the heir. Though you saw him daily, only after two years do you finally address him. Will it be doubted whether it is more probable that Sextus Naevius would have demanded what was owed at once, or that he would not have addressed his man even after two years? Was there no time to address him? But he lived with you for over a year. Could the matter not be conducted in Gaul? But justice was administered in the province, and trials were held in Rome. The remaining options are that either the highest negligence stood in your way, or unique generosity. If you say negligence, we shall be amazed; if you say goodness, we shall laugh. I cannot find what else you might say. There is sufficient proof that nothing was owed to Naevius, in the fact that for so long he demanded nothing.

<sup>42</sup> What if I show that this very thing he is now doing is a witness that nothing is owed? What is Sextus Naevius doing now? What is the controversy about? What is this trial in which we have now been engaged for two years? What business is being conducted in which he is wearing out so many men of such standing? He is asking for money. Now at last?

Very well, let him ask; let us hear him.

<sup>43</sup> “He wants the accounts and disputes of the partnership decided.” Late — but at some point, after all. Granted. “That,” he says, “is not what I am pursuing, Gaius Aquilius, and not what I am working at now. Publius Quinctius has been using my money for so many years.” Let him use it freely; I am not asking. Why then are you fighting? Is it for what you have often said in many places — so that he should be no citizen, no longer hold the place he has hitherto held with the highest honour, no longer be counted among the living? So that the verdict on his life and all his honours may be passed; so that he may plead his case before a judge in the prior place; so that, only when he has finished, he may at last hear his accuser’s voice? What? What is the point of this? That you may sooner have what is yours? But if you wanted that, the matter could long ago have been concluded. So as to fight a more honourable contest?

<sup>44</sup> But you cannot cut the throat of Publius Quinctius, your kinsman, without the highest crime. So that the trial may be easier for you? But Gaius Aquilius does not gladly give judgment in a capital matter, and Quintus Hortensius has not learned to speak against a man’s life. What, then, is being asked of us, Gaius Aquilius? He demands money; we deny it is owed. Let there be a trial at once: we do not refuse. Anything else? If he is anxious about whether the proceeds of judgment will be ready when judgment is given, let him take security for satisfying judgment; in the same words in which he takes security from me, let him give security on what I demand. The thing can already be over with, Gaius Aquilius; you can already walk free of a burden almost as heavy as Quinctius’s.

<sup>45</sup> Where do we stand, Hortensius? What do we say to this offer? Can we at last lay down our arms and dispute about money without the parties’ fortunes being on the line? Can we so pursue our own claim that we leave a kinsman’s life intact? Can we take on the part of plaintiff and lay down the part of accuser? “No,” he says, “I will take security from you; but I will not give security to you.” Who, pray, allots us terms so even as that? Who has decreed this — that what is fair against Quinctius is unfair against Naevius? “Quinctius’s goods,” he says, “were possessed under the praetor’s edict.” So you ask, in order that I might admit it, that what we are arguing in court has never been done, we should — as if it had been done — confirm by our own action.

<sup>46</sup> Can no way be found, Gaius Aquilius, that each may come as soon as possible to what is his own without disgrace, infamy, or destruction to anyone? Surely if anything were owed he would demand it, would prefer some other procedure to this single one out of which all these proceedings are sprung. The man who in all those years did not even address Quinctius, when he could have done so daily; who, when he first did begin to act, used up all his time in postponing the appointed dates; who afterwards even let the bond go; who by ambush forcibly threw him off their common land; who, when he could have brought the matter to trial without any objection, preferred a *sponsio* about character; who, when he is recalled to the very trial out of which all this has grown, repudiates the fairest of terms — such a man as good as openly admits that he is seeking not money but life and blood. Such a man openly says: “If anything were owed me, I would demand it, and would already long ago have got it;

<sup>47</sup> I would not need so vast an undertaking, so invidious a trial, so abundant a body of advocates, if it were a matter of demanding. It must be wrung out unwillingly; what is not owed must be torn out and squeezed; Publius Quinctius must be tipped off all his fortunes; the powerful, the eloquent, the noble must all be summoned. Force must be brought against truth, threats hurled, dangers held up, terrors interposed, so that, conquered and frightened by these things, he gives himself up at last.” All which, by *Hercules*, when I see those who fight against us and reflect on this assembly, seems to be at hand and impending and impossible to escape; but when I have turned my eyes and mind back to you, Gaius Aquilius, the more vehemently and zealously these things are pursued, the lighter and feebler I judge them. Nothing, then, was owed — as you yourself proclaim.

<sup>48</sup> What if it had been owed? Would there have been ground for applying to the praetor for permission to take possession of the goods? I do not think so — in justice, nor to anyone’s profit. What does *Naevius* show, then? He says his bond was broken. Before I prove that this was not done, I would like, Gaius Aquilius, to consider both the affair itself and *Sextus Naevius*’s own action in the light of his duty and of universal practice. “He had not come to the bond” — as you say — “the man with whom you had connection by marriage, partnership, every old reason and tie of intimacy”. Was it right at once to rush to the praetor? Was it

right at once to apply for leave to take possession of the goods under the edict? Were you so eager to descend to those last and most hostile remedies that you reserved nothing more grave or cruel for what you might do later?

<sup>49</sup> What more shameful thing can happen to a man, what more bitter and miserable to a man of standing? What disgrace can be greater, what calamity comparable? If fortune has taken money from someone, or someone's injustice has snatched it away, still, while reputation is intact, honour easily consoles want. Even one who is afflicted with disgrace or convicted in a shameful trial enjoys at least his own goods — though he has, what is most miserable, no expectation of another man's resources — in his miseries he is yet relieved by this aid and comfort. But the man whose goods have been put up for sale, the man whose ample fortunes — and not only those: even his necessary food and clothing — have been put up under the auctioneer with disgrace, this man is not only thrust out of the number of the living, but, if it can be done, is sent away below the dead too. For an honourable death often even adorns a shameful life; a life so shameful does not leave even an honourable death any room.

<sup>50</sup> And so, by Hercules: when a man's goods are taken into possession under the edict, his whole fame and reputation is taken with the goods. The man whose advertisements are posted in the most thronged places is not allowed to perish even in silence and obscurity. The man for whom managers are appointed and proprietors set up to declare on what law and on what conditions he is to be sold; the man over whom the auctioneer's voice declaims and fixes a price — to him, while still alive and seeing, the bitterest funeral is announced; if it is to be called a funeral when not friends gather to honour the obsequies, but buyers of goods, like executioners, gather to tear and rend the remains of his life.

<sup>51</sup> Therefore our forebears wished this rarely to happen, and the praetors arranged that the thing should be done with great consideration. Honest men, even when they are openly being defrauded, even when there is no power of bringing them to trial, descend to that step timidly and step by step, compelled by force and necessity, unwilling, after many bonds have been broken, often after they themselves have been tricked and let down. For they consider how serious a thing it is, and how great, to advertise another man's goods. To cut a citizen's throat, even by the law, no good man wants. He prefers it remembered that, when he

could have ruined a man, he spared him, rather than that, when he could have spared him, he ruined him. These things good men do for the most distant strangers, in the end even for their bitterest enemies, both for the sake of human reputation and for the sake of common humanity, so that, having done no harm to another knowingly, no harm by right may justly fall on themselves.

<sup>52</sup> “He did not come to the bond.” Who? A kinsman. If the matter taken by itself were grave, still its severity would be lightened by the name of kinship. “He did not come to the bond.” Who? A partner. You ought to extend something even more handsome to the man whom either choice associated with you, or fortune linked. “He did not come to the bond.” Who? The man who had always been at your service. So, against him who only this once committed the error of not being at your service, you have hurled all the weapons that are kept in store for those who have done many wrongs and committed many frauds?

<sup>53</sup> If a wretched twopence of yours were at stake, Sextus Naevius, if in some trifling matter you feared some entrapment, would you not at once have run to Gaius Aquilius or to one of those gentlemen who give legal opinions? When the rights of friendship, partnership, kinship were at stake, when account had to be taken of duty and of reputation, you not only did not refer to Gaius Aquilius or Lucius Lucilius — you did not even consult yourself; you did not even say this much to yourself: “It is two hours past the time. Quinctius has not come to his bond. What am I to do?” By Hercules, if you had said these two words to yourself — “what am I to do?” — your appetite and avarice would have caught its breath, you would have given some little space for reason and consideration; you would have collected yourself; you would not have come to such a nasty pass as to have to confess before such men as these that, in the same hour in which the bond fell to you broken, you took the resolve of overturning a kinsman’s fortunes from the foundations.

<sup>54</sup> I now consult these gentlemen on your behalf, after the time and on someone else’s matter, since you in your own matter forgot to consult, when there was time. I ask you, Gaius Aquilius, Lucius Lucilius, Publius Quinctilius, Marcus Marcellus: “A certain partner and kinsman of mine, with whom I have an old close tie and a recent dispute over money, has not come to his bond. Do I apply to the praetor to be allowed to take possession of his goods — or, when his house, wife, and children are at

Rome, do I rather give notice at the house?" What is the answer that any of you could possibly give? Surely, if I have rightly understood your goodness and prudence, I am not far wrong, were you to be consulted, in what your reply would be: first, to wait; then, if he should seem to be in hiding and to be putting things off, to consult friends, to ask who is acting as agent, to give notice at the house. It is hard to say how many things you would all answer ought to be done before having recourse, of necessity, to that last extreme.

<sup>55</sup> What does Naevius say to all this? He laughs at our madness, no doubt, in supposing that he should be measured by the rule of the highest duty, in expecting in his life the institutions of honourable men. "What have I to do with that lofty sanctity and scrupulousness? Let honourable men look to those duties; for me, the question is what I have, not by what means I have got it, nor how I was born, nor how I was brought up." I remember the old saying: a buffoon can become rich much more easily than the head of a household.

<sup>56</sup> What he does not dare to say in words, in deed he openly proclaims. For if he wishes to live by the rule of good men, there are many things he must learn and unlearn, both of which are hard at his age. "I did not hesitate," he says, "when the bond had been broken, to advertise the goods." Wickedly! But since you claim this for yourself and demand it be granted, let it be granted. What if he never broke it? If this whole charge has been concocted from beginning to end by your sheer fraud and malice? If you had no bond with Publius Quinctius at all? What name shall we call you by? Wicked? But even if the bond had been broken, in this petition and advertisement of the goods you would still have been found utterly wicked. Malicious? You do not deny it. Fraudulent? You actually claim it for yourself and think it praiseworthy. Bold, greedy, perfidious? Common and stale words; the matter is new and unheard-of.

<sup>57</sup> What is to be said, then? I am afraid, by Hercules, of using either weightier words than the natural force of the case bears, or lighter words than the case demands. You say the bond was broken. Quinctius asked you, the moment he returned to Rome, on what day you said this bond had been due. You replied at once: "On the Nones of February." As Quinctius was leaving you, he came to remember the day on which he had set out from Rome for Gaul. He turns to his diary; he finds the day of his departure: the day before the Kalends of February. If he was at

Rome on the Nones of February, we say nothing as to whether or not he gave you a bond.

<sup>58</sup> What now? How can this be discovered? Lucius Albius set out with him — a man of the first rank for honour. He will give his testimony. Friends accompanied both Albius and Quinctius. They too will give their testimony. The diary of Publius Quinctius, the witnesses — so many, with the strongest possible reasons why they could know, none why they should lie — will be set against your single corroborator.

<sup>59</sup> And in a case like this, will Publius Quinctius struggle? Will the wretched man go on longer in such fear and danger? Will his adversary's standing terrify him more vigorously than the judge's good faith consoles him? For he has always lived a rough and uncultivated life. He has been by nature austere and reserved. He has not been one for the sundial, nor for the Campus, nor for dinner-parties; his aim has been to keep his friends by attention, his estate by parsimony. He has loved the old idea of duty, the splendour of which has been worn dim by these manners of ours. If, in an equal case, he were to seem to leave the field the worse off, even then there would be no slight cause for complaint. As it is, in the better case he does not even ask to be on equal terms; he allows himself to be on inferior terms — only just so far as not to be surrendered, with all his goods, his reputation, his fortunes, to the appetite and cruelty of Sextus Naevius.

<sup>60</sup> I have shown what I promised first, Gaius Aquilius: that there was no cause whatsoever for Naevius to make his application; because nothing was owed in money, and that, even granting it had been owed, no act had been done that would warrant resort to that procedure. Now turn your attention to the point that Publius Quinctius's goods could in no way be possessed under the praetor's edict. Read the edict. "The man who shall have hidden himself for the sake of fraud." Quinctius is not such a man — unless those count as hiding who go about their own business and leave an agent in their place. "The man who shall leave no heir." Not he, either. "The man who shall have changed his country for the sake of exile." At what time, Naevius, do you think Quinctius ought to have been defended in his absence, and how? At the time when you were applying to take possession of the goods? Nobody was present, for nobody could have divined that you were going to apply, nor could anyone have been concerned to oppose what the praetor was ordering

— not, indeed, ordering to be done, but ordering to be done under his edict.

<sup>61</sup> What was the first opportunity, then, given to the agent for defending the absent man? When you were posting the advertisements. Well: he was there, he did not allow it; Sextus Alfenus tore down the bills. The first step of duty was kept, and kept by the agent with the highest diligence. Let us see what came next. You catch a slave of Publius Quinctius's in public; you try to take him off. Alfenus does not allow it; he wrests the man from you by force; he sees to it that the slave is brought back to Quinctius's house. Here too the diligent agent's duty stands fully maintained. You say Quinctius is in your debt. The agent denies it. You wish him to give bond; he gives it. You summon him to court; he follows. You demand a trial; he does not refuse. What it is, in any other terms, to be defended in absence, I do not understand. "But what sort of person was the agent?"

<sup>62</sup> Some shabby fellow picked out, no doubt, a litigious wretch, capable of bearing a wealthy buffoon's daily abuse. Nothing of the kind. A wealthy Roman knight, well in command of his own affairs — in fact the very man whom, every time Naevius set out for Gaul, he left as his own agent at Rome. And do you dare, Sextus Naevius, to deny that Quinctius was defended in his absence, when the very man who used to defend you was defending him? When the man into whose hands you used, on setting out, to commend and entrust your property and your name accepted the trial on Quinctius's behalf, do you try to say that no one was found to defend Quinctius in court?

<sup>63</sup> "I demanded," he says, "that he give security." You demanded it wrongly. "It was so ordered." Alfenus refused. "So, but it was the praetor who decreed." — The tribunes were therefore appealed to. — "At this point I have you," he says, "this is not to suffer trial nor to defend by trial, when you seek aid from the tribunes." This, when I consider how prudent Hortensius is, I do not think he will say. But when I hear that he has said it before, and consider the case itself, I cannot find what else he can say. For he admits that Alfenus tore down the bills, gave bond, did not refuse to accept the trial in the very words Naevius proposed — only by the established custom and procedure, through that magistrate who is appointed for the very purpose of giving aid.

<sup>64</sup> Either these things must not have been done, or else Gaius Aquil-

ius, a man of his quality, must, on his oath, lay down this rule of right in our state: that one whose agent has not accepted every trial put up to him in any words a plaintiff likes; one whose agent has dared to appeal from the praetor to the tribunes — that man is not defended; his goods can rightly be possessed; and it is fitting that, in his absence, miserable, ignorant of his fortunes, every ornament of his life should be torn from him with the highest disgrace and ignominy.

<sup>65</sup> Since this can be approved by no one, this surely must be approved by everyone: that *Quinctius*, in his absence, was defended in court. And that being so, the goods were not possessed under the edict. “But the tribunes did not even hear the case.” I admit that, if so, the agent ought to have obeyed the praetor’s decree. What of it, then? If Marcus Brutus said openly that he would interpose his veto, unless something were settled between *Alfenus* himself and *Naevius* — does it not appear that the appeal to the tribunes succeeded, not for delay, but for assistance?

<sup>66</sup> What happens next? *Alfenus* — so that all might understand that *Quinctius* was being defended in court, and lest any base suspicion could attach either to his own duty or to *Quinctius*’s reputation — summons several honourable men, attests in *Naevius*’s hearing that on the basis of their common kinship he asks first that *Naevius* do nothing more savage in his absence to *Publius Quinctius* without cause; but if, on the other hand, he is determined to press the contest with all hostility, that *Alfenus* is ready, by every honest and rightful procedure, to defend the proposition that what he claims is not owed; he accepts the trial on the terms *Naevius* proposes.

<sup>67</sup> The tablets of that proposal and condition were sealed by several honourable men. The matter cannot fall into doubt. So, with everything still entire, with the goods neither advertised nor in possession, *Alfenus* undertakes that *Quinctius* will appear before *Naevius*. *Quinctius* comes to that bond. The case lies in dispute, with *Naevius* wrangling, for two whole years, until a way could be found by which the matter might depart from the usual practice and the whole cause be locked into this unique trial.

<sup>68</sup> What duty of an agent, *Gaius Aquilius*, can be mentioned that *Alfenus* appears to have neglected? On what grounds is it claimed that *Publius Quinctius* was not defended in absence? Or perhaps *Horten-*

sius will say — as I think he will, since he has lately suggested it and Naevius keeps shouting it — that Naevius did not have an equal contest with Alfenus at that time, when those persons were dominant. Even if I should be willing to admit it, they will surely concede this much: it was not that Publius Quinctius had no agent, but that his agent had influence. For my purposes, it is enough for victory that he had *an* agent through whom the trial could be brought. What sort of man he was, provided he was defending the absent man through law and through a magistrate, has nothing to do with the matter, in my judgment.

<sup>69</sup> “He belonged to that party,” he says. Why not? — a man brought up in your house; a man you had so trained from boyhood that he would not back even a noble gladiator. If Alfenus wanted what you yourself always wanted to the highest degree, were you on that score not on equal terms with him? “He was a friend of Brutus’s,” he says; “and so Brutus was the one interposing.” But you, on the other side, had Burrienus deciding wrong, and indeed all those who at that time had the greatest power through force and crime, and who dared what they could. Or did you wish to defeat all those whom these now labour with so much effort to make you defeat? Have the courage to say so — not in public, but to the very men you have summoned.

<sup>70</sup> Yet I am unwilling to revive that subject by recalling it; the memory of which I think ought to be utterly torn up and erased. I will say only this: if Alfenus was strong because of party loyalty, Naevius was the strongest. If Alfenus, relying on influence, was demanding something inequitable, Naevius was getting much more inequitable things. There was no difference, I think, between your party allegiance: in talent, seniority, technique, you easily defeated him. To leave the rest aside, this is enough: Alfenus perished along with and on account of those whom he loved; you, on the other hand, when those who had been your friends could no longer prevail, contrived that those who did prevail should be your friends.

<sup>71</sup> But if you do not think you had equal right at that time with Alfenus — since, however, he could call out someone against you, since some magistrate could be found before whom Alfenus’s case could stand — what must we say at the present time of Quinctius? For whom no fair magistrate has yet been found, no usual trial granted; no terms, no *sponsio*, no demand has ever been made — and not just no fair demand, but

a demand of a kind that, until this time, no one had even heard of. “I want to dispute about money” — it is not allowed. “But that is the controversy.” — “It does not concern me; you must plead a capital cause.” — “Make your accusation, then, where that is necessary.” — “No,” he says, “unless you first speak in the prior place, in this new way.” — “Then I must perforce speak.” — “Hours will be set in advance at our pleasure; the judge himself will be coerced. —”

<sup>72</sup> “What then?” — “You will find some advocate or other, a man of old-school duty, who would not give a thought to our brilliance and influence. Lucius Philippus will fight for me — the most flourishing man in our state for eloquence, weight, and honours; Hortensius will speak — a man of outstanding talent, nobility, and reputation. Beside, the noblest and most powerful men will be present: their numbers and their massed presence will make even him quail who is a stranger to the danger, let alone Publius Quinctius, whose head is at stake.”

<sup>73</sup> This is an unequal contest, not the one in which you used to ride against Alfenus. To this man you have not even left a place to stand against you. So either you must show that Alfenus denied he was the agent, did not tear down the bills, was unwilling to accept the trial; or, since these things were so done, you must concede that you did not take possession of Publius Quinctius’s goods under the edict. For if you had taken possession under the edict, I ask: why were the goods not sold? Why did the other guarantors and creditors not turn up? Was no one to whom Quinctius owed anything? There were, and there were a great many, because his brother Gaius had left a fair amount of debt. What of it, then? They were all complete strangers to our man, and they were owed money; but no one was found so signally wicked as to dare violate the reputation of Publius Quinctius in his absence.

<sup>74</sup> One man only there was — a kinsman by marriage, a partner, a connection, Sextus Naevius — who, though he himself was a debtor besides, contended as eagerly as if a special prize had been offered for the crime, that the kinsman whom he had himself afflicted and overthrown should be deprived not only of his honourably acquired goods but even of the common light of day. Where were the other creditors then? Where, indeed, are they now? Is anyone saying that he hid himself for the purpose of fraud? Anyone denying that Quinctius in his absence

was defended? No one is to be found.

<sup>75</sup> On the contrary, all those who have, or have had, dealings with him are present, supporting him, working that the loyalty of our man — known on so many occasions — be not undermined by the perfidy of Sextus Naevius. For a sponsio of this kind, witnesses ought to be supplied from the kind of men who would say: “He broke a bond with me; he defrauded me; he asked me for a postponement on a debt he had denied; I could not bring him to a trial; he hid himself; he left no agent.” None of these things is being said. Witnesses are being procured to say so. Well, we will see, when they have spoken. Yet let them ponder this one thing: that they are weighty enough to be able, if they choose to keep the truth, to keep their weight; if they neglect it, they are slight enough that all may understand their authority is no help in maintaining a lie, only in proving the truth.

<sup>76</sup> I ask these two things: first, on what reasoning Naevius did not finish the business he had undertaken — that is, why he did not sell the goods of which he was in possession under the edict; and second, why, of so many creditors, no one else came forward on this account. From which it must necessarily be admitted either that no one else was so reckless, or that you yourself, after most shamefully undertaking the thing, could not bring yourself to persevere and complete it. What if you, Sextus Naevius, have yourself decided that Publius Quinctius’s goods were not possessed under the edict? Your own testimony, which would be worthless in another’s case, ought to weigh most heavily in your own, since it tells against you. You bought the goods of Sextus Alfenus when Lucius Sulla, the dictator, was selling them; you registered Quinctius as your partner in the purchase. I say no more. Were you forming a voluntary partnership with the man who, you say, had defrauded you in your inherited partnership? Were you commending — by your own judgment — the man whom you supposed stripped of all reputation and fortune?

<sup>77</sup> I doubted, by Hercules, Gaius Aquilius, whether I could stand fast in this case with steady and confirmed mind. So I thought to myself: when Hortensius is going to speak against me, when Philippus is going to listen to me attentively, I shall, in many points, slip from fear. I told this Quintus Roscius, whose sister is married to Publius Quinctius, when he was asking and most earnestly pressing me to defend his kinsman, that it

was very hard for me, against such orators as these, not merely to make my peroration in such a case but even to attempt to utter a word at all. Since he was urging eagerly, I told him — as friend to friend — that anyone with a brazen face who tries to do gestures with him in the audience seems to me to be impudent, and that anyone who contends with him — even if before they had seemed to have something correct or graceful — loses it. Lest something of the same kind happen to me, when about to speak against such an artist, I am afraid.

<sup>78</sup> Then Roscius told me many other things to encourage me; so that, by Hercules, even if he had said nothing, by his own silent duty and zeal toward his kinsman he would have moved anyone — for as he is an artist of a kind that he alone seems worthy to be looked at on stage, so he is a man of a kind that he alone seems worthy not to come on it. Yet at last: “What,” he said, “if you have a case in which you must make this plain, that no one can in two days, or at the outside three, walk seven hundred miles — are you still afraid you cannot make this contention against Hortensius?”

<sup>79</sup> “Not at all,” I said; “but what has that to do with the matter?” “Beyond doubt,” he said, “the case rests on it.” How? He is teaching me one of those matters of fact and acts of Sextus Naevius which, if it were brought forward together, would by itself be enough. I beg you, Gaius Aquilius, and you who are sitting in council, to attend carefully. You will surely understand that on the one side, from the start, appetite and audacity have been fighting; on the other, truth and modesty have been holding out as far as they could. You apply for leave to take possession of the goods under the edict. On what day? You yourself, Naevius, I want to hear; I want a deed unheard-of to be convicted by the very voice of the man who committed it. Tell us the day, Naevius. “On the fifth day before the Kalends of the intercalary month.” Well said. How far from here is it to your Gallic estate? Naevius, I am asking you. “Seven hundred miles.” Excellent. Quinctius is thrown off the estate — on what day? Can we hear this too from you? Why are you silent? Tell us the day, I say. He is ashamed to say. I see. But it is too late and useless to be ashamed. He is thrown off the estate, Gaius Aquilius, the day before the Kalends of the intercalary month. Two days later, or, if someone ran straight from the law-court at the very moment, in not three full days, seven hundred miles cannot be covered.

<sup>80</sup> O incredible thing! O reckless appetite! O winged messenger! Sextus Naevius's footmen and satellites cross from Rome over the Alps into the Sebagnine country in two days. O lucky man, to have such messengers — no, rather, such Pegasi! Here, even if all the Crassi and Antonii of the world should rise up, even if you, Lucius Philippus, who flourished among them, were willing to plead this case with Hortensius, still I must come off the better. For things are not, as you suppose, all in eloquence. There is a kind of truth so visibly clear that nothing can shake it.

<sup>81</sup> Did you, before you applied to take possession of the goods, send to see to it that the owner be forcibly thrown out of his own estate by his own household? Choose either: one is incredible, the other a crime, and until now both unheard-of. Do you maintain that seven hundred miles were covered in two days? Speak. You say no? Then you sent before. So much the worse. If you said the first, you would seem to be lying impudently; in admitting the second, you grant that you have committed a thing that not even a lie can cover up. Will so eager, so audacious, so reckless a piece of policy be approved by Aquilius and by men of his standing?

<sup>82</sup> What does this madness, this haste, this immaturity signify, but force, but crime, but brigandage — in short, anything sooner than law, than duty, than modesty? You sent without the praetor's order. With what design? You knew he was going to order it. What of it? Once he had ordered, could you not then send? You were going to apply. When? After thirty days. Of course, that is, if nothing hindered you, if your wish remained the same, if you were in good health, if you were even alive at all. Of course, the praetor would have given the order — yes, if he willed, if he were in health, if he were on the bench, if no one objected, if the man would, by his own decree, give security and accept trial.

<sup>83</sup> For, by the immortal gods! if Alfenus, Publius Quinctius's agent, had at that moment been willing to give you security and accept the trial, willing in fact to do everything you were applying for, what would you have done? Would you have called back the man you had sent into Gaul? But by then the man had already been thrown off his estate, hurled out headlong from his own household gods, and — what is most outrageous — violently assaulted by the hands of his own slaves, on your message and at your bidding. You were going to put these things right afterwards, of

course. Do you dare to speak of any man's life — you, who must concede that you were so blinded by appetite and avarice that, ignorant of what would later happen, with many things capable of intervening, you set the hope of an immediate wrong on the uncertain outcome of the time to come? And I am speaking as if at the very moment when the praetor had ordered you to take possession under the edict, if you had sent men into possession, you ought to have had, or could have had, the right of throwing Publius Quinctius out of possession.

<sup>84</sup> Everything in this case, Gaius Aquilius, is so plain that anyone can see in it wickedness and influence pitted against want and truth. How did the praetor order you to take possession? Under his edict, of course. In what words was the sponsio framed? "If Publius Quinctius's goods were not in possession under the praetor's edict." Let us go back to the edict. How does it order possession to be taken? Is there any reason, Gaius Aquilius, why, if Naevius took possession in a way far different from what the praetor's edict prescribed, he did not take possession under the edict, and I have won the sponsio? None, I think. Let us examine the edict. "Those who under my edict shall come into possession." He is speaking of you, Naevius, in your own way of looking at it; for you say you came under the edict. He is defining what you are to do, instructing you, giving you precepts. "It seems fitting that they be in possession in this manner." How? "What they will rightly be able to take care of in the place itself, let them take care of in the place itself; what they cannot, that it shall be lawful for them to carry away and lead off." What then? "It is not our pleasure that the unwilling owner be thrust out." Even the very man who is hiding himself for fraud, even the very man whom no one has defended in trial, even the very man who is dealing badly with all his creditors — it forbids him to be thrust out unwilling from the property.

<sup>85</sup> As you set out to take possession, the praetor himself, Sextus Naevius, says to you in plain terms: "See to it that you possess in such a way that Quinctius possess together with you; possess in such a way that no force is brought against Quinctius." What of it? How do you observe this? I forgo the point that the man was not hiding himself, that he had a house at Rome, a wife, children, an agent; the man who had not failed to come to your bond. All this I forgo. I say only this: that the owner was driven out of his estate; that the owner had hands laid on him by

his own household before his own household gods. I say this: if anyone takes possession by some means or other of one estate, but allows the owner to keep the rest of his property, he seems — in my judgment — to be in possession of the estate, not of another man's goods. What is it to take possession? Surely it is to be in possession of the things that, at the time, can be possessed. When there was a house at Rome, slaves, and in Gaul itself private estates of Publius Quinctius which you never dared to take into possession; if you were taking possession of Publius Quinctius's goods, you ought to have been in possession of them all under the same right. (*From a paraphrase by Iulius Severianus, ch. 16: that Naevius did not even address Quinctius, when he was both at hand and able to bring suit daily; secondly, that he preferred all those most difficult trials, brought with the greatest unpopularity to himself and the greatest danger to Publius Quinctius, to the one suit about money that could be settled in a single day — from which, by his own admission, all this has sprung.*) On which point I made the offer: that if he wished to claim money, Publius Quinctius would give security for satisfying judgment, provided that he himself, if he wanted to claim anything, used the same condition.

<sup>86</sup> I have shown how many things ought to have happened before the goods of a kinsman could be applied for in possession — especially when his house, wife, and children were at Rome and an agent who was kinsman to both. I have shown that, although Naevius says the bond was broken, there was no bond at all: that on the day on which he says Quinctius gave it to him, Quinctius was not even at Rome. I have promised to make this plain by witnesses who would have every reason to know and no reason to lie. I have shown, further, that the goods could not have been possessed under the edict, since Quinctius had neither hidden himself for the sake of fraud nor was said to have changed his country for the sake of exile.

<sup>87</sup> It remains: that no one defended him at trial. To which I have replied that on the contrary he was abundantly defended — not by some stranger, nor by some pettifogger or rogue, but by a Roman knight, his own kinsman and connection, the very man Sextus Naevius himself had been accustomed before now to leave as his agent. Nor was he, by appealing to the tribunes, any the less prepared to suffer a trial; nor was Naevius's right wrenched from him by the agent's influence. On the con-

trary, Naevius was at that time only just superior in his own influence, and now scarcely allows us breathing-room.

<sup>88</sup> I have asked what cause there was that the goods were not sold, when they were in possession under the edict; and further, why, of so many creditors, none did the same thing then nor speaks against him now, but all are fighting for Publius Quinctius — particularly when in such a trial the testimony of creditors is reckoned to bear most on the matter. Then I have used the testimony of the adversary himself, who recently registered as his partner the very man whom now, on his pleading, he claims was not even among the living. Then I produced that incredible speed — or rather audacity. I established the necessity that either seven hundred miles were covered in two days, or that Sextus Naevius sent men into possession many days before he applied for leave to take possession of the goods.

<sup>89</sup> I then read the edict, which expressly forbids that an owner be thrust off an estate. By which it is settled that Naevius did not take possession under the edict, since he admits that Quinctius was forcibly thrust off the property. I established further that the goods were not, on the whole, possessed — because the possession of goods is reckoned not in some part but in the whole of what can be held and possessed. I have said that there was a house at Rome which Naevius did not even approach; many slaves, of whom he took possession of none, did not even touch one. There was one whom he tried to touch; he was prevented and let it go.

<sup>90</sup> You learnt that in Gaul itself Sextus Naevius did not enter the private estates of Quinctius; lastly, that even from this estate, of which he took possession after forcibly expelling his partner, not all of Quinctius's private slaves were ejected. From this, and from the rest of Sextus Naevius's words, deeds, and designs, anyone can understand that he has done nothing else, and is doing nothing else now, except contrive that by violence, by injustice, by inequity of judgment he can make his own the whole estate that is held in common.

<sup>91</sup> Now that the case has been pleaded out, the matter itself and the magnitude of the danger seem to compel Publius Quinctius, Gaius Aquilius, to beseech and entreat you and those who sit beside you in your council — by his old age, by his isolation — to do nothing other than to follow the bent of your own nature and goodness; that, since the truth

makes with him, his want should weigh more towards mercy than this man's wealth towards cruelty.

<sup>92</sup> On the day we came to you as judge, on that same day we began to set lightly by those threats which we had previously dreaded. If case were contending with case, we judged that we could readily prove ours to anyone. The reason it was, that one rule of life was to be set against another rule of life is the very reason we judged we needed all the more to have you for judge. For the question is now in the balance: whether that rough and uncultivated parsimony of his can defend itself against luxury and licence, or whether, defaced and stripped of every ornament, it must be surrendered naked to appetite and insolence.

<sup>93</sup> Publius Quinctius does not match himself with you in influence, Sextus Naevius; he does not contend in resources, in capacity. All the arts in which you are great he yields to you; he confesses that he cannot speak elegantly, cannot speak to please, cannot desert a friendship in trouble and fly off to one in flower; cannot live by lavish expense; cannot adorn a banquet with magnificent splendour; cannot have a house closed to modesty and sanctity but open — in fact thrown open — to appetite and pleasures. He claims, on the other hand, that duty, faith, diligence, a life always rough and dry, have been dear to his heart. That those things are higher today and count for most in our manners — he is aware. What of it, then?

<sup>94</sup> Not so far that those who, abandoning the discipline of good men, have preferred to follow Gallonius's manner of profit and expenditure — and who, what was not in him, have moreover lived with audacity and perfidy — should be lord over the lives and fortunes of the most honourable men. If a man may live whom Sextus Naevius does not wish to, if there is room for an honourable man in the state against Naevius's will, if it is right for Publius Quinctius to draw breath against Naevius's nod and command, if the marks of distinction his modesty has earned for him he can keep, against insolence, with me defending him, then there is hope that this miserable and unhappy man may at last be allowed to stand. But if Naevius shall be permitted to do whatever he likes, and shall like what is not lawful, what is to be done? What god is to be called on? What man's faith is to be implored? What complaint, what mourning, what sorrow can fitly be found, in so great a calamity?

<sup>95</sup> It is miserable to be tipped off all one's fortunes; more miserable,

by injustice. It is bitter to be cheated by anyone; more bitter, by a kinsman. It is calamitous to be overturned in one's goods; more calamitous, with disgrace. It is deadly to have one's throat cut by a brave and honourable man; more deadly, by one whose voice was once for sale on the auctioneer's stand. It is unworthy to be defeated by an equal or a superior; more unworthy, by an inferior or a baser man. It is grievous to be handed over to another along with one's goods; more grievous, to an enemy. It is horrible to plead a capital case; more horrible, to plead it in the prior place.

<sup>96</sup> Quinctius has looked all about, has tried everything, Gaius Aquilius. He could not find a praetor from whom he could obtain his right — not even one before whom he could lodge his application as he pleased. He could not even find friends of Sextus Naevius — at whose feet he often and at length lay prostrate, beseeching them by the immortal gods either to contend with him by law or to lay any injustice on him without ignominy.

<sup>97</sup> At last he has subjected himself to that adversary's most haughty face. He has, with tears, taken Sextus Naevius's own hand — the hand practised in advertising a kinsman's goods — and besought him by the ashes of his own dead brother, by the name of kinship, by Naevius's own wife and children (none of whom is closer than Publius Quinctius), that at last he show some mercy: have some regard, if not for kinship, then for his own age; if not for the man, then for human nature. That he settle with him on any terms whatever, with his reputation kept whole — on any terms, however hard, only let them be tolerable.

<sup>98</sup> Refused by Naevius himself, unsupported by Naevius's friends, harassed and terrified by every magistrate, he has no one whom he can appeal to except you. To you he commits himself, to you all his goods and fortunes; to you he commits the reputation and hope of the rest of his life. Worn down by many insults, tossed by many wrongs, he takes refuge with you not as a disgraced man but as a wretched one. Thrown out of his richest estate, set upon by every kind of disgrace, when he saw Naevius lording it in the goods his own father bequeathed, he could not provide a dowry for his marriageable daughter — yet he committed nothing alien to his earlier life.

<sup>99</sup> Therefore he beseeches this of you, Gaius Aquilius: that the reputation, the honour which now, when his life is almost over and run out,

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he has brought into your judgment, he be allowed to bear away with him from this place — that the man on whose duty no one ever cast doubt should not, in his sixtieth year, be marked with disgrace, with a stain, with the foulest ignominy; that Sextus Naevius should not abuse all his ornaments as if they were spoils; that it should not happen through you that the same reputation which carried Publius Quinctius all the way to old age should not also escort him all the way to the funeral pyre.

## FOR SEXTUS ROSCIUS OF AMERIA

*Pro Sex. Roscio Amerino*80 BC

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*Delivered at Rome in 80 BC, when Cicero was twenty-six and a novus homo only three years past his first surviving speech. The case is a defence of Sextus Roscius the younger, of Ameria, against a charge of parricide; the real target of Cicero's attack is Lucius Cornelius Chrysogonus, the most powerful of Sulla's freedmen, who had acquired the murdered father's estates at a corrupt sale and now wished the son condemned in order to silence the only witness. The speech secured Roscius's acquittal and made Cicero's reputation: it is the first work in which the rhetorical and political voice that defines the later corpus is fully present, and the first in which Cicero attacks a named representative of the Sullan order. He does so with elaborate deference to Sulla himself, naming Chrysogonus as the architect of every crime while protesting that the dictator's victory was just and willed by the gods.*

<sup>1</sup> I imagine, gentlemen of the jury, that you wonder what it is that has happened: that with so many of the leading orators and the noblest men in Rome sitting here, I in particular should have stood up — I, who in years and in talent and in standing am not to be compared with those who sit. Every one of these men whom you see in attendance for the defence holds that an injury contrived by an unprecedented criminality ought to be opposed; but to oppose it themselves they do not dare, given the harshness of the times. So they are present, because duty requires it, and silent, because they want to avoid the danger.

<sup>2</sup> What then? Am I the boldest of all? Not in the least. Or so much more dutiful than the rest? I am not so eager for that praise either as to want it snatched from others. What is it, then, that has driven me beyond the rest to take up the cause of Sextus Roscius? Because if any of those gentlemen had spoken, men whose authority and standing are very great, and had let fall a single word about the state of the commonwealth — as in this case must of necessity be done — he would be thought to have said far more than he had in fact said.

<sup>3</sup> If, on the other hand, I speak openly everything that needs to be said, my words will not, even so, get out and spread among the public in the same way. Then again, what others say cannot pass unnoticed, given their high birth and standing; nor can it be excused as said rashly, given their age and prudence. As for me, if I have spoken with some freedom, it can either pass unnoticed, since I have not yet entered public life; or it can be pardoned to my youth — though by now both the principle of pardoning and the practice of taking notice have been wholly abolished from our state.

<sup>4</sup> There is also this further reason: that perhaps the others were asked to speak in such a way as left them free to think they could either accept or refuse without compromising their duty. I was approached by men whose friendship, whose kindness, whose standing weighs heaviest with me, men whose kindness towards me I could not ignore, whose authority I could not slight, whose request I could not disregard.

<sup>5</sup> For these reasons I have stood up to speak, not as the man chosen with the most ability, but as the one with the least responsibility left over from other engagements; and not so that Sextus Roscius might be defended by an advocate of standing, but so that he should not be left wholly without one. Perhaps you will ask: what is this case, that scares off so many of the leading men? You will not wonder when you hear what it is. For I think you will judge that no one could possibly have been left more abandoned and helpless than the man for whom I now must speak.

<sup>6</sup> I will set out the whole charge — and the manner of the prosecution — as briefly as I can, gentlemen. Then you will easily understand both why this affair has fallen to me and what the situation is. The father of this Sextus Roscius, a man of Ameria — by far the first man in his municipality, and not only by birth but by character and means — and indeed in standing among the leading men of all Italy, given his connections of friendship and hospitality with the most distinguished houses of our city, —

<sup>7</sup> this man, with all his rank in the municipality and his reputation in the wider world, with all the praise that high character could earn, was killed; and although his death is, in itself, the matter of accusation, the case of his son is what comes to trial. The son, who in this case is the defendant, is here. He is charged with parricide. What sort of son? You

will understand when I have set out the rest in order.

<sup>8</sup> For the murder, the persons accused are those whom I will name. As for who killed Sextus Roscius the elder — whether it was those who, as I will show, gained most by his death; or those who feared him most while he was alive and rejoiced most when he was dead; or those who at the time were already implicated in similar atrocities — this you will judge for yourselves once the full circumstances are laid out.

<sup>9</sup> Sextus Roscius the father, gentlemen, was a man of the old school, a Roman of rank in his own town, devoted to the leading citizens of Rome, especially to the Metelli, the Servilii, and the Scipios — houses whose names I mention with respect, since their friendship was both an ornament to him and an honour. While he lived, he visited Rome only as a private citizen who held a place of dignity in their banquets and in their councils. He was a friend, in particular, of the late Caecilia, sister of Nepos, daughter of Balearicus — a woman whose memory the better sort of citizens are bound to cherish; in her household this Sextus Roscius the younger took refuge when his father had been killed, and there he was sheltered.

<sup>10</sup> For this woman, by her tenacity in keeping faith, has held to the dictates of an ancient and noble decency in our days, days in which we are scarcely able to recognise such virtue any longer. She has not allowed the son of a friend, the man whom she had received under her protection, to be cast forth into the streets, even when his fortune was at its lowest, when his enemies were at their highest, when by the law of the times nothing was further from prudence than to take in such a man.

<sup>11</sup> Through her courage, her fidelity, her diligence, what we have on our hands now is a defendant accused while still living, and not a corpse stripped of all rights. For you must know, gentlemen, that those who killed the father of this Sextus Roscius wanted, on top of the killing, to disinherit, despoil, and destroy the son. They are men who can endure no witness to their crimes; they wish them to be shrouded in such a way that not even rumour can reach the public. And so, though they have driven the son from his ancestral lands, they are seeking even now, on top of what they have done, his blood. They could not be content with how they had glutted their cruelty, unless they added this final touch to the rest.

<sup>12</sup> Bitter is what we suffer, gentlemen; bitter and unworthy: but

more endurable, perhaps, if those who do these things were our enemies, or strangers, or barbarians. As it is, the men I will name — you will judge — were of our own household: they ate at our table, they shared in our family business, they were treated as kin. From these men this defendant has had to defend his life, his property, and his good name. From these men he must now defend himself before you. Whatever you decide, you must decide with full understanding of what they did, of what they sought, and of what they intend.

<sup>13</sup> I will go through the matter from the beginning. Sextus Roscius the father, a citizen of Ameria, in standing the foremost man of his town, in property well-furnished, in friendships at Rome very richly endowed — he was, as I have said, on close terms with the noblest houses of our city. There was, in his own neighbourhood, a man named Titus Roscius Magnus, and another named Titus Roscius Capito, both of his own family, both equally ill-disposed towards him, but unequally distinguished in their lives: Capito the elder thug, Magnus the cleverer one. From these two men, his kinsmen, came the trouble that destroyed him.

<sup>14</sup> For these men had quarrelled with him over a long-standing grudge, and as their quarrel grew, they began to look about for some way of getting rid of him. Now Sextus Roscius the elder used to come down to Rome from time to time. One night, on his way back from supper, near the Pallacinian baths, he was set upon and killed. The kinsmen, who had long planned for this moment, immediately seized the opportunity that the death gave them.

<sup>15</sup> For there was at this time a powerful man in Rome named Lucius Cornelius Chrysogonus — I do not need, I think, to remind you who he was; you know that he was the most influential of all the freedmen of Lucius Sulla, and that for several years he held a very free hand in the public proscriptions. With this Chrysogonus the kinsmen of the elder Roscius opened a private negotiation. Once the murder was done, before the news could reach Ameria by any reliable channel, they had a courier on the road from Rome to the elder Roscius's neighbours — a courier of theirs, in their pay, with their instructions. The decuriones of Ameria, hearing of the death, sent messengers to Sulla, urging him to set apart the property of the murdered man, since it was illegal to confiscate the goods of one who had not been proscribed. Their messengers reached Sulla's camp at Volaterrae — but they did not see Sulla.

<sup>16</sup> For Chrysogonus, in the meantime — working with the kinsmen — had pulled it off. Within a few days the property of Sextus Roscius the father, an estate worth some six million sesterces, was put up at auction, sold for two thousand sesterces, and bought in by Chrysogonus himself — though some of the most valuable farms passed at once to Magnus and Capito as their share. The decuriones' deputation arrived at the camp; they were intercepted by Chrysogonus, given assurances that all would be done as they wished, and sent home. Sulla never even heard of the matter. The corpse was barely cold when the booty was being divided.

<sup>17</sup> Now of all the murdered man's goods the son got nothing. He was driven from the house, expelled from the lands, denied even the funeral rites of his father in their proper manner. He fled, naked of all support, to Caecilia, of whom I have spoken. Through her, he came at last under the patronage of Marcus Messalla, a young man whose nobility you all see, whose energy and decency are conspicuous. Messalla, finding the son entirely alone, with no one to take his part, with not a pretext of help to be had from anywhere, agreed at last to bring the case before this court.

<sup>18</sup> While these things were being done in Ameria, Magnus and Capito enjoyed for a time their share of the estates. Then, fearing that someone might at last begin to ask questions, they conceived a fresh plan: to get rid of the son too. Their first attempt was to have him killed on the spot. When that failed, when the son had escaped to Rome, they decided to murder him in Rome. When that too proved impractical, they hit upon a more elegant device — they prosecuted him for the murder of his own father.

<sup>19</sup> For if they could secure his condemnation on a charge of parricide, they would not only put a definitive end to the only witness who could testify against them: they would also so cover their own crime under the colour of justice that no one would ever again hear a word said against them. The infamy of the parricide-conviction would silence everyone — and the goods now in Chrysogonus's hands would be theirs in safety forever. So they have come into court to prosecute, and they have made an arrangement with one Erucius, who carries the prosecution for them, that he is to make speeches and they are to remain in the background while my client is being charged with their crime.

<sup>20</sup> Now, gentlemen of the jury — such is the whole matter. The son

of a man whom they killed, whom they robbed of his estate, whom they cast from his ancestral lands, this same son they now charge with parricide. Could anything more outrageous be conceived? Could anything more shameless be imagined? In what court of the Roman people, in what age of the Republic, has such a thing been heard? But of all this you will hear more, in detail, as I proceed.

<sup>21</sup> Let me begin, then, by saying who Sextus Roscius the elder was, what kind of life he led, what kind of household he kept, and how it stood between him and his kinsmen who now charge his son. He was, gentlemen, a man of the old Roman virtues. He had no acquaintance with luxury; he had every acquaintance with industry. He worked his lands; he managed his establishment; he raised a son. He was loyal to the friendships he had inherited from his father; he was generous to the friends he had made for himself. He was very rich, and he carried his riches without ostentation.

<sup>22</sup> The kind of son he raised, you may judge from the fact that, while his father lived, he never set foot in Rome. He spent his life on the family estates, working with his own hands when work was wanted, supervising others when supervision was wanted, knowing little of city affairs and less of city pleasures. From this you can see what kind of person you are now asked to convict of parricide. A young man, raised in country quietness, ignorant of every luxury, ignorant of every refinement of vice — and condemned, on no evidence whatever, to a charge that has scarcely been heard at Rome twice in living memory.

<sup>23</sup> The case for the prosecution, when you strip away its rhetorical flourishes, comes to this: that this defendant murdered his father. The evidence offered? None. The motive supplied? None worth a man's consideration. The means, the place, the moment of the alleged killing? Nothing definite is said. We are simply asked to believe that he did it because Erucius says he did. Erucius! Who, when his fee has been paid, will go home and forget that Sextus Roscius ever existed; whose voice you have only heard so loudly today because he has been hired to make a noise.

<sup>24</sup> I shall divide my whole defence into three parts. First, I will speak about the charge of parricide, and refute Erucius's argument piece by piece. Second, I will speak about the seizure of the property and the persons involved in that seizure. Third, I will speak about Chrysogonus's

part in the matter — because, although I shall do it at the cost of some of his displeasure, the truth in this case cannot be told without naming him.

<sup>25</sup> On the first part, then. Erucius made a long speech, but his charge has substance only at one point: he says my client wished to kill his father because of a quarrel that had risen between them. I ask, gentlemen of the jury, whether anyone has ever before been brought into a court on so slender a thread. There was a quarrel between father and son, says Erucius. What sort of quarrel? Was the son disinherited? No: not even when the father was angriest with him was that ever proposed. Was the son banished from the household? No. Was anything done to the son to suggest that the father wished, in any degree, to be rid of him? Nothing: nothing was done.

<sup>26</sup> They were so afraid, this Sextus Roscius and his neighbours, that they preferred to die rather than have Sulla informed of what was being done. They were men of the old school, who imagined others to be like themselves; and when Chrysogonus assured them that he would have the name of Sextus Roscius struck off the proscription rolls and the estates handed back to the son intact, and when Titus Roscius Capito — one of the ten delegates — promised that this would in fact be done, they believed it. Without ever pleading their case, they went home to Ameria. At first these gentlemen merely put off the matter day by day; then they grew lazier still and toyed with their promises; finally — as was easily perceived — they began to plot against the life of this Sextus Roscius, judging that they could not long hold the property of another while its owner was still alive.

<sup>27</sup> As soon as my client realised this, on the advice of his friends and kinsmen he fled to Rome and put himself under the protection of Caecilia, sister of Nepos, daughter of Balearicus — a name I mention with respect — with whom his father had had close and constant friendship. In this woman, gentlemen, even now — as everyone has always thought — the traces of the ancient sense of duty remain, almost as a specimen of what once was. She received Sextus Roscius into her house, destitute, driven from his home, dispossessed of his property, fleeing the swords and threats of cut-throats; she stood by a guest who had already been crushed and given up for lost by everyone else. By her courage, her loyalty, and her diligence it has come about that this man stands before you

alive on a charge, instead of being entered, dead, on the proscription lists.

<sup>28</sup> For when these gentlemen perceived that Sextus Roscius's life was being guarded with the greatest care, and that no opportunity of murdering him was to be found, they took up a plan full of crime and audacity — to lay against him a charge of parricide, to procure for the prosecution some old hand who could speak to a matter on which there was in fact no shred of suspicion, and finally, since they could not win on the merits, to win by the timing alone. The talk that was put about ran like this: that since trials had been suspended for so long, the first man to be brought into court was bound to be condemned; that this defendant would have no advocate, owing to Chrysogonus's standing; that no one would breathe a word about the sale of the estates or about the partnership; that the very word "parricide" and the horror of the charge would, by themselves, be enough to ensure that he was disposed of without any difficulty, since he had no one to defend him.

<sup>29</sup> Driven by this design, by this very madness, those who could not kill him themselves — though they wanted to — have handed him over to you for the killing. What shall I lament first, gentlemen? Where shall I begin? Whose help, and against whom, shall I invoke? The faith of the immortal gods? Or of the Roman people? Or of you, who hold the supreme authority of the state at this moment?

<sup>30</sup> His father has been murdered, foully. His house has been seized by his enemies. His goods have been taken, occupied, plundered. The son's life has been threatened; he has been hunted with steel and ambush. What kind of crime is missing from all these crimes? And yet on top of all this they pile and heap further outrages: they fabricate an incredible charge; they procure witnesses against him; they hire prosecutors with the very money they took from his father. They offer my wretched client this choice: either give his throat up to Titus Roscius's knife, or be sewn into a sack and lose his life in the most disgraceful manner. They thought he would have no advocates: he has none. But, gentlemen, the man who will speak openly, who will defend him with good faith — which is what this case really requires — has not, after all, failed him.

<sup>31</sup> Perhaps in undertaking the case I was driven a little impulsively by the rashness of youth. Yet, having once undertaken it, even if every threat, every terror, every danger were to bear down on me from every quarter, I will see it through; I will face whatever comes. I have made up

my mind, and I have settled it: that I will say everything which I judge relevant to the case — and not just say it, but say it gladly, boldly, freely. Nothing that may arise, gentlemen, will ever weigh upon me with such force that fear can outweigh good faith.

<sup>32</sup> Truly, who is so spiritless as to see all this and remain silent and indifferent? You murdered my father, though he had not been proscribed. You then put down his name on the list of the proscribed. You drove me from my own house by force. You hold my patrimony. What more do you want? Have you come now into the court itself, with steel and weapons, in order either to murder this defendant or to procure his condemnation?

<sup>33</sup> We had recently in our city a man as bold as any in living memory, Gaius Fimbria, and — as everyone agrees, except those who are themselves madmen — as mad as any. When he had arranged at the funeral of Gaius Marius for Quintus Scaevola to be wounded — Scaevola, the most upright and most distinguished man of our state, of whose praises this is not the place to say much (and not much could be said, in any case, beyond what the Roman people preserve in memory) — and when he learned that Scaevola was likely to recover, he laid an indictment against him. When he was asked what he could possibly find to charge against a man whom no one could really praise enough to do him justice, he is said — being the maniac he was — to have answered: "for not having taken the whole weapon into his body." The Roman people have seen nothing more shocking than this — except the death of that same Scaevola, which was so disastrous that, by his murder, all those whom he had wished to save by negotiation perished with him; the men he had hoped to spare by compromise killed him.

<sup>34</sup> Is the present action so very different from that saying and that deed of Fimbria's? You bring a charge against Sextus Roscius. Why? Because he escaped from your hands. Because he refused to let himself be killed. The other case, since it concerned Scaevola, looks more shocking; but this one, because it is being done by Chrysogonus, is intolerable. By the immortal gods! What in this case requires defence? Where is the talent of an advocate, where the eloquence of an orator, urgently required? Let us simply set the whole matter forth, gentlemen, and consider it laid out before our eyes. So you will most easily see what is at stake in the whole trial, on what points I ought to speak, and in what direction your

judgement ought to move.

<sup>35</sup> There are three things, so far as I can judge, that stand in the way of Sextus Roscius today: the charge brought by his adversaries, their audacity, and their power. The fabrication of the charge has been undertaken by the prosecutor Erucius. The audacity belongs to the Roscii, who have claimed that part for themselves. And Chrysogonus, the man with most influence, fights with his power. About every one of these things I see I must speak.

<sup>36</sup> But not in the same way about every one. The first — the charge — belongs to my office. The other two have been laid upon you by the Roman people. I must dilute the charge to nothing. You must resist their audacity, and you must extinguish and crush, at the very first opportunity, the dangerous and intolerable power of men of this kind.

<sup>37</sup> Sextus Roscius is accused of having killed his father. By the immortal gods, what a wicked, what an unspeakable deed! What a crime, in which all crimes seem to be wrapped up in one! For if — as the wise have so finely said — filial duty can be wounded merely by an expression of the face, what punishment harsh enough can be found for one who has dealt his parent his death? The man for whom, if matters had required it, divine and human law alike would have compelled him to die in his father's place.

<sup>38</sup> For so great, so atrocious, so singular a crime — a crime so rare that, if ever it has been heard of, it is reckoned among portents and prodigies — with what arguments, Gaius Erucius, do you suppose a prosecutor ought to come forward? Ought he not to show the singular audacity of the man brought to trial, his savage character and inhuman nature, a life given up to every vice and every disgrace, and finally everything in the man wrecked and ruined to the point of self-destruction? Of all this, you have brought forward not one shred against Sextus Roscius — not even by way of slander.

<sup>39</sup> Sextus Roscius killed his father. Who is the man, then? A young rake, corrupted, led astray by worthless companions? More than forty years old. A practised assassin, no doubt, a daring fellow, often involved in murders? Not a word of any such thing have you heard from the prosecution. So it must have been luxury, or a great burden of debt, or unbridled passions of the heart, that drove him to this crime. Of luxury Erucius cleared him by saying that he was hardly ever even at a dinner

party. Debt — he has never owed anyone a thing. Passions of the heart — what passions can there be in a man who, as the prosecutor himself has charged, has lived all his life on the land, working a farm? A life as far removed from passion, and as bound up with duty, as any can be.

<sup>40</sup> What was it, then, that turned this enormous madness against Sextus Roscius? "He did not please his father," he says. He did not please his father? Why? It must have been a serious and obvious cause. For just as this is incredible — that a son should have brought death upon a father without very many and very weighty reasons — so this too is unbelievable: that a son should have been hated by a parent without many and weighty and compelling causes.

<sup>41</sup> Let us return, then, to the same point and ask: what such great failings were there in this only son that he displeased his father? But it is plain there were none. Is the father then to be supposed mad, who hated without cause the son he had begotten? But the father was the most level-headed of men. So this much is now plainly clear: if the father was not mad, and the son was not depraved, then there was neither a cause for hatred on the father's side, nor a cause for crime on the son's.

<sup>42</sup> "I do not know," he says, "what cause there was for the hatred — but that there was hatred I gather from this: that the father, while he had two sons, used to keep the one who has since died at his side at all times, and had relegated this one to country estates." What was happening to Erucius in his bad and silly prosecution is happening also to me in my excellent case: he could not find a way to make his fictitious charge stand up; I cannot find a way to refute and dilute objections so flimsy.

<sup>43</sup> What are you saying, Erucius? So many estates, so beautiful, so productive, Sextus Roscius the elder had handed over to his son to manage and look after as a kind of relegation and punishment? What? Heads of households who have children — especially men of that rank, from country municipalities — do they not consider it the most desirable thing for their sons to be most actively engaged in the family business, and to spend all their effort and care on the management of the estates?

<sup>44</sup> Or had he sent him off in such a way that he was to be on the land merely to be fed at the farmhouse, deprived of every comfort? What if it is established that not only did he have charge of the estates, but that he was accustomed, in his father's lifetime, to enjoy the profits of certain particular farms? Will you still call that life of his in the country

a relegation, an exile? You see, Erucius, how far your argument is from the substance and the truth. What fathers do as a matter of custom, you reproach as if it were something new. What is done out of affection, you allege was done out of hatred. What the father, as a mark of honour, granted his son, you say he did as a punishment.

<sup>45</sup> You are not unaware of all this. But you are so short of substantive accusations that you think you must speak not only against us, but against the nature of things, against the customary practice of mankind, against everyone's settled opinions. "But, with two sons, he kept one always with him, and let the other live in the country." Erucius, please — I beg you to take this in good part; I will not say it to wound you, but to remind you.

<sup>46</sup> If fortune did not give you a known father from whom you could learn what a father's feeling for his children is, nature certainly gave you no small share of human feeling; and to that has been added a love of letters, so that you are not a stranger even to literature. Take it from the comic stage. Does the old man in Caecilius's play seem to you to value Eutychus, his country son, less than that other one — Chaerestratus, I think the name is — whom he keeps at his side in town as an honour, while he relegates the other to the country as a punishment?

<sup>47</sup> "Why are you wandering off into these absurdities?" you will ask. As if it were difficult for me to bring forward as many examples as you like by name — and not to wander too far afield, my own fellow tribesmen and neighbours, who wish to have their children, of whom they think the world, made into hard-working farmers. But it is tiresome to call up real names, partly because it is doubtful whether the people in question would be glad to be named, partly because no one will be more familiar to you than this Eutychus, and partly because in fact it makes no difference whether I name a young man from a comedy or someone from the territory of Veii. Indeed I think these things were composed by the poets so that we might see our own ways set out in others' persons — a faithful image of daily life.

<sup>48</sup> Now turn your mind to the truth of the matter. Consider — not just in Umbria and the country round it, but in those old country municipalities of Italy — what kinds of pursuits in their sons heads of households especially praise. You will see at once that, for want of charges, you have made the highest praise of Sextus Roscius into a fault and a reproach.

And this is not only what their sons do at their fathers' wish: I myself know many — and unless I am mistaken, every one of you knows men — who, themselves on fire with enthusiasm for everything connected with the farm, regard this country life — which you take as something necessarily disgraceful and criminal — as the most honourable and the most agreeable kind of life there is.

<sup>49</sup> What do you suppose is the energy and intelligence with which this very Sextus Roscius pursues country matters? From his neighbours — men of the highest reputation — whom I have heard speak of him, you, Erucius, are not more skilled in your prosecuting trade than he is in his. But I suppose, as it pleases Chrysogonus, who has not left him a single farm, that he will have to forget his trade and lay aside his pursuits. Wretched and unworthy as that is, he will bear it calmly enough, gentlemen, if through you he can keep his life and his good name. But this is what cannot be borne: that the very excellence and abundance of his estates, and the eagerness with which he cultivated them, should be the chief grounds of his ruin — as if it were not misery enough that he cultivated them for others, not himself, but he must also be made a defendant for having cultivated them at all.

<sup>50</sup> You really would have made an absurd prosecutor, Erucius, had you been born in those days when men were called from the plough to be made consul. For if you suppose it a disgrace to be in charge of cultivating a farm, you would surely have judged that Atilius, whom they found scattering seed with his own hand, the most disgraceful and dishonourable of men. But by Hercules our ancestors thought far otherwise of him and of others like him; and so it is that, from the smallest and slenderest of states, they left us the greatest and most flourishing. They cultivated their own fields with care; they did not greedily reach after the fields of other men. By so doing — in fields and in cities and in nations — they enlarged the state, and our empire, and the very name of the Roman people.

<sup>51</sup> I do not bring forward these matters because they are to be set side by side with the case at hand, but to make this point understood: that since among our ancestors the leading and most distinguished men — men who at every moment ought properly to be at the helm of state — nevertheless spent some part of their effort and their time on the cultivation of their own land, it is right to forgive a man who admits that he is a countryman, who has lived steadily in the country, especially when there

was nothing he could possibly have done that was either more pleasing to his father, or more agreeable to himself, or in real truth more honourable.

<sup>52</sup> So the bitter hatred of the father against the son is shown, I take it, Erucius, by this single fact: that the father allowed him to live in the country. Is there anything else? "Yes, indeed," he says, "there is. For he had it in mind to disinherit him." I am listening; now you say something to the point. For those other things, I take it, even you grant are flimsy and absurd: "He did not attend dinner parties with his father." Naturally, since he hardly even came to town except very rarely. "Almost no one invited him to his house." No wonder, since he neither lived in the city nor was likely to return the invitation.

<sup>53</sup> But you yourself understand that all this is trifling. Let us look at what we set out to look at, the surer ground from which an inference of hatred could possibly be drawn. "The father was thinking of disinheriting his son." I will not press to ask why; I ask only how you know. Though it was your duty to say it and to enumerate every reason. It was the office of a serious prosecutor, who was bringing a charge of so monstrous a crime, to set out every fault and every offence of the son, by which the parent could have been so inflamed as to overcome nature itself, to drive that deeply implanted love out of his mind, and finally to forget that he was a father at all. Without grave failings on the son's part, I do not believe such a thing could happen.

<sup>54</sup> But I will allow you to leave aside what, by your silence, you concede was nothing at all. You must at least make this much plain: that he wished to disinherit. What evidence do you bring forward, that we should suppose this happened? You can produce nothing real; invent something at least, with some skill, so as not to look exactly as you do look — making sport of this wretched man's misfortune and of the dignity of these distinguished gentlemen. He wished to disinherit his son. For what reason? "I don't know." Did he disinherit him? "No." Who stopped him? "He was thinking about it." Thinking? To whom did he say so? "To no one." What is this but to abuse, for profit and for caprice, the courts and the laws and the dignity of this body — to bring a charge in this fashion, to assert what you cannot make plain and which you do not even attempt to make plain?

<sup>55</sup> There is not one of us, Erucius, who does not know that you have no quarrel of your own with Sextus Roscius. Everyone sees what

brings you forward as his enemy. Everyone knows that the prospect of his money has drawn you. What of it? You ought to have been moderate enough in your greed at least to think that the opinion of these gentlemen, and the *lex Remmia* (a law against malicious prosecution) ought to count for something.

<sup>56</sup> It is useful to have many prosecutors in the state, so that audacity may be held in check by fear. But it is useful in such a way that we are not to be made absolute fools of by prosecutors. A man is innocent — but, though he is free from guilt, he is nevertheless not free from suspicion: a sad case, but the man who prosecutes him I could in some way pardon, since, having something to which he can give a criminal and suspicious colour, he does not look like one knowingly playing a public game and suing for spite. So we readily put up with as many prosecutors as you like, because the innocent man, if accused, can still be acquitted, while the guilty cannot be condemned unless he is accused. It is more useful that the innocent be acquitted than that the guilty go untried. Geese are publicly fed at the cost of the state, and dogs are kept on the Capitol, that they may give warning if thieves come. They cannot tell thieves apart, but they sound the alarm if anyone has come up onto the Capitol at night; and, since this is suspicious, although they are mere brutes, they err at any rate on the side of caution. But if the dogs barked even by daylight, when worshippers came to greet the gods, I take it their legs would be broken — because they are sharp at a moment when there is no suspicion at all.

<sup>57</sup> The case with prosecutors is exactly the same. Some of you are geese, who only make a noise and cannot bite. Others are dogs, who can both bark and bite. We see provisions made for you. But you ought above all to attack those who deserve it. That is what most pleases the people. Then, even when there is some likelihood that someone has done something, you may bark on suspicion — that too can be allowed. But if you proceed in this fashion, charging a man with the killing of his father, when you can say neither why nor how, and merely bark without any ground for suspicion at all — nobody, I dare say, will break your legs; but, if I know these gentlemen, they will fix that letter to your forehead — the letter you so detest that you hate even the Calends — so firmly that ever afterwards you will be able to prosecute no one but your own ruined fortunes.

<sup>58</sup> What have you given me to defend, my good prosecutor? And

what have you given these gentlemen to suspect? "He was afraid of being disinherited." I am listening; but no one says why he ought to have been afraid. "His father had it in mind." Make it plain. There is nothing. Nothing about with whom he discussed it, whom he informed, by what route this suspicion has come into your minds. When you prosecute in this manner, Erucius, are you not openly saying: "I know what fee I have received; I do not know what to say. The one thing I had in view was what Chrysogonus said — that this man would have no advocate, that no one in the present time would dare to breathe a word about the sale of the property and the partnership"? This false notion is what pushed you into this dishonesty. By Hercules, you would not have said a word, had you thought anyone would answer you.

<sup>59</sup> It would have been worth your while, gentlemen, if you had observed it, to consider his negligence in conducting the prosecution. I imagine that, when he saw what kind of men were sitting on these benches, he asked whether this man or that one was likely to undertake the defence; about me he had not even a suspicion, since I had not before pleaded any public case. After he had ascertained that none of those who customarily and capably plead such cases would do so, he began to be so careless that, whenever it occurred to him, he would sit down, then he would walk about, sometimes he would even call a slave-boy — to give orders for his dinner, I take it — treating your assembly and this gathering as if it were the merest emptiness. He did at last finish his speech and sit down. Then I rose.

<sup>60</sup> He seemed to breathe more easily that no one of greater standing was speaking. I began to speak. I noticed, gentlemen, that as long as I had not yet named Chrysogonus, he kept up his joking and his other distractions; but the moment I touched the name, the fellow immediately drew himself up, and seemed astonished. I knew what had stung him. I named Chrysogonus a second time and a third. After that the men did not stop running back and forth, conveying news, I suppose, to Chrysogonus that there was someone in the city bold enough to speak against his wishes, that the case was being conducted otherwise than he had supposed, that the sale of the property was being opened up, that the partnership was being dragged through the mire, that his influence and his power were being slighted, that the jurors were paying close attention, that the Roman people thought the affair scandalous.

<sup>61</sup> Since these calculations have failed you, Erucius, since you see that everything has been turned upside down, that the case for Sextus Roscius is being argued, if not gracefully, at least freely, that the man you thought delivered up is being defended, that those whom you hoped would betray him you see giving judgement on him — restore to us, at long last, that old shrewdness and prudence of yours; admit that you came in here in the hope that this would be brigandage, not a trial. The case is one of parricide; no reason has been given by the prosecutor why a son should have killed his father.

<sup>62</sup> What in the smallest crimes and in those lighter offences which are now more frequent and almost daily is asked first and above all — “what was the cause of the wrongdoing?” — Erucius does not think need be asked in a case of parricide. In which crime, gentlemen, even when many causes seem to have come together in one place and to fit in with one another, even then the matter is not lightly believed; nor is the case settled on slight conjecture; nor is an uncertain witness listened to; nor is the matter decided by the prosecutor’s cleverness. Many previous offences must be shown, a thoroughly ruined life, a singular audacity — and not audacity alone, but the highest fury and madness. And though all these be present, still the marks of the crime ought to stand out plainly: where, by what means, by whose hand, at what time the deed was done. Unless these are many and obvious, then a thing so wicked, so atrocious, so unspeakable, simply cannot be believed.

<sup>63</sup> For the force of human feeling is great. The bond of common blood weighs heavily. Nature herself cries out against suspicions of this sort. It is the surest of portents and prodigies that there should be anyone in human shape and form so far surpassing the beasts in savagery as to deprive most outrageously of the light those through whom he himself looked upon this most pleasant light — when even wild beasts are bound to one another by birth and rearing and by nature itself.

<sup>64</sup> Not many years ago, they say, a certain Titus Caelius of Terracina, a man of some standing, having dined and gone to bed in the same room with his two grown sons, was found in the morning with his throat cut. When neither slave nor free man was found on whom suspicion could fall, and when the two sons — already of an age to be aware of things — said that, sleeping near him, they had not noticed anything, charges of parricide were laid against the sons. What could be more suspicious?

That neither one of them had heard a thing? That anyone should have ventured into that room precisely at the moment when the two grown sons were lying there, who could easily both notice him and defend their father? Furthermore, there was no one against whom the suspicion could fit.

<sup>65</sup> And yet, when it was made plain to the jurors that they were found asleep with the door open, the young men were acquitted by the verdict and freed of all suspicion. For no one believed that there could be anyone who, having defiled by an unspeakable crime every law human and divine, could immediately afterwards drop into sleep — because those who have committed so great an offence not only cannot rest without unease, they cannot even draw breath without dread.

<sup>66</sup> Do you not see how those whom the poets have handed down to us as having taken vengeance on a mother for their father's sake — though they are said to have done it at the bidding and oracles of the immortal gods themselves — nevertheless are driven by the Furies and never allowed to rest, because not even the dutiful could perform such a deed without crime? So it stands, gentlemen: a parent's blood, a father's or a mother's, has great force, great urgency, great holiness; and once a stain has been incurred from it, it not only cannot be washed off, but it sinks so deep into the soul that the highest madness and frenzy follow.

<sup>67</sup> Do not suppose, as you so often see in stories, that those who have done some impious and wicked deed are driven and terrified by the Furies' burning torches. Each man is most tormented by his own deceit and his own dread. Each man is harried and unhinged by his own crime; his own evil thoughts and his own conscience are what frighten him. These are the relentless Furies of the wicked, dwelling in the home, who day and night exact the parents' penalty from sons stained with crime.

<sup>68</sup> The very magnitude of the offence makes the matter such that, unless the parricide is shown almost manifestly, it is not credible: unless there is a base youth, unless there is a life polluted with every disgrace, unless there are extravagances and shameful and dishonourable expenses, unless there is open audacity, unless such recklessness as is not far from insanity. Add to this hatred of the parent, fear of paternal correction, wicked friends, slaves who are accomplices, a fitting time, a place chosen for the deed. I will almost say: the jurors must see hands actually spattered with a father's blood, if so great a crime, so monstrous, so cruel, is

to be believed.

<sup>69</sup> Wherefore, the less credible the thing is unless it is shown, the more it must be punished if it is convicted. So just as our ancestors are seen to have surpassed other nations not only by force of arms but by judgement and wisdom in many things, so most especially in this: that for impious offenders they devised a singular punishment. Consider in this matter how far they outran in prudence those who are reckoned the wisest among other peoples.

<sup>70</sup> The most prudent state is said to have been Athens while she held the supremacy; and of that state Solon is said to have been the wisest man — the same Solon who wrote the laws which they still use today. When he was asked why he had set down no penalty for one who had killed his parent, he replied that he had not supposed anyone would do such a thing. He is said to have done wisely in not having decreed anything against an act not before committed, lest he seem rather to have suggested it than forbidden it. How much more wisely our ancestors did! For when they realised that there is nothing so holy that audacity will not at some time profane it, they devised a singular punishment for parricides, so that those whom nature herself could not hold to their duty might be deterred from the offence by the magnitude of the penalty. They ordered them to be sewn up alive in a sack and so cast into the river.

<sup>71</sup> What singular wisdom, gentlemen! Do they not seem to have plucked such a man up out of the natural order, suddenly stripping him of sky, sun, water, and earth — so that he who had killed the man from whom he himself was born should be deprived of all those very things from which all things are said to be born? They were unwilling to throw the body to wild beasts, lest by their having touched so great a crime we should ourselves use beasts grown more savage. They were unwilling simply to fling them naked into the river, lest, when they were carried out into the sea, they should pollute the very element by which all other things that have been violated are thought to be cleansed. There is, in short, nothing so cheap or so common of which they have left them any share whatsoever.

<sup>72</sup> For what is so common as breath to the living, earth to the dead, the sea to the tossed, the shore to the cast-up? They live, while they can, in such a way that they cannot draw breath from the open sky; they die in such a way that the earth does not touch their bones; they are tossed

by the waves in such a way that they are never washed clean; finally they are cast up in such a way that they do not even rest, dead, on the rocks. Of an offence so vast, for which a punishment so distinctive has been instituted, do you suppose, Erucius, that you can persuade men of this sort, when you have not even produced a cause for the offence? If you were prosecuting this man before the very buyers of his property, with Chrysogonus presiding over the court, you would still have come better prepared.

<sup>73</sup> Do you not see what is in question, or before whom it is being heard? It is a matter of parricide, which cannot be undertaken without many causes; and it is being heard before men of the greatest prudence, who understand that no one commits even the smallest crime without a cause. Very well: you cannot bring forward a cause. Although I ought to have won outright at this point, I will yield some of my right and grant you, in this case, what in any other I would not concede — relying on my client's innocence. I am not asking you why Sextus Roscius killed his father; I am asking how he killed him. I ask you that, Gaius Erucius, in such a way that I will give you the chance to answer, or to interrupt, or even to put questions, if you will, in your turn.

<sup>74</sup> How did he kill him? Did he strike him with his own hand, or did he hand him over to others to be killed? If you charge him with the act itself, he was not at Rome. If you say it was done through others, I ask: which others? Slaves or freemen? If freemen, what sort of men? Men from the same place, Ameria? Or these cut-throats from the city? If from Ameria, who are they? Why are they not named? If from Rome, where had Roscius come to know them, who had not been in Rome for many years and was never there for more than three days? Where did he meet them? In what manner did he speak with them? How did he persuade them? "He paid them money." To whom did he pay it? Through whom did he pay it? Where did he get it? How much did he give? Is it not by such tracks that one usually arrives at the source of a crime? And remember at the same time how you yourself painted his life: that this was a wild and rustic man, who had never had a conversation with anyone, who had never set foot in any town.

<sup>75</sup> I pass over here a point that could have been a very strong argument for his innocence: that in country habits, in a hard fare, in this rough and uncultivated kind of life, crimes of this kind do not generally

arise. Just as you cannot find every fruit and every tree in every soil, so not every crime is born from every life. In the city, luxury is bred. From luxury greed must inevitably break out. From greed audacity bursts out, and from there spring all the kinds of crime and offence. But this country life, which you call rustic, is the school of frugality, of diligence, of justice.

<sup>76</sup> But I let this go. I ask only this: a man who, on your own showing, was never among men, through which men could he have done so great a deed — so secret, especially from a distance? Many things are false, gentlemen, which can nonetheless be put into a suspicious light. In these matters, if even suspicion is found, I will concede that the guilt is there. Sextus Roscius was killed at Rome while his son was on the estates at Ameria. I suppose he sent letters to some assassin who knew no one in Rome. He summoned someone. Whom or when? He sent a messenger. Whom, or to whom? With money, with favour, with hopes, with promises he induced someone. Of all this, not a thing can even be invented; and yet the case is being argued as parricide.

<sup>77</sup> It remains for him to have done it through slaves. O immortal gods — a wretched and ruinous business! What? In so grave a charge, the thing which is usually a help to an innocent man — to offer up his slaves for examination under torture — this is something that Sextus Roscius is not allowed to do? You who prosecute him have all his slaves. Of so great a household, not one slave-boy, the manager of his daily provisions, has been left to Sextus Roscius. I appeal to you now, Publius Scipio; to you, Marcus Metellus; with you as advocates, with you as counsel, Sextus Roscius has several times demanded of the opposing party two of his father's slaves for examination. Do you remember Titus Roscius's refusal? What of those slaves? Where are they? They follow Chrysogonus, gentlemen; they enjoy honour and are highly prized by him. Even now I demand that they be examined; my client begs and beseeches it.

<sup>78</sup> What are you doing? Why do you refuse? Doubt now if you can, gentlemen, by whom Sextus Roscius was killed: by the man who, because of that death, lives in poverty and in danger, who is not even allowed to make inquiry into his father's death — or by those who flee inquiry, who have his property, who live in murder and from murder. Everything in this case, gentlemen, is wretched and unworthy; but nothing more bitter, nothing more unjust, can be brought forward than this:

that a son is not allowed to hold an examination concerning the death of his father by means of the slaves of his father! Will he not even for that long be the master over his own slaves — long enough to have them questioned about his father's death? I shall come, and not long hence, to this point; for the whole of it concerns the Roscii, of whose audacity I promised to speak when I had refuted the charges of Erucius.

<sup>79</sup> Now, Erucius, I come to you. We must agree, you and I — if this offence touches my client at all — that he either committed it with his own hand (which you deny) or did it through some freemen or slaves. Freemen? You can show neither how he could have met them, nor by what argument he could have induced them, nor where, nor through whom, nor with what hope, nor at what price. I, on the contrary, show that Sextus Roscius not only did none of these things, but could not even have done them, because he was not in Rome for many years, and never went away from the estates without good reason. The only resource left to you appeared to be the title of slaves, into which, like a harbour, you could take refuge from the rest of the suspicions; but here you strike a rock of such a kind that you not only see the charge bouncing off my client, but realise that all the suspicion falls back upon yourselves.

<sup>80</sup> What is it, then, to which the prosecutor still takes refuge in his lack of arguments? "The times were such," he says, "that men were murdered indiscriminately and with impunity. So you, because of the multitude of cut-throats, could have done this without any trouble." Sometimes you seem to me, Erucius, to want to gain two ends with one fee — to shower us with the trial, and to accuse the very men from whom you took your fee. What are you saying? That men were murdered indiscriminately? By whom and at whose hands? Do you not realise that you have been brought here by the dealers in confiscated goods? What then? Do we not know that in those times the same men were dealers in throats and in property?

<sup>81</sup> Will those men, finally, who at that time ran armed about, day and night, who were constantly at Rome, who at every moment were involved in plunder and bloodshed, throw at Sextus Roscius the bitterness and unfairness of those times, and reckon that the multitude of cut-throats, of which they themselves were the leaders and chiefs, will tell against him? — a man who was not only not in Rome, but knew nothing of what was being done at Rome, since he was steadily, as you yourself

admit, in the country.

<sup>82</sup> I am afraid, gentlemen, of being tedious to you, or of seeming to mistrust your judgement, if I dwell longer on matters so plain. The whole of Erucius's accusation, I take it, has been undone — unless you are perhaps expecting me to dissolve those things he raised about embezzlement and other made-up accusations, novel and unheard of by us before this moment, which he seemed to me to be reciting from some other speech composed against some other defendant; so little did they relate either to the charge of parricide or to the man whose case is being heard. Since he has charged them only with a word, it is enough to deny them with a word. If there is anything he is keeping in reserve for the witnesses, there too he will find us better prepared, as in the case proper, than he supposed.

<sup>83</sup> I come now to where it is not eagerness that draws me, but loyalty. For if I wished to prosecute, I would prosecute others, from whom I might rise. But this I am resolved not to do, as long as I have the choice. The man who seems to me most distinguished is the one who reaches a higher place by his own virtue, not the one who climbs by means of another's misfortune and ruin. Let us at last leave off scrutinising what is empty. Let us look for the offence where it is and where it can be found. You will see at once, Erucius, by how many suspicions the certain crime is convicted, even though I shall not say everything and shall touch each thing only lightly. I would not even do this, were it not necessary; and the proof that I am doing it unwillingly will be that I will not pursue the matter further than my client's safety and my own good faith require.

<sup>84</sup> You found no cause in Sextus Roscius. I find one in Titus Roscius. For the matter is between you and me, Titus Roscius Magnus, since you sit there and openly profess yourself an opponent. Of Capito we shall see later, if — as I hear — he comes forward as a witness; then he will become acquainted with other "victories" of his of which he does not even suspect that I have heard. The famous Lucius Cassius — whom the Roman people thought a most truthful and most wise judge — used repeatedly to ask in cases: "to whose advantage was it?" For human life is such that no one tries to commit a crime without hope and gain.

<sup>85</sup> Those who were brought into danger fled and trembled at this judge — even though he was the friend of truth, his nature seemed not so much inclined to mercy as bent towards severity. I, although the man

who presides over this present court is most resolute against audacity and most merciful to innocence, would yet readily plead for Sextus Roscius even if that very harshest of judges were holding the inquiry, or before Cassian jurors, whose name those who must plead before them dread to this day.

<sup>86</sup> For in this case, when they saw that the others held the very greatest sums of money, while my client was in the depths of want, they would not even ask "to whose advantage was it?" They would attach the charge and the suspicion to the gain rather than to the destitution. What if it is added that you were thin in resources before? What if greedy? What if audacious? What if a particular enemy of the man who was killed? Need we still ask what cause has driven you to so great a crime? Of these things, what can be denied? Your scant means are such that they cannot be hidden; the more you hide them, the more they shine out.

<sup>87</sup> You display your greed, when you have entered into a partnership with utter strangers over the property of a fellow townsman and a kinsman. How great your audacity is, leaving aside everything else, all could see from this — that of the whole partnership, that is, of so many cut-throats, you alone were found to sit on the prosecutor's bench, not only showing your face but actually thrusting it forward. That you had quarrels with Sextus Roscius, and grave disputes about family property, you must necessarily concede.

<sup>88</sup> It remains, gentlemen, only this for us to be in doubt about: which of the two killed Sextus Roscius — the one to whom riches came through his death, or the one to whom destitution came; the one who was thin in means before, or the one who was reduced afterwards to the most absolute want; the one who, burning with greed, is borne hostile against his own kin, or the one who has always lived in such a way that he knew no kind of gain except the fruit of his own labour; the one who is the boldest of all the partners in confiscations, or the one who, for unfamiliarity with the Forum and the courts, dreads not only the benches but the city itself; finally, gentlemen — and this is to my mind the chief point of the matter — whether an enemy or a son.

<sup>89</sup> If you, Erucius, had hit upon so many and such weighty things in your accused, how long would you not be speaking! How you would strut! By Hercules, time would fail you sooner than your eloquence. For in any one of these matters there is enough material to take up a whole

day. Nor am I incapable of doing the same; for I do not so far depreciate myself, even though I make no claim, as to think that you can speak more copiously than I. But I, perhaps, because of the multitude of advocates, may be reckoned simply one of the herd; you the carnage of Cannae has made a sufficiently good prosecutor. We have seen many slain — not at Lake Trasimene, but at Lake Servilius.

<sup>90</sup> Who there was not wounded by Phrygian steel? It is unnecessary to call up all the Curtii, Marii, Memmii, whom age was already calling away from battle; finally old Priam himself, Antistius, whom not only age but also the laws forbade to fight. Then those whom no one names because of their obscurity — there are six hundred of them prosecuting in cases of murder and poisoning. So far as concerns me, I should be glad if every one of them lived. For there is no harm in there being as many dogs as possible where there are very many things to watch over and very much to guard.

<sup>91</sup> But, as happens, the violence of war and its tumult often work many things by reckless leaders. While the man who held supreme command was occupied with other matters, there were in the meantime those who treated their own wounds; men who, as if a perpetual night had fallen upon the commonwealth, rushed in the dark and threw everything into confusion. From them I am surprised that, just as no trace of the courts was left, even the benches were not burnt; for they did away with prosecutors and jurors alike. There is at least this consolation: they so lived that they could not, if they wished, kill all the witnesses. As long as the human race lasts, there will not be wanting men to bring charges; as long as the state lasts, courts will be held. But, as I began to say, both Erucius, if he had in this case the things I have mentioned, could go on at any length, and so could I, gentlemen; but my plan is, as I said before, to pass lightly over the points and merely to graze each in turn, that everyone may understand that I am prosecuting from no zeal, but defending from duty.

<sup>92</sup> I see, then, that there are very many causes that might have driven this man on. Let us see now whether he had any opportunity of undertaking the offence. Where was Sextus Roscius killed? — "At Rome." — And you, Titus Roscius Magnus: where were you then? — "At Rome. But what does that prove? Many others, too." — As if the question now were "which of so great a multitude killed him," and not rather this: of

the man who was killed at Rome, is it more probable that he was killed by one who was constantly at Rome at that time, or by one who had not come anywhere near Rome for many years?

<sup>93</sup> Now consider also the other opportunities. There was at that time, as Erucius mentioned, a multitude of cut-throats, and men were killed with impunity. What sort of multitude? Either, I take it, of those engaged in seizing property, or of those hired by them to kill someone. If you mean those who were after another man's goods, you yourself are in their number, you who are rich at our expense. If you mean those whom under a softer name they call "strikers," ask yourself whose protection and patronage they are under. Believe me, you will find someone from your own partnership; and whatever you say in reply, weigh it against our defence. So you will most easily see Sextus Roscius's case set side by side with yours.

<sup>94</sup> You will say: "What of it, if I was constantly at Rome?" I will reply: "But I was not there at all." — "I confess that I am a confiscation-dealer; but so are many others." — "But I, on your own showing, am a farmer and a countryman." — "Just because I have entered the gang of assassins, I am not, on that account, an assassin." — "But I, who do not even know any assassin, am most certainly far from any such charge." There are very many things that could be said to show that you had every facility for undertaking the deed; which I leave aside, partly because I do not gladly accuse you yourself, and even more because, if I wished to relate the killings done in those times in just the manner in which Sextus Roscius was killed, I am afraid my speech would be seen to bear on more men than this one.

<sup>95</sup> Let us look now briefly, as at the other points, at what was done by you, Titus Roscius Magnus, after the death of Sextus Roscius; things so open and manifest that, by my faith, gentlemen, I say them unwillingly. For I am afraid, whatever sort of man you are, Titus Roscius, that I shall seem to have been so anxious to save my client that I have not spared you at all. Even while I am in this fear and wish to spare you in some respect that good faith permits, again I change my mind — because your face comes back to me. You, when the rest of your associates were fleeing and hiding themselves, so that this trial should appear to concern not their plunder but my client's offence, demanded, of all people, this part: to be in the trial yourself and to sit with the prosecutor? In which

you accomplish nothing else than to make your audacity and your shamelessness known to all mankind.

<sup>96</sup> When Sextus Roscius was killed, who was the first to bring the news to Ameria? Mallius Glaucia, whom I named before, your client and intimate. What was the point of his bringing the news especially — since, if you had no plan formed beforehand about the man's death and his property, and had entered into no partnership of crime or of reward with anyone, this least of all concerned you? — "Mallius is bringing the news of his own accord." What, I ask you, was it to him? Did it happen by chance that, having come to Ameria for some other reason, he should be the first to bring news of what he had heard at Rome? For what reason had he come to Ameria? "I cannot guess," he says. I shall bring matters to such a point that no guessing will be necessary. Why did he bring the news first to Titus Roscius Capito? When at Ameria there was Sextus Roscius's house, his wife, and his children, when there were so many close kin and relatives on the best of terms with him — by what reasoning did it come about that this client of yours, the messenger of your crime, should bring the news first of all to Titus Roscius Capito?

<sup>97</sup> He was killed on his way home from supper. It was not yet light when the news was known at Ameria. What does this incredible speed signify, this enormous haste and hurrying? I do not ask who struck the blow. There is no need, Glaucia, for you to be afraid; I will not search you to see whether you happened to have a weapon; I do not strip you. I think it does not concern me; since I find by whose plan he was killed, by whose hand he was struck I do not trouble myself. Just this much I take, which your manifest crime opens to me: where, or from whom, did Glaucia hear it? How did he know so quickly? Granted that he heard immediately — what was it that compelled him in a single night to cover so great a journey? What necessity pressed him so hard that, if he were going to Ameria of his own accord, he should set off from Rome at that hour and rest no part of the night?

<sup>98</sup> Even in matters so transparent must we look for argumentation or take up conjecture? Do you not, gentlemen, seem to see with your own eyes the things you have heard? Do you not see that wretched man, ignorant of his own danger, returning from supper? The ambush set, the sudden onslaught? Does not Glaucia hover before your eyes in the murder? Is not this Titus Roscius present? Does he not with his own

hands set in his chariot that Automedon — the messenger of his most cruel crime and his unspeakable victory? Does he not beg him to keep the night through, to take the trouble for his sake, to bring the news to Capito at the earliest possible moment?

<sup>99</sup> What was it that he wished Capito to know first? I do not know — except that I see this: that Capito is a partner in this property; that of thirteen farms I see him hold three of the noblest.

<sup>100</sup> I hear, moreover, that this is not the first time such suspicion has been levelled at Capito. He has many infamous "victories" to his credit; this one, however, is the first that has come to him from Rome with the ribbon of distinction. There is no method of killing a man by which he has not killed several — many with steel, many with poison. I have besides to say that he threw down off the bridge into the Tiber, against the custom of our ancestors, a man under sixty years of age. If he comes forward — and he will come forward, for I know he will — he will hear of these things. Let him only come; let him unfold that volume of his —

<sup>101</sup> which volume, I can prove, Erucius drafted; which they say he held over Sextus Roscius, and threatened that he would offer the whole of it as testimony. What an excellent witness, gentlemen! What gravity, equal to the expectation! What an honourable life — such that you will gladly fit your sworn oath to his testimony! Truly we should not see these men's misdeeds with such clarity, did not greed and avarice and audacity blind them themselves.

<sup>102</sup> The one sent a swift courier from the very place of the murder to Ameria, to his partner — or rather to his master — in such a way that, even if everyone wished to dissemble that they knew to whom the offence belonged, he himself laid his manifest crime out before the eyes of all. The other — if it pleases the immortal gods — is even going to give evidence against Sextus Roscius. As though the question now were whether what he says is to be believed, and not what he has done is to be punished. So it has been laid down by ancient custom that, even in the smallest matters, men of the highest rank do not give evidence in their own cause.

<sup>103</sup> Africanus — whose very surname declares that he subdued a third part of the world — nevertheless would not have given evidence, had it been a matter touching himself. For of so great a man I do not dare to say this: that, if he gave evidence, he would not be believed. See

now how everything has been turned upside down and changed for the worse. When the matter is one of property and of murder, a man is going to give evidence who is at once a confiscation-dealer and a cut-throat — that is, who is the buyer and possessor of the very property at issue, and who arranged the killing of the man whose death is being investigated.

<sup>104</sup> What of you, my excellent fellow? Have you anything to say? Listen to me: see that you do not fail yourself; your own great affair is also at stake. You have done many things wickedly, audaciously, dishonourably, perfidiously — one thing most foolishly, surely on your own and not on Erucius's advice: there was no need for you to be sitting there. No one uses an accuser dumb, or a witness who rises from the prosecutor's bench. Add to this that your greed of yours might at least have been a little hidden, a little under cover. As it is, what is there that any of you should wish to hear, when what you do is of such a kind that you seem to be doing it on purpose to make my own task against you easy? Now, gentlemen, let us look at what came next.

<sup>105</sup> At Volaterrae, in the camp of Lucius Sulla, the death of Sextus Roscius was reported to Chrysogonus on the fourth day after he was killed. Even now, must it be asked who sent the courier? Is it not plain that it was the same man who sent the messenger to Ameria? Chrysogonus arranges for the man's property to be sold at once — a man whom he did not know, and a property he did not know. But how did it occur to him to covet the estates of an unknown man, whom he had certainly never seen? When you hear something of this kind, gentlemen, you usually say at once: "Some fellow townsman or neighbour must have told him; they generally inform; through them most things are betrayed." Here you have nothing to take up by way of conjecture.

<sup>106</sup> For I shall not argue thus: "It is likely that the Roscii brought the matter to Chrysogonus; for they had a friendship with him beforehand. Although the Roscii had many old patrons and family friends inherited from their ancestors, they ceased to court and respect them all, and entrusted themselves to the protection and clientele of Chrysogonus."

<sup>107</sup> I could say all these things truthfully; but in this case there is no need of conjecture. I know for certain that they themselves do not deny that Chrysogonus came to this property at their suggestion. If you will see with your own eyes the man who has received a share for the act of informing, can you doubt, gentlemen, who informed? Who, then,

are the people in this property to whom Chrysogonus has given a share? Two Roscii. Anyone else besides? No one, gentlemen. Can there then be any doubt that the men who have taken from him a share of the spoils were the men who brought him the spoils?

<sup>108</sup> Now consider the action of the Roscii in the light of Chrysogonus's own judgement. If the Roscii had done nothing in this affair worth a price, why were they being rewarded by Chrysogonus with such great gifts? If they had done nothing but bring the matter to him, was it not enough to thank them, or, to be very generous, to bestow some honour upon them? Why are three estates, of so much money, given immediately to Capito? Why does this Titus Roscius hold all the rest jointly with Chrysogonus? Is it not plain, gentlemen, that Chrysogonus, with full knowledge of the case, has handed these spoils to the Roscii?

<sup>109</sup> Capito came among the ten chief delegates as an ambassador to the camp. Learn the man's whole life, character, and habits from this very embassy alone. Unless you understand, gentlemen, that there is no duty, no right so sacred and unblemished that his crime and treachery would not have violated and impaired it, then judge him a most excellent man.

<sup>110</sup> He stops Sulla from being informed about these matters. He betrays to Chrysogonus the plans and wishes of the rest of the deputation. He warns him to take care that the affair is not openly conducted; he points out that, if the sale of the goods were undone, he would lose a great sum of money, and Capito himself would be in danger of his life. He sharpens Chrysogonus, deceives those who had been sent with him, repeatedly warns the one to be on guard, treacherously holds out a false hope to the others; with the one he forms plans against these others, and reveals their plans to him; with him he bargains for his own share; with the others, relying on some pretext of delay, he constantly blocks every approach to Sulla. Finally, with this man as instigator, author, mediator, the deputation never went to Sulla; they were duped by his trustworthiness — or rather by his treachery (which you will hear from them, if the prosecutor is willing to call them as witnesses), and so brought home, instead of a settled matter, a false hope.

<sup>111</sup> In private affairs, if anyone discharged a commission entrusted to him not only with malice for his own gain or convenience, but even just with negligence, our ancestors thought he had committed the most disgraceful kind of disgrace. So a court of mandate was established, no

less shameful than that of theft, because, in matters in which we cannot ourselves be present, the trust of friends takes the place of our own action. He who damages that trust attacks the common protection of all, and so far as in him lies, breaks up the partnership of life. We cannot do everything by ourselves; one man is more useful in one matter, another in another. For this reason friendships are entered into, that common advantage may be steered by mutual offices.

<sup>112</sup> Why do you accept a commission, if you intend either to neglect it or turn it to your own benefit? Why do you offer yourself to me, and, with feigned dutifulness, get in the way of and obstruct my interests? Stand aside; I will deal through someone else. You take up the burden of duty, which you think you can sustain. It seems heaviest to those who are themselves least light-minded. So this fault is shameful for this reason: it violates two of the most sacred things, friendship and good faith. For hardly anyone gives a commission except to a friend, nor entrusts anything except to one whom he thinks faithful. So it is the act of the most utterly ruined man both to dissolve a friendship and to deceive a man who would not have been wronged unless he had trusted.

<sup>113</sup> Is it not so? In the smallest matters, the man who neglects a commission must necessarily be condemned in the most disgraceful trial. In so great a matter, when the man to whom the reputation of the dead and the fortunes of the living were entrusted has stained the dead with infamy and reduced the living to want, will he be counted among honourable men — or even among the living? In the smallest, private matters even mere negligence is brought to a charge of mandate and a verdict of infamy, because, if all is done as it ought to be, the man who gave the commission must be the one to neglect it, not he who accepted it. In so great a matter, which was conducted publicly and entrusted publicly — a man who has not by negligence wronged some private interest, but by treachery has polluted and stained the very ceremony of the embassy itself — with what penalty in the end will he be visited, in what court will he be condemned?

<sup>114</sup> If Sextus Roscius had privately given him this charge, to settle and arrange matters with Chrysogonus, and, if necessary, to pledge his good faith to that end, and the man who had undertaken this had then turned even some little of the business to his own profit, would he not, condemned by an arbitrator, both have to restore the property and lose

all his good name?

<sup>115</sup> As it is, Sextus Roscius did not give him this charge. What is much graver: Sextus Roscius himself — with his reputation, his life, all his goods — was, by the decuriones, publicly entrusted to Titus Roscius. From this affair Titus Roscius did not turn a little into his own pocket: he overturned the man utterly out of his goods, bargained three estates for himself, and held the will of the decuriones and of all the townsmen as worth precisely as much as he held his own pledged faith.

<sup>116</sup> See now, gentlemen, the rest, that you may understand that no kind of crime can be invented with which this man has not befouled himself. In smaller matters, to deceive a partner is most shameful, and equally shameful with what I have just spoken of, and not without justice; for he who shares a thing with another reckons that he has joined to himself a help. To whose good faith, then, will he flee for refuge, when he is wounded by the good faith of the man to whom he has entrusted himself? And those wrongs ought above all to be marked which can least be guarded against beforehand. We can be on our guard against strangers; intimates necessarily see many more open things; how can we be on our guard against a partner? Even if we fear him, we wound the very right of duty. Rightly, then, our ancestors thought that he who had cheated a partner ought not to be reckoned in the number of good men.

<sup>117</sup> But this Titus Roscius cheated not a single partner in a money matter — a serious matter, but somehow bearable — but nine men of the highest standing, partners in the same charge, the same embassy, the same duty, the same commission. He led them on, deceived them, abandoned them, betrayed them to the opposite party, cheated them with every sort of fraud and treachery: men who could suspect nothing of his crime, who ought not to have feared a partner in their duty, who did not see his malice, who believed in his empty talk. So now those most honourable men, on account of his treachery, are thought to have been not cautious or foreseeing enough; while he, who at the start was a betrayer, then a deserter, who first betrayed his fellow ambassadors' counsels to the other party and then formed a partnership with that very other party, even now terrifies and threatens us, decked out in three estates — the rewards of his crime. In a life like this, gentlemen, in so many and such great offences, you will find this offence too — the one on trial.

<sup>118</sup> For this is how you must inquire: where you see many things

done greedily, audaciously, dishonourably, treacherously, then count that crime too lurks among such offences. Although this very crime is the least concealed; it stands out so plainly that it is not so much understood from the other crimes (which it is agreed are in him) as it is, by itself, used to prove the others, if any of them by chance is in doubt. What say you, gentlemen? Does that gladiator-trainer seem to you to have laid aside the sword altogether yet? Or this pupil to fall short of his master in the art by even a little? Their greed is the same, their dishonesty alike, their shamelessness identical, their audacity twin to each other.

<sup>119</sup> Since you have learned the master's good faith, learn now the pupil's fairness. I have already said many times that two slaves were demanded by them for examination. You always refused, Titus Roscius. I ask you: were the men demanding it unworthy to obtain it? Or did the man for whom they demanded it not move you? Or did the matter itself seem to you unfair? They who demanded it were the noblest and most upright men of our state, whom I named earlier; men who have so lived, and are so reckoned by the Roman people, that whatever they say no one would not consider fair. They demanded it on behalf of the most wretched and unhappy of men, who himself would gladly hand himself over to torture, if only the matter of his father's death were investigated.

<sup>120</sup> Furthermore, the request was such that it made no difference whether you refused it or confessed the offence. Since this is so, I ask why you refused. When Sextus Roscius was killed, those slaves were on the spot. Of the slaves themselves I neither bring an accusation nor a defence, so far as concerns me. That I see you fighting against having them given up for examination is suspicious. That they are with you in such great honour, plainly they must know something which it would be ruinous to you if they said. — "It is unjust to question slaves against their masters." — But there is no such question; for Sextus Roscius is the defendant, and when he is on trial, the question is not against masters; you say that you are the masters. — "They are with Chrysogonus." — I believe it. By their letters and refinement Chrysogonus is so smitten that, among his own boys — chosen from so many elegant households for every delicacy and every art — he should wish these to take their place; men barely fit for labour, from the rustic discipline of an Amerian country household.

<sup>121</sup> It is certainly not so, gentlemen; it is not likely that Chrysogonus has fallen in love with their letters or culture, or has come to know their

diligence and faithfulness in domestic affairs. There is something hidden, which the more eagerly it is suppressed and concealed by these men, the more it stands out and shows itself. What then?

<sup>122</sup> Does Chrysogonus refuse the inquiry into them in order to conceal his own offence? By no means, gentlemen; I do not think everything fits everyone. So far as concerns me, I suspect nothing of that kind in Chrysogonus; nor is this the first time it occurs to me to say so. You remember that I divided the case at the beginning into the charge — whose whole argument was committed to Erucius — and the audacity, whose part was put upon the Roscii. Whatever there is of crime, of wickedness, of murder, that must be the property of the Roscii. The excessive influence and power of Chrysogonus we say obstructs us, and cannot in any way be borne, and ought, since the power has been given you, not only to be weakened but to be punished by you.

<sup>123</sup> I judge thus: he who wishes inquiry to be made of those who, it is agreed, were present when the murder was done, that man wishes the truth to be found; he who refuses, surely, even though he does not dare to say it in words, by the very fact confesses to his own offence. I said at the start, gentlemen, that I was unwilling to say more about their crime than the case demanded and necessity itself compelled. For many things can be brought up, and any one of them can be expounded with many arguments. But what I do unwillingly and from necessity, I cannot do at length nor in detail. Those things which could not be passed over I have lightly touched, gentlemen; those which depend on inferences which, if I begin to speak of them, would have to be set out at length, I leave to your own judgement and conjecture.

<sup>124</sup> I come now to that golden name of Chrysogonus, under which name the whole partnership has lain hidden; concerning whom, gentlemen, I am unable to find either how I shall speak or how I shall be silent. For if I am silent, I leave out the greatest part. If I speak, I am afraid that not he alone, which does not concern me, but many others may think themselves injured. Although the matter is so situated that, in my view, there is no great need for me to say anything bearing on the common cause of the confiscation-dealers, since this case is plainly new and singular. Chrysogonus is the buyer of Sextus Roscius's property.

<sup>125</sup> Let us first look at this: in what way was that man's property put up for sale, or in what way could it have been put up? And I shall

not ask this in the sense of saying that it is shameful that an innocent man's property was sold — for if such things may be heard and freely said, Sextus Roscius was not so great a man in the state that we should especially complain of him — but I ask this: how could it have been, even by that very law on the proscription, whether it is the *lex Valeria* or the *lex Cornelia* (for I do not know which, nor do I particularly know), how could the property of Sextus Roscius, even by that very law, have been sold?

<sup>126</sup> For they say it is written thus: "Either the property of those who have been proscribed shall be sold," in which number Sextus Roscius is not; "or of those who have been killed in the strongholds of the enemy." So long as there were any strongholds, he was in Sulla's. After everyone had laid down arms, while returning from supper at Rome, in a time of complete peace, he was killed. If by law, I confess that the property too was sold by law. But if it is established that he was killed against all laws, not only old but new, by what right or in what way or by what law was the property sold? — I ask.

<sup>127</sup> Against whom do I say this, you ask, Erucius? Not against the man you wish and think; for both my speech, from the start, and his own outstanding virtue have always cleared Sulla. I say that all this was done by Chrysogonus: that he lied; that he pretended Sextus Roscius had been a bad citizen; that he said he had been killed in the enemies' lines; and that he did not allow Lucius Sulla to be informed of these matters by the deputation of the Amerians. Finally, I even suspect this: that the property was not sold at all. Which, if you, gentlemen, allow, will be made plain hereafter.

<sup>128</sup> For I think there is in the law a date by which the proscriptions and sales should take place, undoubtedly the Kalends of June. Several months after that, the man was killed and the property is said to have been sold. Either the property never went into the public records at all (and we are being more cleverly mocked by this rascal than we suppose), or, if it did, the public records have been corrupted somehow; for that the property could not have been sold by law is plain. I am aware, gentlemen, that I am exploring these matters before their time, and almost wandering from my purpose — since, when I ought to be dressing the wound at the head of Sextus Roscius, I am attending to a hangnail. For he does not labour over money; nor does he take account of any private

advantage of his own. He thinks he will easily bear his poverty, if he is freed from this unworthy suspicion and fabricated charge.

<sup>129</sup> But I beg you, gentlemen, to listen to these few things that remain in such a way that you understand me to be speaking partly for myself, partly for Sextus Roscius. For what seems to me unworthy and intolerable, and what seems to me to concern us all unless we take care, that I declare for myself out of the feeling and the pain of my own mind. What concerns the case and circumstance of his life, and what he wishes to be said in his own behalf, and on what condition he is content — this you will hear, gentlemen, in the closing part of our speech.

<sup>130</sup> I, leaving Sextus Roscius aside, ask of Chrysogonus on my own account: first, why was the property of an excellent citizen sold? Then, why was the property of a man who was neither proscribed nor killed in the enemies' lines sold, when the law was written for these alone? Then, why was it sold so long after the day fixed in the law? Then, why was it sold for so paltry a sum? Of all this, if (as worthless and dishonest freedmen often do) he wishes to put the responsibility on his patron, he will achieve nothing; for everyone knows that, owing to the magnitude of events, many men did many things which Lucius Sulla either disapproved of or was unaware of.

<sup>131</sup> Is it then permissible that something be passed over by oversight in matters of this kind? It is not permissible, gentlemen, but it is necessary. For if Jupiter, the best and greatest, by whose nod and judgement the heavens, the earth, and the seas are ruled, has often by violent winds, by immoderate storms, by excessive heat, by intolerable cold, harmed men, destroyed cities, and ruined crops — of which we suppose nothing was done for our destruction by divine plan, but by the very force and magnitude of things — yet by contrast, the advantages we use, the light we enjoy, the breath we draw, all these we see given and shared to us by him: what wonder is it, gentlemen, that Lucius Sulla, while he alone governed the commonwealth and ruled the world, while he was confirming by laws the majesty of empire which he had recovered by arms, could not notice some things? Unless this is wonderful: that human attention should fall short of what divine power cannot reach.

<sup>132</sup> But, leaving aside what has already been done, can anyone fail to understand from what is being done now, at this very moment, that the whole architect and engineer is one man, Chrysogonus? — who saw to

it that Sextus Roscius's name was laid on the indictment, and for whose sake Erucius said he was bringing the prosecution... [a passage is missing here]... men in the Sallentine country or in Bruttium, where they can scarcely hear news three times in a year, suppose themselves to have a properly arranged household.

<sup>133</sup> The other comes down to you from the Palatine and his own house. He has, for his pleasure, a country estate near Rome and pleasant; many other estates besides, and not one of them but is splendid and close at hand. His house is stuffed with vessels of Corinth and Delos, among which is that "self-cooking" pot which he recently bought at such a price that, when passers-by heard the auctioneer enumerate the figure, they thought a farm was being sold. What besides of chased silver, of embroidered fabric, of painted panels, of statues, of marble do you suppose he has? As much, of course, as could be heaped together in one house from many splendid families amid the tumult and the plundering. As for his household of slaves, how large it is, and with what varied accomplishments, what shall I say?

<sup>134</sup> I pass over the common arts: cooks, bakers, litter-bearers. For the soul and the ear he keeps so many men that the whole neighbourhood resounds daily with the music of voices and strings and pipes, and with nightly revels. In this kind of life, gentlemen, what daily expenses, what extravagances do you suppose are going on? What sort of dinners? Honourable, no doubt, in such a house — if "house" is the word, rather than a workshop of vice and a lodging-place for every disgrace.

<sup>135</sup> You see, gentlemen, how the man himself flits about everywhere through the Forum, his hair carefully done and shining with oil, with a great train of toga-clad followers; you see how he despises everyone, how he counts no man a man beside himself, how he thinks himself alone happy, alone powerful. If I were to recount what he carries off and what he attempts, I am afraid, gentlemen, that some less informed person might suppose that I wished to wound the cause and the victory of the nobility. Although by my own right I may, if anything in this part of things does not please me, find fault with it; for I do not fear that anyone will think me to have been ill-disposed towards the cause of the nobility.

<sup>136</sup> Those who know me know that I, in proportion to my slender and weak share, after the thing I most desired could not be done — a settlement — chiefly defended this: that those should win who have won.

For who was there who did not see that lowness was contending with rank for greatness? In which contest it was the act of a desperate citizen not to join himself to those by whose preservation rank was retained at home and authority abroad. That this has been carried through, that to each man his honour and his place have been restored, I rejoice, gentlemen, and am very glad; and I understand that all this was done by the will of the gods, the zeal of the Roman people, and the planning, command, and good fortune of Lucius Sulla.

<sup>137</sup> That punishment was visited on those who fought against all reason, I cannot reproach. That brave men, by whose extraordinary work in the conduct of affairs, honour was given, I praise. I judge that the war was waged in order that these things might come about, and I confess that I was on that side in zeal of party. But if this was done, and arms were taken up, in order that the lowest men should be enriched out of others' money and should make assault on each man's fortunes, and if this is something which it is not permitted not only to forbid in fact but even to censure in words — then truly in this war the Roman people were not regenerated nor restored, but subdued and crushed.

<sup>138</sup> But it is far otherwise; nothing of all this is so, gentlemen. The cause of the nobility will not be wounded by your resisting these men, but rather adorned. For those who wish to find fault with these things complain that Chrysogonus has so much power. Those who wish to praise them recall that he has not been allowed it. And there is now nothing such that anyone is either so foolish or so wicked as to say: "I should have liked to have leave; I would have said this thing." Say it: you may. "I would have done this." Do it: nobody forbids you. "I would have voted thus." Vote, only correctly: everyone will approve. "I would have judged thus." Everyone will praise you, if you have judged rightly and in order.

<sup>139</sup> While there was need, and the situation itself compelled it, one man could do all things. Once he created magistrates and established laws, his own administration and authority have been restored to each. If those who have got it back wish to keep it, they will be able to retain it forever. But if they will either commit, or will approve of, these murders and lootings and these so great and so wasted expenditures — I do not wish to say anything heavier against them, even by way of omen — I say only this: unless our nobility are watchful and good and brave and merciful, they must necessarily yield those ornaments of theirs to men

who have these qualities.

<sup>140</sup> Wherefore let them at last cease to say that anyone has spoken ill, if anyone has spoken truly and freely; let them cease to make their cause common with Chrysogonus's; let them cease, if he is wounded, to think that anything has been taken from themselves; let them see how shameful and wretched a thing it is that those who could not endure the splendour of the equestrian order should be able to bear the domination of a worthless slave. Which domination, gentlemen, used to operate in other matters before, but now you see what road it is paving, what path it is aiming at: at trust, at the sworn oath, at your courts, at that which alone in our state remains, almost, sound and inviolate.

<sup>141</sup> Does Chrysogonus think he can do something here too? Does he wish to be powerful here too? O wretched and bitter business! By Hercules, I do not take this with indignation because I fear he can do anything, but because he has dared, because he has hoped that, before such men, he could do anything for the destruction of an innocent man — this very thing I lament. Was it for this that the awaited nobility, with arms and steel, restored the commonwealth — that, at their pleasure, the freedmen and slaves of the nobility might harry our property, our fortunes, our very altars?

<sup>142</sup> If that was done, I confess that I was wrong who preferred this to come about; I confess I was mad who agreed with them. Although unarmed, gentlemen, I did agree. But if the victory of the nobility ought to be an ornament and a benefit to the state and the Roman people, then in truth my speech ought to be most welcome to every best and noblest man. If anyone thinks that he himself and the cause are wounded when Chrysogonus is reproached, he does not understand the cause but knows himself well; for the cause becomes more splendid if every worthless man is resisted. Only that most dishonest supporter of Chrysogonus, who thinks he has a common reckoning with him, is wounded when, from the splendour of the cause, he is set apart.

<sup>143</sup> But all this speech of mine, as I said before, is mine, which the commonwealth and my own pain and the wrong of these men have compelled me to use. Sextus Roscius thinks none of this unworthy, accuses no one, complains nothing about his patrimony. He thinks — a man inexperienced in modes of life, a farmer and rustic — that all those things which you say were done by Sulla were done by custom, by law, by the

law of nations. Cleared of guilt and freed from the abominable charge, he wishes to leave you;

<sup>144</sup> if he is freed from this unworthy suspicion, he says he will bear with an equal mind being deprived of all his goods. He asks and beseeches you, Chrysogonus, if he has converted nothing of his father's most ample fortune to his own use, if in nothing he has defrauded you, if in entire good faith he has handed over, counted, weighed out everything of his to you, if he handed over to you the very clothing he wore and the ring on his finger, if he excepted nothing from anything but himself, naked — to allow him through your good will to live an innocent life among his friends in poverty.

<sup>145</sup> You possess my estates, I live by another's pity; I yield, both because my mind is even-tempered and because it is necessary. My house is open to you, closed to me; I bear it. You enjoy my huge household; I have no slave; I endure it and think it bearable. What more do you want? Why do you pursue me, why do you assail me? In what point do you suppose your wishes are wounded by me? Where do I cross your interests? What do I block in your path? If you wish to kill the man for the sake of the spoils, you have spoiled him; what more do you seek? If because of enmity, what enmities do you have with one whose estates you possessed before you knew him? If from fear, do you fear anything from one whom you see unable to ward off so great a wrong from himself? But if it is because the property which was Roscius's has become yours, and on that account you are eager to ruin this son of his — do you not show that you fear what, beyond all others, you ought not to fear: that some day the patrimony of the proscribed may be restored to their children?

<sup>146</sup> You do me wrong, Chrysogonus, if you place a greater hope of keeping your purchase in this man's destruction than in the things which Lucius Sulla has done. But if you have no reason why you should wish this wretched man to be afflicted with so great a calamity, if he has handed over to you everything except his life, and has reserved for himself nothing of his father's — not even by way of memorial — in the name of the immortal gods, what is this great cruelty, what so wild and savage a nature? What pirate was ever so unspeakable, what corsair so barbarous as, when he could have his prize whole and without bloodshed, to prefer to take the booty bloody?

<sup>147</sup> You know that this man has nothing, dares nothing, is capable of nothing, has never thought anything against your interest; and yet you assail one whom you cannot fear and ought not to hate, in whom you see nothing left that you can take. Unless you think it unworthy that he sits clothed in court, whom you yourself drove out of his patrimony as out of a shipwreck, naked. As if you did not know that he is fed and clothed by Caecilia, daughter of Balearicus, sister of Nepos, a woman of the greatest distinction, who, though she had a most distinguished father, the most renowned uncles, the most adorned brother, nevertheless, woman though she was, has so wrought by her excellence that, however much honour she received from their dignity, she gave back no smaller ornament to them by her own praise.

<sup>148</sup> Or do you think that, because he is being defended diligently, that is an unworthy fact? Believe me, if for the sake of the friendship and good will inherited from his father, all his guest-friends were willing to stand by him and to defend him freely, he would be defended copiously enough. But if, in proportion to the magnitude of the wrong, and in proportion to the fact that the very basis of the commonwealth is being tested in his danger, all these men were to claim it as their own, you would not, by Hercules, be permitted to stand in your present place. As it is, he is defended in such a way that the adversaries should not greatly take it amiss, nor consider themselves overborne by power.

<sup>149</sup> What needs doing at home is done through Caecilia. The business of the Forum and the court Marcus Messalla, as you see, gentlemen, has undertaken; who, if he had now sufficient age and strength, would himself be speaking for Sextus Roscius. Since age stands in the way of his speaking — and the modesty which adorns his age — he has handed the case over to me, whom he understood to wish, as I owed it, to take it up for his own sake; and he himself, by his constancy, his counsel, his authority, his diligence, has brought it about that the life of Sextus Roscius, snatched from the hands of the confiscation-dealers, has been committed to the votes of the jurors. For surely, gentlemen, on behalf of this kind of nobility the greater part of the state was in arms; this was what we fought for, that those nobles should be restored to the state who would do what you see Messalla doing: defend the head of the innocent, resist injustice, would rather show what they could do for another's safety than for his ruin. And if all who were born into the same rank did the same, both the

commonwealth would suffer less from them, and they less from envy.

<sup>150</sup> But, gentlemen, if we cannot prevail upon Chrysogonus to be content with our money and not to seek our life — if he cannot be brought to this, that, having taken from us all that was peculiarly ours, he should not also wish to snatch from us this common light — if it is not enough for him to glut his greed with money, unless blood too has been offered to his cruelty — then the one refuge, the one hope left to Sextus Roscius, gentlemen, is the same as that left to the commonwealth: your old goodness and pity. If these remain, we can still even now be saved; but if that cruelty which has been at work in the commonwealth at this time hardens and embitters even your minds — which surely cannot happen — it is finished, gentlemen; better to spend one's life among wild beasts than in such great savagery.

<sup>151</sup> Were you reserved, were you chosen for this purpose — to condemn those whom the confiscation-dealers and cut-throats could not slaughter? Good generals do this when they engage in battle: in the place where they think the enemy's flight will be, they station soldiers to fall, unforeseen, upon any who flee from the line. Just so, I take it, these confiscation-buyers think that you, men of this calibre, sit here to receive those who have escaped from their hands. May the gods forbid, gentlemen, that what our ancestors wished to be called "the public council" should be reckoned the bodyguard of confiscation-dealers!

<sup>152</sup> Do you not understand, gentlemen, that nothing else is being done than that the children of the proscribed should be removed by every method, and that the beginning of this is being sought in your sworn oath and in Sextus Roscius's danger? Is it doubtful to whom the offence belongs, when on one side you see a confiscation-dealer, an enemy, an assassin — and at the same time a prosecutor in this case — and on the other a destitute son, well-regarded by his own people, in whom not only no fault, but not even any suspicion, has been able to take hold? Do you see anything else here standing against Roscius except that his father's property has been sold?

<sup>153</sup> If you take this on yourselves, and offer your service to that purpose — if you sit here so that the children of those whose property was sold shall be brought to you — by the immortal gods, gentlemen, take care that a new and far more cruel proscription be not seen to be inaugurated through you. That earlier one which was made against those who

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could take up arms, the Senate nevertheless was unwilling to undertake, lest something sharper than ancestral practice should seem to be done by public counsel. This other one, which extends to their children and to the cradles of their infants — unless by this present judgement you reject it and turn from it, by the immortal gods, see to what point you suppose the commonwealth must come.

<sup>154</sup> Wise men, endowed with the authority and power that you have, ought above all to apply remedies to the things from which the commonwealth most suffers. There is no one of you who does not understand that the Roman people, who once were thought most lenient towards their enemies, at this moment suffer from cruelty at home. Take this away from the state, gentlemen; do not allow it to go on any longer in this commonwealth; which has not only this evil in it, that it has carried off so many citizens most atrociously, but even this — that it has taken away the capacity for pity from the gentlest of men, by the habit of these afflictions. For when at every hour we see or hear of something atrocious being done, even those of us who are by nature most mild lose, by the constancy of these troubles, all sense of human feeling from our minds.

## FOR QUINTUS ROSCIUS THE COMIC ACTOR

*Pro Q. Roscio Comoedo*76 BC

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*Date disputed — somewhere between c. 76 and 66 BC — and the opening of the speech is lost. A civil case before the iudex C. Calpurnius Piso over a partnership dispute. Cicero defends the famous comic actor Quintus Roscius (no relation to Sextus Roscius of Ameria) against the plaintiff Gaius Fannius Chaerea, who sought fifty thousand sesterces on a claim arising from a joint ownership in the slave-actor Panurgus, whom Roscius had trained and Flavius of Tarquinii had killed. The speech is narrowly technical — on Roman partnership law, account-books, formulae, and the difference between iudicium and arbitrium — but is also Cicero's warmest tribute to a friend, calling Roscius "more worthy of the senate house by his self-restraint than of the stage by his art." It is incomplete at the close.*

<sup>1</sup> ...natural malice would have to be assumed. He, naturally, — excellent man, endowed with singular good faith — in his own case is trying to use his own account-books as witnesses. Those who have entered a sum charged against an honourable man on their books generally say: "Could I have corrupted such a man, that he should make a false entry in the day-book on my account?" I am waiting for the moment when Chaerea will use this very line: "Could I have driven this hand of mine, full of treachery, and these fingers of mine, to write up a false entry?" If he produces his own books, Roscius will produce his too. The entry will be in his books; in this man's it will not be.

<sup>2</sup> Why is the one to be believed rather than the other? — "He would have written it, if he had not entered the sum at this man's bidding?" — "Would my client not have written what he had given orders to be entered as charged against him? For just as it is shameful to write down what is not owed, so it is dishonest not to enter what you do owe. The book of the man who did not enter what is true is condemned just as much as the book of the man who entered what is false." But, relying on the abundance and capacity of my case, see how far I will go: if Gaius

Fannius produces his books of receipts and expenses, written for his own purpose at his own discretion, I will not refuse to have you decide in his favour.

<sup>3</sup> What brother grants this to brother, what father to son: that whatever he had entered should be held ratified? Roscius will hold it ratified. Produce them. Whatever has persuaded you will persuade him; whatever has been proven to you will be proven to him. A little while ago we were demanding the books of Marcus Perpenna, of Publius Satrius. Now, Gaius Fannius Chaerea, we are pressing for yours alone, and we are not refusing that the case be decided in accordance with them. Why then do you not produce them?

<sup>4</sup> Does he not keep books? On the contrary, very meticulously. Does he not enter small sums in his day-book? On the contrary, every sum. Is this entry slight and trifling? It is fifty thousand sesterces. How is it that you have so great a sum of money lying out of your account? How is it that fifty thousand sesterces are not in the book of receipts and expenses? By the immortal gods! Is anyone endowed with such audacity that, what he is afraid to enter into his books as a debt, he dares to claim; what he was unwilling to enter into the day-book unsworn, he does not hesitate to swear to in litigation; what he cannot prove to himself, he tries to persuade another of?

<sup>5</sup> He says I am too quick to be indignant about the books. He admits that this entry is not in the book of receipts and expenses, but contends that it stands in the rough waste-book. Is your love of yourself, your magnificent self-regard, so great that you claim money not from your books but from your waste-book? To recite your own day-book in the place of evidence is arrogance; to produce a waste-book of your own scribbles and erasures — is that not insanity?

<sup>6</sup> If the waste-book has the same force, care, and authority as the proper book, what is the point of keeping a day-book, of writing it up, of preserving the order, of handing the antiquity of the records to memory? But if, because we trust the waste-book in nothing, we have therefore established the writing of a day-book — shall what is even universally regarded as light and weak be considered weighty and inviolate before a judge? What is the reason that we write the waste-book carelessly?

<sup>7</sup> What is the reason we make up the day-book diligently? For what reason? Because the waste-book is monthly, the books are eternal; the

waste-book is rubbed out at once, the books are kept inviolate; the waste-book embraces the memory of a small time, the books embrace the trust and conscience of a perpetual estimation; the waste-book is scattered, the books are made up in order. So no one ever produced his waste-book in court; he produced his day-book; he read out his books. You, Gaius Piso, adorned with such good faith, virtue, gravity, authority, would not dare to claim money out of a waste-book.

<sup>8</sup> I ought not to dwell longer on what is plain by custom. But what very much concerns the matter, I ask: how long ago, Fannius, did you enter this sum into your waste-book? He blushes; he does not know what to answer; he has no fiction ready on the spur of the moment. "It is two months now," you will say. Even so, it should have been transferred to the book of receipts and expenses. "More than six months." Why has this entry been lying so long in the waste-book? What if it is now more than three years? How is it that, when all who keep books transfer to them their accounts almost monthly, you allow this entry to lie more than three years in the waste-book?

<sup>9</sup> Have you the rest of your entries digested into a book of receipts and expenses or not? If not, how do you keep books at all? If you have, why, when you were entering all the others in order, did you leave this entry — which was among the largest — for more than three years in the waste-book? You did not wish it to be known that Roscius owed you this. Then why were you writing it down at all? You had been asked not to enter it. Then why did you have it written in the waste-book? But although I see that all this is firm enough, still I cannot satisfy myself unless I take from Gaius Fannius's own self the testimony that this money is not owed to him. What I attempt is great; what I promise is hard. Unless Roscius shall have the same man as both adversary and witness, I do not wish him to win.

<sup>10</sup> A definite sum was owed you, which is now claimed before the iudex (the judge in the case of a definite sum), in which a sponsio (the legal stake) for the lawful share has been entered. If here you have claimed even one sesterce more than was owed you, you have lost your case — because a iudicium (a trial of definite sum) is one thing, an arbitrium (an arbitration of an indefinite claim) another. The iudicium is for definite money, the arbitrium for indefinite. To the iudicium we come in such a way as to obtain or to lose the entire suit. To the arbitrium we approach

in such a frame of mind as to get neither nothing nor as much as we asked for. The very words of the formula are evidence of this.

<sup>11</sup> What is in the iudicium? It is direct, harsh, simple: "If it appear that one thousand sesterces ought to be paid..." Here, unless he makes it plain that one thousand sesterces are owed him to the last farthing, he loses his case. What is in the arbitrium? Mild, moderate: "However much it is more equitable and better that be paid." There the claimant himself confesses that he is asking for more than is owed; but he says he has more than enough in what is granted to him by the arbitrator. So the one trusts in his case, the other distrusts.

<sup>12</sup> Since this is so, I ask you why you, of all things, made an arrangement to refer this money — these very fifty thousand sesterces, the credit of your books — to a compromise; why you took an arbitrator under the formula "however much it is more equitable and better that be paid," and on the further pledge "if such be found." Who, in this matter, was the arbitrator? Would that he were even at Rome! He is at Rome. Would that he were here in court! He is here. Would that he sat on the council of Gaius Piso! He is Gaius Piso himself. Were you taking the same man as arbitrator and as judge? On the same man you were calling for unlimited indulgence and binding him to the narrowest formula of the sponsio? Who ever obtained from an arbitrator as much as he asked? No one — for he asked for as much as it was equitable should be given him. The matter on which you went to an arbitrator, you have come on to the iudex! Other people, when they see their case is shaky before the iudex,

—  
<sup>13</sup> take refuge with the arbitrator: this man dared to come from the arbitrator to the iudex! And when he took an arbitrator about the credit of the books for this very money, he had judged that the money was not owed him. Two parts of the case are already wrapped up: he says he did not pay the sum down; he does not say he entered it as a debt — since he does not read out the books. It remains only that he should say that he had a stipulatio (a formal verbal contract); for besides this I do not see how he can claim a definite sum. You stipulated — where, on what day, at what time, in whose presence?

<sup>14</sup> Who says that I made a sponsio? No one. Were I to make an end of speaking here, I should seem to have done enough for my own credit and care, enough for the case and the controversy, enough for the

formula and the sponsio, enough also for the iudex — to show that judgement ought to be given for Roscius. A definite sum was claimed; with the third part the sponsio was made. This money must necessarily either have been given, or entered as a debt, or stipulated. That it was not given, Fannius admits; that it was not entered as a debt, Fannius's books confirm; that it was not stipulated, the silence of the witnesses concedes. What then?

<sup>15</sup> Because both the defendant is the man for whom money has always been the lightest of things and reputation the most inviolate, and the iudex is one whom we wish to think well of us no less than to give judgement for us, and the body of advocates here is such that, on account of its remarkable distinction, we ought to revere it as a single iudex, we shall speak as if all lawful trials, all honorary arbitrations, all duties of household life were summed up and enclosed in this formula. The earlier speech was necessary; this will be voluntary. The earlier was for the iudex, this is for Gaius Piso; the earlier was for the defendant, this is for Roscius; the earlier was prepared for the sake of victory, this for the sake of his good name.

<sup>16</sup> You claim money, Fannius, from Roscius. What money? Say it boldly and openly. Is it what is owed you out of the partnership, or what was promised and held out to you out of his liberality? The first is graver and more odious, the latter slighter and easier. What is owed out of the partnership? What say you? This is now no light matter, nor to be carelessly defended. For if there are any private trials of the highest reputation and almost (I would say) of life and death, these are three: of fiducia (trust), of tutela (guardianship), of societas (partnership). For it is equally treacherous and unspeakable to break the faith which sustains life, to defraud a ward who has come into your guardianship, and to deceive a partner who has joined you in business. Since this is so, —

<sup>17</sup> let us consider who it is that has cheated and deceived a partner. The life lived already will at this point silently give a firm and weighty witness, in one direction or the other. Quintus Roscius? What say you? Is it not so, just as fire thrown into water is at once put out and cooled, so that a hot false charge dropped into the purest and chastest life is at once extinguished and dies? Roscius cheated a partner! Can this offence cling to this man? — a man who, by Hercules — and I say it boldly — has more good faith than art, more truth than discipline; whom the Roman

people consider a better man than an actor; who is so worthy of the stage by his art that he is no less worthy of the senate house by his self-restraint.

<sup>18</sup> But why am I so foolish as to speak of Roscius before Piso? An unknown man, surely, I am commending in many words! Is there anyone of all men of whom you think more highly? Is there anyone who seems to you purer, more modest, kindlier, more dutiful, more generous? What of you, Saturius, who come against him — do you think otherwise? As often as you have hit upon his name in the case, have you not as often called him a good man and named him with respect — which no one is accustomed to do for any but a most honourable or most friendly man?

<sup>19</sup> In which matter you have struck me as ridiculously inconsistent — that you wound and praise the same man, and call him both a most excellent gentleman and a most dishonest one. The same man you addressed with respect, called a leading man, and accused of having cheated a partner? But, I take it, you assigned the praise to truth and the charge to favour. About him, you said what you thought; the case you conducted at Chaerea's discretion. Roscius cheated! It is absurd to all ears and minds. What if at last he had encountered some timid, witless, rich, lazy man unable to take legal action, —

<sup>20</sup> even so, it would be incredible. But let us look at whom he is supposed to have cheated. Roscius cheated Gaius Fannius Chaerea! I beg and beseech you, you who know them, to compare the lives of the two with each other; you who do not know them, to consider the face of each. Does not his very head, and those eyebrows shaved away to the skin, seem to reek of malice and to cry out cunning? From the tips of his toes to the very crown of his head, if the silent figure of the body offers any inference to men, does he not seem entirely composed of fraud, deceit, and lies? — a man who has his head and eyebrows always shaved that he may be said to have not a hair of a good man on him; whose character Roscius has finely played on the stage — and yet receives no equal gratitude in return for the favour. For when he plays that most dishonest and most perjured pander Ballio, he plays Chaerea: that filthy, foul, hateful character is impressed in this man's manners, nature, and life. Why he should think Roscius like himself in fraud and malice I can scarcely see, unless perhaps because he sees how splendidly Roscius plays his part in the role of the pander.

<sup>21</sup> For this reason, again and again, Gaius Piso, consider who is said

to have cheated whom. Roscius Fannius! What is this? An honest man cheating a dishonest one, a modest one an immodest, a chaste one a perjurer, an unskilled one a cunning one, a generous one a greedy one? Incredible. Just as, if Fannius were said to have cheated Roscius, both things would seem likely from each man's character — both that Fannius did it through malice and that Roscius was deceived through unwariness — so, when Roscius is charged with having cheated Fannius, both are incredible: both that Roscius sought anything through avarice, and that Fannius lost anything through goodness.

<sup>22</sup> Such are my opening points; let us look at the rest. Quintus Roscius cheated Fannius of fifty thousand sesterces. Why? Satrius smiles, the old fox, as he supposes; he says, "for the sake of those very fifty thousand." I see; but I ask why he was so violently set on those very fifty thousand. For you, Marcus Perpenna, you, Gaius Piso, surely fifty thousand would not have weighed so much as to make you cheat a partner. Why fifty thousand should have meant so much to Roscius — I ask the cause. Was he in want? On the contrary, he was wealthy. Was he in debt? On the contrary, he was managing his own money freely. Was he greedy? On the contrary, even before he was wealthy, he was always most generous and most munificent.

<sup>23</sup> By the faith of gods and men! He who refused to make 250,000 sesterces a year as profit — for he could and ought to have earned 250,000 sesterces, if Dionysia can earn 200,000 — he, by the highest fraud and malice and treachery, hunted after fifty thousand? And the one was a vast sum, the other a tiny one; the one honourable, the other sordid; the one pleasant, the other bitter; the one his own, the other staked on a case at law. In these last ten years he could most honourably have earned 6,000,000 sesterces. He refused. He took on the labour of profit; he rejected the profit of his labour. He has not yet stopped serving the Roman people; he stopped serving himself long ago.

<sup>24</sup> Would you, Fannius, ever have done this? If you could have taken in such profits, would you not at the same moment have been performing both gestures and your last gasp? Now you say that you have been swindled out of fifty thousand sesterces by Roscius — a man who refused such great and unlimited sums, not from idleness in labour, but from the magnificence of his generosity! Why should I now mention what I am sure occurs to you? Roscius cheated you in a partnership! There are laws,

there are formulas established about everything, so that no one may err either in the kind of injury or in the form of the action. Formulas for every man's loss, pain, inconvenience, calamity, injury have been formed by the praetor publicly, to which a private suit is fitted.

<sup>25</sup> Since this is so, I ask why you did not haul Quintus Roscius before an arbitrator under the formula "for partnership." Did you not know the formula? It was very well known. Did you not wish to test it in a serious trial? Why? On account of old intimacy? Why then are you wounding him? On account of the man's integrity? Why then are you accusing him? On account of the gravity of the offence? Indeed? The man whom you could not catch by arbitrator — where the trial would have been on the very point — you will condemn him by iudex, where there is no arbitrium on the point at all? Either bring this charge where you may bring it, or do not throw it about where you ought not. And yet by your own testimony the charge has already been removed; for at the time when you refused to use that formula, you indicated that this man had committed no fraud upon the partnership. For tell me: do you have your books or not? If not, how is there a contract?

<sup>26</sup> If you have them, why do you not name them? Now say that Roscius asked you to take his close friend as arbitrator! He did not ask. Say that he made a deal that he should be acquitted! He made no deal. Ask why he was acquitted! Because he was a man of the highest innocence and integrity. For what happened? You came of your own accord to Roscius's house, you settled the matter; for what you had rashly entered upon, you asked him to forgive you for serving the citation; you said you would not appear; you cried out that he owed you nothing on account of the partnership. He gave notice to the iudex of this. He was acquitted. And yet you dare to make mention of fraud and theft? He persists in his shamelessness. "He had made a contract with me," he says. To prevent his being condemned, of course. What reason had he to fear condemnation? — the matter was plain, the theft open.

<sup>27</sup> Of what theft? He begins, with great expectation, to expound the partnership of the old actor. "Panurgus," he says, "was Fannius's; he becomes shared between him and Roscius." Here Saturius first complained, not lightly, that Panurgus was made joint-property gratis with Roscius, when he had been Fannius's by purchase. Of course Fannius — generous, dissolute, overflowing with kindness — gave him as a gift to

Roscius. So I take it.

<sup>28</sup> Since he stopped here a little, I too must dwell here a little. You say, Saturius, that Panurgus was Fannius's own. I, on the contrary, contend that he was wholly Roscius's. For what was Fannius's? The body. What was Roscius's? The training. The face was nothing; the art was costly. As the part that was Fannius's, he was not worth a thousand sesterces; as the part that was Roscius's, he was worth more than 200,000. For nobody looked at him from the trunk of his body; everyone valued him by the comic art — for those limbs by themselves could not earn more than the prentice's pay; the training, which had been imparted by my client, hired itself out for no less than 200,000.

<sup>29</sup> What an unfair, unworthy partnership, where one brings a thousand to the partnership and the other 200,000! Unless that is why you take it ill: that you brought a thousand out of the strongbox, and Roscius drew 200,000 from the training and the art. For what hope and expectation, what zeal and what favour Panurgus brought with him onto the stage — being Roscius's pupil! Those who esteemed him favoured the pupil; those who admired him approved the pupil; those, finally, who had heard his name reckoned the pupil polished and finished. So is the multitude: it judges few things from truth, many from opinion.

<sup>30</sup> Few took notice of what he knew; everyone asked where he had learned it. They thought that nothing depraved or perverse could be put forth by this man. If Panurgus had come from Statilius, even though he surpassed Roscius in art, no one could have looked at him; for no one would think that, just as a good son cannot be born of a worthless father, a good comic actor can come from a wretched one. Because he came from Roscius, he seemed to know even more than he knew. The same recently happened with Eros the actor: who, after he was hissed off the stage — not only with whistles, but with abuse — took refuge as at an altar in this man's house, his discipline, his patronage, his name. So in a very short time, one who had not been even among the latest actors came to the foremost rank of comic players.

<sup>31</sup> What lifted him up? The single recommendation of this man — who nevertheless took the famous Panurgus into his home, not just so that he could be called Roscius's pupil, but trained him at the cost of the highest labour, frustration, and suffering. For the cleverer and more talented a man is, the more irritably and laboriously he teaches; for what

he himself grasped quickly, when he sees it slowly perceived, he is racked. My speech has been carried a little farther, that you may exactly know the condition of the partnership.

<sup>32</sup> What followed then? "Panurgus," he says, "this slave of ours in common, was killed by a certain Quintus Flavius of Tarquinii. In this matter," he says, "you appointed me your representative. The suit having been registered, the trial for unlawful damage having been set up, you settled with Flavius without me." For half my share, or for the whole? Let me put it more plainly: for myself, or both for myself and for you? For myself; I could do so by the example of many; it was permitted; many have done so by right; in that I did you no injury. Sue for your own; demand and carry off what is owed; let each man hold and pursue his share of the right. — "But you have managed your business well." — Manage your own well too. — "You settled your half for a great sum." — Settle your half for a great sum too. — "You took five hundred thousand sesterces." — So be it; take you five hundred thousand too.

<sup>33</sup> But this settlement of Roscius's, you may exalt by speech and by impression; in fact and in truth you will find it ordinary and slight. For he received a piece of land in those times when prices of estates were lying low; an estate which had no farmhouse and was not under cultivation in any part; which is now worth far more than it was then. And no wonder. For at that time, owing to the calamities of the commonwealth, the holdings of all were uncertain; now, by the kindness of the immortal gods, the fortunes of all are settled. Then the land was uncultivated, without a roof; now it is most fully cultivated, with the best of farmhouses.

<sup>34</sup> But, since you are so malevolent by nature, I will never free you from that worry and care. Roscius transacted his business splendidly, took away a most productive estate; what is that to you? Settle your half-share, however you please. Here he changes his ground and tries to feign what he cannot prove. "You settled the whole matter," he says. So the whole case is reduced to this: whether Roscius made the agreement with Flavius for his own share or for the entire partnership. For I confess that,

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<sup>35</sup> if Roscius touched anything in the joint name, he ought to render it to the partnership. He acquired the partnership's suit, not his own private one, when he received the farm from Flavius. Why then did he not give security that no one further should claim a sesterce? He who set-

ties for his own share leaves intact the action of the rest; he who settles on behalf of partners gives security that none of them shall claim afterwards. Why did it not occur to Flavius to take security for himself? He must, of course, not have known that Panurgus was in the partnership. He did know. He did not know that Fannius was Roscius's partner. Excellent — for Fannius too had a suit registered with him.

<sup>36</sup> Why then does he settle and not take a counter-stipulation that no one shall claim further? Why does he depart from the farm and is not acquitted in the iudicium? Why does he act so unskilfully as to bind Roscius by no stipulation, nor to be acquitted by Fannius in court?

<sup>37</sup> This is, first, both from the condition of the law and from the customs of legal precaution, the firmest and weightiest argument, which I would embrace at greater length, were I not to have other surer and clearer testimonies in the case. And, lest you should declare that I have promised this in vain, I will, you yourself, Fannius, raise from your benches as witness against yourself. What is your charge? That Roscius settled with Flavius on behalf of the partnership. When? Fifteen years ago. What is my defence? That Roscius transacted with Flavius for his own share. You give a counter-promise to Roscius three years ago. What? Read out that counter-stipulation more plainly. Pay attention, please, Piso. I am compelling Fannius, unwilling and twisting this way and that, to give witness against himself. For what does the counter-stipulation cry out? "Whatever I shall have got from Flavius, I promise to pay half of it to Roscius." This is your voice, Fannius.

<sup>38</sup> What can you take from Flavius, if Flavius owes nothing? What is this man now further stipulating about, what he has already long ago himself collected? Why, indeed, will Flavius give you anything, who has paid Roscius all that he owed? Why, in a matter so old, in a business already finished, in a partnership dissolved, is this new counter-stipulation slipped in? Who is the writer of this counter-stipulation, witness, and arbiter? You, Piso. For you asked Quintus Roscius, on account of his service and labour as representative, on account of his attendance at the citations, to give Fannius fifty thousand sesterces, on this condition: that, if he should obtain anything from Flavius, he should pay half of it to Roscius. Does the very counter-stipulation seem to you to say plainly enough that Roscius settled for himself?

<sup>39</sup> But perhaps it may occur to you that Fannius re-promised Roscius

half of what he should obtain from Flavius, but obtained nothing at all. What of it? You ought to look not at the issue of the collection but at the beginning of the re-promise. Even if Fannius judged it not worth pursuing, then on his side he judged that Roscius had won his own private suit, not the partnership's. What if, at long last, I make this plain — that, after Roscius's old settlement, after this recent counter-promise of Fannius for fifty thousand sesterces, Fannius did obtain that fifty thousand from Flavius in the name of Panurgus? Will he still dare to mock the good name of an excellent man, *Quintus Roscius*?

<sup>40</sup> A little while ago I was asking — and the question was very much to the point — why Flavius, when he was making a settlement of the whole suit, did not take adequate security from Roscius nor get acquittal in court from Fannius. Now, indeed — which is wonderful and incredible — I ask: why, when he had settled the entire matter with Roscius, did he separately pay fifty thousand to Fannius? At this point, Saturius, what you can answer I am eager to know: whether Fannius did not at all obtain fifty thousand from Flavius, or obtained it on some other heading and on some other ground.

<sup>41</sup> If on some other ground, what business had you with him? None. Was he condemned to you? No. I am wasting my time in vain. "He did not obtain fifty thousand from Flavius at all," he says, "neither in Panurgus's name nor in anyone's." If I make it plain that, after this recent stipulation of Roscius's, you took fifty thousand from Flavius, is there anything for it but that you should depart from court most disgracefully beaten? With what witness, then, shall I make this plain?

<sup>42</sup> The matter, I take it, had come into court. Certainly. Who was the plaintiff? Fannius. Who was the defendant? Flavius. Who was the iudex? Cluvius. Of these, one I must produce as witness, who shall say that the money was paid. Which is the weightiest of these? Without controversy, the iudex — a man approved by the verdict of all. Which of these three, then, will you expect from me as witness? The plaintiff? It is Fannius; he will never give evidence against himself. The defendant? It is Flavius. He died long ago; if he were alive, you would hear his words. The iudex? It is Cluvius. What does he say? That Flavius paid fifty thousand sesterces to Fannius in the name of Panurgus. If you regard him by the census, he is a Roman knight; if by his life, a man of the highest

distinction; if by good faith, you took him as iudex; if by truth, what he could and ought to know, he has said.

<sup>43</sup> Deny — come, deny it now — that one ought to believe a Roman knight, an honourable man, your own iudex! He looks around, he is in a sweat, he denies that we shall read out Cluvius's testimony. We will read it. You are mistaken; you console yourself with an empty and slender hope. Read the testimony of Titus Manilius and Gaius Luscus Ocrea, two senators, men of the highest distinction, who heard from Cluvius. Testimony of Titus Manilius and Gaius Luscus Ocrea. Are you saying that one ought not to believe Luscus and Manilius, or also that Cluvius is not to be believed? I will say it more plainly and openly. Is it that Luscus and Manilius did not hear anything about the fifty thousand from Cluvius, or that Cluvius told a falsehood to Luscus and Manilius? On this point I am of an untroubled and quiet mind, and I am not greatly concerned how your answer falls; for by the firmest and most inviolate testimonies of the best men, the case for Roscius is fortified.

<sup>44</sup> If you have already made up your mind whose oath-bound testimony to deprive of credit, answer. Do you say Manilius and Luscus are not to be believed? Say it; dare to. It is the voice of your stubbornness, your arrogance, and your whole life. What are you waiting for — when am I going to say that Luscus and Manilius are senators by rank, advanced in years, by nature inviolate and devout, well-furnished and rich in family resources? I will not do it; I will not detract from myself anything, when I give back to those of mature age the very strict reward they have earned. My young manhood needs their good opinion more than their most rigorous old age desires my praise.

<sup>45</sup> You, Piso, must deliberate long and digest carefully which to believe rather: Chaerea, unsworn, in his own suit, or Manilius and Luscus, sworn, in another's case. It remains for him to contend that Cluvius told a falsehood to Luscus and Manilius. If he does that — with what shamelessness! — will he reject as witness the man he approved as iudex? Will he say that the man he himself trusted ought not to be believed? Will he weaken before the iudex the trust of the witness on whose good faith and devoutness he chose him as iudex? The man whom, if I tendered him as iudex, he ought not to refuse, will he dare reproach when I produce him as witness?

<sup>46</sup> "But he speaks unsworn," he says, "to Luscus and Manilius." If

he were speaking sworn, would you believe him? But what is the difference between a perjurer and a liar? He who is in the habit of lying is in the habit of perjuring himself. The man whom I can lead to lie, I can easily prevail on to perjure. For he who has once turned aside from truth is accustomed to be brought to perjury with no greater compunction than to lying. For who is moved by a deprecation of the gods, but not by the trust of conscience? Therefore, the punishment which the immortal gods established for the perjurer, the same is established for the liar; for not from the agreement of the words by which the oath is comprehended, but from the treachery and malice by which an ambush is laid for someone — this is what the immortal gods are accustomed to be angry with men over, and to take ill.

<sup>47</sup> But I, on the contrary, contend: Cluvius's authority would be slighter if he spoke sworn than it is now, when he speaks unsworn. For then perhaps he might seem to wicked men too eager to be a witness in a matter where he had been iudex; now to all but the unjust he must necessarily seem most chaste and most consistent, who tells what he knows to his close friends.

<sup>48</sup> Say now, if you can, if the case, if the matter allows, that Cluvius lied! Did Cluvius lie? Truth herself laid her hand on me and forced me to stand and pause a little. Whence comes this whole made-up and confected lie? Roscius, of course, is a clever and crafty man. With this beginning he started to think: "Since Fannius is suing me for fifty thousand sesterces, I will ask Gaius Cluvius, a Roman knight, a most distinguished man, to lie on my account; to say that a settlement was made which was not made; to say that fifty thousand was paid by Flavius to Fannius which was not paid." This is the start of a dishonest mind, of a wretched intellect, of no judgement.

<sup>49</sup> What then? After he had splendidly fortified himself, he came to Cluvius. What kind of man? A light one? On the contrary, the gravest. A volatile one? On the contrary, the most consistent. An intimate? On the contrary, an utter stranger. After he had greeted him, he began, blandly and elegantly no doubt, to ask: "Lie on my account; in the presence of the best men, your own intimates, say that Flavius settled with Fannius about Panurgus when he made no settlement; say that he paid fifty thousand who paid not a sesterce." What did the other reply? "I will indeed lie eagerly and willingly on your account; and, if you should ever

wish me to commit perjury, that you may save yourself a trifle, know that I shall be ready. There was no need to take so much trouble and come to me; you could have transacted by messenger this matter, which was so trifling.”

<sup>50</sup> By the faith of gods and men! Would Roscius ever have asked this from Cluvius, even if it were a hundred million sesterces in court? Would Cluvius have granted it to Roscius’s request, even if he were sharing in the whole booty? Hardly, by Hercules, would you, Fannius, dare to ask this of Ballio or someone like him, and obtain it. What is false in fact, is also incredible in reason; for I forget that Roscius and Cluvius are men of the first rank; for the sake of argument I imagine them dishonest.

<sup>51</sup> Roscius suborned Cluvius as a false witness! Why so late? Why when the second instalment was being paid, not when the first was? For he had already paid fifty thousand before. Then, if Cluvius had already been persuaded to lie, why did he say that fifty thousand — rather than 300,000 — had been given by Flavius to Fannius, when by the counter-stipulation half of that would have been Roscius’s? You see now, Gaius Piso, that Roscius asked nothing for himself except for himself, nothing for the partnership. Since Saturius perceives this is plain, he does not dare to resist and fight against the truth, but finds another by-way of fraud and ambush in the same track.

<sup>52</sup> “I confess,” he says, “that Roscius asked his own share from Flavius; I grant that he left Fannius’s free and intact; but I contend that what he collected for himself became common to the partnership.” Nothing more captious or more unworthy can be said. For I ask: could Roscius claim his share out of the partnership or not? If he could not, how did he take it? If he could, how did he not collect it for himself? For what is sued for for one’s self, certainly is not collected for another.

<sup>53</sup> Or is it so: if he had sued for what was the partnership’s, all should have shared equally what was then realised; now, since he sued for what was his own share, is what he then took to be regarded as collected for himself alone? What is the difference between the man who litigates on his own behalf and the man who is appointed cognitor (a procurator)? He who registers a suit on his own brings it for himself alone; for another no one can, except one who is made cognitor. Indeed? If he had been your cognitor, what he had won by the trial you would carry off as your own; when he sued in his own name, what he carried off you say he did

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not collect for himself but for you?

<sup>54</sup> If anyone can sue for another who has not been made cognitor, I ask: why, when Panurgus was killed and the suit registered with Flavius for unlawful damage, did you become cognitor of Roscius in that suit, especially since on your reasoning whatever you sought for yourself you sought for him, whatever you collected for yourself fell to the partnership? But if nothing of what you obtained from Flavius would have come to Roscius unless he had given you as cognitor in his own suit, nothing of what Roscius collected for his own share ought to come to you, since he has not been made your cognitor.

<sup>55</sup> For what will you be able to answer, Fannius? When Roscius transacted with Flavius about his own share, did he leave you your action or not? If he did not leave it, how did you afterwards collect fifty thousand from him? If he left it, why do you ask of him what you ought to pursue and demand for yourself? For partnership is most like, and almost the twin of, inheritance. Just as a partner has a share in the partnership, so an heir has a share in the inheritance. As an heir sues for himself alone, not for his coheirs, so a partner sues for himself alone, not for his partners; and just as each sues for his own share, so he discharges for his own share — the heir from the share by which he came to the inheritance, the partner from the share by which he entered the partnership.

<sup>56</sup> As Roscius could in his own name forgive his share to Flavius, so that you should not claim it, so when he claimed his own share and left you the action whole, he is not bound to share with you, unless perhaps, by some perverted custom, what is his you cannot extort from another but you can snatch from him. Saturius persists in his opinion, that whatever a partner sues for himself becomes the partnership's. If that is so, by what folly, in heaven's name, did Roscius act, when, on the counsel and authority of jurists, he carefully took back a counter-stipulation from Fannius that he should pay him half of what he should obtain from Flavius — if indeed, even without security and counter-promise, Fannius nonetheless owed it to the partnership, that is, to Roscius? \* \* \* \* \*

## FOR MARCUS TULLIUS

*Pro M. Tullio*71 BC

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*Delivered at Rome in 71 BC, surviving in extensive but incomplete fragments. A civil action under a recently introduced praetorian formula of M. Lucullus that gave a quadruple-damages remedy against any household which by force, with armed men, did damage by malicious design — a remedy crafted to address the late-Republican plague of armed slave-bands roaming the great estates. Marcus Tullius (no relation to Cicero, though Cicero notes the shared name affectionately in section 4) had inherited an estate in Thurium; his neighbour Publius Fabius, who had bought an adjoining estate from C. Claudius, sent his slaves armed by night to butcher Tullius's slaves on a disputed boundary lot. The defence (carried by Lucius Quinctius) admitted the killing but contended the formula required proof of "wrongfulness," which the praetor had deliberately omitted. Most of the speech is a sustained argument that the omission was deliberate and that the formula leaves the defendant nowhere to stand. The opening of the case (the sponsio, the assessment) and the close (verdict and peroration) are lost.*

<sup>1</sup> I had earlier resolved, gentlemen of the panel, to conduct this case on the assumption that our adversaries would deny that so great and so atrocious a slaughter could pertain to their household. So I had come into court with a mind free of all anxiety and forethought, since I understood that I could easily make the matter plain by witnesses. As things stand, after that distinguished man Lucius Quinctius has openly confessed it, my labour was once to show that what I charged had been done; now my speech must be spent on this — that our adversaries should not seem to be in a better position by virtue of the very thing they could not deny but, having confessed when they most wished otherwise, their confession should not give them an advantage.

<sup>2</sup> So at that time your judgement seemed harder, my defence easier. For I trusted everything to witnesses — and what is easier than to give

judgement about a man who confesses? But for me it is hard to speak with sufficient fullness about a thing which cannot be set out in words more atrocious than the matter itself, nor made plainer by my speech than it has been made by their own confession.

<sup>3</sup> Since in this matter, which I have just mentioned, I had to alter my plan of defence, I might seem to be defending Marcus Tullius's reputation less diligently than his case. But now, since Quinctius has thought it relevant to bring up so many things — and especially false and unfairly invented things — about the life and character and reputation of Marcus Tullius, for many reasons Fabius will have to forgive me if I seem less to spare his good name than I had previously taken care to do.

<sup>4</sup> For if [Quinctius] before thought it relevant to his duty to spare his adversary in nothing, what ought I, a Tullius, to do for a Tullius, a man bound to me by no less of mind than of name? My anxiety, gentlemen of the panel, is rather to make good what I previously refrained from saying against him, than to be reproached for what I am answering at this moment.

<sup>5</sup> But both then I did what I ought, and now I will do what is necessary. For when the controversy was about money — about the damage we said had been done to Marcus Tullius — it seemed alien to my nature to say anything about Publius Fabius's reputation: not because the case did not seem to call for it. What then? Although the case demands it, yet, unless it absolutely compels me against my will, I am not in the habit of descending to abuse. Now, when I am compelled to speak, if I happen to say anything, I will do so modestly and within bounds, only so that — since Fabius could judge from the earlier proceedings that I was not his enemy — he may now learn that I am a faithful and steady friend to Marcus Tullius.

<sup>6</sup> One thing I would very much like to obtain from you, Lucius Quinctius — and I ask it both because it is useful to me and because it is fair from you — that you take such time for your speech as to leave these gentlemen some for judging. For before, it was not the measure of your defence but nightfall that put an end to your speaking. Now, if you will allow it, I ask you not to do the same thing. I do not ask this because I think you ought to leave anything out, or speak less ornately and copiously than possible, but only that you speak once on each topic; and if you do this, I am not afraid that we will run out of daylight in your

speech.

<sup>7</sup> The judgement before you, gentlemen of the panel, is "of how great a sum of money it appears that, by the malicious design of Publius Fabius's household, by force, by men assembled and armed, damage has been done to Marcus Tullius." We have set the assessment; the valuation is yours; judgement has been given fourfold.

<sup>8</sup> Just as all those laws and trials which seem somewhat sterner and harsher have arisen from the iniquity and injury of dishonest men, so this trial was instituted only a few years ago, on account of bad custom and excessive licence. For when many households were said to be armed in distant fields and on pasture lands and to be committing slaughter, and when this practice was seen to bear not only on private affairs but on the highest interests of the commonwealth, Marcus Lucullus — who administered justice with the highest equity and wisdom — was the first to compose this trial, and he aimed at this: that all should so keep their households in hand that they not only should not, when armed, do damage to anyone, but, even when provoked, should rather defend themselves at law than by arms.

<sup>9</sup> And though he knew there was the *lex Aquilia* (a law on damage), still he reckoned thus: that among our ancestors, when both deeds and desires were smaller, and households were not large and were held in by great fear, so that it very rarely happened that a man was killed — such a deed being held an unspeakable and singular crime — there had been no need of a trial about violence by men assembled and armed; for what did not happen in practice, if anyone established a law or trial about it, would seem rather to suggest the offence than forbid it.

<sup>10</sup> In these times, when from a long and domestic war affairs had come into such a habit that men used arms with less scruple, he thought it necessary both to give a trial against the entire household for what was alleged to have been done by the household, and to give a panel of *recuperatores* —

<sup>11</sup> so that the matter should be judged as quickly as possible — and to set a heavier penalty, that audacity might be checked by fear; and to abolish that loophole, "wrongful damage." What in other cases ought to and does count under the *lex Aquilia*, in damage of this sort, given by force through armed slaves, —

<sup>12</sup> they themselves [the householders] would have to lay down the

moments when they could lawfully take up arms, gather a band, kill men. Composing the formula so that this alone should come to trial — "did it appear that, by force, by men assembled and armed, damage had been given by malicious design of the household?" — and not adding the word "wrongfully," he thought he had taken away the audacity of dishonest men, since he had left no hope of defence.

<sup>13</sup> Since you now know what trial has been instituted and on what counsel, attend, please, while I briefly set out the matter itself, as it was done.

<sup>14</sup> Marcus Tullius, gentlemen of the panel, has an ancestral estate in the territory of Thurium, the possession of which gave him no trouble until he chanced upon a neighbour of such a kind as preferred to extend the boundaries of his fields with weapons rather than to defend them by law. For Publius Fabius lately bought an estate from Gaius Claudius the senator, an estate to which Marcus Tullius's was adjoining, at a considerable price — about half as much again, for the uncultivated land and burnt-out farm buildings, as Claudius himself had paid for it intact and most fully equipped at a very high price.

<sup>15</sup> [...] he had clandestinely got fitted out by a former consul out of Macedonia and Asia. I will add this also, since it bears on the matter: when his commander died, and he had somehow acquired money, while he wished to put it into an estate, he did not so much put it as throw it away. Up to this point [the lacuna obscures the sense]... and he tried to satisfy his bile by Tullius's loss.

<sup>16</sup> On that estate, gentlemen of the panel, there is a hundred-acre lot called the Populian centuria, which has always been Marcus Tullius's, which his father too possessed, situated in such a way as to fall to Tullius's farm. And first, since Fabius regretted the whole transaction and his purchase, he advertised the estate for sale; he had bought it together with his partner Gnaeus Acerronius, an excellent man, and advertised the area for sale.

<sup>17</sup> He approaches Tullius. Tullius, with sufficient arrogance, replied as suited him. The seller had not yet pointed out the boundaries. Fabius sends letters to his agent and to his bailiff; Tullius said he would not do it; in their absence Fabius had the boundaries pointed out to Acerronius — but did not deliver this Populian centuria as vacant. Acerronius, in such manner as he could, [extricated] himself from the whole matter —

<sup>18</sup> and as a man, so to speak, half-burnt, escaped. Meanwhile Fabius brings into the wood-lots picked men of the greatest spirit and strength, and procures for each man arms suitable and fitted to him, so that anyone could understand that they were being equipped not for farming but for slaughter and battle.

<sup>19</sup> In a short time they killed two men of Quintus Catius Aemilianus, an honourable man whom you know; they did many other things; they wandered armed about the country, not in secret, but in such a way that one could clearly understand for what purpose they were prepared. The fields, indeed even the roads, they made unsafe. Meanwhile Tullius came to his Thurine estate. Then this fortunate Asiatic-style head-of-household, the new farmer and grazier, while walking on his land, noticed in this very Populian centuria a small building and Marcus Tullius's slave Philinus.

<sup>20</sup> "What business have you here on my land?" he said. The slave answered modestly — but not foolishly — that the master was at the farmhouse and that he could discuss the matter with him if he wished. Fabius asks Acerronius — for he was there at the time — to come along with him to Tullius. They go. Tullius was at the farmhouse. Fabius requires that either he conduct Tullius to Rome (for the citation) or be conducted by him. Tullius said he would conduct Fabius, and would promise his bail-bond to Fabius for Rome. Fabius accepts those terms. They part early.

<sup>21</sup> The next night, when daylight was almost coming on, the slaves of Publius Fabius, in numbers and armed, come to the building of which I spoke before, which was in the Populian centuria. They force their way in by violence. They fall upon Marcus Tullius's slaves — valuable men — not expecting it. This was easily done; many men, armed and ready, kill men neither so numerous nor resisting; and they had so much hatred and cruelty that they left them all with their throats cut, lest, if any had been left half-alive and still breathing, they should hold themselves to have done less honour to the deed. Besides, they wreck the building and the farmhouse.

<sup>22</sup> This savage, unworthy, sudden affair Philinus — whom I named earlier — reports to Marcus Tullius, having escaped gravely wounded from the slaughter. Tullius at once sends for friends, and in the Thurine neighbourhood there was a good and honourable supply at hand.

<sup>23</sup> The matter seemed to all bitter and miserable. When the friends [...gap in the text...] were thrown into uproar.

<sup>24</sup> Hear, please, the testimony of honourable men in the matters I have mentioned. What my witnesses say, the adversary admits they say truly. What my witnesses do not say — because they did not see and do not know — the adversary himself says. Our witnesses say men were killed; that they saw bloodshed in many places; that the building was thrown down. Nothing further. What does Fabius say? He denies none of it. What further does he add?

<sup>25</sup> He says his household did it. How? By force, with armed men. With what intent? That what was done should be done. What is that? That Marcus Tullius's men should be killed. Therefore, what was done with this intent — that men should come together to one place, that they should take up arms, that with a settled plan they should set out for a settled spot, that they should choose a fitting time, that they should commit slaughter — if they wished and planned and accomplished this, can you separate that will, that plan, that act from "malicious design"?

<sup>26</sup> But the whole phrase "by malicious design" is added in this trial for the sake of the man who brings the suit, not the man with whom the suit is brought. That you may understand this, gentlemen of the panel, please attend carefully; you will not doubt that it is so.

<sup>27</sup> If the trial had been so given as to limit it to "what the household had done," then if any household had been unwilling that it itself should take part in the slaughter, and had assembled or hired men, slave or free, this whole trial and the praetor's severity would be dissolved. For no one can give judgement that, in a matter where the household itself has not taken part, that very household has done the damage by force with armed men. Therefore, since this could happen — and could easily happen — it was not thought enough to inquire what the household itself had done, but also what had been done by the household's malicious design.

<sup>28</sup> For when the household itself acts with violence, with armed and assembled men, and does damage to anyone, this must be done with malicious design; but when it lays the plan that this should be done, the household itself does not act, but it is done by its malicious design. So by adding "by malicious design" the case for the plaintiff and pursuer is made fuller. Whichever of the two he can show — whether that the household itself did the damage, or that it was done by the planning and

work of that household — he must necessarily win.

<sup>29</sup> You see the praetors in these years interdict in this fashion, as for example between me and Marcus Claudius: "Whence, by your malicious design, Marcus Tullius, Marcus Claudius or his household or his agent has been driven out by force..." — the rest as in the formula. If, where the interdict has been issued and the sponsio (the wager-stipulation) made, I defend myself before the iudex by confessing that I drove him out by force but denying malicious design — will anyone listen to me? Not, I think, since, if I drove out Marcus Claudius by force, I drove him out by malicious design; for in violence malicious design is included, and it is enough for Claudius to make either of these things plain — either that he was driven out by me by force, or that I planned that he should be driven out by force.

<sup>30</sup> Therefore more is given to Claudius when the interdict reads "whence by my malicious design he was driven out by force" than would be given if it read "whence he was driven out by me by force." For in this latter, unless I myself had driven him out, I would win the sponsio; in the former, where "malicious design" is added, whether I had laid the plan or had myself driven him out, you would necessarily be judged to have been driven out by my malicious design by force.

<sup>31</sup> This is very like, indeed exactly the same as, this trial, gentlemen of the panel. For I ask you: if the trial had been given as "of how great a sum of money it appears that by Publius Fabius's household by force by armed men damage was given to Marcus Tullius," what would you have to say? Nothing, I take it. For you confess that Publius Fabius's household did everything, and did it by force with armed men. The thing that has been added — "by malicious design" — you suppose helps you, although it crushes and shuts out your whole defence?

<sup>32</sup> For if it had not been added, and you had wished to defend yourself by saying your household did not do it, you would have won, if you had been able to prove it. As it is, whether you wish to use that defence or this one which you do use, you must necessarily be condemned — unless we suppose that the man who lays the plan comes to trial, and the man who does the deed does not, when planning without action can be conceived of, but action without planning cannot. Or shall a deed of such a kind that without secret plan, without night, without violence, without damage to another, without arms, without slaughter, without crime, it

could not be done — shall it be judged to have been done without malicious design? Or, in a matter in which the praetor wished a dishonest defence to be cut off, shall my action have been made the harder?

<sup>33</sup> Here our opponents seem to me to be men of singular ingenuity, who both seize for themselves the very thing that has been given to me against them, and use a rock and stones in place of a harbour and anchorage. For they wish to take cover in "malicious design," in which not only have they themselves done everything that they confess, but even if they had done it through others, they would still stick fast and be held.

<sup>34</sup> I claim that in not just one matter, which would be enough for me, nor merely in the matter as a whole, but item by item in every part, malicious design appears. They take counsel to come to Marcus Tullius's slaves: this is malicious design. They take up arms: malicious design. They choose a moment fit for ambush and concealment: malicious design. They burst by force into the building: in the very violence is design. They kill men, demolish the building: a man cannot be killed nor damage purposely done another without malicious design. So if all the parts are such that malicious design clings to each, will you give judgement that the matter as a whole and the offence in its entirety was done without malicious design?

<sup>35</sup> What does Quinctius say to this? Truly nothing certain or single, on which he himself thinks — much less can — stand. For he first put forth this: that nothing can be done by a household with malicious design. With this point he sought not only to defend Fabius, but to dissolve trials of this kind altogether. For if there comes into a trial concerning a household something that no household at all can commit, then there is no trial; everyone in a similar case must necessarily be acquitted — a fine state of affairs, by Hercules!

<sup>36</sup> If this were the only thing, you, men of this rank, ought not to wish that an excellent matter, bound up with the highest interests of the state and the fortunes of private citizens, a most severe trial composed with the greatest reasoning, should seem to be dissolved through your action. But that is not all that is at stake. This trial is awaited as something that decides not one matter but is taken as setting precedent for all.

<sup>37</sup> I understand it; and yet what Quinctius said must be answered, not because it is to the point, but lest something which I have passed over be taken as conceded.

<sup>38</sup> You say it ought to be inquired whether the men of Marcus Tullius were killed wrongfully or not. About this I first ask: did this matter come into this trial or not? If it did not, what point is there for either us in saying anything or these gentlemen in inquiring? If it did, what point was there in your asking the praetor with so many words to add to the trial "wrongfully," and, when you did not get it, in appealing to the tribunes of the plebs and complaining here in court of the praetor's unfairness because he had not added "wrongfully"?

<sup>39</sup> When you were asking these things of the praetor, when you were appealing to the tribunes, surely you were saying that you ought to be permitted, if you could, to persuade the recuperatores that the damage was not done to Marcus Tullius wrongfully. What therefore you wished to be added to the trial precisely so that you might speak about it before the recuperatores, that very thing, when not added, you nevertheless argue, as if you had got the very thing from which you were repulsed. But what words did Metellus use in his decree, and what the others to whom you appealed? Was not this the language of all of them: that what the household was alleged to have done by force, by men assembled and armed, even if it could in no way have been done by right, they would still add nothing? And rightly, gentlemen of the panel.

<sup>40</sup> For when, with no refuge established, slaves nevertheless dare to commit such crimes, and masters most shamelessly confess them — what do you suppose would happen if the praetor judged that slaughter of this kind could be done lawfully? Or is there any difference between magistrates' establishing a defence for an offence and granting power and licence to offend?

<sup>41</sup> For, gentlemen of the panel, magistrates are not moved by [the question of] damage to draft a trial in these terms. For if that were the case, they would not give recuperatores rather than a single iudex, nor against the whole household, but against him who would be sued by name; nor in fourfold, but in twofold; and to "damage" "wrongfully" would be added. Nor is the man who established this trial departing from the *lex Aquilia* in other damages, where nothing is at stake but damage, on which the praetor ought to fix his attention.

<sup>42</sup> In this trial you see violence is at issue, you see armed men are at issue, you see assaults on buildings, the laying-waste of fields, the butcheries of men, fires, plundering, blood coming into the trial. And do you won-

der that those who gave this trial were content with this question — whether things so bitter, so unworthy, so atrocious had been done or not — and not whether they had been done by right or wrongfully? The praetors did not, then, depart from the *lex Aquilia*, which is about damage; rather, they established a strict trial concerning violence and arms; and they did not think the question of right and wrong needed to be raised, but they were unwilling that those who preferred to do their business by arms rather than by law should themselves debate about right and wrong.

<sup>43</sup> Nor did they fail to add “wrongfully” because they would not add it in other matters; but lest they themselves should judge that slaves can lawfully take up arms and gather a band; or because they thought that, if it were added, it could be persuaded to such men that it had not been done wrongfully; but lest they should seem to give some shield in court to those whom on account of these very arms they had summoned to court.

<sup>44</sup> There was that interdict among our ancestors concerning violence which is in force still today: “Whence you, or your household, or your agent has driven him, or his household, or his agent within this year by force.” Then is added, now for the sake of him with whom the suit is brought: “since he was in possession,” and this further: “since he was in possession not by force, nor by stealth, nor by sufferance.”

<sup>45</sup> Many things are given to him who is alleged to have driven another out by force; if the iudex can prove any one of these, even if he confesses he drove him out by force, he must necessarily win — either that the man who was driven out was not in possession, or had been in possession by force from him, or by stealth, or by sufferance. To one who confessed about violence, our ancestors yet left so many defences for sustaining his case.

<sup>46</sup> Come now, let us consider the second interdict, which has likewise been established now on account of the same iniquity of the times and the excessive licence of men [...] good men ought to say.

<sup>47</sup> And he read me a law from the Twelve Tables, which permits a thief to be killed at night, and by daylight if he defends himself with a weapon; and an ancient law on the *leges sacratae*, which orders that whoever has struck a tribune of the plebs is to be killed with impunity. Beyond these, I take it, nothing on the laws.

<sup>48</sup> On this matter I first ask: what was the relevance of reading these

laws to this trial? Did Marcus Tullius's slaves strike any tribune of the plebs? I think not. Did they come to Publius Fabius's house at night to steal? Not even that. Did they come by daylight to steal and defend themselves with a weapon? It cannot be said. Therefore, by those laws which you read, certainly your household could not have killed the slaves of Marcus Tullius.

<sup>49</sup> "I did not read it for that purpose," he says, "but that you might understand that our ancestors did not see anything so terrible (as you suppose) in a man's being killed." But, in the first place, those very laws which you read — to leave aside the rest — show how reluctant our ancestors were that a man should be killed except in cases of utter necessity. That law is sacred which armed men carried, that the unarmed might be safe. Thus, not without good reason, in the case of the magistracy by which the laws are protected, they wished the body of that magistracy to be fenced about by laws.

<sup>50</sup> The Twelve Tables forbid a thief — that is, a robber and a brigand — to be killed by day; even though you hold within your walls the surest of enemies, unless he defend himself with a weapon (and the law says: even if he came armed, unless he uses the weapon and resists, you shall not kill him); but if he resists, "endoplorato," that is, raise the cry, that some men may hear and assemble. What can be added to this clemency in our forefathers, who did not even permit a man to defend his own life in his own home with a sword without witnesses and arbiters?

<sup>51</sup> Who is more deserving of pardon, since you call me back to the Twelve Tables, than the man who has unintentionally killed another? No one, I take it. For this is the unwritten law of humanity: that the punishment should be exacted from the man's intent, not his luck. Yet our ancestors did not give a pardon for this either. For there is in the Twelve Tables: "If a weapon has fled from the hand rather than been thrown" —

<sup>52</sup> [the rest of the maxim is preserved in Iulius Rufinianus]: if anyone has killed a thief, he has killed wrongfully. Why? Because no right has been established. What if [the thief] has defended himself with a weapon? Not wrongfully. Why? Because it has been established.

<sup>53</sup> ...even if the act had been done by force in your own land — not only could you not lawfully kill the slaves of Marcus Tullius, but, if without your knowledge or by force you had pulled down a building which

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my client had put up there and was defending as his own, that would be judged "done by force or by stealth." Settle for yourself how true it is that, when your household could not pull down a few tiles with impunity, you could yet do the greatest slaughter without offence. If I myself, this building of his having been pulled down, were today to ask, on grounds of "by force or stealth," you would either have to restore it through an arbitrator or be condemned by your sponsio. Now will you persuade men of this rank that, when you could not lawfully pull down a building which (according to your account) was on your own land, you could lawfully kill the men who were in that building?

<sup>54</sup> "But my slave does not appear, who was seen with yours; my hut has been burnt by yours." What shall I answer to this? I have shown the charges to be false. But I will admit them. What follows? That Marcus Tullius's household had to be cut down? Hardly, by Hercules, that satisfaction by the lash should be sought, hardly that any heavier complaint should be lodged. But, granting you to be of the harshest, the matter could have been brought in the ordinary way, in the daily form of action. What need was there of force, what of armed men, what of slaughter, what of bloodshed?

<sup>55</sup> "But perhaps they would have come to attack me." This is the last device of these men in their lost cause — not speech or defence, but conjecture and a kind of soothsaying. They were going to come to attack? Whom? Fabius. With what plan? To kill him. For what cause? That they might gain what? How did you find this out? And, that I may put a transparent matter in the fewest possible words, can it really be doubted, gentlemen of the panel, which side appears to have done the attacking — those who came to the farmhouse, or those who stayed at the farmhouse?

<sup>56</sup> Those who were killed, or those none of whom was so much as wounded? Those who had no cause for doing such a thing, or those who confess they did it? But, even if I grant you this — that you were afraid you would be attacked — who has ever ruled, or to whom can it be conceded without the highest danger to all, that a man may lawfully kill the man whom he says he feared lest he himself afterwards be killed?

## AGAINST CAECILIUS (DIVINATIO)

*Divinatio in Caecilium*70 BC

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*Delivered at Rome in early 70 BC, the divinatio is a preliminary hearing to determine which of two competing prosecutors should be permitted to bring the extortion case against Gaius Verres for his governorship of Sicily (73-71 BC). Cicero's rival was Quintus Caecilius Niger, who had been Verres's quaestor and was suspected of being a collusive prosecutor put up to throw the trial. The speech is the first in the Verrines: a sustained argument that the Sicilians' choice of prosecutor should be honoured, that a former quaestor of the defendant is structurally unfit to prosecute him, and that Caecilius lacks the training, experience, and incorruptibility the case requires. Cicero won the divinatio and proceeded to the actio prima against Verres in August.*

<sup>1</sup> If anyone of you, gentlemen of the jury, or of those in attendance, by chance is wondering that I, who for so many years have been engaged in cases and public trials in such a way as to have defended many and harmed no one, am now suddenly with changed purpose descending to prosecute — if such a man learns the cause and the reasoning of my decision, he will both approve what I am doing and judge that, in this case, no one ought to be set above me as the prosecutor.

<sup>2</sup> When I had served as quaestor in Sicily, gentlemen, and had taken my leave from the province in such a way as to leave with all Sicilians a pleasant and lasting memory of my quaestorship and my name, it came about that, while they thought their fortunes were chiefly defended by their many old patrons, they thought they had now also some safeguard for them in me. So now, plundered and harried, they have come in numbers in delegations to me, asking me to undertake the defence of all their fortunes. They said I had often promised, often shown, that, if any moment came in which they might require something of me, I would not fail their interests.

<sup>3</sup> They said the time had come now, not for me to defend their interests, but the life and safety of the entire province; that they no longer

had even gods in their cities to whom they might flee, since their most sacred images had been taken by Gaius Verres from their most revered shrines. Whatever luxury could effect by way of disgrace, cruelty by way of punishment, greed by way of plunder, arrogance by way of insult, all this they had endured under this one praetor for three years. They asked and begged that I should not despise their suppliant petitions — they who, while I am still alive, ought to be no man's suppliants.

<sup>4</sup> I took it heavily and bitterly, gentlemen, that I should be brought to such a position that either men who had sought my help and protection should find their hope deceived, or that I, who had given myself to defending men from the very beginning of my youth, should, by the moment and by duty, be transferred to prosecuting. I said that they had as prosecutor Quintus Caecilius, who had especially been quaestor in the same province after my own quaestorship. The very thing by which I hoped this trouble might be removed from me was for me the chief obstacle. For they would have given way to me much more easily if they had not known him, or if he had not been quaestor among them.

<sup>5</sup> I was led, gentlemen, by duty, by good faith, by pity, by the example of many honourable men, by the old custom and institution of our ancestors, to think that I ought to take this burden of labour and duty upon myself not at my own moment but at that of my close associates. In this business, however, this consoles me, gentlemen: that what is seen as my prosecution is to be considered not so much a prosecution as a defence. For I am defending many living men, many cities, the whole province of Sicily; and so, since I have only one man to prosecute, I seem to remain almost within my own habit and not to depart altogether from defending and supporting men.

<sup>6</sup> If I did not have a case so fitting, so distinguished, so weighty — if either the Sicilians had not asked this of me, or if I had with the Sicilians no bond of so great a connection, and if what I am doing I were merely professing to do for the sake of the commonwealth, that a man endowed with singular cupidity, audacity, and crime — whose thefts and disgraces we have known to be of the greatest and most shameful kind, not only in Sicily but in Achaia, Asia, Cilicia, Pamphylia, and finally at Rome before the eyes of all — should at my pleading be summoned into court: who, in the end, would there be who could find fault with my deed or my counsel?

<sup>7</sup> What is there, by the faith of gods and men, in which I could now do greater service to the commonwealth? What is there which ought to be more pleasing to the Roman people, or more wished for by the allies and foreign nations, or more fitted to the safety and fortunes of all? Plundered, harried, utterly overturned provinces, allies and tributary peoples of the Roman people, beaten down, miserable, are seeking now no longer the hope of their safety but consolation in their ruin.

<sup>8</sup> Those who wish trials to remain in the senatorial order complain that they do not have suitable prosecutors. Those who can prosecute desire severity in trials. The Roman people meanwhile, although it is afflicted with many inconveniences and difficulties, yet desires nothing in the commonwealth so much as that old force and gravity of the courts. From a desire for proper trials the tribunician power has been demanded back; from the levity of the courts a different order is being asked to do justice; through the fault and disgrace of the jurors even the censorial name — which used to seem too harsh to the people — is now demanded; that name has now been made popular and welcome.

<sup>9</sup> In this licence of the most guilty men, in the daily complaint of the Roman people, in the infamy of the courts, in the offence given to the whole order, since I judged the one remedy for these so many ills to be that suitable and upright men should take up the cause of the commonwealth and the laws, I confess that, for the sake of the safety of all, I have approached that part of the work of relieving the commonwealth which most needs help.

<sup>10</sup> Now since I have shown by what considerations I came to this case, I must necessarily speak about our contest, that you may have something to follow in choosing the prosecutor. I think the matter is this, gentlemen: when an indictment of any man is laid for extortion, if there is a contest among any parties as to whom delation should chiefly be given, these two things ought to be looked at first — whom those to whom injuries are alleged to have been done most wish to have as prosecutor, and whom he who is charged with having done those injuries least wishes.

<sup>11</sup> In this case, gentlemen, although I think both points are clear, I will speak about both, and first about that which ought to count most with you — the wish of those to whom the injuries have been done, for whose sake the law on extortion was established. It is alleged that Gaius Verres for three years devastated the province of Sicily, sacked the cities of

the Sicilians, emptied their houses, plundered their shrines. The Sicilians as a whole are present, and complain. To my good faith, which they have already tested and known, they flee for refuge. They seek through me from you and from the laws of the Roman people the help they need. They have wished me to be the defender of their disasters, the avenger of their injuries, the cognitor of their right, the prosecutor of the whole case.

<sup>12</sup> Will you, Quintus Caecilius, say either that I am not approaching the case at the request of the Sicilians, or that the wish of the best and most faithful allies ought not to count with these gentlemen? If you dare to say what your enemy — as you pretend Gaius Verres is — most wishes to be thought, that the Sicilians have not asked this of me, you will first relieve the case of the man you call your enemy: about whom there is now thought to be not a prejudgement but plainly a judgement, since it is so widely known that all the Sicilians have sought a prosecutor for their case against his injuries.

<sup>13</sup> If you, his enemy, will deny that this was done, when the man himself, whom this matter most damages, does not dare to deny it — see that you do not seem to practise enmity too familiarly. Then there are witnesses, the most distinguished men of our state, all of whom I do not need to name. I will appeal to those who are present, whom, if I were lying, I would least wish to be witnesses of my impudence. He who sits on the council, Gaius Marcellus, knows; he whom I see present, Gnaeus Lentulus Marcellinus, knows — on whose good faith and protection the Sicilians especially lean, since the whole province is attached to the name of the Marcelli.

<sup>14</sup> These men know that this was not only asked of me, but asked so often and so vehemently that either I had to undertake the case or repudiate the duty of close association. But why do I use these witnesses, as though the matter were doubtful or obscure? There are men present from the whole province, the most distinguished, who beg and beseech you, gentlemen, in choosing the prosecutor of their case, that your judgement should not differ from theirs. Delegations from all the cities of Sicily are present, except for two cities; if those two were present, two great charges would be lessened — charges which Gaius Verres shared with these two cities.

<sup>15</sup> "But why," he says, "have they sought this protection chiefly from

me?” If it were doubtful whether they had sought it or not, I would say why they sought it. Now, indeed, since it is so evident that you can judge of it with your eyes, I do not see why this should be a disadvantage to me, if it is thrown at me as a reproach that I above others have been chosen.

<sup>16</sup> But I do not, gentlemen, claim this for myself; I do not put this in my speech, nor do I leave it even in anyone’s opinion — that I have been preferred to all advocates. It is not so. The reasoning has been drawn from each one’s circumstances, health, and capacity to act. My wish and view in this matter has always been: that I would prefer anyone of those who are suitable to undertake it rather than myself, but myself rather than no one.

<sup>17</sup> It remains to ask, since this is established, that the Sicilians have asked me, what weight this matter ought to have with you and with your minds, what authority before you allies of the Roman people, your suppliants, ought to have in seeking back their right. About which, what need is there for me to say more? — as if it were doubtful that the whole law on extortion was established for the sake of the allies.

<sup>18</sup> For when money is taken from citizens, it is generally recovered by civil action and private right. This is a law for the allies; this is the right of foreign nations; this is the citadel which they have, somewhat less fortified now than before, but if there is any hope left which can console the souls of the allies, it is wholly placed in this law — a law for which not only the Roman people but the most distant nations have long been demanding strict guardians.

<sup>19</sup> Who then can say it is not right to act under the law at the discretion of those for whose sake the law was made? If the whole of Sicily were to speak with one voice, this is what it would say: “Whatever of gold, whatever of silver, whatever of ornaments was in my cities, my dwellings, my shrines; whatever in each thing I held by right by the kindness of the senate and the Roman people, you, Gaius Verres, have torn from me and carried off; under which heading I claim from you a hundred million sesterces under the law.” If, as I said, the whole province could speak, it would use these words; since it could not, it has itself chosen as agent of these matters whomever it judged suitable.

<sup>20</sup> In a matter of this kind will any man be found so impudent as to dare to approach or aspire to another’s case against the will of those whose business it is? If, Quintus Caecilius, the Sicilians said this to you:

"We do not know you, we do not know who you are, we have never seen you before; let us defend our fortunes through one whose good faith we have known," would they not be saying what they ought to be able to prove to anyone? Now they say this: that they know both of us; that one of us they wish to be the defender of their fortunes, the other they plainly do not.

<sup>21</sup> They say enough why they do not want him, even if they keep silent; but they do not keep silent. Will you nevertheless thrust yourself upon them most unwilling? Will you nevertheless speak in another's case? Will you nevertheless defend those who would rather be deserted by all than defended by you? Will you nevertheless promise your service to those who think you neither wish to act for them, nor, if you wished, would be able to? Why do you try by force to wrench from them the slender hope of their remaining fortunes, which they have placed in the severity of the law and the trial? Why do you intrude on those most unwilling for whose sake the law most wishes to provide? Why are you now trying to overturn from all their fortunes those of whom in the province you did not deserve very well? Why do you take from them the power not only of pursuing their right, but even of mourning their calamity?

<sup>22</sup> For with you as prosecutor, which of them do you suppose will be present, when you understand that they are striving not to take vengeance upon another through you, but to take vengeance upon you yourself through someone else? But that is one thing only — that the Sicilians most wish me to act. The other (I take it) is obscure: by whom Verres least wishes to be prosecuted. Has anyone ever struggled so openly for honour, so vehemently for his life, as he and his friends have struggled to keep this delation from being given me? There are many things, Caecil-  
ius, which Verres thinks are in me, which he knows are not in you. What kind of things these are in each of us, I will mention shortly.

<sup>23</sup> Now I will only say this — to which you in silence will assent — that there is nothing in me which he despises, nothing in you which he fears. So that great defender and friend of his supports you, attacks me; openly he asks the jurors that you be set above me, and says he asks this honourably, without odium, without offence. "I do not ask," he says, "what I usually obtain when I have made a vehement effort: I do not ask that the defendant be acquitted, but that he be prosecuted by this man rather than by that. Grant me this; concede what is easy, what is

honourable, what is without odium; when you have granted it, without any danger, without any infamy to yourselves, you will have granted that the man for whom I work be acquitted.”

<sup>24</sup> And the same man says — so that some fear may be added to favour — that there are certain men on the council to whom he wishes the tablets shown; that this is most easy, for the votes are not cast singly but established collectively; that to each man a wax tablet is given, with lawful wax, not that infamous and unspeakable wax. And he toils not so much on Verres’s account as because the whole matter pleases him not at all; for he sees that, if from the noble youths whom he has so far mocked, from the four-time informers whom not without reason he has always despised and reckoned as nothing, the will to prosecute is transferred to brave and tested men, he will no longer be able to hold sway in the courts.

<sup>25</sup> I now warn this man in advance: if you wish me to plead this case, his whole way of conducting the defence will have to be changed — and changed so much that, by a better and more honourable course than he himself wishes to take, he should imitate those men whom he himself has seen most distinguished, Lucius Crassus and Marcus Antonius, who thought that nothing should be brought into trials and friends’ cases beyond good faith and natural ability. With me as prosecutor he will have nothing to think can be corrupted in court without great danger to many.

<sup>26</sup> I judge that in this trial the case of the Sicilians has been received by me, the case of the Roman people undertaken — so that I must crush not one wicked man only (which the Sicilians sought), but altogether all wickedness must be extinguished and destroyed (which the Roman people have long been demanding). What in this I can strive for or accomplish, I prefer to leave to the hopes of others rather than place in my own speech.

<sup>27</sup> You, however, Caecilius — what can you do? At what time, in what matter, have you not only given any sample to others, but tested yourself? Has it not occurred to you what business it is to sustain a public case, to unfold the whole life of another, and to expose it not only to the minds of the jurors, but even to the eyes and the gaze of all; to defend the safety of allies, the interests of provinces, the force of laws, the gravity of courts? Learn from me, since this is the first time you have had the chance to learn, how many things must be in him who prosecutes another. If

you find any one of these in yourself, I will then, of my own accord, yield to you what you ask. First, integrity and singular innocence; for nothing is less to be tolerated than for one to demand an account of another's life who cannot give an account of his own.

<sup>28</sup> On this point I will not say more about you. I think everyone notes this one thing: that up to now you have been able to be known by no one but the Sicilians; the Sicilians say that, though they are angry at the same man with whom you say you are at enmity, they will nevertheless not be present at the trial with you as prosecutor. Why they refuse, you will not hear from me. Let these gentlemen suspect what they must. Indeed, as the kind of men they are — shrewd and over-suspicious — they think you wish not to bring out from Sicily letters against Verres, but, since both his praetorship and your quaestorship are sealed up by the same letters, they suspect you wish to carry the letters out of Sicily.

<sup>29</sup> Then, a prosecutor must be firm and truthful. If I supposed you wished to be such, I easily understand you cannot be. Nor do I say what, if I said it, you could not weaken: that before you left Sicily you returned to terms of friendship with Verres; that Potamon, your scribe and intimate, was kept by Verres in the province while you were leaving; that Marcus Caecilius, your brother, a most select and most distinguished young man, is so far from being present and joining with you to pursue your wrongs, that he is with Verres and is living with him on the most familiar and friendly terms. There are these and many other signs in you of a false prosecutor, which I do not now use; I say only this: that, even if you most wished it, you could not be a true prosecutor.

<sup>30</sup> For I see there are very many charges in which your partnership with Verres is such that you would not dare to touch them in prosecuting. All Sicily complains that Gaius Verres demanded grain from the farmers for his bin, and, when a peck of wheat was costing two sesterces, he exacted twelve sesterces per peck in lieu of the grain. A great charge, vast money, shameless theft, intolerable injury! By this one charge alone I should necessarily condemn him.

<sup>31</sup> What will you do, Caecilius? Either pass over so great a charge, or bring it forward? If you bring it forward, will you give as a charge against another what you yourself did at the same time in the same province? Will you dare to prosecute another in such a way that you cannot help being condemned yourself? But if you pass it over, what kind of prosecu-

tion of yours will it be that, through fear of personal danger, dreads not only making the wager of the gravest and most certain charge, but even the very mention of it?

<sup>32</sup> Grain was bought from the Sicilians by senatorial decree under the praetor Verres, and the entire purchase money for that grain was not paid. This is a serious charge against Verres — serious if I prosecute, none if you do. For you were quaestor; you were handling the public money, from which, even if the praetor had wished, the power of preventing any deduction was largely yours. So no mention of this charge will be made with you as prosecutor. The greatest and best-known thefts and injuries of his will be silenced through the whole trial. Believe me, Caecilius: he cannot in prosecuting truthfully defend the allies who is bound to the defendant by partnership in the charges.

<sup>33</sup> Contractors exacted money from the cities in lieu of the grain. What of it? Was this done only when Verres was praetor? No — but even when Caecilius was quaestor. What then? Will you give this as a charge, when you both could have prevented it from being done and ought to have done so, or will you leave it untouched altogether? Therefore Verres in his own trial will not even hear about that which, when he was doing it, he could not see how he was going to defend. And these I name which are in plain view; there are other more hidden thefts which he, in order (I take it) to slow down your spirit and impulses, most generously shared with his quaestor.

<sup>34</sup> You know that I have been informed of these things. If I should wish to bring them out, all would easily understand that there has not only been a common will between you, but that not even the booty has yet been divided. So if you ask that information be given against you on what you and he together did, I grant it, if the law permits. But if we are speaking of prosecution, you must yield to those who are not hindered by any offence of their own from being able to point out the offences of another.

<sup>35</sup> See how great will be the difference between my prosecution and yours. I will charge against Verres even what you committed without him, on the ground that he did not prevent you, when he himself had the highest power. You, on the other hand, will not bring up even what he did, lest you be found in any way connected with him. What? Caecilius, do those things seem to you to be despicable, without which the case

— especially so great a case — cannot in any way be sustained? Some capacity for action, some habit of speaking, some method or practice in the Forum, in the courts, in the laws?

<sup>36</sup> I understand on what rocky and difficult ground I am moving. For all arrogance is hateful, but the arrogance about natural ability and eloquence is by far the most odious. So I say nothing about my own ability; nor is there anything I could say, nor would I say it if there were. For either what is said about me, whatever it is, suffices for me, or, if it is too little, I cannot increase it by mentioning it.

<sup>37</sup> About you, Caecilius — I will speak with you familiarly now, by Hercules, beyond this contention and rivalry of ours — consider again and again how you yourself judge yourself, and gather yourself together, and consider both who you are and what you can do. Do you think you can on the greatest and bitterest matters — when you have undertaken the case of the allies, and the fortunes of the province, the right of the Roman people, the gravity of the trial and the laws — sustain so many serious and varied subjects with your voice, your memory, your counsel, your ability?

<sup>38</sup> Do you think that you can distinguish in charges and in speech, just as they were divided by place and time, what Gaius Verres did wrong as quaestor, what as legate, what as praetor, what at Rome, what in Italy, what in Achaia, in Asia, in Pamphylia? Do you think you can do what is most needful in such a defendant: bring it about that what he did wantonly, what wickedly, what cruelly, shall seem as bitter and unworthy to those who hear of it as it seemed to those who suffered it?

<sup>39</sup> The things I speak of are great, believe me; do not despise them. Everything must be said, shown, unfolded. Not only must the case be set out, but also gravely and copiously argued. You must achieve, if you mean to do or accomplish anything, that men shall not only hear you but listen gladly and eagerly. Even if nature greatly aided you in this, even if you had pursued and wrought at the best disciplines and arts from boyhood, even if you had learned Greek letters at Athens and not at Lilybaeum, Latin at Rome and not in Sicily — it would still be a great matter both to compass so great a case, so awaited, by your diligence, to embrace it in your memory, to bring it forth in speech, and to sustain it by voice and force.

<sup>40</sup> Perhaps you will say: "What then? Are all these things in you?"

Would they were! And yet, that they might be, has been my labour with the greatest zeal from boyhood. If, on account of the greatness and difficulty of these things, I have not been able to attain them — I, who have done nothing else my whole life — how far do you suppose you stand from these matters, things you not only never thought of before, but cannot suspect even now, when you are entering on them, what they are or how great?

<sup>41</sup> I myself — who, as everyone knows, am so engaged in the Forum and in the courts that few or none of my own age have defended more cases, and who spend in these studies and labours all the time given me from my friends' affairs, that I might be more prepared and more ready for forensic use — so may the gods be propitious to me as, when I think of the moment when, on the day appointed for the case, I must speak, not only am I troubled in mind, but I tremble in my whole body.

<sup>42</sup> I already foresee in mind and thought what zeal of men, what concourse, will then be there; what expectation the magnitude of the trial will bring; how great a multitude of hearers the infamy of Gaius Verres will rouse; finally, how attentive an audience the wickedness of that man will give to my speech. When I think of this, I am already afraid that I shall not be able to say anything worthy of the offence given to men who are his enemies and bitterly hostile to him, of the expectation of all, and of the magnitude of the matters.

<sup>43</sup> You fear none of this, think of none of this, labour over none of it. If from some old speech you can learn by heart "I, Jupiter, best and greatest..." or "I should wish, gentlemen, if it could have been..." or something of the sort, you think you will come into court splendidly prepared.

<sup>44</sup> Even if there were nobody to answer you, still you would not, in my opinion, be able to make plain even the bare facts of the case. As it is, you do not even consider that you will have a contest with a man most eloquent and most prepared for speaking, with whom you must now reason, now fight and contend with every method. His ability I praise in such a way that I am not afraid; I approve it in such a way that I think I can be more easily delighted by him than deceived. He will never overcome me by stratagem, never pervert me by any artifice, never try to weaken and undo me by his ability. I know all his approaches and methods of speaking; we have often been on the same side, often on opposite sides;

he will so speak against me, ingenious as he is, that he will think he is undergoing some judgement also of his own ingenuity.

<sup>45</sup> But you, Caecilius — how he will play with you, how he will toss you about by every method — I already seem to see. How often will he give you the option, the choice, of which way you wish to take it: whether the deed was done or not, whether what is alleged is true or false; whichever you say will tell against you. What heat, what bewilderment, what darkness, by the immortal gods, will be in you, the most kindly of men! What when he begins to divide the limbs of your prosecution and lay out the parts of the case on his fingers? What when he settles each point in turn, draws it out, finishes it off? You yourself will surely begin to fear lest you have endangered an innocent man.

<sup>46</sup> What when he begins to lament, to grieve, to unload some part of the odium from him onto you; to mention the bond established between quaestor and praetor, the custom of our ancestors, the religion of the lot — will you be able to bear the odium of his speech? Look closely; consider again and again. For it seems to me there will be a danger that he will not only overwhelm you with words, but, by his very gesture and bodily motion, dazzle the edge of your wits and lead you away from your settled purposes and thoughts.

<sup>47</sup> The judgement on this very point I see is to be made at once. For if you can answer me today on what I am saying, if you depart by even a single word from that book which some schoolmaster put together for you out of others' speeches, I shall judge that you can not fail in that trial either, and can satisfy your case and duty. But if in this prelude with me you have nothing to say, who do we suppose you will be in the actual battle with the keenest adversary? Granted, he himself is nothing, can do nothing; but he comes prepared, with practised and able assistant prosecutors. This is something — though it is not enough; for in everything he who is the leader in conducting the case ought to be most adorned and most prepared. But I see Lucius Appuleius is the next subscript, a man not in age but in forensic use and practice still a recruit.

<sup>48</sup> Then, I take it, he has Alienus, but a man from the benches, whose ability in speaking I have never sufficiently noted, but in shouting I see him to be well-vigorous and well-practised. In this man are all your hopes; he, if you are constituted prosecutor, will sustain the whole trial. Even he will not strain in speaking as much as he can, but will con-

sult your praise and reputation, and will from what he himself can do in speaking somewhat hold back, that you may seem to be something. As we see done with Greek actors, often the man who plays the second or third parts, when he could speak somewhat more brilliantly than the lead actor himself, abates much, that the principal may stand out as conspicuously as possible — so will Alienus do; he will be your servant, your flatterer; he will strain somewhat less than he can.

<sup>49</sup> Now consider what kind of prosecutors we shall have in so great a trial, when even Alienus from his ability, if he has any, will pull back something, and Caecilius will think he is finally something only if Alienus is less vehement and yields him the leading role in speaking. What fourth man you will have I do not see, unless perhaps from that herd of stallers who demand a subscription for themselves to whomever you might give the delation:

<sup>50</sup> from these utter strangers you come so prepared that you must take some stranger as guest. To whom I will not pay so much honour as to answer at any specific point or singly to each what they shall have said. So briefly, since I have hit upon mention of them not by design but by chance, I shall, as if in passing, satisfy them all together. Do I seem to you to be so destitute of friends that, instead of being given a subscriptor from those whom I have brought with me, one is to be added from the populace? But to you is there such a dearth of defendants that you should attempt to snatch the case from me rather than find some defendant of your own order at the column of Maenius? "Place me as guard," he says, "over Tullius."

<sup>51</sup> What? How many guards I shall need, if I once admit you to my boxes! For not only must you be guarded against blabbing, but also against carrying anything off. But about that "guard" of yours I will most briefly answer you all: that men of this kind would not commit, that to a case so great undertaken by me, entrusted to me, anyone should as subscriptor breathe upon it against my will. For my good faith refuses a guard; my diligence shrinks from a spy. But to come back to you, Caecilius: see how many things you lack; how many things are in you which a guilty defendant would wish to be in his prosecutor, you now thoroughly understand.

<sup>52</sup> What can be said to this? For I do not ask what you will say. I see that not you but this book in your prompter's hand will reply to me. If

your prompter wishes to advise you rightly, he will counsel you to depart from here and not answer me a word. For what will you say? Will it be what you are accustomed to say — that Verres did you an injury? I think so. For it would not be likely that, when he was doing wrong to all the Sicilians, you alone should be the exception for whom he made an effort.

<sup>53</sup> But the rest of the Sicilians have found an avenger of their wrongs. You, while you try by yourself to pursue your wrongs (which you cannot), are doing this — making the wrongs of the rest go unpunished and unavenged. And it does not occur to you that not only is it customarily looked at, who ought to take vengeance, but also who is able to. He in whom both qualities are, is to be preferred. Where one of the two is, there it is customary to ask, not what he wishes, but what he can do.

<sup>54</sup> If, then, you suppose that the power of prosecuting ought to be granted to him to whom Gaius Verres has done the greatest wrong — which do you think these jurors ought to feel more grievously: that you have been wronged by him, or that the province of Sicily has been harried and ruined? You will, I suppose, concede that this is far more grievous, and that all ought to consider it more grievous. Concede therefore that, in the matter of prosecuting, the province should be set above you. For the province does prosecute, when he conducts the case whom she has adopted as the defender of her right, the avenger of her wrongs, the actor of the whole case.

<sup>55</sup> "But Verres has done you a wrong of such a kind as could move even the souls of others by another's misfortune." Not at all. For I think this also pertains to the matter — what kind of wrong is alleged, what cause of enmities is brought forward. Hear it from me, for he himself — unless he is utterly without sense — will surely never bring it forward. There is a certain Agonis of Lilybaeum, freedwoman of Erucine Venus; this woman before this quaestor [Caecilius] was plainly well-supplied and rich. From her one of Antonius's prefects was, by violence, leading away musical slaves, whom he said he wished to use in the fleet. Then she — as is the way in Sicily of all who are slaves of Venus and of those who have been freed by Venus, that they may put a religious scruple before this prefect by Venus's name — said that both she and her property were Venus's.

<sup>56</sup> When this was reported to the quaestor Caecilius — a most excellent man, a most fair person — he orders Agonis to be summoned to

him; he gives a trial at once: "If it appears she said that she and hers were Venus's." The recuperatores judge what was inevitable; for there was no doubt to anyone that she had said it. He then enters into possession of the woman's goods; he adjudges the woman herself into servitude to Venus; then he sells the goods, realizes the money. So while she wished to keep a few slaves under Venus's name and the religious scruple, by Caecilius's wrong she lost all her fortunes and her freedom. Verres comes to Lilybaeum afterwards. He learns of the matter, disapproves of the deed, compels his quaestor to count out and pay back to the woman all the money he had realised from Agonis's goods.

<sup>57</sup> So far this is, as I see all of you wondering at, not Verres but Quintus Mucius. For what could he have done more elegantly for the regard of men, more equitably for relieving the woman's calamity, more vehemently for restraining the quaestor's lust? All this seems to me supremely to be praised. But suddenly, on the spot, from a man as if by some Circaean cup, he became Verres again; he returned to himself and to his ways. For from that money he turned a great part to himself; to the woman he gave back as much as he saw fit.

<sup>58</sup> On this point, if you say you have been wounded by Verres, I will allow it and grant it. If you complain that a wrong has been done you, I will defend him and deny it. Finally, on the wrong done to you, none of us ought to be a graver judge than yourself, to whom it is alleged to have been done. If you afterwards came back to friendly terms with him, if you were several times in his house, if he afterwards dined with you — which would you rather be thought, treacherous or a feigned prosecutor? I see one or the other is necessary; but I will not fight with you about which you wish to choose.

<sup>59</sup> If even the cause of the wrong, alleged to have been done you by him, does not remain, what have you to say why you should be set above not me only, but anyone? Unless perhaps that thing which I hear you are going to say — that you were his quaestor. Which would be a serious cause if you were contending with me which of us ought to be more friendly to him. In a contest of undertaking enmities, it is ridiculous to think the cause of bond ought to be reckoned just as a reason for inflicting danger.

<sup>60</sup> For if you had received the most numerous wrongs from your praetor, you would yet earn more praise by enduring them than by aveng-

ing them. But when nothing in his life is more upright than this very thing which you call a wrong — will these men decide that this case, which they would not approve in another, in you seems just for violating a bond? If you did receive the greatest wrong from him, yet, since you were his quaestor, you cannot accuse him without some censure. But if no wrong has been done you, you cannot accuse him without crime. So when it is uncertain about the wrong, do you think any of these men there is who would not rather you depart without censure than with crime?

<sup>61</sup> See now what difference there is between my view and yours. You, when you are inferior in everything, think that in this one thing you ought to be set above me — that you were his quaestor. I, even if you were superior in everything, would think you ought for this very reason alone to be repudiated as prosecutor. For so we have received from our ancestors, that a praetor ought to be in place of a parent to his quaestor. No more just nor weightier cause of close association can be found than the partnership of lot, of province, of duty, of public commission.

<sup>62</sup> For this reason, if you could lawfully prosecute him, yet, since he had been to you in the place of a parent, you could not piously do so. But when you neither received any wrong and create danger to your praetor, you must necessarily confess that you are trying to wage upon him an unjust and impious war. For your quaestorship is good for this — that you must labour, in giving an account, why you, who were his quaestor, are prosecuting him; not that for that very reason it should be demanded that the prosecution be given especially to you. And it has scarcely ever come to a contest about prosecuting where one who had been quaestor was not rejected.

<sup>63</sup> Thus the power of laying an indictment was not granted to Lucius Philo against Gaius Servilius, nor to Marcus Aurelius Scaurus against Lucius Flaccus, nor to Gnaeus Pompey against Titus Albucius. None of them was rejected for any unworthiness, but lest the wish of violating the bond should be approved by the authority of the jurors. And that Gnaeus Pompey contended with Gaius Iulius as you do with me; for he had been Albucius's quaestor, as you Verres's. Iulius brought to the prosecution this authority: that, just as we are now asked by the Sicilians, so he then had been asked by the Sardinians and had taken up the case. Always this cause has had most weight; always this method of prosecut-

ing has been most honourable: to take up enmities for the allies, for the safety of the province, for the interests of foreign nations; to come into danger; to bring effort, zeal, labour to bear.

<sup>64</sup> For if the case of those is approvable who wish to pursue their own wrongs — where they serve their own pain, not the interests of the commonwealth — how much more honourable is that case which not only ought to seem approvable but to be welcome: when, with no wrong privately received, one is moved by the pain and wrongs of allies and friends of the Roman people. Recently, when that bravest and most innocent man Lucius Piso demanded the delation of an indictment against Publius Gabinius, and on the other side Quintus Caecilius was suing for it (saying that he was pursuing old enmities long undertaken), although Piso's authority and dignity counted most, yet that was the most just cause: that the Achaeans had adopted him as their patron.

<sup>65</sup> For when the law on extortion is itself the patron of the allies and friends of the Roman people, it is unfair not to think him most fitting as the agent of the law and the trial whom the allies have chosen above all to be the agent of their case and the defender of their fortunes. Or what is more honourable to mention, ought it not to be much more equitable to approve? Which is the more splendid, the more illustrious thing to say: "I have prosecuted him whose quaestor I was, with whom the lot and the custom of our ancestors, with whom the judgement of gods and men joined me," or "I have prosecuted at the request of the allies and friends; I have been chosen by the whole province to defend its rights and fortunes"? Can anyone doubt that it is more honourable to act for the sake of those among whom you were quaestor than to prosecute the man whose quaestor you were?

<sup>66</sup> The most distinguished men of our state, in the best times, considered this their fullest and finest service: to drive away wrongs from their guest-friends and clients, from foreign nations under the protection and dominion of the Roman people, and to defend their fortunes. We hear that wise Marcus Cato, that most distinguished and prudent man, took up serious enmities with many men on account of the wrongs of the Spaniards, among whom he had been consul.

<sup>67</sup> Recently we know that Gnaeus Domitius cited Marcus Silanus on account of the wrongs of one man, Aegritomarus, his father's friend and guest. For nothing has ever moved the souls of guilty men more than

this custom of our ancestors, recovered and renewed after a long interval — complaints of the allies brought to a man not idle, taken up by one who seemed able by his good faith and diligence to defend their fortunes.

<sup>68</sup> This is what men fear, this is what they labour over, this is what they take ill at being instituted, or rather at being recalled and renewed. They think that, if this custom should creep on a little and come forth, the laws and trials will be administered through the most honourable men and the bravest, not through unskilled youths or four-time informers of that kind.

<sup>69</sup> Of which custom and institution our fathers and ancestors did not repent, when Publius Lentulus, who was the chief of the senate, prosecuted Manius Aquillius, with Gaius Rutilius Rufus as subscriptor; or when Publius Africanus — a man most distinguished in virtue, fortune, glory, achievements — after he had twice been consul and censor, summoned Lucius Cotta to trial. Then by right the name of the Roman people flourished; by right the authority of this empire and the majesty of the state was reckoned weighty. No one wondered at Africanus then for what now in me — a man endowed with small means and resources — they pretend to wonder at, when they take it ill:

<sup>70</sup> "What does this man want? Does he wish to be thought a prosecutor, who used before to defend, especially now, at this age, when he is seeking the aedileship?" I, however, judge it to belong not only to my age but to a much more advanced one, and to the most ample of honours, both to prosecute the wicked and to defend the wretched and the calamitous. Surely this is the remedy for our sick and almost desperate commonwealth and our courts corrupted and contaminated by the vice and shame of a few: that men as honourable, as upright, as diligent as possible should approach the defence of the laws and the authority of the courts. Or, if not even this can help, surely no medicine for so many troubles will ever be found.

<sup>71</sup> No greater safety for the commonwealth is there than that those who prosecute another should fear no less for their own praise, honour, and reputation than those prosecuted fear for their lives and fortunes. So they have always prosecuted most diligently and most laboriously who thought their own reputation was at stake. Wherefore you ought to lay this down, gentlemen: that Quintus Caecilius — of whom there has been no opinion at any time, and of whom there will be no expectation

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in this very trial; who labours neither to preserve a fame previously gathered, nor to confirm hope for a future time — will not conduct this case very strictly, not very accurately, not very diligently. For he has nothing to lose by failure. To depart most disgracefully and most flagitiously, he will miss none of his old ornaments.

<sup>72</sup> The Roman people holds many hostages from us, which, that we may be able to keep, defend, confirm, and recover safe, we shall have to fight in every way. It holds the office I am seeking; it holds the hope which I have set before me; it holds the reputation I have gathered with much sweat, labour, and waking nights. So that, if in this case I have proved my duty and diligence, I may be able to retain through the Roman people what I have said, safe and sound. If even a tiny stumble or hesitation occurs, all those things which were collected one by one and over a long time we may lose at one stroke.

<sup>73</sup> Wherefore, gentlemen, it is for you to choose whom you judge can most easily sustain the magnitude of the case and the trial by good faith, diligence, counsel, authority. If you set *Quintus Caecilius* above me, I will not think myself defeated in dignity. Take care that the Roman people do not judge that so honourable, so strict, so diligent a prosecution has not pleased you, and does not please your order.

## AGAINST VERRES, FIRST HEARING

*In C. Verrem Actio Prima*70 BC

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*Delivered at Rome on 5 August 70 BC, the Actio Prima is the only part of the Verrine prosecution Cicero actually delivered. The case is an extortion (de pecuniis repetundis) action against Gaius Verres for his three-year governorship of Sicily (73-71 BC). The strategic core of this short speech is procedural: Hortensius, Verres's defender, has been elected consul; Quintus Metellus has been elected; Marcus Metellus will preside over the next year's extortion court; Verres's plan was to drag the trial out until 1 January, when sympathetic magistrates would take office. Cicero's counter-move, openly announced here, is to abandon the customary set-piece prosecution and instead summon the witnesses immediately, charge by charge, before the games can interrupt. The strategy worked. Verres withdrew into voluntary exile at Massilia before the speech could be answered. The Actio Secunda — five massive books of charges — was never delivered, but Cicero published it as a written prosecution in late 70 BC.*

<sup>1</sup> What was most to be wished for, gentlemen, and what alone bore most to the calming of the resentment against your order and the infamy of the courts, that thing seems — not by human counsel, but as if divinely — to have been given and offered to you at the highest moment of the commonwealth. For the opinion has by now grown old, ruinous to the commonwealth and dangerous to you, which has spread by everyone's talk not only among us but among foreign nations: that in these courts as they now are, no man with money, however guilty, can be condemned.

<sup>2</sup> Now, at the very crisis of your order and your courts, when there are men ready to fan this resentment against the senate by public meetings and by laws, the defendant Gaius Verres has been brought into court — a man already condemned by his life and deeds in everyone's opinion, but acquitted, by his own hope and boast, by the magnitude of his money. To this case, gentlemen, with the highest goodwill and expecta-

tion of the Roman people, I have come forward as prosecutor; not to increase the resentment against the order, but to come to the rescue of our common infamy. For I have brought into court a man through whom you may restore the lost reputation of the courts, return into favour with the Roman people, give satisfaction to foreign nations: a robber of the treasury, a harrier of Asia and Pamphylia, a brigand of city law, the stain and ruin of the province of Sicily.

<sup>3</sup> If on this man you give a strict and conscientious verdict, the authority which ought to remain in you will hold fast. If, however, his vast wealth shall break through the conscience and truth of the courts, I shall yet attain this much — that the verdict will appear to have failed the commonwealth, rather than the defendant to have failed the jurors, or the prosecutor the defendant. To confess about myself, gentlemen, although many ambushes were laid for me by Gaius Verres, by land and sea, some of which I avoided by my diligence, others I beat off through the zeal and devotion of my friends, never have I seemed to face so great a peril, never have I been so shaken with fear, as I am now in the trial itself.

<sup>4</sup> The expectation of my prosecution and the gathering of so great a multitude — by which I am profoundly disturbed — do not move me as much as those wicked plots which he is at one and the same time trying to lay against me, against you, against Manius Glabrio, against the Roman people, against the allies, against foreign nations, against our order, against the very name "senator." He keeps saying: "Those should be afraid who have stolen what was enough only for themselves; I have torn off so much that there is enough for many — nothing is so sacred that money cannot violate it, nothing so well fortified that money cannot storm it."

<sup>5</sup> If he were as obscure in action as he is bold in attempting, perhaps in some matter he might at some time have deceived us. But it has been very fortunate for us that, with his incredible audacity, a singular stupidity is joined; for as he was open in seizing money, so in the hope of corrupting the court he has made his plans and attempts plain to all. He says he has been afraid in his life only once — when he was first made a defendant by me; because, while he was fresh from the province, and was burning with resentment and infamy not new but old and lasting, he had hit upon an unfavourable moment for corrupting the court.

<sup>6</sup> So when I had asked for a most short period for inquiry in Sicily,

he found someone to ask for himself, for inquiry in Achaia, a period two days shorter — not that he might effect by his diligence and industry what I have achieved by my labour and waking nights (indeed his Achaean inquisitor never even reached Brundisium, while I went round all of Sicily in fifty days, in such a way that I learned of all the wrongs done to peoples and to private men) — but so that it might be plain to anyone that this man was sought out by him not to bring his defendant in, but to consume my time.

<sup>7</sup> Now this most audacious and senseless man considers this. He understands that I come into court so prepared and equipped that I shall fix his thefts and disgraces not only on your ears but on the eyes of all. He sees that there are many senators witnesses of his audacity, many Roman knights, and besides numerous citizens and allies whom he himself has wronged signally; he sees also that so many heavy embassies have come from cities most friendly to him, with their public authorities.

<sup>8</sup> Since this is so, his estimate of all good men is so low, his judgement of the senate's courts so wrecked and undone, that he openly declares: "Not without cause have I been greedy of money, since I find that there is so great a defence in money. I have bought" — the most difficult thing of all — "the very moment of my trial, that I might more easily buy other things afterwards. Since I could in no way evade the force of the charges, at least I shall escape the storm of the moment."

<sup>9</sup> If he had placed any hope not only in the case but in any honourable defence, in anyone's eloquence or favour, surely he would not be gathering and grasping after all these things; he would not so despise and condemn the senatorial order that, at his discretion, one should be chosen out of the senate to be made defendant, who, while he was getting ready what was needed, should plead his case before him.

<sup>10</sup> What he hopes for, what he aims at by these tactics, I easily perceive. But why he should be so confident he can accomplish anything, with this praetor and this council, I cannot understand. This one thing I do understand — which the Roman people judged in the rejection of jurors — that he was furnished with this hope: that he had placed all his reckoning of safety in money, and once that defence was torn from him he supposed nothing would be of help to him. For what genius is so great, what capacity for speech or richness of words, that it could in any part defend a life convicted of so many vices and disgraces, already long

since condemned by the will and judgement of all?

<sup>11</sup> To pass over the stains and disgraces of his youth, his quaestorship — the first step of public office — what does it have but Gnaeus Carbo despoiled by his own quaestor of public money, a consul stripped and betrayed, an army deserted, a province abandoned, the bond and religion of the lot violated? His legateship was the ruin of all Asia and Pamphylia: in those provinces he plundered many houses, very many cities, every shrine; then with respect to Gnaeus Dolabella he renewed and refreshed his old quaestorian crime, when, the man to whom he had been legate and acting quaestor, he both led into resentment by his own misdeeds and, in the very dangers, not only deserted but assailed and betrayed.

<sup>12</sup> His city praetorship was the plundering of sacred buildings and public works; at the same time, in administering justice, the assignment and donation of inheritances and possessions against everyone's institutions. And by far the most numerous and greatest monuments and signs of all his vices he has set up in the province of Sicily, which he in three years so harried and ruined that it cannot in any way be restored to its former state, but scarcely seems able through many years and innocent praetors to be in some measure recovered.

<sup>13</sup> Under this praetor the Sicilians could keep neither their own laws, nor our decrees of the senate, nor the rights common to all. In Sicily each man holds only as much as he either escaped the inadvertence of this most greedy and most lustful of men, or what was left over from his sating. For three years no matter was decided except at his nod; no inheritance was so ancestral and family that it was not taken from a man's possession by his command. Innumerable sums of money were extorted from the goods of the farmers by a new and unspeakable practice; the most faithful allies were reckoned in the number of enemies; Roman citizens were tortured and killed in the manner of slaves; the most guilty men were freed in court for money; the most honourable and upright in their absence were made defendants, condemned without their case being heard, and exiled. The most strongly fortified harbours, the greatest and safest cities, were thrown open to pirates and brigands; the seamen and soldiers of the Sicilians, our allies and friends, were starved to death; the best and most strategic fleets, with great disgrace to the Roman people, were lost and destroyed.

<sup>14</sup> This same praetor stripped and laid bare the most ancient monu-

ments — some of them the gifts of the wealthiest kings, who wished them to be ornaments to the cities; others of our own commanders, which the victors either gave or returned to the Sicilian states. Nor did he do this only with statues and public ornaments. He plundered all the shrines consecrated by the most sacred religion: in short, he left the Sicilians not a single god if it seemed somewhat better worked or more antique. As for his rapes and his disgraces, modesty deters me from listing his unspeakable lusts; and at the same time I do not wish, by mention, to add to the calamity of those who were not allowed to keep their children and wives untouched from his shamelessness.

<sup>15</sup> "But these things were done by him in such a way that they are not all known." There is, I think, no man who has heard his name who could not also recount his unspeakable deeds; so that I should fear rather to leave many charges out than be thought to invent any against him. For I do not think this multitude which has gathered to listen wished to learn the case from me, but rather to recognise with me what they already know. Since this is so, this senseless and ruined man fights with me by another method. He does not match an eloquence of someone against me; he does not lean on anyone's favour, authority, or influence. He pretends to trust in these things; but I see what he is doing, and he does not do it most secretly. He throws empty names of nobility in my way — that is, names of arrogant men, who do not so much hinder me by being noble as help me by being known. He pretends to trust in their protection while in the meantime he has long been working some other thing.

<sup>16</sup> What hope he now has in his hands and what he is plotting, I will briefly set out for you, gentlemen. But first learn, please, how the affair was set up by him from the start. As soon as he came back from the province, the buying-off of this trial was made for a great sum of money. The transaction stood firm in agreement and bargain up to the point at which the jurors had been rejected. After the rejection of jurors had taken place — because both in his lot the fortune of the Roman people had defeated this man's hope, and in the rejection of jurors my diligence had defeated their shamelessness — the whole bargain was renounced. The matter stood splendidly.

<sup>17</sup> Lists of your names and of this council were in everyone's hands. No mark, no shading, no smudge could be smeared on these votes. When

suddenly, from cheerful and lively, he had become so humble and downcast that he seemed condemned not only to the Roman people but even to himself. But behold, suddenly, in these few days after the consular elections, those same old plans are taken up again with greater money; the same plots against your reputation and the fortunes of all are got ready through the same men. Which matter, gentlemen, was first laid open to us by a very slight argument and indication. After the entrance of suspicion was opened, we came without any error to all of their inmost plans.

<sup>18</sup> For when Hortensius, consul-elect, was being escorted home from the Campus by a very great crowd, Gaius Curio met that crowd by chance — a man whom I should rather name out of honour than out of insult; for I shall say what he, if he had not wished it to be mentioned, would not have said in so great a gathering so openly and in public; what nevertheless will be said by me step by step and cautiously, that account may be taken both of our friendship and of his dignity.

<sup>19</sup> Curio sees Verres in the crowd at the very arch of Fabius. He addresses the man and congratulates him with the loudest voice. To Hortensius himself, who had been made consul, to his close kinsmen and intimates who were present, he says not a word. With this man he stops; this man he embraces; this man he tells to be without anxiety. "I bring you the news," he says, "that you have been acquitted by today's elections." When so many honourable men had heard this, it was at once reported to me; on the contrary, every man who had seen me told it. To some it seemed shameful; to others ridiculous: ridiculous to those who thought his case rested on the credibility of witnesses, on the substance of the charges, on the power of the jurors, not on consular elections; shameful to those who looked deeper and saw that this congratulation looked toward corrupting the trial.

<sup>20</sup> For these were their reasonings, this is what the most honourable men were saying among themselves and to me: openly and plainly, there are no more courts. The defendant who, the day before, was thinking himself already condemned — after his defender has been made consul, is acquitted? What of it? That all Sicily is at Rome — all the Sicilians, all the businessmen, all the public and private letters — shall this not weigh? Nothing, against the consul-elect's wishes. What? Will the jurors not follow the charges, the witnesses, the estimation of the Roman people? No: everything will turn on the power and discretion of one man. I will

speak truly, gentlemen: this matter shook me violently. For each best man was speaking thus: "This man indeed will be snatched from you; but we shall not hold the courts much longer; for who will be able to refuse, after Verres is acquitted, the transfer of the courts?"

<sup>21</sup> It was painful to all; not so much the sudden joy of that ruined man, as the new congratulation by a most distinguished one, moved them. I wished to dissemble that I bore it ill; I wished to cover the pain of my mind with my face, and to hide it by silence. But behold, on those very same days, when the praetors-elect were drawing lots and it had fallen to Marcus Metellus to preside over the extortion court, it was reported to me that so great a congratulation had been given to Verres that he sent slaves home to bring the news to his wife.

<sup>22</sup> This too did not at all please me; nor did I altogether understand what was to be feared from that lot. This one thing I learned from sure men, from whom I have learned everything: that several boxes with Sicilian money had been transferred from a certain senator to a Roman knight; that of these about ten boxes had been left with that senator in the name of my elections; that the canvassers of all the tribes had been called to him by night.

<sup>23</sup> Of these one, who reckoned that he ought to do everything for my sake, came to me on that very night. He showed me the language Verres had used: that he had recalled how generously he had treated them already before, when he himself was canvassing for the praetorship, and at the recent consular and praetorian elections; then that he had immediately promised them as much money as they wished, if they had thrown me out from the aedileship. Some, he said, had refused to dare; others had answered that they did not think it could be carried through. A bold friend, however, was found from the same family — Quintus Verres of the Romilian tribe, of the best discipline of the canvassers, the pupil and friend of his father — who, with five hundred thousand sesterces deposited, undertook to do it. There were nevertheless not a few who said they would join in. And so he warned me, with truly friendly feeling, to take great care.

<sup>24</sup> I was in the greatest matters at the same and a most short time. The elections were pressing; in the elections themselves I was being attacked with great money. The trial was at hand; in that business too the Sicilian boxes were threatening. I was deterred from doing what con-

cerned the trial freely by fear of the elections; I could not, on account of the trial, devote my whole mind to my candidacy. Finally, to threaten the canvassers was no use, because I saw they understood I would be tied down and bound by this trial.

<sup>25</sup> At this very same moment I hear that the Sicilians had been notified — first by Hortensius — to come to him at his house. The Sicilians in this matter were free indeed, who, when they understood for what reason they were summoned, did not come. In the meantime our elections (over which Verres considered himself master, as over the rest this year) began to be held. He goes scampering, this powerful man, with his courteous and obliging son around the tribes; he calls upon and meets all his father's friends — that is, the canvassers. When this was understood and noticed, the Roman people did most willingly arrange that, by the man whose riches could not have led me from my faith, by the same man's money I should not be cast down from my honour.

<sup>26</sup> After I was relieved of the great anxiety of the candidacy, with mind much more empty and free I began to do and think nothing else but about the trial. I find, gentlemen, that these plans had been entered into and established by them: that, by whatever method possible, the matter should be drawn out so that the case might be pleaded before Marcus Metellus the praetor. In that there were these advantages: first, Marcus Metellus was very friendly; then there was Hortensius the consul, and not Hortensius alone, but also Quintus Metellus — consider how friendly he is to Verres. For he gave a foretaste of his goodwill of such a kind that he seems already to have repaid him for past favours.

<sup>27</sup> Or did you think I would be silent on so great matters, and that I would consult anything in such great peril for the commonwealth and my own reputation rather than my duty and dignity? The other consul-elect summons the Sicilians; some come, since Lucius Metellus is praetor in Sicily. With them he speaks thus: "I am consul; one brother of mine holds the province of Sicily, the other will preside over the extortion court; many provisions have been made that no harm can come to Verres."

<sup>28</sup> What is corrupting a court, please, Metellus, if this is not: by frightening the witnesses — especially the Sicilians, fearful and afflicted men — not only by your authority, but by consular dread and the power of two praetors? What would you do for an innocent man and a kins-

man, when for the sake of a most ruined and most alien man you depart from your duty and dignity, and let it appear true to anyone who does not know you, what he keeps saying?

<sup>29</sup> For they said Verres said this: that you had been made consul not by destiny, like the rest of your family, but by his work. So there will be two consuls and the presiding judge by his will. "We shall not only escape" — he says — "a man over-diligent in inquiry, over-attentive to the people's reputation, Manius Glabrio. We shall also have this added to our advantage. Marcus Caesonius is on the bench, the colleague of our prosecutor, a man tested and known in the giving of judgements, whom it least suits us to have on a council we are trying somehow to corrupt — because, when he was a juror in Junius's council, he not only took ill that disgraceful crime, but brought it into the open. From the first of January we shall not have him as juror. —

<sup>30</sup> Quintus Manlius and Quintus Cornificius, two most strict and upright jurors, since they will then be tribunes of the plebs, we shall not have as jurors. Publius Sulpicius, a stern and upright juror, must enter office on the Nones of December. Marcus Crepereius from that fiercest equestrian family and discipline; Lucius Cassius from a family most strict in everything, and especially in giving judgement; Gnaeus Tremellius, a man of the highest religion and diligence — these three veteran tribunes of the soldiers are designated for office and will not be jurors from the first of January. We shall also draw a substitute for Marcus Metellus's place, since he will be presiding over this very court. So, after the first of January, with the praetor and almost all the council changed, we shall escape the great threats of the prosecutor and the great expectation of the trial, at our own discretion and pleasure."

<sup>31</sup> Today is the Nones of August. At the eighth hour you have begun to assemble. This day they do not even count. Ten days remain before the votive games which Gnaeus Pompey is going to give; these games will take fifteen days; then immediately the Roman games will follow. So, with about forty days interposed, only then do they think they will have to reply to what we shall have said. Then they think they will easily, by speeches and excuses, draw the matter out to the games of victory; then with these the plebeian games will be joined, after which there will be either no days or very few left for action. So, with the prosecution worn out and grown cold, the matter will come fresh to Marcus Metellus the

praetor. Whom, if I had distrusted his good faith, I would not have kept as juror.

<sup>32</sup> As things stand, however, I am of this mind: that I should rather have him as juror than as praetor; and that I should rather entrust to him under oath my voting tablets than to others not under oath. Now, gentlemen, I consult you about what you think I ought to do. For you will surely give me silently the same counsel which I myself understand I must necessarily take. If I use my own lawful time for speaking, I shall enjoy the fruit of my labour, my industry, and my diligence; and by this prosecution I shall achieve that no one within human memory shall be seen to have come to a trial more prepared, more vigilant, more composed. But in this very praise of my industry the highest danger is that the defendant should slip away. What can be done? It is not, I think, hidden or obscure.

<sup>33</sup> Let us reserve for other times that fruit of praise which could be reaped from a continuous oration. Now let us prosecute the man with documents, with witnesses, with private and public letters and authorities. The whole matter will be between you and me, Hortensius. I will speak openly. If I thought you were going to fight me with speech and dilution of charges in this case, I too would spend my labour on prosecuting and unfolding the charges. Now, since you have set yourself to fight against me not so much from your own nature as from his moment and case — and maliciously — it is necessary to oppose this kind of plan with some counsel of mine.

<sup>34</sup> Your reasoning is to begin to answer me after the second set of games; mine is to adjourn before the first games. So your reasoning will be reckoned cunning, and this counsel of mine necessary. But what I had begun to say — that the matter is between you and me — is of this kind. When I had taken up this case at the request of the Sicilians, and had thought it ample and splendid for me that they wished to test my good faith and diligence who had tested my innocence and abstinence, then, having undertaken the business, I set before myself something greater: in which the Roman people might perceive my goodwill toward the commonwealth.

<sup>35</sup> For it did not seem to me at all worthy of my industry and effort that this man, already condemned in the judgement of all, should be summoned by me into a trial — unless that intolerable power of yours,

and that greed which through these years you have used in certain trials, should be brought to bear even in the case of this desperate man. Now, indeed, since this whole tyranny and royal rule of the courts pleases you so greatly, and there are men whom their own lust and infamy neither shames nor wearies, who, as if of set purpose, seem to rush against the hatred and offence of the Roman people — I declare that I have undertaken what is perhaps a great burden, and dangerous to me, but worthy of having all the sinews of my age and industry strained to it.

<sup>36</sup> Since the whole order is being pressed by the wickedness and audacity of a few, and weighed down by the infamy of the courts, I declare myself a hostile prosecutor of this kind of men — a hateful, untiring, bitter adversary. This I take upon myself; this I demand for myself — to act in office, to act from that place where the Roman people, from the first of January, has wished me to act with it on the commonwealth and on dishonest men. This service of my aedileship I promise the Roman people, the most ample and most beautiful. I warn, I forewarn, I declare in advance: those who are accustomed to deposit, to receive, to take charge of, to promise, to be go-betweens or interpreters in corrupting the court; those who have professed for this purpose either their power or their shamelessness — let them keep their hands and their minds in this trial from this unspeakable crime.

<sup>37</sup> Hortensius will then be consul with the highest command and power; I shall be aedile — that is, somewhat more than a private citizen. Yet the matter on which I promise to act is of such a kind, so welcome and pleasing to the Roman people, that the consul himself will, in this case, beside me, seem (if it can be) less even than a private citizen. Everything will not only be mentioned, but, with definite cases set out, will be acted upon: things which in the ten years since the courts were transferred to the senate have been done in giving judgements unspeakably and disgracefully.

<sup>38</sup> The Roman people will learn from me why, when the equestrian order was sitting in judgement, for nearly fifty continuous years, on no Roman knight as juror was even the slightest suspicion of money taken for a judgement established; but why, after the courts were transferred to the senatorial order and the power of the Roman people over each one of you was abolished, Quintus Calidius, when condemned, said that an ex-praetor could not honourably be condemned for less than three million

sesterces; why, when the senator Publius Septimius was condemned under Quintus Hortensius the praetor on extortion, the case was assessed under that very heading — that he had received money for a judgement.

<sup>39</sup> What in Gaius Herennius, what in Gaius Popilius, both senators, both condemned for embezzlement; what in Marcus Atilius, who was condemned for treason — this has been made plain: that they took money for a judgement; that there were senators found who, when Gaius Verres was urban praetor and was drawing lots, came forward to convict an unheard defendant; that a senator was found who, being a juror, in the same trial took money both from the defendant to distribute to the jurors, and from the prosecutor to convict the defendant.

<sup>40</sup> How shall I lament that ruin, that ignominy, that calamity of the whole order: that this was done in this state, when the senatorial order was sitting in judgement, that the votes of sworn men were marked with different-coloured signs? All these things I promise to do diligently and severely. With what mind, do you suppose, shall I be, if I perceive in this very trial that something has been violated and committed in some similar fashion? — especially when I can make plain by many witnesses that Gaius Verres in Sicily said many times in the hearing of many that he had a powerful man in whose confidence he was plundering the province; that he was not seeking money for himself alone; that he had so apportioned that triennium of his Sicilian praetorship that he reckoned it would be splendid for him if he turned the gain of one year to his own use; the second to his patrons and defenders; the third, that most lavish and most profitable year, he reserved entirely for the jurors.

<sup>41</sup> From which it occurs to me to say what, when I had recently mentioned it before Manius Glabrio in rejecting the jurors, I understood the Roman people to be greatly moved by: that I think foreign nations will send embassies to the Roman people for the law on extortion and the trial to be abolished. For if there are no trials, they think, each man will take only as much as he reckons enough for himself and his children. Now, with trials of this kind, each man takes as much as will suffice for him, his patrons, advocates, the praetor, and the jurors — and this is, indeed, infinite. He says he can satisfy the desire of the most greedy man, but cannot satisfy the victory of the most guilty.

<sup>42</sup> What memorable courts! What splendid reputation of our order, when the allies of the Roman people are unwilling that trials on extortion

— which were established by our ancestors for the sake of the allies — should take place at all! Or would Verres ever have had a good hope of himself, unless he had drunk in a bad opinion of you in his mind? For which reason he ought, if it can be, to be even more hated by you than he is by the Roman people, when he supposes that, in greed, in crime, in perjury, you are like himself.

<sup>43</sup> For this place, by the immortal gods, gentlemen, take care and provide. I warn and proclaim what I understand: that this moment has been given you divinely, that you may free the whole order from hatred, resentment, infamy, and disgrace. There is no longer any thought of strictness in the courts, no scruple, no longer is there even thought to be any "court" at all. So we are despised and looked down on by the Roman people. We are now scorched with serious and lasting infamy.

<sup>44</sup> For no other cause did the Roman people seek the tribunician power back with such zeal. When it was demanding it, in word it seemed to be demanding the tribunate, but in fact it was demanding the courts. Nor did this escape Quintus Catulus, that wisest and most distinguished man, who, when Gnaeus Pompey, that bravest and most illustrious man, was bringing forward the matter of the tribunician power, and Catulus was asked his opinion — with the highest authority used this opening: that the senators were maintaining the courts badly and disgracefully; if they had wished to satisfy the estimation of the Roman people in giving judgements, men would not so greatly have desired the tribunician power.

<sup>45</sup> Finally Gnaeus Pompey himself, when, as consul-elect, he held his first public meeting at Rome, where, what was most awaited, he showed that he would restore the tribunician power, there arose a noise in that meeting and a welcome murmur of approval. The same man at the same meeting, when he had said that the provinces had been plundered and harassed, that the courts were being conducted shamefully and disgracefully, and that he wished to provide for and consult that matter — then, indeed, not by murmur but by the loudest cry the Roman people signified its will.

<sup>46</sup> Now men are on the lookout. They are observing how each one of us behaves in retaining religion and preserving the laws. They see that, since the tribunician law, only one senator — and a most insignificant one — has been condemned. Which, although they do not censure, yet

they do not greatly have anything to praise; for there is no praise in being upright where there is no one who can or tries to corrupt.

<sup>47</sup> This is the trial in which you will give judgement on the defendant; the Roman people will judge you. In this man it will be settled whether, with senators sitting as jurors, the most guilty and most moneyed man can be condemned. Then he is the kind of defendant in whom there is nothing but the highest crimes and the greatest sum of money: so that, if he is acquitted, no other suspicion can remain than that which is most disgraceful. Not by favour, not by kinship, not by other rightly done deeds, not finally by any moderate vice, will so many and so great vices of his be seen to be lightened.

<sup>48</sup> Finally, gentlemen, I shall conduct the case in such a way — I shall produce things so notorious, so witnessed, so great, so manifest — that no one will try to entreat you out of favour to acquit him. I have besides a definite path and method by which I can investigate and follow up all their attempts. The matter will be conducted by me in such a way that, in all their plans, not only the ears of all but even the eyes of the Roman people shall seem to be present.

<sup>49</sup> You can wipe out and lift away from this order the disgrace and infamy now contracted for several years. It is agreed among all that, since these courts (with which we now use) were established, no council has been of this splendour and dignity. If anything goes wrong here, all men will think that no longer must others more suitable be sought from the same order (which is impossible) but a different order altogether for giving judgements.

<sup>50</sup> Wherefore I first beg this from the immortal gods, what I seem to myself to hope for: that in this trial no dishonest man may be found beyond the one who has long since been found. Then, if there shall have been more dishonest men, I assure you, gentlemen, I assure the Roman people, life shall fail me sooner than the force and perseverance of pursuing their dishonesty.

<sup>51</sup> But what I promise will be strictly pursued by my labour, dangers, and enmities, when the disgrace shall have been committed — you, Manius Glabrio, can prevent from happening at all by your authority, wisdom, diligence. Take up the cause of the courts. Take up the cause of strictness, integrity, faith, religion. Take up the cause of the senate, that, having been approved by this trial, it may be in praise and in favour with

the Roman people. Consider where you stand, what you owe to the Roman people, what you owe to your ancestors. See to it that your father's *lex Acilia* comes to mind, by which law the Roman people used the best courts and the strictest jurors against extortion.

<sup>52</sup> The greatest authorities stand around you which will not let you forget your domestic praise; which day and night will remind you that your father was a most brave man, your grandfather a most wise man, your father-in-law a most weighty man. Wherefore, if you take from your father *Glabrio* his force and keenness in resisting the most audacious men; if from your grandfather *Scaevola* his prudence in foreseeing the snares that are being prepared against your reputation and that of these gentlemen; if from your father-in-law *Scaurus* his constancy, that no one can shift you from a true and certain opinion — the Roman people will understand that, with a most upright and most honourable praetor and a chosen council, the magnitude of money in a guilty defendant has had more weight in suspecting the charge than in calculating his safety.

<sup>53</sup> I am resolved not to allow that, in this case, our praetor and council shall be changed. I will not suffer the matter to be drawn out to that time when those whom even the slaves of the consuls-elect have not been able to move (when by a new precedent they were summoning them all together) the lictors of the consuls themselves shall summon; that men in distress, before allies and friends of the Roman people, now slaves and suppliants, shall not only by their command lose their right and all their fortunes, but also not have the power of lamenting their right.

<sup>54</sup> I shall surely not allow that, my speech once finished, with forty days interposed, then at last we should be answered, when our prosecution shall have been brought into the oblivion of long delay. I will not let this matter be judged when this great gathering of all Italy shall have left Rome, which has assembled at one moment from everywhere on account of the elections, the games, and the census. The fruit of praise and the danger of offence in this trial belongs to you, the labour and care to me, the knowledge of what is being done and the memory of what each man has said belongs (I think) to all.

<sup>55</sup> I shall do this not as something new, but as something done before by those who are now the leading men of our state: I shall use witnesses at once. This you will recognise as new from me, gentlemen: that

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I shall set up the witnesses in such a way as to unfold the whole charge; when by interrogation, by arguments and by speech, I shall have established it, then I shall fit the witnesses to the charge — so that there shall be nothing different between the customary prosecution and this new one, except that in the former, when everything has been said, the witnesses are produced; here, on each particular thing they will be produced, so that they too shall have the same opportunity of being interrogated, of arguing, and of speaking. If there is anyone who desires a continuous oration and prosecution, he will hear it in the second hearing. Now what we are doing — because we are doing it for the reason that we may meet their malice with our counsel — let him understand is necessary.

<sup>56</sup> This will be the prosecution in this first hearing. We say that Gaius Verres, when he had done many things wantonly, many cruelly toward Roman citizens and allies, many things impiously toward gods and men, has besides taken from Sicily forty million sesterces against the laws. This by witnesses, by private documents, by public records, by authorities, we will so make plain to you that you may decide that, even if we had had time at our convenience and free days for speaking, yet there had been no need of a long oration. I have spoken.

## AGAINST VERRES, SECOND HEARING, BOOK I

*In C. Verrem Actio Secunda I*70 BC

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*Book I of the five-book Actio Secunda, the written prosecution Cicero published in autumn 70 BC after Verres withdrew into exile at Massilia rather than answer the Actio Prima. This book covers Verres's career before his Sicilian governorship: the quaestorship under Carbo (deserted with the public money); the legateship in Asia under Dolabella (temple plunder at Delos, Tenedos, Samos, Chios, Erythrae, Aspendus, Perga); the Lamp-sacum episode and the execution of Philodamus and his son; the guardianship of Malleolus's young son; the city praetorship of 74 BC, with its corrupt edict on women's inheritances (the Annian case), the rigged contract for repairing the temple of Castor (let to Habonius for 560,000 sesterces to "whitewash" four columns), and the trial of Q. Opimius. The freedwoman Chelidon's house is shown as the de facto seat of judgement during Verres's praetorship. The book establishes the pattern — bribery, edicts written for one case, account-book forgery — that the Sicilian books then enlarge to provincial scale.*

<sup>1</sup> I think none of you, gentlemen, is unaware that during these days the talk of the multitude and the opinion of the Roman people has been that Gaius Verres would not answer in the second hearing and would not appear at the trial. Which rumour had spread not only because he had certainly resolved and made up his mind not to appear, but also because no one supposed any man so audacious, so senseless, so shameless, that, having been convicted of such unspeakable charges by so many witnesses, he would dare to look the jurors in the face or show his own face to the Roman people.

<sup>2</sup> It is the same Verres he always was — as forward to dare, so prepared to listen. He is here, he answers, he is defended; he does not even leave himself this much, that, when he is being held caught manifestly in the most disgraceful matters, if he were silent and absent, he might at least seem to have sought a modest end to his shamelessness. I bear it,

gentlemen, and I do not take it ill that I shall reap the fruit of my labour, and you the fruit of your virtue. For if he had done what he had previously resolved — not to be present — it would have been somewhat less known than I needed it to be how I had laboured in preparing and constructing this prosecution; and your praise, gentlemen, would have been thin indeed and obscure.

<sup>3</sup> Nor does the Roman people expect this from you, nor can it be content with this — that the man who refused to be present should be condemned, and that you should be brave only against one whom no one dared to defend. On the contrary: let him be present, let him answer; let him be defended with the highest resources, with the highest zeal of the most powerful men. Let my diligence contend with the greed of all of them; your integrity with his money; the constancy of the witnesses with the threats and power of his patrons. Then at last all those things will appear to be conquered, when they have come into contention and rivalry. If he had been condemned in absence, he would seem to have looked not so much to his own advantage as to grudging your praise.

<sup>4</sup> For no greater safety for the commonwealth can be found at this moment than that the Roman people understand that — the prosecutor having diligently rejected the jurors — the allies, the laws, the commonwealth can best be defended by senatorial council. Nor can any greater ruin come to all our fortunes than that, by the opinion of the Roman people, the standard of truth, integrity, faith, religion be judged absent from this order.

<sup>5</sup> So it seems to me, gentlemen, that I have undertaken a great and most ailing and almost given-up part of the commonwealth, and that I have served not so much my own praise and reputation in this as yours. For I have come to the lifting of the resentment against the courts and the removal of their reproach: that, when this case has been judged according to the will of the Roman people, in some part the authority of the courts may seem to be re-established by my diligence; while if it should be wrongly judged, an end may at last be set to the controversy over the courts.

<sup>6</sup> For without doubt, gentlemen, in this case that very thing is brought into crisis. The defendant is most guilty. If he is condemned, men will cease to say that money has greatest power in these courts. If he is acquitted, we shall cease to refuse the transfer of the courts. Although about

his acquittal he himself no longer hopes, nor does the Roman people fear, there are some who wonder at his singular shamelessness — that he is here, that he answers. To me, considering the rest of his audacity and madness, this does not seem wonderful. For he has committed many things impiously and unspeakably against gods and men, by the punishments of which crimes he is harried and led from his right mind and judgement.

<sup>7</sup> The penalties of those Roman citizens drive him headlong — whom he in part struck with the axe, in part killed in chains, in part hung upon the cross while they invoked the laws of liberty and citizenship. The household gods drag him to punishment, since he was found who would tear sons out of their parents' embrace and lead them to death, and who would demand from the parents the price of the burial of their children. The religions and ceremonies of all the rites and shrines violated, the images of the gods — which not only have been carried off from their temples but lie thrust away in darkness and hidden by him — do not allow his mind to stand still without madness and frenzy.

<sup>8</sup> Nor does this man seem to me to be offering himself only to condemnation; nor is he content with this common penalty for greed — a man who has bound himself by so many crimes. His monstrous and intolerable nature requires some singular punishment. It is not only sought, that with his condemnation his goods be restored to those from whom they were torn, but the religion of the immortal gods must be expiated, and the torment of Roman citizens and the blood of many innocents must be paid for by his punishment.

<sup>9</sup> For we have brought into your court not a thief but a robber, not an adulterer but a stormer of chastity, not a sacrilegious man but an enemy of all sacred things and religion, not an assassin but the most cruel butcher of citizens and allies. So I think this is the one defendant within human memory whom it would be advantageous to have condemned. For who does not understand that, even if he is acquitted against the will of gods and men, he can in no way be torn out of the hands of the Roman people? Who does not see clearly that we shall be reckoned to have come off splendidly if the Roman people shall be content with this man's punishment alone, and shall not decide thus: that this man has not committed a greater crime against himself — when he plundered shrines, when he killed so many innocent men, when he afflicted Roman citizens with

death, torture, and the cross, when he released the leaders of the pirates after taking money — than those, if any, who, having sworn, by their vote shall have freed this man, covered with so many great unspeakable crimes?

<sup>10</sup> There is not, there is not in this man any room for any erring, gentlemen. He is not the kind of defendant, this is not the moment, this is not the council — I fear lest I seem to speak too arrogantly before such men — this is not even the prosecutor through whom a defendant so guilty, so ruined, so convicted, can either be secretly slipped away or torn from us with impunity. Shall I not prove to these jurors that Gaius Verres took money against the laws? Will such men endure that they did not credit so many senators, so many Roman knights, so many cities, so many honourable men from so distinguished a province, the letters of so many peoples and private men — that they resisted so great a will of the Roman people?

<sup>11</sup> Let them endure it: we shall find, if we can bring this man alive to another trial, those before whom we may prove that this man in his quaestorship turned aside the public money given to Gnaeus Carbo the consul; we shall find those whom we may persuade that this man, in another's name — as you learned in the first hearing — took money from the urban quaestors. There will be those who will censure his audacity in this too, that under several names he subtracted as much as suited him from the head of the tithe-grain. There will perhaps be those, gentlemen, who will think that embezzlement of his most keenly to be punished, in that he did not hesitate to carry off the monuments of Marcus Marcellus and Publius Africanus — which in their name, but in fact were and were considered the Roman people's — from the most religious shrines and from the cities of allies and friends.

<sup>12</sup> Suppose he has come out from the embezzlement trial too: let him meditate about the pirate captains whom he released after taking money, let him see what to answer about those whom he kept hidden in his house in their place; let him consider not only how he can heal our charge but how to deal with his own confession. Let him remember that, in the previous hearing, stirred by the angry and hostile shout of the Roman people, he confessed that the pirate leaders had not been struck with the axe; that he was already then afraid lest it be brought against him as a charge that he had freed them with money. Let him admit — which

cannot be denied — that, being a private man, he kept the pirate captains alive and unharmed in his house at Rome, until I made him stop. If he can show in that treason trial that this was permitted to him, I will admit it ought to have been allowed. Suppose he escapes from this too: I will go where the Roman people has long been calling me.

<sup>13</sup> For of the right of liberty and of citizenship the Roman people thinks the judgement is its own — and rightly so. Let him by all means break through the senatorial councils with his violence; let him burst the courts of all sorts; let him fly out from your strictness: believe me, he will be held by tighter snares before the Roman people. The Roman people will believe these Roman knights, who, produced before you as witnesses earlier, said in their own sight that a Roman citizen, who offered honourable men as bondsmen, was hung on the cross by him.

<sup>14</sup> The thirty-five tribes will believe that most weighty and most distinguished man, Marcus Annius, who said that in his presence a Roman citizen was struck with the axe. The Roman people will hear that leading man, the Roman knight Lucius Flavius, who in his testimony said that his close friend Herennius, a businessman from Africa, when more than a hundred Roman citizens at Syracuse recognised him and defended him with tears, was struck with the axe. Lucius Suettius will give his good faith and authority and religion — a man endowed with all distinctions, who said under oath before you that many Roman citizens were most cruelly put to death by violence, by his order, in the stone quarries. When I conduct this case from a higher position, by the kindness of the Roman people, I do not fear that any force can snatch this man from the votes of the Roman people, or that any service of my aedileship can be more ample or more pleasing to the Roman people.

<sup>15</sup> Wherefore let all attempt all things in this trial. There is now nothing left in this case in which any man can err, gentlemen, except at your own peril. My method has been recognised in past matters; in what remains, it has been tested and provided for. I showed my zeal for the commonwealth at the time when, after a long interval, I brought back the old custom; and at the request of allies and friends of the Roman people — who are also my close associates — I laid the indictment of a most audacious man. Which deed of mine the most chosen and most distinguished men — of whom several were among you — so approved that to the man who had been Verres's quaestor, and was wronged by

Verres and was pursuing just enmities, they refused not only the laying of the indictment, but even the subscription, when he asked for it.

<sup>16</sup> I went to Sicily for the inquiry. In which business my industry was shown by the speed of my return, my diligence by the multitude of documents and witnesses, and my modesty and conscience by the fact that, when I had come as a senator to the allies of the Roman people — I, who had been quaestor in that province — I lodged with my own friends and connections rather than with those who had asked me for help, the defender of the common cause. To no one was my coming a labour or expense, either publicly or privately. I used in inquiry only as much force as the law gave me, not as much as the zeal of those whom this man had harassed could have given me.

<sup>17</sup> When I returned to Rome from Sicily — though Verres and his friends, refined and city-bred men, had spread rumours of this kind, that the witnesses might be slowed up: that I had been led off from a real prosecution by a great sum of money — although it was credited by no one (because both from Sicily there were witnesses who had known me as quaestor in the province, and from here the most distinguished men, who as they themselves are well known, so know each one of us best) — yet I feared lest anyone should doubt my fidelity and integrity, until we came to the rejection of the jurors. I knew that, in rejecting jurors in our own memory, some had not avoided the suspicion of a deal, while in the prosecution itself their industry and diligence was approved.

<sup>18</sup> I rejected jurors in such a way that this is agreed: that since the present state of the commonwealth which we now use, no council of similar splendour and dignity has existed. Which praise this man says is common between him and me. He, when he had rejected Publius Galba as juror, kept Marcus Lucretius; and when his patron asked him why he had let his closest friends, Sextus Peducaeus, Quintus Considius, Quintus Junius, be rejected, he replied: "Because I knew them in giving judgement to be too independent in their voting and view."

<sup>19</sup> So with the jurors rejected, I now hoped that my burden was shared with you. I thought that not only to those who knew me but to those who did not, my fidelity and diligence had been proved. In which I was not deceived. For at my elections, when this man used unlimited bribery against me, the Roman people judged that the man's money, which against my faith had had no power with me, ought to have no

power with them against my honour. On which day, gentlemen, when you first sat as called against this defendant, who was so unjust to this order, who was so eager for new things, for new courts and new jurors, that he was not moved by your appearance and your assembling?

<sup>20</sup> When in this matter your dignity rewarded me for my diligence, this is what I gained: that in the one hour in which I began to speak, I cut off from a defendant audacious, moneyed, lavish, and ruined, the hope of corrupting the trial; that on the first day, with so great a number of witnesses cited, the Roman people judged that, with this man acquitted, the commonwealth could not stand; that the second day took from this man's friends and defenders not only the hope of victory but the will to defend; that the third day so cast the man down that, by feigning illness, he debated not what he should answer but how not to answer. Then on the remaining days, by these charges, by these witnesses both city and provincial, he was so overwhelmed and crushed that, with the days of the games interposed, no one judged him postponed for further hearing, but condemned.

<sup>21</sup> Wherefore, so far as concerns me, gentlemen, I have won. For I have not coveted the spoils of Gaius Verres, but the reputation of the Roman people. It was for me to come with a cause to the prosecution: what cause was more honourable than to be appointed and chosen as defender by so distinguished a province? To take counsel for the commonwealth: what so suits the commonwealth as in such great resentment against the courts to bring forward a man by whose condemnation the whole order could be in praise and favour with the Roman people? To show and persuade that a guilty man has been brought up: who in the Roman people is there who has not taken away from the previous hearing this conviction — that all the crimes, thefts, and disgraces of those previously condemned, if they were brought together into one place, would scarcely be matched and compared with a small part of his?

<sup>22</sup> Look you to and consult, gentlemen, what concerns your reputation, your estimation, and the common safety. Your splendour ensures that you cannot err without the highest detriment and danger to the commonwealth. For the Roman people cannot hope that there are others in the senate who can rightly judge, if you cannot. It is necessary, when it has despaired of the whole order, to seek another kind of men and another method of giving judgements. If this seems lighter to you because

you think it is a heavy and inconvenient burden to give judgement, you ought to understand first that it makes a difference whether you yourselves throw off this burden, or whether, because you could not prove your fidelity and conscience to the Roman people, the power of giving judgement is for that reason taken from you. And then to consider also: in what danger we shall come before those jurors whom, on account of hatred of us, the Roman people shall have wished to give judgement on us.

<sup>23</sup> I will tell you what I have understood, gentlemen. Know that there are some men whom such a hatred of our order possesses that they openly say that they wish this man — whom they know to be most dishonest — to be acquitted on this one count alone: that the courts may, with disgrace and shame, be taken from the senate. This has compelled me to deal with you in many words, gentlemen — not my fear about your fidelity, but a new hope of theirs which, having suddenly drawn Verres back from the gate to the trial, made some suspect that not without cause his plan had been so suddenly changed.

<sup>24</sup> Now, lest Hortensius use a new kind of complaint and say that a defendant is being crushed about whom the prosecutor says nothing; that nothing is so dangerous to the fortunes of the innocent as for adversaries to be silent; and that he should not praise my ability differently than I wish, when he says that, if I had said many things, I would have lifted up the man against whom I was speaking, but that, because I did not say them, I had ruined him: I shall give way to him. I will use a continuous oration — not because this is now necessary, but that I may test whether he bears it more troublesomely that I was silent then or that I am speaking now.

<sup>25</sup> Here you will perhaps be diligent to see that I do not remit any hour from my legal hours. Unless I shall have used up every moment which the law has granted me, you will complain, you will invoke the faith of gods and men: that Gaius Verres is being circumvented because the prosecutor refuses to speak as long as he is allowed. Shall I not be allowed not to use what the law has given me for my own sake? For the time of accusation has been given me for my own sake, that I may be able to set forth in my speech the charges and the case. If I do not use it, I do you no wrong, but I take something from my own right and convenience. "But the case must be heard." For this reason indeed: because otherwise

the defendant, however guilty, cannot be condemned. Did you, then, take it ill that something was done by me to keep this man from being condemned? For with the case heard many can be acquitted; with it not heard, no one can be condemned.

<sup>26</sup> "I take away the second hearing." That which the law has in itself most troublesome, that the case should be pleaded twice — which is established more for my sake than yours, or no more for yours than mine. For if to plead twice is convenient, surely it is common to both. If it is needful that he who spoke later be refuted, it has been established for the prosecutor's sake that the matter should be conducted twice. But, I take it, Glaucia first proposed that the defendant be put off for a second hearing. Before that, judgement could be given at the first or "amplius" pronounced. Which then do you think the milder law? I think the older one, by which one could be either quickly acquitted or slowly condemned. I am restoring to you that *lex Acilia*, by which many were once accused, the case once pleaded, the witnesses once heard, and condemned — by no means with charges so manifest or so great as those by which you are convicted. Suppose you were pleading your case not under this so atrocious law, but under that mildest one. I shall accuse; you will answer; with the witnesses produced, I shall send the matter to the council in such a way that, even if the law gave the power of "amplius," yet they would think it disgraceful for them not to give judgement at the first.

<sup>27</sup> But if it is necessary for the case to be heard — has it not been heard enough? We pretend, Hortensius, what we have often experienced in speaking. Who paid great attention to us in this kind of case, where something is said to have been snatched or carried off by anyone? Is not all the expectation of the jurors either in the documents or in the witnesses? I said in the first hearing that I would make plain that Gaius Verres had taken from Sicily forty million sesterces against the laws. What? Should I have made this plainer if I had narrated it thus? "There was a certain Dio of Halaesa, who, when his son was an heir of his kinsman to a very great inheritance under the praetor Gaius Sacerdos, had at that time no business or controversy. Verres, as soon as he touched the province, immediately gave letters at Messana, summoned Dio, set against him slanderers from his own bosom who said that the inheritance had fallen to Erucine Venus; about this matter he showed he himself would judge."

<sup>28</sup> I can next unfold the whole matter, then say in conclusion what happened: that Dio counted out a million sesterces to win the most certain case; that besides, his herds of mares were carried off by him, that the silver, the embroidered tapestries he had he saw to be carried off. These things, neither when I said them nor when you denied them, would our speech be of great moment. At what time, then, would the juror prick up his ear and apply his mind? When Dio himself came forward; when others who were then in Sicily and present at Dio's affairs; when through those very days when Dio was pleading the case, it was found he had taken money on loan, called in his debts, sold properties; when documents of good men were produced; when those who gave money to Dio said that they had then heard those funds were being taken to be given to Verres; when Dio's friends, hosts, patrons, the most honourable men, said they had heard the same things.

<sup>29</sup> I take it, when these things were happening, then you would listen — as you have listened — then the case would seem truly to be conducted. Thus I have done all things in the previous hearing in such a way that on no charge was there any in which any of you needed a continuous prosecution. I deny that anything has been said by the witnesses which was either obscure to any of you or required any orator's eloquence. For you remember that I myself acted in such a way that, in interrogating witnesses, I set forth and unfolded all charges; so that, when I had placed the whole matter in plain view, I then at last interrogated the witness. So not only do you, who must judge, hold our charges; but the Roman people too has learned the whole prosecution and the case. Although I speak of my deed as if I had done that of my own will rather than driven by your wrong.

<sup>30</sup> You interposed a prosecutor who, when I had asked for myself only one hundred and ten days for Sicily, asked one hundred and eight for himself for Achaia. When you had snatched from me three months most fitted for action, you thought that I would yield up to you all the rest of this year's time — so that, when I had used up our hours, you, with two sets of games interposed, would answer on the fortieth day after; then time would be drawn out so that we would come from Manius Glabrio the praetor and from a great part of these jurors to another praetor and other jurors.

<sup>31</sup> If I had not seen this — if all my acquaintances and strangers had

not warned me that this was being done, this was being plotted, this was being laboured at — that the matter should be put off to that moment — I might, I suppose, fear that, if I wished to use my hours in prosecuting, my charges would not last out, my speech would fail, my voice and strength would give way; that I should not be able to prosecute twice the man whom no one had dared to defend in the first hearing. I have proved my plan both to the jurors and to the Roman people. There is no one who thinks the wrong and shamelessness of these men could have been opposed in any other way. For with what folly should I have been, if — when those who had bought to rescue Verres set down the day in their bond ("if the matter goes to the council after the first of January") — I should have fallen on that day myself, when I could have avoided it?

<sup>32</sup> Now I must take careful account of the time given me for speaking, since it is in my mind to set out the whole case. So I shall pass over the first act of his most disgraceful and flagitious life. He shall hear nothing from me about the disgraces of his boyhood, nothing from that impure youth of his — which kind it was, you either remember, or, from the man whom he has produced as most like himself, you can recognise. I will pass over everything that seems shameful to me to mention; nor will I consider only what it suits him to hear, but what it suits me to say. I beg you to grant this and to allow my modesty: that I may keep silent on some part of his shamelessness.

<sup>33</sup> All that time which was before he came to magistracies and the commonwealth, let it be free and unbound for me. Let his nightly orgies and vigils be passed over in silence; let no mention be made of pimps, gamblers, panders. Let the losses, the disgraces which his father's estate, his own youth bore, be passed by. Let him profit by the silence about his earlier infamy; let his rest of his life suffer me to make this great loss of charges.

<sup>34</sup> You were quaestor to Gnaeus Papirius the consul, fourteen years ago. From that day to this, what you have done, I summon to court: not an hour will be found empty of theft, crime, cruelty, disgrace. These are the years spent in the quaestorship and the legateship of Asia and the city praetorship and the Sicilian praetorship. So this same fourfold division will be of my whole prosecution. As quaestor, you drew the province by senatorial decree: the consular fell to you, that you should be with the consul Gnaeus Carbo and hold that province. There was

at that time dissension among the citizens, about which I will say nothing of what you ought to have felt. This one thing I say: at such a time and in such a lot, you ought to have decided which side you preferred to feel for and to defend. Carbo bore it ill that a man of singular luxury and idleness had fallen to him as quaestor; nevertheless he honoured him with all kindnesses and offices. To make this short: the money was assigned and counted out. The quaestor set out for the province; he came to the consular army in Gaul as expected, with money. As soon as the first opportunity seemed to be given him — learn how a man begins his magistracies and his administration of the commonwealth — the public money turned aside, the quaestor deserted his consul, his army, his lot, and his province.

<sup>35</sup> I see what I have done. He pricks up his ears; he hopes that some breath can be blown his way in this matter, by the will and defence of those to whom the name of the dead Gnaeus Carbo is hateful, with whom he hopes that abandonment and betrayal of his consul will be welcome. As if he had done this from a desire to defend the nobility or zeal for that party, and not most openly plundered the consul, the army, and the province, and run away because of the most shameless theft! For it is obscure and his deed of such a kind that anyone might suspect that Gaius Verres, because he could not endure new men, had crossed over to the nobility, that is, to his own kind — and had done nothing for the sake of money!

<sup>36</sup> Let us look at his accounts, how he rendered them: now he himself will show why he left Gnaeus Carbo, now he will betray himself. First learn the brevity. "Received," he says, "two million two hundred thirty-five thousand four hundred seventeen sesterces. Paid out for pay, grain, legates, the deputy quaestor, the praetorian cohort, one million six hundred thirty-five thousand four hundred seventeen sesterces. Remaining: at Ariminum, six hundred thousand sesterces." Is this how to render accounts? Have I or you, Hortensius, or anyone in the world, ever rendered them in this fashion? What is this? What shamelessness, what audacity? What example, out of so many men's accounts rendered, is of this kind? But that six hundred thousand sesterces, which he could not falsely set down to whom they had been given, which he writes were left at Ariminum, those very six hundred thousand which were left over — Carbo did not touch them, nor did Sulla see them, nor were they brought

back to the treasury. He chose Ariminum as his town — a town which, when he was rendering his accounts, had been crushed and plundered. He did not suspect, what he will now perceive, that we have witnesses enough left from that calamity of the Ariminenses for this matter. Read on.

<sup>37</sup> "To Publius Lentulus and Lucius Triarius, urban quaestors, the matter of the accounts was rendered." Read: "By decree of the senate." So that he might be permitted to render his account in this fashion, he became a Sullan suddenly — not that honour and dignity might be restored to the nobility. But if you had fled empty from there, still that wicked desertion and unholy betrayal of your consul would be judged a crime. "Carbo was a bad citizen, a wicked consul, a seditious man." So he was to others; when did he begin to be so to you? After he had committed to you his money, his grain supply, all his accounts, and his army. For if he had earlier displeased you, you would have done what Marcus Piso did the next year. When the quaestorship had fallen to him to Lucius Scipio the consul, he did not touch the money, did not set out for the army; what he felt about the commonwealth, he felt without injuring his own faith, the custom of our ancestors, or the bond of the lot.

<sup>38</sup> For if we wish to confound and confuse all these things, we shall make all life dangerous, hateful, and hostile — if the lot will have no religion, the bond of mutual fortune (whether favourable or doubtful) no companionship, the customs and institutions of our ancestors no authority. He is the common enemy of all who has been the enemy of his own. No wise man has ever thought a betrayer should be trusted. Sulla himself, to whom this man's coming ought to have been most welcome, removed him from himself and from his army; he ordered him to be at Beneventum, with those whom he understood to be most friendly to his party, where he could in nothing harm the highest matter and cause. He afterwards bestowed rewards on him generously, granted him certain goods of the proscribed in the Beneventan country to be plundered. He gave honour as to a betrayer, not faith as to a friend.

<sup>39</sup> Now however much there are men who hate the dead Gnaeus Carbo, they ought to think not what they wished to happen to him, but what is to be feared by themselves in such a case. This is a common evil, a common fear, a common danger. There are no more hidden snares than those which lie hidden in the pretence of duty or in some name of close

association. For one who is openly an adversary you can easily avoid by being on guard; but this hidden, internal, household evil not only does not appear, but even crushes you before you can see and explore it. Is it really so?

<sup>40</sup> You, when you have been sent as quaestor to the army — the guardian not only of the money but also of the consul, partner in all matters and counsels, held in the place of a son, as the custom of our ancestors used — shall you suddenly leave him, desert him, cross over to the adversaries? O crime! O monster to be exported to the farthest lands! For that nature which has committed so great a deed cannot be content with this one crime. It must always plot something of the kind, must always be engaged in similar audacity and treachery.

<sup>41</sup> So this same man, whom Gnaeus Dolabella afterwards, when Gaius Malleolus had been killed, had as deputy quaestor — I do not know whether this connection was not even greater than that with Carbo, and the judgement of the will ought not to count more than that of the lot — the same man was to Gnaeus Dolabella as he had been to Gnaeus Carbo. For he turned the charges that had weight against himself onto Dolabella, and brought the whole case of his patron over to Dolabella's enemies and prosecutors; he himself spoke a most hostile and most dishonest testimony against the man to whom he had been legate, to whom he had been deputy quaestor. That wretched Gnaeus Dolabella was burnt down — both by his unspeakable betrayal and by his dishonest and false testimony — and most of all by the resentment against this man's own thefts and disgraces.

<sup>42</sup> What shall you do with this man? For what hope shall you reserve so treacherous, so intolerable a beast — who in Gnaeus Carbo neglected and violated the lot, in Gnaeus Dolabella the will, and both not only deserted but betrayed and assaulted? Do not, gentlemen, please, weigh these charges by the brevity of my speech rather than by the magnitude of the matters themselves; for I must necessarily hurry to set out for you everything that has been laid down for me.

<sup>43</sup> Wherefore, his quaestorship being demonstrated and the theft and crime of his first magistracy seen through, attend to the rest. In which I shall pass over that period of the Sullan proscriptions and plunderings; nor will I let him take any defence for himself out of the common calamity. I shall accuse him of his own definite and proper crimes.

Wherefore, with all this Sullan period excluded from the prosecution, learn his splendid legateship.

<sup>44</sup> After Cilicia was decreed as Gnaeus Dolabella's province — O immortal gods, with what greed, by what intrigues, did this man storm that legateship for himself! That was the beginning of Gnaeus Dolabella's greatest calamity. For as he set out, wherever he made his journey, he was such that he seemed to spread not as a legate of the Roman people but as a kind of calamity. In Achaia — I will pass over all smaller things, of which something similar perhaps another man too has done at some time. I will say nothing but what is singular, what, if it were said against another defendant, would seem incredible — he demanded money of the magistrate of Sicyon. Let this not be a charge against Verres: others have done the same. When the man would not give it, he punished him — dishonestly, but not unheard of.

<sup>45</sup> See what kind of punishment — you will ask from what kind of man you judge him. He ordered a fire to be made of green and damp wood in a narrow place; there he left a free-born man, noble in his own city, an ally and friend of the Roman people, half-dead, tormented by the smoke. As for the statues, the painted panels he carried off from Achaia — I will not speak in this place; I have another place set apart for showing his greed for these things. At Athens, you have heard that a great mass of gold was carried off from the temple of Minerva; this was said in Gnaeus Dolabella's trial. Said? Even assessed. You will find that Gaius Verres was not a sharer in this counsel, but the leader.

<sup>46</sup> He came to Delos. There from the most religious shrine of Apollo by night he secretly took away the most beautiful and most ancient statues, and saw to it that they were thrown into his cargo ship. The next day, when those who lived at Delos saw the shrine plundered, they took it ill; for so great is the religion and antiquity of that shrine among them that they think Apollo himself was born in that very place. Yet they did not dare say a word, lest the matter perhaps concern Dolabella himself. Then suddenly the greatest tempests arose, gentlemen, so that not only could Dolabella, although he wished, not set out, but he could scarcely stay in the town: so great were the waves cast up. Here that ship of this brigand, loaded with sacred statues, was driven out and broken by the waves; on the shore those statues of Apollo are found. By Dolabella's order they are restored. The tempest is calmed; Dolabella sets out from

Delos.

<sup>47</sup> I do not doubt that, although there has never been any feeling of humanity in you, never any thought of religion, yet now in your fear and danger your own crimes come to your mind. Can any hope of safety be conveniently shown you, when you remember how impious, how wicked, how unspeakable you have been towards the immortal gods? Did you dare to plunder Apollo of Delos? Did you dare to lay impious and sacrilegious hands on that temple, so ancient, so sacred, so religious? If in your boyhood you were not so trained in those arts and disciplines that you should learn and know what has been entrusted to letters — not even afterwards, when you came to those very places, were you able to learn what is handed down by memory and writing:

<sup>48</sup> that Latona, after long wandering and flight, when pregnant and her time of delivery now upon her, fled to Delos and there bore Apollo and Diana? From which opinion of men that island is thought sacred to those gods, and the authority of its religion is so great, and always has been, that not even the Persians, when they had declared war on all of Greece, gods and men, and brought a fleet of a thousand ships to Delos, attempted to violate or touch anything. Did you, most dishonest and most senseless of men, dare to plunder this shrine? Was there ever a greed so great that it could overcome so great a religion? And if you did not think of these things then, do you not now even remember that no evil is so great but it has long been owed you for your crimes?

<sup>49</sup> When he came to Asia — why should I speak of his receptions, his lunches, dinners, horses, and gifts? I will not deal with Verres on his daily crimes. At Chios, I say, he carried off the most beautiful statues by force; likewise at Erythrae and Halicarnassus. At Tenedos — I pass over the money he plundered — Tenes himself, who is held by the Tenedians the most sacred god, who is said to have founded their city, from whose name Tenedos is named — this very Tenes, I say, most beautifully wrought, whom you once saw in the Comitium, he carried off, with the great groan of the city.

<sup>50</sup> As for that storming of the most ancient and most noble shrine of Samian Juno — how grievous to the Samians, how bitter to all Asia, how known to all, how unheard of by no one of you! On which storming, when ambassadors had come from Samos to Gaius Nero in Asia, they took back this answer: that complaints of this kind, which concerned

legates of the Roman people, ought to be referred not to the praetor but to Rome. What documents did this man take from there, what statues! Which I myself recently recognised in his house, when I had come for the sake of sealing them up.

<sup>51</sup> Where now, Verres, are these statues? Those, I mean, which we recently saw at your house, set out by all the columns, in all the spaces between the columns, and finally in your park, under the open sky. Why, as long as you thought another praetor with the jurors you had drawn for the substitution would be entering on the council about you — so long they were at home? After you saw that we preferred to use our witnesses than your hours, you left no statue at home except two which are in the middle of the house, which were carried off from Samos itself. Did you not think I would summon as witnesses on this matter your closest friends, who had always been at your house, of whom I might inquire whether they knew the statues had been there which were not now there?

<sup>52</sup> What did you suppose those men would judge of you, when they saw that you were now fighting not against your prosecutor but against an inheritance-officer and a confiscation-broker? Concerning which matter, you heard Charidemus of Chios speak in evidence in the previous hearing: that, when he was a trierarch and was escorting Verres from Asia by Dolabella's order, he was at Samos with him, and that he then knew the shrine of Juno and the town of Samos were plundered. And afterwards he pleaded his case publicly before his fellow citizens at Chios, the Samians being his accusers. He was acquitted, because he made it plain that what the legates of the Samos said pertained to Verres, not to him.

<sup>53</sup> Aspendus — you know it is an old and noble town in Pamphylia — is full of the best statues. I will not say this statue was taken from there and that one. I say this: that you left no statue at Aspendus, Verres. Everything from the shrines, from public places, openly, in everyone's sight, was carried out and exported on wagons. And even that famous Aspendian harpist, of whom you have often heard — the one whom the Greeks proverbially say "plays everything within" — he carried off and set up in his innermost chambers, so that he might seem to have surpassed even him in his own art.

<sup>54</sup> At Perga we know there is the most ancient and most sacred shrine of Diana. That too has been stripped and plundered by you; from Diana herself, what gold she had, has been pulled off and carried away, I say.

What, in evil hour, is this so great audacity and madness? For the cities of allies and friends to which you came under the right and name of legate — if you had invaded them by force, with army and command, yet, I take it, the statues and ornaments which you carried off from those cities you would have carried off not to your own house, nor to the country-houses of your friends, but to Rome, to the public.

<sup>55</sup> What shall I say of Marcus Marcellus, who took Syracuse, that most splendid of cities? What of Lucius Scipio, who waged war in Asia and conquered Antiochus, the most powerful king? What of Flaminius, who subdued King Philip and Macedon? What of Lucius Paulus, who overcame King Perses by force and valour? What of Lucius Mummius, who took the most beautiful and most ornate city of Corinth, full of every kind of treasure, and joined many cities of Achaia and Boeotia under the rule and dominion of the Roman people? Whose houses, when they flourished in honour and virtue, were empty of statues and panel paintings; but the whole city and the temples of the gods and all parts of Italy we see adorned with their gifts and monuments.

<sup>56</sup> I am afraid lest these things may seem to someone perhaps too ancient and outworn now; for then all were equally of this kind, so that this praise of singular virtue and innocence seems to be of those men, indeed of those times, not of these. Publius Servilius, a most distinguished man, with the greatest deeds done, is here to give his vote on you. He took Olympus by force, by troops, by counsel, by valour — an ancient city, increased and adorned with all things. I produce a recent example of a most brave man. For Servilius, commander of the Roman people, took Olympus, an enemy city, after you in those same parts as a quaestorian legate had pacified towns of allies and friends seen to be plundered and harassed.

<sup>57</sup> What you carried off by crime and brigandage from the most religious shrines, we cannot see except in your own house and those of your friends. The statues and ornaments which Publius Servilius carried off from an enemy city taken by force and valour, by the law of war and the right of imperator, he brought to the Roman people, conveyed in his triumph, saw to be inscribed on the public tablets at the treasury. Learn from the public letters the diligence of so distinguished a man. Read: "Accounts rendered by Publius Servilius." You see that not only the number of the statues but the size, shape, and posture of each one is set down

in the documents. Surely the joy of valour and victory is greater than this pleasure which is taken from lust and greed. I say Servilius keeps the booty of the Roman people much more carefully marked and recorded than you keep your thefts.

<sup>58</sup> You will say that your statues and panel paintings were also an ornament to the city and the Forum of the Roman people. I remember; with the Roman people I saw the Forum and the Comitium adorned for show with magnificent ornament, but bitter and mournful to the senses and the mind. I saw everything ablaze with your thefts, the booty of the provinces, the spoils of allies and friends. At which time, gentlemen, this man got the greatest hope for his other crimes. For he saw that those who wished to be called the masters of the courts were the slaves of these greeds.

<sup>59</sup> The allies and foreign nations then for the first time threw away all hope of their affairs and fortunes, because by chance there were at Rome at that time very many ambassadors from Asia and Achaia, who venerated in the Forum the statues of the gods carried off from their own shrines, and likewise, when they recognised other statues and ornaments, looked at them in tears, one in this place, another in that. The talk of all these we then heard was that there was no reason for anyone to doubt about the destruction of the allies and friends, when indeed they saw in the Forum of the Roman people, in that place where formerly those who had done injuries to allies were accused and condemned, there openly placed those things which had been taken and torn from the allies by crime.

<sup>60</sup> Here I do not think he will deny that he has very many statues, innumerable panel paintings; but, I take it, he is accustomed sometimes to say that what he has seized and stolen he bought, since indeed into Achaia, Asia, Pamphylia, at public expense and in the name of an embassy, he was sent as a buyer of statues and panel paintings. I have received all the documents both of him and of his father, which I have read most diligently and digested: his father's, while he lived; yours, as long as you say you kept them. For in him, gentlemen, you will find this novel thing. We hear that some never kept books — which is the false opinion men have of Antonius, for he kept them most diligently; but let it be a certain kind of conduct, by no means to be approved. We hear that another did not keep them from the start, but kept them from some time

onward; this also has some method. But this is novel and ridiculous: that this man answered us when we asked him for his books, that he had kept them up to the consulship of Marcus Terentius and Gaius Cassius, but afterwards had stopped.

<sup>61</sup> In another place we shall consider what kind of conduct this is. Now it does not concern me; for of these times in which I am now engaged I have both your books and your father's. You cannot deny that you have brought back very many of the most beautiful statues, very many of the best panel paintings. And would that you might deny it! Show me one — in either your books or your father's — bought: you have won. Even those two most beautiful statues which now stand by your impluvium, which for many years stood before the doors of Samian Juno, you cannot show how you bought; these two, I say, which alone are now in your house, which await the inheritance-officer, abandoned and left behind by the other statues.

<sup>62</sup> But, I take it, only in these matters had he unbridled and unchecked greeds. The rest of his lusts were held in by some method or moderation. How many freeborn women, how many mothers of households, do you suppose he assaulted in that filthy and impure legateship? On what town did he set foot where he did not leave behind more traces of his rapes and disgraces than of his coming? But I shall pass over everything that can be denied. I shall leave aside even those things which are most certain and most plain. I shall pick out one of his unspeakable deeds, that I may the more easily come at last to Sicily, which has imposed this burden and labour upon me.

<sup>63</sup> There is in the Hellespont a town, gentlemen, called Lampsacum — among the most known and noble in the province of Asia. The Lamp-sacenes themselves are exceedingly courteous to all Roman citizens, and besides most settled and quiet, almost beyond the rest fitted to the highest Greek leisure rather than to any violence or tumult. It happened, when this man had begged of Gnaeus Dolabella that he be sent to King Nicomedes and King Sadala, and had asked for this journey as suiting his own profit rather than the public business, that he came on that journey to Lampsacum with the great calamity and almost ruin of the city. He was lodged with a certain doorkeeper as host, and his companions were placed likewise with other hosts. As was his way, and as his disgraceful lusts were prompting him, he immediately gave instructions to

those companions of his, the most worthless and most disgraceful men, to look out and find any maiden or woman on whose account he might tarry longer at Lampsacum.

<sup>64</sup> His companion was a certain Rubrius, a man made for his lusts, who, with marvellous art, wherever he came, used to investigate all such matters. He brought this report to him: that there was a certain Philodamus, easily the leading man of the Lampsacenes by birth, honour, wealth, and reputation; that he had a daughter who lived with her father (because she had no husband), a woman of singular beauty, but reckoned of the highest integrity and chastity. As soon as he heard this, the man so caught fire for what he had not only never seen himself but had not even heard from one who had seen, that he immediately said he wished to move to Philodamus's. The host doorkeeper, suspecting nothing, fearing lest he himself be offended in some way, began with great force to keep him. Verres, since he could not find a reason for leaving the host, began to make a way to his rape by another method: he said Rubrius, his darling, his helper and accomplice in all such matters, was poorly lodged. He ordered him to be moved to Philodamus.

<sup>65</sup> When this was reported to Philodamus, although he was unaware how much evil was already being prepared for him and his children, he came to Verres. He pointed out that this duty was not his; that, since it was the part of hosts to receive guests, even so they were accustomed to receive praetors and consuls themselves, not the lackeys of legates. Verres, since he was carried away by one greed, ignored that whole demand and reasoning. He ordered Rubrius to be brought by force to a man who ought not to receive him. Here Philodamus, since he could not maintain his own right, laboured to keep his humanity and habit. The man, who had always been thought most hospitable and friendly to our citizens, did not wish to seem to have received that very Rubrius unwillingly. Magnificently and with adornment, since he was among the foremost of his people in resources, he prepared a banquet. He asked Rubrius to invite whomever he pleased, leaving the place to him alone if he saw fit. He even sent his son, a most select young man, abroad to a certain kinsman of his to dinner.

<sup>66</sup> Rubrius invited Verres's companions; Verres made them all aware of what was needed. They came in good time; they reclined at table. Conversation arose between them, and an invitation that they should drink

in the Greek manner; the host urged it; they called for larger cups; the banquet was kept up by everyone's talk and merriment. After things seemed to Rubrius to be heating up enough, he said: "Please, Philodamus, why do you not order your daughter to be called in to us?" The man, who was both of the highest gravity and of that age and a parent, was struck dumb at the dishonest man's saying. Rubrius pressed. Then he, that he might give some answer, said it was not the custom of the Greeks for women to recline in a banquet of men. Then another from another part: "But this is not to be borne; let the woman be called!" And at the same time Rubrius ordered his slaves to shut the door and themselves to stand at the doorway.

<sup>67</sup> When Philodamus understood that this was being done, that this was being prepared — that violence should be done to his daughter — he called his slaves to him, ordered them to disregard himself, to defend his daughter; that someone should run out and bring this great household evil to the news of the son. Meanwhile a shouting arose throughout the whole house. Among the slaves of Rubrius and the host this leading and most honourable man is being tossed about in his own house. Each man for himself laid hands. Finally hot water is poured on Philodamus by Rubrius himself. When this was reported to the son, immediately, beside himself, he hurries to the house, that he might come to the help of his father's life and his sister's chastity. All the Lampsacenes, with the same feeling, as soon as they heard this — moved both by Philodamus's standing and by the magnitude of the wrong — gathered to the house at night. Here Verres's lictor Cornelius, who, with his slaves, had been stationed by Rubrius almost as a guard for carrying off the woman, is killed; some slaves are wounded; Rubrius himself is wounded in the crowd. He, when he saw such great tumults raised by his own greed, longed in some way to fly, if he could.

<sup>68</sup> On the next day men assembled in a public meeting in the morning. They asked what was best to do. Each man, according to his authority, spoke to the people. There was no one whose feeling and speech was not this: that they should not fear, if the Lampsacenes had avenged this man's unspeakable crime by force and hand, lest the senate and Roman people should think that city must be punished. But if the legates of the Roman people used this right against allies and foreign nations — that it was not allowed to keep the chastity of one's children safe from their

lust — it would be better to suffer anything than to live amid such great violence and bitterness.

<sup>69</sup> When all felt this, and each spoke to that effect according to his own feeling and grief, all set out for that house in which Verres was lodged. They began to break in the door with stones, to press with steel, to gather wood and brushwood about it, and to set fire. Then the Roman citizens who were doing business at Lampsacum ran together. They begged the Lampsacenes that the name of legate weigh more with them than the wrong of the legate. They understood the man was impure and unspeakable; but since he had not accomplished what he had attempted, and would not be at Lampsacum afterwards, their offence would be lighter if they spared a wicked man than if they did not spare a legate.

<sup>70</sup> So this man, much more wicked and worthless than that famous Hadrianus, was somewhat luckier. The latter, because the Roman citizens could not bear his greed, was burnt alive in his own house at Utica; and that is judged to have happened to him so deservedly that everyone rejoiced and no investigation was set up. This man, scorched by an embassy of allies, yet flew out from that flame and danger; and not yet has he been able to invent any cause why he committed it, or what happened, that he came into so great a danger. For he cannot say: "When I wished to quell a sedition, when I was levying grain, when I was collecting pay, when I was finally doing something for the commonwealth, that I gave a sharper order, that I punished, that I threatened." If he should say these things, even so he ought not to be forgiven, if by too harshly commanding he seemed to have brought the allies to so great a danger.

<sup>71</sup> Now, since he himself dares neither to speak truly nor to invent falsely the cause of that tumult, but a most temperate man of his own order, who was then assistant to Gaius Nero — Publius Tettius — has said that he learned these same things at Lampsacum; and a man of every distinction, Gaius Varro, who was then military tribune in Asia, says he himself heard these same things from Philodamus — can you doubt that fortune wished to snatch this man not so much from that danger as to keep him for your judgement? — unless he says what he interrupted Hortensius with in Tettius's testimony in the previous hearing (at which time, indeed, he gave a sufficient sign that, if there were anything he could say, he could not be silent — so that, as long as he was silent during the other witnesses, all could know he had nothing to say): he then said, that

Philodamus and his son had been condemned by Gaius Nero.

<sup>72</sup> About which, that I may not say much, I say only this: that Nero followed this — and his council too — that since it was agreed the lictor Cornelius had been killed, they thought no man ought to have the power of killing a man even in avenging a wrong. Wherein I see by Nero's judgement you were not acquitted of dishonesty, but they were condemned of murder. But what kind of condemnation was that? Listen, please, gentlemen, and pity the allies at last and show that there ought to be some defence for them in your trust. Because it seemed to all Asia that he had been killed lawfully — that lictor of his (in name; in fact, the minister of his most dishonest greed) — this man feared lest Philodamus be acquitted by Nero's judgement. He asks and begs Dolabella to leave his province, to go to Nero. He explains he cannot be safe, if Philodamus had been allowed to live and at some time come to Rome. Dolabella was moved.

<sup>73</sup> He did what many reproached: leaving his army, his province, and his war, and setting out for Asia, into another's province, for the sake of the most worthless of men. After he came to Nero, he urged him to take cognisance of Philodamus's case. He himself had come to be on the council and speak first; he had even brought along his own prefects and military tribunes, all of whom Nero called to council. There was on the council also that most equitable judge, Verres himself. There were not a few toga-clad creditors of the Greeks, with whom the favour of every most dishonest legate is most useful for collecting their money.

<sup>74</sup> That wretched man could find no defender. For who, among toga-clad men, would not be moved by Dolabella's favour? — or among Greeks, by the same man's force and command? Then a Roman citizen from among the Lampsacenes' creditors is set up as prosecutor, who, if he said what Verres ordered, could collect money from the people through the same man's lictors. While all these things were being done with such great contention, with such great resources — when many were prosecuting that wretched man, no one defending; when Dolabella was fighting with his prefects on the council; when Verres said his own fortunes were at stake, and gave testimony, and was on the council, and had procured a prosecutor — when all these things were happening, and although it was agreed a man had been killed, yet so great was the force of his wrong, so great his dishonesty, was thought, that on Philodamus's case "amplius"

was pronounced.

<sup>75</sup> What now in the second hearing shall I bring forward of Gnaeus Dolabella's spirits, what of this man's tears and runnings about, what of Gaius Nero's — a most excellent and most innocent man — mind that in some matters was too timid and humble? Who in that matter did not have anything he ought to do — unless perhaps what all then desired, that he should conduct the matter without Verres and without Dolabella. Whatever had been done without these, all would have approved. Then indeed what was pronounced was thought to have been judged not by Nero, but snatched from Nero by Dolabella. For Philodamus and his son are condemned by very few votes. Dolabella is present, presses, urges, that they be struck with the axe as soon as possible, so that as few as possible could hear of this man's unspeakable crime.

<sup>76</sup> A bitter and miserable spectacle, grievous to the whole province of Asia, was set up in the Forum at Laodicea: an aged parent led to punishment, on the other side his son — the one because he had defended the chastity of his children, the other because he had defended his father's life and his sister's reputation. Each wept, not for his own punishment, but the father for the son's death, the son for the father's. What floods of tears do you suppose Nero himself shed? What weeping was there of all Asia, what mourning and groaning of the Lampsacenes? — that innocent men, nobles, allies and friends of the Roman people, were struck with the axe, on account of the singular worthlessness and most dishonest greed of a most flagitious man!

<sup>77</sup> Now indeed, Dolabella, neither for you nor for your children, whom you have left wretched in want and solitude, can I have pity. Was Verres so much to you that you wished his lust to be paid for with the blood of innocent men? Was it for this you abandoned army and enemy — so that by your own violence and cruelty you might lift the dangers of this most dishonest man? Did you, because you had set him in the place of a quaestor, suppose he would be your friend forever? Did you not know that by him Gnaeus Carbo the consul, whose actual quaestor he had been, was not only deserted but also stripped of his auxiliaries and money, unspeakably attacked and betrayed? You experienced, then, his treachery, when he himself went over to your enemies, when the guilty fellow gave the keenest testimony against you, when he refused to render his accounts at the treasury except after your condemnation.

<sup>78</sup> Shall your lusts, Verres, be so great that the provinces of the Roman people, the foreign nations, cannot hold and bear them? Shall what you have seen, what you have heard, what you have desired, what you have meditated — unless it be at hand at your nod, unless it obey your lust and greed — shall men be unleashed, houses be stormed, cities not only at peace but indeed of allies and friends shall flee to violence and arms, that they may be able to ward off from themselves and their children the crime and lust of a legate of the Roman people? For I ask of you: were you besieged at Lampsacum? Did that multitude begin to set fire to the house in which you were lodged? Did the Lampsacenes wish to burn alive a legate of the Roman people? You cannot deny it. For I have your testimony which you gave before Nero; I have the letters which you sent to him.

<sup>79</sup> Read this very passage from the testimony. "Testimony of Gaius Verres against Artemidorus. Not long after, into the house..." Was the Lampsacene state attempting to make war on the Roman people? Did it wish to revolt from our empire and name? For I see, both from what I have read and what I have heard, I understand: in any city in which not only is a legate of the Roman people besieged, not only attacked by fire, steel, hand, troops, but in some part violated — unless satisfaction is publicly made — it is customary for war to be declared and waged on that city.

<sup>80</sup> What then was the cause why the whole Lampsacene state from the public meeting (as you yourself write) ran together to your house? For neither in the letters which you send to Nero, nor in your testimony, do you show any cause for so great a tumult. You say you were besieged, fire was brought, brushwood was put round, your lictor was killed, the power of going out in public was taken from you. The cause of so great a terror you hide. For if Rubrius had done some wrong in his own name and not by your impulse and your greed, they would have come to you to complain of your companion's wrong rather than to attack you. Since therefore the witnesses produced by us have said what cause there was for that tumult, while you have hidden it: does not this account which we have proposed get confirmation both from their testimony and from your own continued silence?

<sup>81</sup> Will you then spare this man, gentlemen, whose offences are so great that those whom he wronged could not wait the lawful time for

vengeance, nor could put off so great a force of grief to a later moment? You were besieged. By whom? By Lampsacenes. Barbarian men, I take it, or men who despised the name of the Roman people. On the contrary, by men most gentle by nature, custom, and discipline; men allies by the condition of the Roman people, slaves by fortune, suppliants by will. So that it is plain to all: unless the bitterness of the wrong, the force of the crime had been so great that the Lampsacenes thought they should rather die than endure it, they would never have come to that point of being moved more vehemently by hatred of your lust than by fear of the legateship.

<sup>82</sup> Do not, by the immortal gods, force allies and foreign nations to use this refuge, which, unless you act, they will necessarily use. Nothing would ever have softened the Lampsacenes towards this man, had they not believed that he would pay penalties at Rome. Even though they had received such a wrong as no law could pursue worthily enough, yet they preferred to commit their inconveniences to our laws and courts than allow them to their own grief. You, when you had been besieged by so distinguished a state on account of your crime and disgrace, when you had compelled wretched and stricken men, as if despairing of our laws and courts, to flee to violence, to hands, to arms, when in towns and cities of friends you had presented yourself not as a legate of the Roman people but as a lustful and cruel tyrant, when before foreign nations you had violated the fame of our empire and name by your reproaches and disgraces, when you escaped from the steel of the Roman people's friends and flew out from the flame of allies — do you hope that here will be your refuge? You err. They allowed you to come out alive, that you might fall here, not that you might rest here.

<sup>83</sup> And you say that judgement has been given that you were besieged at Lampsacum unjustly, because Philodamus with his son was condemned. What if I show, if I make it plain by a worthless witness, but on this matter still suitable — by you yourself, I say, as witness, I shall show that you yourself transferred the cause and fault of this besieging onto others, and that those whom you charged were not punished. Now Nero's judgement does not help you at all. Read the letter which he sent to Nero. "Letter of Gaius Verres to Nero. Themistagoras and Thessalus..." You write that Themistagoras and Thessalus stirred up the people. What people? Those who besieged you, who tried to burn you

alive. Where do you pursue them, where do you accuse them, where do you defend the right and name of legate? Will you say it was done in Philodamus's case? Bring me Verres's own testimony.

<sup>84</sup> Let us see what the same man said under oath. Read: "Asked by the prosecutor, he replied that he was not pursuing the matter in this trial: that he had it in mind to pursue it at another time." How then does Nero's judgement help you, how Philodamus's condemnation? You, when you were besieged as a legate, when, as you yourself wrote to Nero, a notable wrong had been done to the Roman people and the common cause of legates — you did not pursue it. You say you have it in mind to pursue at another time. What time was that? When did you pursue? Why did you diminish the right of legateship, why did you desert and betray the cause of the Roman people, why did you leave your wrongs joined with the public ones? Ought you not to have referred the matter to the senate, to have complained of so atrocious wrongs, to have seen to it that those who stirred up the people were summoned by the consuls' letters?

<sup>85</sup> Recently when Marcus Aurelius Scaurus demanded — because he said he had been prevented by force at Ephesus, when he was quaestor, from leading away from the shrine of Diana his slave who had taken refuge in that asylum — Pericles of Ephesus, a most noble man, was summoned to Rome, since he was alleged to have been the author of that wrong. You, if you had shown the senate that you had been treated as legate at Lampsacum in such a way that your companions were wounded, your lictor killed, you yourself besieged and almost burnt — and that the leaders and chief authors of this matter (as you write) were Themistagoras and Thessalus — who would not have been moved? Who would not have provided for himself out of the wrong done to you? Who would not have thought that in this matter your case and the common danger were involved? For the name of legate ought to be such that not only among the rights of allies but even among the weapons of enemies it goes safe.

<sup>86</sup> Great is this Lampsacene charge of lust and most dishonest greed. Now hear another, of greed almost not lighter in its kind. He demanded a ship of the Milesians, which should escort him to Myndus for protection. They at once gave him an excellent skiff from their fleet, equipped and armed. With this protection he set out for Myndus. As to what he carried off publicly from the Milesians in wool, and the expense of his coming, the contumelies and wrongs to the Milesian magistrate —

although these can be said both truly and gravely and vehemently — I shall pass over speaking, and reserve them all whole for the witnesses. Hear what can in no way be passed in silence and cannot be expressed worthily.

<sup>87</sup> He orders the soldiers and rowers to return on foot from Myndus to Miletus. He himself sells the most beautiful skiff, chosen out of the ten Milesian ships, to Lucius Magius and Lucius Fannius, who lived at Myndus. These are the men whom the senate recently judged should be held in the number of enemies. In that vessel they sailed to all the enemies of the Roman people, all the way from Dianium, which is in Spain, to Sinope, which is in Pontus. O immortal gods, incredible greed and singular audacity! Did you dare to sell a ship from the fleet of the Roman people, which the Milesian state had given you to escort you? Did the magnitude of the deed not move you? — if men's regard did not move you, did you not consider this either, that of this most dishonest theft (or rather of so unspeakable a piece of plunder) so distinguished and so noble a city would be a witness?

<sup>88</sup> Or because Gnaeus Dolabella then attempted, at your request, to punish the man who had been in command of the skiff, when he had reported the affair to the Milesians, and had ordered the report (which had been entered into their public records under their laws) to be expunged — did you for that reason think you had escaped from this charge? That opinion has greatly deceived you, and in many places. For you have always thought, and especially in Sicily, that you were sufficiently safeguarded for defence if you had either forbidden anything to be entered into the public records, or had compelled what had been entered to be deleted. How nothing this is — although you have learned it from many cities of Sicily in the previous hearing — yet learn it also in this very city. They are obedient indeed, while those who order are present. As soon as they have left, they not only enter what they were then forbidden, but they also subscribe the cause why it was not entered in the documents at the time. Those documents remain at Miletus; they remain, and as long as that city exists they will remain.

<sup>89</sup> For ten ships, by the order of Lucius Murena, the Milesian people had built from tax-money for the Roman people, just as the other cities of Asia had each its share. Wherefore one of the ten — not by the sudden coming of pirates, but by the brigandage of a legate; not by the violence

of a tempest, but by this horrible tempest of allies — they entered in their public records as having been lost.

<sup>90</sup> There are at Rome envoys of the Milesians, the most noble men and chief of their state, who, although they are awaiting the month of February and the names of the consuls-elect, yet so great a deed they will not be able even when interrogated to deny, nor even when produced to keep silent. They will say — I say — both moved by religion and from fear of their own laws, what was done with that skiff. They will show that Gaius Verres, in that fleet which had been built against pirates, was himself a wicked pirate. When Gaius Malleolus, Gnaeus Dolabella's quaestor, was killed, Verres thought two inheritances had come to him: one of the deputy quaestor's office, for he was at once ordered by Dolabella to be deputy quaestor; the other of guardianship, for, since he was the guardian of the ward Malleolus, he made an assault on his goods.

<sup>91</sup> For Malleolus had set out for the province so amply furnished that he left absolutely nothing at home. Besides, he had placed loans with various peoples and made bond-notes; he had brought with him a great weight of the best chased silver — for he too was a comrade of Verres in this disease and greed. He left a great weight of silver, a large household, many craftsmen, many handsome men. Verres seized whatever silver pleased him, led off the slaves he wished, carried away the wines and other things easily got in Asia which Malleolus had left, sold the rest, and exacted the money.

<sup>92</sup> When it was agreed that he had realized two and a half million sesterces, when he returned to Rome, he gave no letter to the ward, none to his mother, none to the guardians. The slave-craftsmen of the ward he kept at home; the handsome and lettered men he kept around his feet, saying they were his, that he had bought them. When the mother and grandmother of the boy more than once demanded that, if he would not give back the money or render the account, he should at least say how much money of Malleolus's he had brought back, demanded by many, he at last said one million sesterces. Then in the bottom margin of the wax he made the lowest entry in disgraceful erasure: paid to the slave Chrysogonus, six hundred thousand sesterces; received from the ward Malleolus. How out of one million sesterces six hundred thousand were made, how those six hundred thousand sesterces fitted exactly — as those of Gnaeus Carbo's money were left over six hundred thousand — how

the entry to Chrysogonus was made, why this entry is the lowest and in erasure, you will judge.

<sup>93</sup> Yet, although he had returned six hundred thousand sesterces as received, fifty thousand sesterces were not paid. The slaves — after he was made defendant — some have been returned, some are still kept; the savings of all and the under-slaves are kept. This is his splendid guardianship. Behold, to whom you should commit your children! Behold the memory of his dead comrade! Behold the fear for the reputation of the living! When all Asia had presented itself to be plundered and harried, when all Pamphylia had been laid open to your plunder, were you not content with these so rich things? Could you not keep your hands from the guardianship, your hands from the ward, your hands from the son of your comrade? Now it is not Sicilians, not the farmers (as you keep saying), not those who, by your decrees and edicts, have been roused and made hostile to you, who beset you. Malleolus was produced by me, and his mother and his grandmother, who, weeping, said that the boy had been overturned out of his ancestral goods by you.

<sup>94</sup> What are you waiting for? That Malleolus himself rise from the dead and demand of you the duties of guardianship, comradeship, and friendship? Suppose he is here. Most greedy and filthy man, give back the goods to your comrade's son, if not what you carried off, at least what you have confessed! Why do you compel your comrade's son to send forth this his first voice in the Forum with grief and complaint? Why do you compel his comrade's wife, his comrade's mother-in-law, finally the whole household of his dead comrade, to give testimony against you? Why do you force the most modest and most select women, unaccustomed and unwilling, to come forward into so great an assembly of men? Read the testimonies of all. Testimony of mother and grandmother.

<sup>95</sup> As to how he, when deputy quaestor, harassed the community of the Milyads, how he afflicted Lycia, Pamphylia, Pisidia, and all Phrygia by levying grain, by his arbitrary valuation, by that "Sicilian assessment" of his (which he then first invented) — it is not necessary to demonstrate in words. Know this: under these heads — the things which were done by him when he levied grain, hides, hair-cloth, sacks from the cities, and did not take them but exacted money for those things — under these heads alone, against Gnaeus Dolabella the lawsuit was assessed at three million sesterces. All of which, even if it was done at Dolabella's will, was

nevertheless conducted through this man.

<sup>96</sup> I shall stand on a single heading; for there are many of the same kind. Read: "Of moneys assessed against Gnaeus Dolabella, ex-praetor: from the community of the Milyads..." I say that you compelled this, you assessed it, the money was counted out to you. And I show that, with the same violence and wrong, when you were exacting the greatest sums of money, you spread through all parts of the province like some ruinous storm and pestilence.

<sup>97</sup> So Marcus Scaurus, who prosecuted Gnaeus Dolabella, kept this man in his power and command. The young man, when he had learned of many thefts and disgraces of his in the inquiry, acted shrewdly and cleverly. He showed Verres a very great volume of his deeds, took from the man what he wished against Dolabella, produced him as witness. Verres said what he thought the prosecutor wished. Of which kind, of witnesses who have stolen with him, if I had wished to use them, I would have had a great supply. Who, that they might free themselves from the danger of lawsuits and the connection of charges, promised to descend to whatever I wished.

<sup>98</sup> I refused the will of all of them. There was no place in my camp for any betrayer, nor even for a deserter. Perhaps those are to be considered the better prosecutors who have done all this. So be it; but I wish my role to be praised most as defender, not prosecutor. He does not dare to render his accounts at the treasury before Dolabella was condemned. He gets from the senate that the day be deferred, because he says his books were sealed by Dolabella's prosecutors — as if he did not have the power to copy them. He is the only one who never renders his accounts at the treasury. You have heard the quaestorian account, rendered in three little lines; the legateship's, only after the man had been condemned and exiled who could have refuted it. Now finally the praetorship's, which by senatorial decree he ought to have rendered at once, he has not rendered up to this time.

<sup>99</sup> He said in the senate that he was waiting for his quaestor — as if there were not, just as a quaestor can render his account without a praetor (as you, Hortensius, as all do), in the same manner a praetor without a quaestor. He said the same Dolabella had obtained this. The omen pleased the senators rather than the cause. They approved. But the quaestors too came long ago. Why did you not render? From the dregs of

those accounts of your legateship and deputy-quaestorship come those entries which Dolabella was necessarily required to make good. From the lawsuits assessed against Dolabella, ex-praetor and ex-propraetor:

<sup>100</sup> Where Dolabella entered as received from Verres less than Verres entered as paid to him — 535,000 sesterces; and where Dolabella entered Verres as having received more than the same had in his books — 232,000 sesterces; and where he entered him as having received more grain — one million eight hundred thousand sesterces, which you, most upright man, had otherwise in your books. From this came those extraordinary monies, which without any guide we can investigate at least in some part. From this is the account with Quintus and Gnaeus Postumus Curtius under many headings, none of which he has in his books. From this come the four hundred thousand sesterces counted out to Publius Tadius at Athens, which I shall make plain by witnesses. From this came the praetorship most openly bought — unless that too is doubtful, how this man was made praetor.

<sup>101</sup> A man, naturally, of approved industry or work, of distinguished reputation for self-restraint, or finally (which is the lightest of qualities) of constancy in attendance — who before his quaestorship had lived with prostitutes and pimps; who had conducted his quaestorship as you have learned; who, after that wicked quaestorship at Rome, had scarcely stayed three days; who in his absence had not lain in oblivion but had been in everyone's continual mention of every disgrace — he, suddenly, as he came to Rome, was made praetor on charm. More money, indeed, was given that he should not be prosecuted. To whom it was given, has nothing to do with me, nothing with the case. That it was given was easily agreed at the time among all in the recent affair.

<sup>102</sup> Most foolish and senseless man, when you were making up your books and wishing to escape the charge of extraordinary money, did you suppose you would slip from all suspicion if you did not enter as paid to those whom you trusted with money, and brought no entry into your books, while the Curtii entered it under so many headings as received from you? Of what use was it to you not to have entered it as paid out to them? Did you think you would plead your case from your books alone?

<sup>103</sup> But let us now come to that splendid praetorship, and to those charges which are better known to those present than to us who have come prepared and rehearsed for speaking. About which I do not doubt

that I cannot avoid and escape the offence of negligence. For many will say so: "About that he said nothing, in which I was concerned. He did not touch that wrong which was done to me or to my friend, in which I was concerned." Towards all of you who know his wrongs — that is, the entire Roman people — I want it strongly understood that not by my negligence shall it come about that I leave many things out, but because I want others to be reserved whole for the witnesses, and many I judge to be passed over for reason of brevity and time. I will confess this also unwillingly: that I, when this man has not let any moment of time pass empty of offence, have not been able to know all that has been committed by him. Wherefore listen to me concerning the charges of his praetorship in such a way that, from each kind — both of giving judgement and of demanding the patching of public buildings — you require those things which are most worthy of a defendant in whom nothing small or moderate ought to be charged.

<sup>104</sup> For when he was made praetor, who had risen with auspices from Chelidon's bed, he received by lot the city province more by his own and Chelidon's will than by the Roman people's. From the start, learn what kind he was in establishing the edict. Publius Annius Asellus died under the praetor Gaius Sacerdos. Since he had an only daughter and was not in the census, what nature urged him and no law forbade — he made his daughter heir of his goods. The heir was the daughter. Everything was in the ward's favour: the equity of the law, the father's will, the edicts of praetors, the custom of the law as it was at the time when Asellus died.

<sup>105</sup> This praetor-elect — whether warned, or tested, or, with the keenness he himself has in such matters, came to this dishonesty without any guide or informer, I do not know. Just see the audacity and madness of the man — he addresses the heir Lucius Annius, who had been instituted heir after the daughter (for I cannot be persuaded he was addressed by the man first). He says he can give him the inheritance by edict; he teaches the man what can be done. To the one the matter seemed good; to the other, saleable. He, although he is of singular audacity, sent feelers to the ward's mother. He preferred to take the money, lest he edict anything new, rather than interpose this so dishonest and inhuman edict.

<sup>106</sup> The guardians did not see how to give the praetor money on the ward's account — a great sum especially — nor how to bring it into ac-

count, nor how to give it without their own danger. At the same time, they did not think this man would be so dishonest. Often appealed to, they utterly refused. He, at the discretion of the man to whom he was giving away the inheritance taken from the children, drew up an edict of how equitable a kind — learn, please. "Since I understand the *lex Voconia*..." Who would have ever believed Verres would be the adversary of women? Or has he done anything against women for this reason: that the whole edict might not seem written at Chelidon's discretion? He says he wishes to oppose men's greed. Who, not in our times only, but even in our ancestors', has been more removed from greed? Say the rest, please — for the man's gravity and knowledge of praetorian law delights me, and his authority. Read: "Whoever, from the censors Aulus Postumius and Quintus Fulvius, or after that, was rated... has done or shall have done."

<sup>107</sup> "Has done or shall have done"? Who ever issued an edict in this manner? Who ever set out by edict the fraud or danger of a matter which could neither be reproved after the edict nor foreseen before the edict? Lawfully, by laws, by the authority of all who were consulted, Publius Annius had made his will — not dishonest, not unfilial, not inhuman. But if he had so done, yet after his death no new law concerning his testament ought to have been established. The *lex Voconia*, of course, delighted you. You would have imitated that very Gaius Voconius, who by his law took the inheritance from no one — neither maiden nor woman; he sanctioned for the future, that whoever should be in the census after those censors should not make a maiden or a woman his heir.

<sup>108</sup> In the *lex Voconia* there is no "has done or shall have done"; nor is past time reproved in any law except for that thing which is so wicked and unspeakable in itself that, even if there were no law, it must greatly be avoided. And in these very things we see many things sanctioned by laws in such a way that what was done before is not called into court: the Cornelian on wills, on coin, several others, in which not some new right is established for the people, but it is sanctioned that, what has always been an evil deed, the inquiry on it shall belong to the people from a certain time.

<sup>109</sup> If anyone establishes anything new in civil law, will he not allow that all that was done before be ratified? Bring me the *leges Atinia*, *Furia*, *Fusia*, the *lex Voconia* itself (as I said), and all the others on civil law: you

will find this established in all of them — the law for which the people may use it after that law. Those who attribute most to the edict say that the praetor's edict is a law for one year; you embrace more by edict than by law. If the Kalends of January bring the end of the praetor's edict, why does not the beginning of the edict also rise from the Kalends of January? Or shall no one be able by edict to advance into the year in which there will be another praetor; will he go back into that in which there was another praetor?

<sup>110</sup> And if you had set this in your edict for a precedent, not for the case of one man, you would have composed it more cautiously. You write: "Whoever has made or shall have made an heir." What if he should bequeath more than comes to the heir or heirs? Which is permitted by the *lex Voconia* to him who is not in the census. Why do you not provide for this, when it is in the same kind? Because you embrace in your words not the matter but the case of the man, so that it readily appears you were moved by price, not by law. And if you had edicted this for the future — although it would still be wicked, it would still be dishonest. But you could be reproved, you could not come into peril; for no one would commit it. As things are, the edict is of such a kind that any man understands it has not been written for the people, but for the second heirs of Publius Annius.

<sup>111</sup> So when this article had been adorned by you with so many words and a hireling preface, was any praetor afterwards found who edicted the same thing? Not only did no one edict it, but no one feared lest someone would edict it. For after you as praetor, many were in the same situations. Among these recently Annaea, by the advice of many kinsmen, a moneyed woman, since she had not been rated, made her daughter heir by will. So great was men's judgement of his singular dishonesty, that what Gaius Verres of his own accord had instituted, no one feared anyone would be found who would wish to follow this institution. For you alone were found to whom it was not enough to correct the wills of the living, unless you also rescinded those of the dead.

<sup>112</sup> You yourself took this from the Sicilian edict; you wished to decree from your urban edict if any matter should suddenly arise. Whatever defence you afterwards left yourself, in that you most offended, when by your provincial edict you yourself rejected your own authority. Nor do I doubt that, as this matter seems bitter and unworthy to me, who have my

daughter most at heart, so it does to each of you who is moved with the same feeling and indulgence for daughters. For what has nature wished to be more pleasant, more dear to us? What is more worthy in which all our diligence and indulgence be spent?

<sup>113</sup> Most dishonest of men, why have you done so great a wrong to dead Publius Annius? Why have you burned this grief into his ashes and bones, that you should snatch from his children their ancestral goods — handed down by their father's will, by right, by laws — and give them to whomever it suited you? Those with whom we share our goods alive, will the praetor, when we are dead, be able to take goods and fortunes from them? "Neither," he says, "shall I give the suit nor the possession." Will you, then, snatch the praetexta from the maiden, will you tear off the ornaments not only of fortune but even of free birth? We wonder that the Lampsacenes went to arms against this man; we wonder that he, leaving his province, fled secretly from Syracuse. If we had grieved another's plight as our own wrong, no trace of him would have been left in the Forum.

<sup>114</sup> A father gives to his daughter; you forbid. The laws permit; you nevertheless interpose! Of his own goods he gives, not departing from law. What have you to censure? Nothing, I take it. But I grant it: forbid, if you can, if you have someone to listen to you, if anyone can be obedient to you. Will you take away will from the dead, goods from the living, right from all? Would the Roman people not have avenged this with its hand, had it not reserved you for this moment and this trial? After praetorian law was established, we have always used this rule: if the will was not produced, then according as anyone ought most to be heir, if he had died intestate, possession was given to him. Why this is most equitable is easy to say, but in a matter so customary it is enough to show that all before laid down the law thus, and that this is an old and traditional edict.

<sup>115</sup> Learn another new edict of the man's in an old matter, and at the same time, while there is somewhere to learn civil law, hand over the youth to his discipline. Marvellous is the man's genius, marvellous his prudence. A certain Minucius died before this man's praetorship; his will was none; the inheritance came by law to the Minucian gens. If he had had an edict such as all before him and after him have had, possession would have been given to the Minucian gens. If anyone thought himself heir by a will not then in existence, he would either sue for the inheritance

under the law, or, having received security for the suit, would make a sponsio and so contend for the inheritance. By this rule, I think, our ancestors and we have always proceeded. See how this man corrected it.

<sup>116</sup> He composes the edict in such words that any man can understand it has been written for the cause of one man — only that he does not name the man. He sets out the whole matter; the law, the custom, the equity, the edicts of all he disregards. "From the urban edict: if there is dispute about an inheritance — if the possessor will not make the sponsio." Now what is for the praetor, which is the possessor? Ought not this to be asked, who ought to be the possessor? Therefore, because he is in possession, you do not move him from possession; if he were not in possession, would you not give? You write nothing else; you embrace nothing else by your edict but that case for which you had taken money. Now this is ridiculous:

<sup>117</sup> "If there is dispute about an inheritance and tablets of the will sealed with no fewer signs than is required by law shall be brought before me, I shall give possession according to the tablets of the will." This is traditional. The next ought to follow: "If the tablets of the will shall not be produced." What does he say? That he will give to the man who says he is heir. What difference, then, whether they are produced or not? If he produces them, with one seal short of what the law requires, you will not give possession; if he produces no tablets at all, will you give? What now shall I say? That no one ever afterwards edicted thus? It would be very wonderful that no one was found who wished to be called like this man. He himself does not have this in his Sicilian edict; for he had already exacted the price. Likewise, in that edict of which I spoke before — about giving possession of inheritances in Sicily — he edicted the same thing as all at Rome but he. From the Sicilian edict: "If there is dispute about an inheritance..."

<sup>118</sup> And, by the immortal gods! What can be said about this? For I again ask of you: just as a moment ago in that Annian article on women's inheritances, now in this one on the possessions of inheritances, why did you not transfer those articles into the provincial edict? Did you think those who live in the province more worthy than us, that they should use a fairer law? Or is one thing equitable at Rome, another in Sicily? For this cannot be said in this place: that many things must be edicted otherwise in the provinces. Not concerning the possessions of inheritances, not

concerning women's inheritances. For in both kinds I see not only others, but you yourself edicted in just as many words as it is customary to edict at Rome. What at Rome with great infamy you had edicted, your price taken — those you alone, lest you be ill-spoken-of in the province for nothing, took out of the Sicilian edict.

<sup>119</sup> And although he composed the entire edict, while he was praetor-elect, at the discretion of those who would deal in law from him for their own advantage — yet in his magistracy he decreed against this very edict of his own, without any conscience. So Lucius Piso filled many books of those matters in which he had interceded, because Verres had decreed otherwise than he had edicted. Which I do not think you have forgotten: what a multitude, what an order used to gather at Piso's tribunal under this praetor. If Verres had not had Piso as colleague, he would have been covered with stones in the Forum. But Verres's wrongs seemed lighter, because in Piso's equity and prudence there was a most ready refuge, which men used without labour, without trouble, without expense, even without an advocate.

<sup>120</sup> For, please call to mind, gentlemen, what was the man's lust in giving judgement, what the variety of decrees, what the brokering, how empty were the houses of all who are accustomed to be consulted on civil law, how full and packed Chelidon's. From which woman, when one had come to him and a word had been whispered in his ear, sometimes he called back those between whom he had already decreed and changed the decree; sometimes between others he decreed the contrary, without any conscience, of what he had decreed for those just before.

<sup>121</sup> Hence those men who, even from grief, were found ridiculous: of whom some, what you have often heard, said it was no wonder that "Verrine law" was so worthless. Others were even less witty, but, because they were sore, seemed witty: when they cursed Sacerdos for having left so worthless a "Verres" (boar). I would not mention these things — for they are neither very pretty in saying, nor worthy of such severity — did I not wish you to remember: this man's worthlessness and inequity were then in everybody's mouth and in common proverbs.

<sup>122</sup> As for the Roman commons, shall I mention his arrogance first, or his cruelty? Without doubt, his cruelty is graver and more atrocious. Do you think these have forgotten how this man was accustomed to cut down the Roman commons with rods? Which matter even a tribune of

the plebs argued in public meeting, when he produced before the sight of the Roman people the man whom this man had cut down with rods. Of which matter I shall give you opportunity, in due time, to be reminded.

<sup>123</sup> As for his arrogance, who does not know? How he despised, scorned, never reckoned as free, the slenderest of men? Publius Trebonius made many good and honourable men his heirs; among these he made his own freedman one. He had had a brother Aulus Trebonius proscribed. To him, when he wished to provide, he wrote that the heirs should swear they would see to it that from each one's portion not less than a half should come to that proscribed Aulus Trebonius. The freedman swore. The other heirs went to Verres and showed they ought not to swear that they would do what was against the *lex Cornelia*, which forbade a proscribed man to be helped. They obtained that they should not swear. He gives them possession. This I do not censure; for it would have been unfair that anything from his brother's goods should be given to a proscribed and destitute man. The freedman, unless he had sworn by his patron's will, would have thought he was committing a crime.

<sup>124</sup> So Verres said he would not give him the possession of the inheritance, lest he could help his proscribed patron, and at the same time as a punishment for having obeyed his other patron's will. You give possession to him who did not swear; I grant it. It is praetorian. You take from him who swore; by what example? He helps the proscribed; there is a law, there is a punishment. What does that have to do with the man who declares the law? Do you reproach him because he was helping a patron who was then in misfortunes, or because he was preserving the will of his other dead patron, from whom he had received the highest benefit? Which of these do you reproach? And this, indeed, the excellent man said from his bench: "Shall a freedman be heir to so wealthy a Roman knight!" O modest order, that he rose from there alive!

<sup>125</sup> I could bring forward six hundred decrees in which, even though I were to say nothing, the very newness and inequity of the decrees declares that money intervened. But, that you may make a conjecture from one about the rest, hear what you learned in the previous hearing. There was Gaius Sulpicius Olympus. He died under the praetor Gaius Sacerdos, perhaps before Verres had begun to canvass for the praetorship. He made Marcus Octavius Ligus his heir. Ligus accepted the inheritance; he held it under Sacerdos as praetor without any controversy. After Verres

entered office, by his edict — which edict *Sacerdos* had not had — the daughter of his patron *Sulpicius* claimed a sixth part. *Lucius Gellius* defended *Ligus*'s case. He showed that his edict ought not to apply to those inheritances which had come before his praetorship; if this had then been the edict, perhaps *Ligus* would not have accepted the inheritance. The fair demand, the highest authority of the men, was overcome by price.

<sup>126</sup> *Ligus* came to Rome. He did not doubt that, if he himself met *Verres*, he could move the man by the equity of his cause and his own authority. He came to his house. He laid out the matter; he showed how long ago his inheritance had come; what was easy for an able man in a most equitable case — many things which could move anyone, he said. Finally he began to ask not to despise his authority and contemn his favour so far as to afflict him with so great a wrong. The man began to accuse *Ligus*, because in a windfall and inheritance matter he was so diligent, so attentive. He said he too should take account; he needed many things, his dogs whom he kept around him needed many. I cannot mention these things more plainly than you heard *Ligus* himself say in evidence.

<sup>127</sup> What of it, *Verres*? Will not even these witnesses be believed, or do these things not pertain to the case? Shall we not believe *Marcus Octavius*, not *Lucius Ligus*? Who will believe us, to whom shall we believe? What is there that can be made plain by witnesses, if this is not? Or is what they say slight? Nothing is slighter than for the urban praetor in his magistracy to establish this rule of law: that for all those to whom an inheritance has come, the praetor must necessarily be co-heir. Do we doubt with what face this man was accustomed to address other men, lower in place, authority, order; with what face country-men from the municipalities; with what face, finally, freedmen — whom he never thought free — when he did not hesitate to demand money for giving judgement from *Marcus Octavius Ligus*, a man most adorned in place, order, name, virtue, ability, resources? As to how he conducted himself in the patching of public buildings, what shall I say? Those who felt it have said; there are others to say it; matters known and manifest have been brought forward and will be.

<sup>128</sup> *Gnaeus Fannius*, a Roman knight, full brother of *Quintus Tintinus*, your juror, said that he gave you money. Read: "Testimony of *Gnaeus Fannius*." Do not believe *Gnaeus Fannius* when he says it; do

not, I say, you, Quintus Titinius, believe Gnaeus Fannius your brother; for he says an incredible thing. He charges Gaius Verres with greed and audacity — vices which seem to belong to anyone rather than to this man. Quintus Tadius said, a man most close to this man's father, not foreign to his mother's family and name. He produced his books, by which he showed he had given money. Read: "Entries of Quintus Tadius." Read: "Testimony of Quintus Tadius." Shall we not believe even Tadius's books, even his testimony? What then in trials shall we follow? What else is to grant all offences and crimes to all but this — not to believe the testimonies of honourable men and the books of good men?

<sup>129</sup> For why should I speak of the daily talk and complaint of the Roman people, of this man's most shameless theft (or rather of his novel and singular brigandage)? That he dared, in the temple of Castor — a most frequented and most distinguished monument, a temple set in the eyes and daily sight of the Roman people, where the senate is often called together, where most numerous gatherings are held daily on the greatest matters — in that place, in everyone's talk, to leave an eternal monument of his audacity.

<sup>130</sup> The temple of Castor, gentlemen, Publius Junius had to keep up under Lucius Sulla and Quintus Metellus the consuls. He died; he left a small ward as his son. When Lucius Octavius and Gaius Aurelius the consuls had let out the sacred buildings, and they had not been able to require everything to be patched up, nor had those praetors to whom this business had been given — Gaius Sacerdos and Marcus Caesius — a senatorial decree was made: that those buildings concerning whose patching no judgement and decision had been made, the praetors Gaius Verres and Publius Caelius should examine and decide. Of which power being granted to him, he so abused that, as you have learned from Gnaeus Fannius and Quintus Tadius — but although he had most openly and shamelessly preyed on everything, he wished to leave this most clear sign of his brigandage, of which we could not only at some time hear but daily see.

<sup>131</sup> He inquired who ought to deliver up the temple of Castor in good order. He knew that Junius himself had died; he wished to know to whom that matter pertained. He hears that the son is a ward. The man who had always so openly said that wards male and female were the surest plunder for praetors, said that a wished-for business had been brought to

his lap. A monument of that size, of that workmanship — although it was patched and whole — yet he supposed he could find something in which he could plot and plunder.

<sup>132</sup> The temple of Castor ought to have been delivered to Lucius Habonius. He happened to be the guardian of the ward Junius by the father's will. Already without any deduction it had been agreed with him in what manner it should be delivered. Verres summons Habonius to him. He asks if there is anything which has not been delivered by the ward, which ought to be required. When the man said — as was the truth — that the delivery was easy for the ward, that all the statues and gifts were in evidence, that the temple itself was whole in all its work — it began to seem unworthy to him to depart from so great a temple and so great a work without rich plunder, especially from a ward.

<sup>133</sup> He himself came to the temple of Castor. He inspected the temple. He sees the roof everywhere most beautifully panelled, and besides everything else new and whole. He turns himself, asks what to do. One of those dogs (whom he had told Ligus he kept many of around him) says: "Verres, you have nothing here to plot, unless perhaps you wish to require the columns to stand by the plumb-line." The man, ignorant of all things, asks what is "by the plumb-line." They tell him that scarcely any column can be by the plumb-line. "By Hercules," he says, "let us proceed thus: let the columns be required to stand by the plumb-line."

<sup>134</sup> Habonius, who knew the law — in which law only the number of the columns is given, of plumb-line no mention is made — and who did not think it expedient to so accept, lest in the same way he must deliver, says it is not owed him, says it ought not to be required. Verres orders Habonius to be quiet, and at the same time shows him some hope of partnership. He easily restrains the modest and least obstinate man, confirms that he will so require the columns.

<sup>135</sup> A new and unforeseen calamity of the ward is at once reported to Gaius Mustius, the ward's stepfather, who has lately died, to Marcus Junius the uncle, to Publius Titius the guardian, a most temperate man. They bring the matter to a leading man endowed with the highest duty and virtue, Marcus Marcellus, who was the ward's guardian. Marcus Marcellus comes to Verres. He asks of him, by his good faith and diligence, in many words, not to attempt by the highest wrong to overturn the ward Junius from his ancestral fortunes. Verres, who in hope

and conception had already devoured that plunder, was moved neither by the equity of his speech nor by Marcus Marcellus's authority. So he replied that he would require it as he had shown.

<sup>136</sup> When they saw all approaches to him difficult, all entries arduous and rather closed off — with whom neither right, nor equity, nor pity, nor a kinsman's speech, nor a friend's wish, nor anyone's authority weighed against price, nor favour — they decide it best to do what would have come into anyone's mind: to seek help from Chelidon, who under this praetor not only presided over the Roman people in civil law and the controversies of all private men, but even ruled in these matters of patching.

<sup>137</sup> To Chelidon comes Gaius Mustius, a Roman knight, a publican, a most honourable man. There comes Marcus Junius, the uncle of the boy, a most temperate and chaste man. There comes a man of the highest modesty, the highest dutifulness, most distinguished in his order, Publius Titius the guardian. O, to many bitter, miserable, and unworthy praetorship of yours! To leave aside other things, with what shame, do you think, with what grief, did such men come to a courtesan's house? — they who would never on any condition have undergone such disgrace, had not the reckoning of duty and bond compelled them. They came, as I say, to Chelidon. The house was full. New rights, new decrees, new judgements were being sought. "Let her give me possession; let her not take it from me; let her not give a trial against me; let her award the goods to me." Some were counting out money; from others bonds were being sealed. The house was packed not with a courtesan's gathering but with a praetor's crowd.

<sup>138</sup> As soon as opportunity was first given, those whom I have named approach. Gaius Mustius speaks, lays out the matter, asks help, promises money. She replied as a courtesan, not inhumanly: she said she would gladly do it, and would speak with this man diligently. She told them to come back. They departed. The next day they returned. She says the man cannot be moved; that he says a very great sum can be made of that matter. I fear lest someone of the people, who was not present at the previous hearing, may suppose I am inventing these things, because they are incredible by reason of their notable disgrace. You, gentlemen, learned them earlier.

<sup>139</sup> Publius Titius, the guardian of the ward Junius, said it under

oath; Marcus Junius the guardian and uncle said it. Mustius would have said it, if he were alive; but the matter being recent, evidence about Mustius was heard. Lucius Domitius said it; who, although he knew that I had heard from the living Mustius (because I made very much use of him — for in a trial in which he had at stake almost all his fortunes, with me as sole defender, Gaius Mustius won), although he knew, I say, that I knew Mustius was accustomed to bring all matters to him, yet he kept silent about Chelidon as long as he could, diverted his answer elsewhere. Such was the modesty in that most distinguished young man, the leader of the youth, that for a long time, while pressed by me, he would answer anything rather than name Chelidon. First he said that Verres's friends had been sent to him; then at last, compelled, he named Chelidon.

<sup>140</sup> Are you not ashamed, Verres, to have conducted your praetorship at the discretion of the woman whom Lucius Domitius scarcely thought it honourable for himself to be named with? Rejected by Chelidon, they take a necessary plan: that they themselves take up the business. With Habonius the guardian — the matter being scarcely of forty thousand sesterces — they settle for two hundred thousand. Habonius brings the matter to Verres. To himself it seems a sufficiently great and shameless sum. Verres, who had reckoned on much more, takes Habonius up sharply with words, says he cannot be content with that compromise. To make this short: he confirms he will let the contract.

<sup>141</sup> The guardians know nothing of this. What had been done with Habonius, they consider most certain. They fear no greater calamity to the ward. But Verres does not procrastinate. He begins to let the contract — without proclamation or public notice of the day, at the most alien moment, the very Roman games being held, the Forum decked. So Habonius reports the agreement back to the guardians. Yet they hurry to the moment. Junius the uncle raises his finger to bid. Verres's colour was changed, his look, his speech, finally his mind failed. He began to think what to do; if the work were taken back by the ward, if it went away from the contractor he had himself set up, no plunder for himself. So he hits upon — what? Nothing ingenious, nothing on which anyone could say "dishonest, but cleverly so." Expect from him nothing wily, nothing veteran. Everything will be found open, everything plain — shamelessness, madness, audacity.

<sup>142</sup> "If the ward takes back the work, the plunder is snatched from

my hands. What then is the remedy? What? — that the ward should not be allowed to take it.” Where is that custom in the selling of pledges and lands of all consuls, censors, praetors, finally quaestors — that he should be in the best position whose property is at stake, whose risk it is? He shuts out the only one to whom (I would almost say) the only power should have been given. For what? Does anyone aspire to my money against my will, does anyone approach? A work is being let to be repaired out of my money; I say I will repair. The approval is to be yours, who let. The people are secured by sureties and lands. And, if you do not think there is security, will you, the praetor, send into my goods whom you please, and not let me approach to defend my fortunes?

<sup>143</sup> It is worth while to learn the law itself; you will say the same man wrote it as the edict on inheritance. Read: “Law for the doing of the work. The work which the ward Junius...” Speak — speak, please, more loudly. “Gaius Verres, urban praetor, has added.” The censorial laws are being corrected! For what? I see in many old laws “Gnaeus Domitius and Lucius Metellus the censors have added,” “Lucius Cassius and Gnaeus Servilius the censors have added.” Gaius Verres wishes something of the kind. Speak: what has he added? Read: “Whoever, from the censors Lucius Marcius and Marcus Perperna — shall not admit a partner, nor give a share, nor take it back.” Why so? Lest the work should be done badly? But your approval was on it. Lest there should not be sufficient resources? But the people were and would be more than secured by sureties and lands, if you wished.

<sup>144</sup> Here, if the matter itself, if the unworthiness of your wrong did not move you, if the calamity of the ward, if the tears of his kinsmen, if the danger of Decimus Brutus (whose lands were under pledge), if the authority of the guardian Marcus Marcellus had no weight with you — did you not even notice that this offence of yours would be of such a kind that you could neither deny it (for you put the law in your records) nor confess with any defence? The work is awarded for 560,000 sesterces, when the guardians cried out that they would do that work for 40,000, even at the discretion of that most unfair man. For what kind of work was it?

<sup>145</sup> What you saw: all those columns which you see whitewashed — a machine being applied — without any expense, were thrown down and replaced with the same stones. This you let out for 560,000 sesterces.

And among those columns, I say there are some which were not even moved by your contractor. I say there is one from which only the old stucco was knocked off and new put on. If I had thought that columns could be whitewashed for so great a sum, certainly I should never have canvassed for the aedileship.

<sup>146</sup> But, that the matter might seem to be conducted and not snatched from the ward: "If anything for the sake of the work has been pulled down, let him repair." What was there for him to pull down, when each stone was put back in its own place? "Let the contractor give security for damage to him who received from the old contractor." It is mocking, when he orders Habonius to give security to himself. "Money in cash shall be paid." From whose goods? Of the man who, where you let the work for 560,000, cried out that he would do it for 40,000. From whose goods? Of the ward, whose age and solitude, even if there had been no guardians, the praetor ought to have defended. With the guardians defending, you took not only his ancestral fortunes but even the goods of the guardians. "This work let him do good in his own materials."

<sup>147</sup> What is "in his own"? Some stone had to be cut and brought by his own machine; for to that place no stone, no timber was brought. Such was the work in that letting as a few day-labourers' workmen earned wages, and the manufacturing-cost of the machine. Do you suppose it less work to make one column entirely new with no recycled stone, or to set up four of those columns? No one doubts that to make a new one is much greater. I will show that in private houses, with long and difficult transport, columns of equal size were let at 200,000 sesterces.

<sup>148</sup> But it is silly to argue in many words about so plain a shamelessness of his, especially since he in the whole law openly contemned everyone's talk and estimation, who even at the end added: "Let him have the recycled materials for himself" — as if anything recycled was being taken from that work, and the whole work was not made up of recycled materials. But if the ward could not take it back, it was not necessary that the matter should come to him. Some other from the people could have approached the business. All were excluded no less openly than the ward. He fixed the day for doing the work as the Kalends of December; he lets out about the Ides of September. By the narrow time all were excluded.

<sup>149</sup> What of it, then? How does Habonius come up to that day? No one is troublesome to Habonius, neither on the Kalends of December,

nor on the Nones, nor on the Ides. Finally, somewhat before the work was done, Verres set out for the province. After he was made defendant, at first he denied that he could enter the work as accepted. When Habonius pressed him, he transferred the cause to me, because I had sealed his book. Habonius asks of me, sends friends. He easily obtains. Verres did not know what to do. If he had not entered it as accepted, he thought he would have some defence; but he understood that Habonius would lay open the whole matter — although what could be more open than it now is? — so that he might plead with one less witness, he entered the work as accepted from Habonius four years after he had set the day for the work.

<sup>150</sup> On these terms, if any contractor from the people had approached, he would not have used the chance. When he had excluded the rest of the contractors by the day, then they did not wish to come into the discretion and power of one who would think the plunder snatched from him. Now, that we may not have to argue — where that money went, the man himself makes plain. First, when Decimus Brutus pressed him more vehemently — who counted out 560,000 of his own money — because Verres could no longer bear it, with the work let, with sureties accepted, of the 560,000 he remitted 110,000 to Decimus Brutus. This, if it had been someone else's matter, he certainly could not have done. Then money was counted out to Cornificius, whom he cannot deny was his secretary. Finally Habonius's own books cry out that that plunder was Verres's. Read: "Entries of Habonius."

<sup>151</sup> Here also in the previous hearing Quintus Hortensius complained that the ward Junius had come into your sight wearing the praetexta and stood there while his uncle was giving evidence; and he cried that I was acting popularly and stirring up odium because I produced the boy. What was there, Hortensius, that was popular in that boy? What odium-stirring? I had produced the son, I take it, of a Gracchus or a Saturninus or some such man, that by the very name and memory of the father I might stir the minds of the inexperienced multitude! He was the son of Publius Junius, a man of the Roman commons, whom his dying father commended both to the guardians and the kindred, both to the laws, to the equity of the magistrates, and to your trials.

<sup>152</sup> This boy, despoiled of his ancestral goods and all his fortunes by Verres's wicked and unspeakable brigandage, came into court, if for

nothing else, that at least he might see the man through whose action he had been many years in mourning slightly less worn than himself. So to you, Hortensius, not his age, but his case, not his clothing, but his fortune seemed "popular." Nor did it move you so much that he came in the toga praetexta, as that he came without the bulla. For the dress moved no one which custom and the right of free birth gave him. But that ornament of childhood which his father had given him, the sign and badge of fortune, that this had been torn from him by this brigand — this men then took grievously and bitterly.

<sup>153</sup> Nor were those tears popular more than ours, more than yours, Quintus Hortensius, more than these jurors who are about to give their vote — because the case is common, the danger common. By common protection such dishonesty must be put out, like some fire. For we have small children. It is uncertain how long the life of each of us shall be. We must, while alive, take care and provide that their loneliness and childhood shall be guarded by the strongest protection. For who can defend our children's childhood against the dishonesty of magistrates? The mother, I take it. Of course, the mother was a great protection to the ward Annia, that leading lady; the less she invoked gods and men, this man took the ancestral fortunes from the infant girl. Will the guardians defend? It is most easy, of course, before a praetor of this kind, by whom in the case of the ward Junius the speech and will and authority of the guardian Marcus Marcellus was rejected!

<sup>154</sup> Do we still ask what this man did in farthest Phrygia, what in the outermost parts of Pamphylia, what kind he was as a brigand himself in the war of the brigands — a man who in the Forum of the Roman people is found a wicked pirate? Do we doubt what he plotted in the booty of enemies, who from Lucius Metellus's spoils made for himself such great spoils, who let out the whitewashing of four columns for more money than that man had let out the building of all of them? Shall we await what the witnesses from Sicily say? Who has ever looked upon that temple but is a witness of your greed, your wrong, your audacity? Who comes from the statue of Vortumnus to the Circus Maximus but is reminded at every step of your greed? — which path of the holy chariots and that procession you so let out that you yourself do not dare to go that way. Will anyone think that you, when separated from Italy by the strait, refrained from the allies, who wished the temple of Castor to be

a witness of your thefts? — which the Roman people see daily, and the jurors will see even when they cast their vote on you.

<sup>155</sup> And he also exercised a public trial in his praetorship; for not even this is to be passed over. A fine was sought before this praetor by Quintus Opimius, who was brought to trial nominally because, when he was tribune of the plebs, he had vetoed against the *lex Cornelia*; in fact because in his tribunate he had spoken against the will of some noble man. Of which trial if I should wish to say everything, many would have to be appealed to and wounded — which is not necessary for me. I will say only this: a few men — to call them lightly — arrogant, with this man's help, in jest and play overturned Quintus Opimius from all his fortunes.

<sup>156</sup> He even complains that we transacted the first hearing of his trial in only nine days, when before him in three hours Quintus Opimius, a senator of the Roman people, lost his goods, his fortunes, all his ornaments? On account of whose unworthy trial it was discussed in the senate again and again that this whole class of fines and trials of this kind should be abolished. Then in the selling of Quintus Opimius's goods, what plunderings, how openly, how dishonestly he did — it is long to tell. This I say: unless I make this plain to you by the books of the most honourable men, suppose the whole thing made up by me for the moment.

<sup>157</sup> A man who, from a senator of the Roman people's calamity — when he had presided as praetor over his trial — attempted to bring spoils home and tear off the spoils-of-war: shall he be able to deprecate any calamity of his own? For of that sub-sortition of jurors of Junius I say nothing. For what? Should I dare to speak against the books which you have produced? It is hard. For not only your authority and that of the jurors, but even the gold ring of your secretary deters me. I will not say what is hard to prove. I will say what I will show: that you have been heard by many leading men, when you said that you ought to be forgiven for having produced a false book. For the resentment with which Gaius Junius was burnt up — by that, unless you had foreseen it, you yourself would then have had to perish.

<sup>158</sup> In this manner he has learned to provide for himself and his safety: by entering in his books, both private and public, what had not been done; by removing what had been; and always taking out some-

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thing, changing, altering. He goes so far that he cannot even find a defence of his own crimes without other crimes. A subsortition of his own jurors, of this kind, the most senseless man thought he could effect through his comrade Quintus Curtius, the juror in his own trial — whom, unless I had resisted by force of the people and the shouting and clamour of men, would have substituted from your decury (a copy of which I should have had as fully as possible) those whom Verres had nodded to, into his council, without any cause.

## AGAINST VERRES, SECOND HEARING, BOOK II

*In C. Verrem Actio Secunda II*70 BC

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<sup>1</sup> I must necessarily pass over many things, gentlemen, that I may be able somehow at last to speak about those matters which have been entrusted to my faith. For I have undertaken the case of Sicily; that province has drawn me to this business. Yet, having taken up this burden and received the Sicilian case, I have embraced something somewhat larger in mind. For I have undertaken the case of the whole order; I have undertaken the case of the commonwealth, since I thought that judgement could only be given rightly when not only a dishonest defendant should be brought up, but also a diligent and firm prosecutor should come into court.

<sup>2</sup> Wherefore I must come the more quickly to the case of Sicily, leaving the rest of his thefts and disgraces aside, that I may be able both to act with my strongest powers and to have time enough for speaking. And before I speak of the misfortunes of Sicily, a few things, it seems to me, must be said about the dignity, antiquity, and usefulness of the province. For while you ought to take diligent thought of all our allies and provinces, especially of Sicily, gentlemen, for many and most just causes. First, because of all foreign nations Sicily was the first to attach herself to the friendship and faith of the Roman people. She was the first of all to be called a "province," which is the ornament of empire. She first taught our ancestors how splendid it is to rule over foreign peoples. Of all alone she has been such in faith and goodwill towards the Roman people that the cities of that island, which had once entered into our friendship, never afterwards revolted; the most distinguished have remained in friendship continuously.

<sup>3</sup> So our ancestors had the step of empire towards Africa from this province. For the great resources of Carthage would not so easily have fallen, had not that supply of grain and that refuge for our fleets lain open. Wherefore Publius Africanus, when Carthage was destroyed, adorned the cities of the Sicilians with the most beautiful statues and monuments,

that he might place the most monuments of victory among those whom he reckoned were most rejoicing in the victory of the Roman people.

<sup>4</sup> Finally that very Marcus Marcellus — whose virtue the enemies, whose pity the conquered, whose faith the rest of the Sicilians saw in Sicily — not only consulted for the allies in that war, but even, with the enemies overcome, restrained himself. The most beautiful city of Syracuse — which, while strongly fortified by hand, was also closed by the nature of its position by land and sea — when he had taken it by force and counsel, he not only allowed it to be safe, but left it so adorned that it would be at the same time a monument of victory, gentleness, and self-restraint, when men saw both what he had stormed, and whom he had spared, and what he had left. So great honour did he think should be paid to Sicily, that he thought even an enemy city ought not to be removed from an island of allies.

<sup>5</sup> So we have always so used that province for every purpose, that whatever it could bring forth from itself we considered not to be born among us, but already laid up in our home. When did it not give us what it owed at the proper day? When did it not promise of itself what it judged was needed? When did it refuse what was commanded? So that wise Marcus Cato called Sicily "the storehouse of our commonwealth, the nurse of the Roman commons." We indeed have experienced, in the greatest and most difficult Italian war, that Sicily was for us not as a storehouse, but as that ancient and well-stocked treasury of our ancestors. For without any expense to ourselves, by supplying hides, tunics, and grain, she clothed, fed, and armed our largest armies.

<sup>6</sup> What of those things which perhaps we do not even feel, gentlemen — how great they are! That we have so many wealthier citizens, because they have a near, faithful, and profitable province where they easily run, where they gladly do business; whom Sicily in part dismisses with profit and gain by furnishing wares, in part keeps, that they may freely plough, pasture, do business, and finally place their seat and dwelling. Which is no small advantage to the commonwealth: that so great a number of citizens are kept so close to home in such good and fruitful matters.

<sup>7</sup> And since our taxes and provinces are as it were certain estates of the Roman people, just as you take greatest delight in your nearby estates, so the Roman people delights in the suburb-like nearness of this province. Now indeed the patience, virtue, and frugality of the men

themselves is such, gentlemen, that they seem closest to that ancient discipline of ours, not to this which has now grown common: nothing like the rest of the Greeks, no idleness, no luxury; on the contrary the highest labour in public and private affairs, the highest thrift, the highest diligence. So they love our men that they alone find neither publican nor businessman hateful.

<sup>8</sup> The wrongs of our magistrates they have so endured for many that they never before this time fled by public counsel to the altar of laws and your protection — although they had borne even that year which had so afflicted them that they could not be safe, unless Gaius Marcellus had come almost as by some fate, that twice from the same family the safety of Sicily should be established; and after that they had felt the unlimited command of Marcus Antonius. So they had received from their ancestors that the kindnesses of the Roman people towards the Sicilians were so great that they thought even the wrongs of our men ought to be borne.

<sup>9</sup> The cities have given testimony in public against no man before this. They would have endured even this man, had he offended in a human manner, in customary fashion, finally in some one kind. But when they could not bear the luxury, the cruelty, the greed, the arrogance — when they had lost all their advantages, rights, and benefits from the senate and Roman people through the crime and lust of one man — they decided either to avenge his wrongs through you and pursue them, or, if they seemed unworthy to you for whom you should bring help and aid, to leave their cities and seats, since now, harassed by his wrongs, they had already left their fields.

<sup>10</sup> With this plan they sought from Lucius Metellus by entire embassies that he succeed Verres as soon as possible. With this mind they so often before their patrons lamented their miseries. Moved by this grief, they laid before the consuls demands, which seemed to be not demands but charges against him. They even brought it about that I — whose faith and self-restraint they had known — almost from the state of my life, by their grief and tears, they led to prosecute the man, from whom my method and will was furthest removed; although in this case I seem to have undertaken many more parts of defence than of prosecution.

<sup>11</sup> Finally from the whole province the most noble men and chief came publicly and privately. Each gravest and amplest city most vehemently pursued its wrongs. But how, gentlemen, did they come? For I

seem to myself now that I ought to speak more freely before you for the Sicilians than perhaps they themselves wish: I shall consult their safety rather than their will. Do you think any defendant in any province has ever, in absence, been defended by such great resources, such great greed, against the inquiry of the prosecutor? The quaestors of both provinces who had served under Verres met me with their fasces.

<sup>12</sup> Their successors, vehemently devoted to him, generously treated from his provisions, were no less keen against me. See what he could do, who had four most zealous defenders and champions in one province as quaestors — but the praetor and his whole staff so zealous that it was easily plain that not so much was Sicily that province (which they had found empty), as Verres himself, who had departed full. They threatened the Sicilians if they decreed embassies against him, threatened those who had set out, generously promised others if they would praise him, kept by force and guards the gravest witnesses of private affairs, whom we had subpoenaed in their presence.

<sup>13</sup> When all these things had been done, yet know that there was only one city, the Mamertine, which sent embassies publicly to praise him. The chief man of that embassy, the most noble citizen of the city, Gaius Heius, you heard speak under oath: that a very large cargo ship was built for Verres at Messana publicly with forced labour. And the same Mamertine envoy, his praiser, said that Verres had taken not only his goods but even the sacred things and household gods handed down from his ancestors out of his house. Splendid praise, when in two matters the work of envoys is consumed at the same time — in praising and in demanding back! And by what reason that very city is friendly to him, will be told in its proper place. For you will find that the very causes of the Mamertines' goodwill towards him are sufficient causes for his condemnation. No other city, gentlemen, praises him by public counsel.

<sup>14</sup> The force of the highest command had power among very few men — not cities — to such an extent that either the most worthless from the most wretched and most deserted towns were found who set out without the order of people or senate, or those who had been decreed as envoys against Verres, and had received public testimony and instructions, were kept back by force and fear. Which I have not unwillingly seen happen in a few cases, by which the rest of so many and such great and weighty cities — finally all Sicily — might have more authority

with you, when you saw that no force could keep them back, no danger could prevent them from trying whether their complaints have any weight with you, of the most ancient and most faithful allies.

<sup>15</sup> For what perhaps not a few of you have heard — that he is being praised publicly by the Syracusans — although in the previous hearing, from the testimony of Heraclius the Syracusan, you learned what kind that thing is, yet in another place I will show how the whole matter stands as far as that city is concerned. For you will understand that no men have anyone in such hatred as the Syracusans have and have had Verres. "But the Sicilians alone pursue him: the Roman citizens who do business in Sicily defend, love, wish him to be safe." First, if it were so, yet you in this inquiry on extortion, which has been established for the cause of allies by an allied law and trial, ought to hear the complaints of the allies.

<sup>16</sup> But you could understand in the previous hearing that the most honourable Roman citizens from Sicily, on very many and the greatest matters — both wrongs they themselves had received and those they knew had been done to others — were giving testimony. I confirm what I understand, gentlemen, thus. I seem to myself to have done a pleasing thing to the Sicilians, that I have pursued their wrongs by my labour, my enmities, my danger. No less pleasing have I done, I understand, for our citizens, who think that the safety of their right, of their freedom, of their affairs and fortunes consists in his condemnation.

<sup>17</sup> Wherefore concerning his Sicilian praetorship I do not refuse but you so hear me that, if to any kind of men — whether of the Sicilians or of our citizens — if to any order, whether of farmers or of cattle-men or of merchants, he has been approved; if he has not been the common enemy and brigand of all of these; finally if he has spared anyone in any matter, that you also spare him. Who, as soon as Sicily fell to him by lot as a province, immediately at Rome, before he set out from the city, began to inquire and discuss with his men by what means he could in that province make the most money in one year. He did not wish to learn in the doing — although he was not raw and a recruit in the matter of provinces. He wished to come into Sicily prepared for plunder and meditated.

<sup>18</sup> Splendid the omen of common talk and rumour cast forth by the multitude into that province, when from this man's name they most ridiculously divined what he would do in the province! For who could

doubt — when he recalled his flight and theft in the quaestorship, when he thought of the plunderings of towns and shrines in the legateship, when he saw the brigandages of the city praetorship in the Forum — what kind of man he would be in the fourth act of his dishonesty? And, that you may understand he had sought at Rome not only kinds of stealing but also definite names, hear an argument by which you may more easily judge of his singular shamelessness.

<sup>19</sup> On the day he touched Sicily — see whether he came sufficiently prepared by that urban omen for sweeping out the province — immediately he sends letters from Messana to Halaesa (which I think he wrote in Italy, for as soon as he stepped from the ship he gave them): that Dio of Halaesa should come to him at once; that he wished to take cognizance of an inheritance which had come to his son from a kinsman, Apollodorus Laphiro.

<sup>20</sup> It was, gentlemen, a very great sum of money. This Dio, gentlemen, is the man now made Roman citizen by the kindness of Quintus Metellus, of whom by many leading witnesses and by the books of many you were satisfied in the previous hearing: that one million sesterces was counted out so that, with Verres taking cognizance, he might prevail in a case in which there could not be the slightest doubt. Besides, herds of the noblest mares were driven away; what silver and bedclothes were in his house were plundered. So Quintus Dion lost one million sesterces, on no other account than that an inheritance had come to him.

<sup>21</sup> What of it? Under what praetor had this inheritance come to Dion's son? Under the same as Annia, daughter of the senator Publius Annius; under the same as the senator Marcus Ligus — under the praetor Gaius Sacerdos. What of it? Did no one then trouble Dio? No more than Ligus under Sacerdos as praetor. What of it? Then who reported to Verres? No one — unless you suppose that the four-time informers had been waiting at the strait. When he was at Rome, he heard that a very great inheritance had come to a certain Sicilian Dio. The heir was ordered to set up statues in the forum; if he did not set them up, his hereditas was forfeit to Erucine Venus. Although they had been set up by the will, he supposed, since the name of Venus was in it, that he would find a cause for malicious prosecution.

<sup>22</sup> So he sets up someone to claim that inheritance for Erucine Venus. For not the quaestor claims it, as is the custom, who held Eryx mountain.

A certain Naevius Turpio claims it — this man's runner and emissary, the worst of all the four-time informers from that conventus, condemned for wrong-doing under Gaius Sacerdos as praetor. For the case was such that the praetor himself, although he was looking for a malicious prosecutor, could not find a more thoughtful one. He acquits this man for Venus, condemns him for himself. He preferred, of course, that men should sin rather than the gods: that he should rather take from Dio what was not allowed than that Venus should take what was not owed.

<sup>23</sup> Why should I now read the testimony of Sextus Pompeius Chlorus, who pleaded Dio's case, who was present at all matters — a most honourable man, although a Roman citizen for his virtue's sake long since, yet first and most noble of all the Sicilians? What of Quintus Caecilius Dion himself, a man most approved and most modest? What of Lucius Caecilius, of Lucius Ligus, of Titus Manilius, of Lucius Calenus — by all of whose testimonies the matter of Dion's money has been confirmed? Marcus Lucullus said the same thing: that he had already known these wrongs of Dion, by reason of the hospitality which he had with him.

<sup>24</sup> What? Has Lucullus, who was then in Macedonia, learned these things better than you, Hortensius, who were at Rome — to whom Dio fled, who about Dion's wrongs most gravely complained by letters with Verres? Are these things new to you? Unforeseen? Now first do your ears receive this charge? Have you heard nothing from Dio, nothing from your mother-in-law Servilia, that leading lady, the old hostess of Dio? Do not many of my witnesses say what you yourself know? Did not the legal exception, not this man's innocence, snatch you from being a witness for me on this charge? Read: "Testimonies of Lucullus, Chlorus, Dion." Does the Venus-man not seem to you to have sought a great enough sum of money under Venus's name — a man who had set out for the province from Chelidon's lap?

<sup>25</sup> Hear another no less shameless malicious prosecution in a smaller sum. Sosippus and Philocrates are brothers of Agryium. Their father died twenty-two years ago. In whose will, in a certain place, if anything were forfeit, there was a fine to Venus. In the very twentieth year, when so many praetors, so many quaestors, so many malicious prosecutors had in the meantime been in the province, the inheritance was demanded from these men in Venus's name. Verres takes cognizance of the case, receives money through Volcatius, near 400,000 sesterces, from the two brothers.

You have heard the testimonies of many before. The Agyrium brothers won — in such a way that they departed empty and destitute.

<sup>26</sup> "But that money did not reach Verres." What kind of defence is this? Is it asserted in this matter, or attempted? For the matter is novel to me. Verres set up the malicious prosecutor; Verres ordered him to be present; Verres took cognizance; Verres gave judgement. The greatest sums of money were given. Those who gave prevailed in their cases. Will you defend yourself to me thus: "That money was not counted out to Verres"? I help you. My witnesses say the same: they say they gave to Volcatius. What such great force was in Volcatius that he could take 400,000 sesterces from two men? Would anyone, if Volcatius had come of his own accord, have given him a single half-as? Let him come now, let him try; no one will receive him under his roof. But I say more: I charge you with having taken forty million sesterces against the laws; I deny that any one penny was counted out to you yourself. But when on account of your decrees, on account of your edicts, on account of your commands, on account of your judgements, money was given, it was not to be asked by whose hand it was counted, but by whose wrong it was extorted.

<sup>27</sup> Those chosen companions of yours were your hands. The prefects, the secretaries, the assistants, the doctors, the haruspices, the criers were your hands. The closer each was to you by kinship, by marriage, by some bond, the more he was thought your hand. That whole staff, which gave more evil to Sicily than if a hundred companies of fugitives had been there, was without controversy your hand. Whatever was taken by anyone of these, it must be judged not only given to you but counted out by your own hand. For if you approve this defence: "He did not himself receive it" — you may abolish all trials on extortion. No defendant will ever be brought up so guilty that he cannot use this defence. For when Verres uses it, what defendant will ever afterwards be so ruined that he is not referred to the innocence of Quintus Mucius, if compared with him? Nor do they now seem so much to defend Verres, as in Verres to test the method of defence.

<sup>28</sup> On which matter, gentlemen, you must take the highest care. This concerns the highest interest of the commonwealth, and the reputation of our order, and the safety of the allies. For if we wish to be reckoned innocent, we must answer not only for ourselves but for our companions. First of all care must be taken that we lead with us those

who will look to our reputation and our life. Then, if in choosing men the hope of friendship has deceived us, we should both avenge it and dismiss them, always living in such a way that we judge an account must be rendered. This is from Africanus, that most generous man — but the generosity to be approved is that which is without danger to one's reputation, as it was in him:

<sup>29</sup> when a certain old hanger-on, of the number of his friends, could not obtain from him that he be led as prefect to Africa, and bore it ill: "Do not wonder," he said, "if you do not obtain this from me. I have long been asking him, whom I judge will hold my reputation dear, to set out as my prefect, and so far I cannot obtain it." For in truth it should be sought much more from men, if we wish to be safe and honourable, that they go with us into the province, than that it be conferred as a kindness. But when you both invited your friends into the province as if into plunder, and with them and through them plundered, and gave them gold rings in public meeting, did you not consider that an account must be rendered by you not only of your own deeds but also of theirs?

<sup>30</sup> When he had set up these great and rich profits for himself out of those cases which he himself had instituted, with his council — that is, with his staff — to take cognizance of, then he had invented that infinite kind for seizing innumerable money. It is doubtful to no one but that all the money of all is placed in the power of those who give judgement, and of those who judge; that none of you can hold his houses, none his farm, none his ancestral goods, if, when these have been demanded by anyone from any one of you, the dishonest praetor (against whom no one can intervene) gives whomever he wishes as judge, and the worthless and frivolous judge judges what the praetor has bidden.

<sup>31</sup> If, indeed, this also is added — that the praetor gives judgement in such words that not even Lucius Octavius Balbus as judge, a man most skilled in law and duty, could judge otherwise — if the trial were of such a kind: "Let Lucius Octavius be judge. If it appears that the Capenate farm, concerning which it is at issue, is by the right of the *Quirites* Publius Servilius's, and that farm is not restored to Quintus Catulus..." it would not be necessary for Lucius Octavius the judge either to compel Publius Servilius to restore the farm to Quintus Catulus, or to condemn the man whom he ought not. Of this kind was the entire praetorian law, the whole judicial business in Sicily, for three years under Verres as praetor.

tor. Decrees of this kind: "If he does not receive what you say is owed, prosecute. If he claims, lead him to court." He ordered Gaius Fuficius the claimant to be led, and Lucius Suettius, Lucius Racilius. Trials of this kind: those who were Roman citizens judged whether men were Sicilians, when Sicilians ought by their laws to be given to others; those who were Sicilians, whether men were Roman citizens.

<sup>32</sup> But, that you may embrace the whole kind of trials, learn first the rights of the Sicilians, then this man's institutions. The Sicilians are by this rule: that what a citizen pursues against a citizen, he should contest at home by his own laws; what a Sicilian against a Sicilian not of the same state, that the praetor allots judges by the decree of the ten legates of Publius Rupilius (which he established by the opinion of the ten legates — which they call the *lex Rupilia*). What a private man claims from a people or a people from a private man, the senate from some city is given to judge, with alternate cities being rejected. What a Roman citizen claims from a Sicilian, a Sicilian judge; what a Sicilian from a Roman citizen, a Roman citizen is given. For other matters chosen judges from the conventus of Roman citizens are usually proposed. Between farmers and tithe-collectors trials are held under the grain law which they call the *lex Hieronica*.

<sup>33</sup> All these things, under this praetor, were not only thrown into confusion but plainly snatched from both Sicilians and Roman citizens. First, their own laws: when a citizen was pursuing a citizen, either he gave whatever judge it suited him — a herald, a haruspex, his own physician — or, if a trial had been established by laws and they had come to a fellow-citizen as judge, the citizen could not freely give judgement. For learn the man's edict, by which edict he had drawn all trials into his own power: "If anyone judged wrongly, he himself would take cognizance; when he had taken cognizance, he would punish." When he was doing this, no one doubted that — when the judge thought another would judge his own judgement and he himself would come into peril of his life on it — he would look to the will of the man who would judge him on his life on the spot.

<sup>34</sup> No chosen judges from the conventus, none proposed from the businessmen. This abundance, which I am saying, was the staff of judges — not of Quintus Scaevola (who nevertheless was not accustomed to give from his own staff), but of Gaius Verres. Of what kind do you suppose

the staff was, of which this man was the chief? If anywhere you see the edict, "If any senate judges wrongly," I shall show that man too, if any one was given as judge, judged what he did not believe by the compulsion of this man. Out of the *lex Rupilia* no allotment, except when nothing concerned this man. By the *lex Hieronica* the trials of very many controversies were abolished under one heading. From the *conventus* and the businessmen no judges. You see what power he had: now learn the matters he conducted.

<sup>35</sup> Heraclius, son of Hiero, is a Syracusan, a man among the foremost noble in his own home, and before this praetor probably the wealthiest of the Syracusans, now from no other calamity but this man's greed and wrong the poorest. To him an inheritance came easily of three million sesterces by the will of his kinsman Heraclius. The house was full of the best chased silver and much bedclothes and precious slaves. In which matters who is ignorant of this man's greeds and follies? It was talked of: that a great sum had been left to Heraclius; that not only Heraclius would be wealthy but also adorned with furniture, silver, clothing, slaves.

<sup>36</sup> Verres also hears this; and at first by that gentler artifice of his he attempts to approach Heraclius, to ask him for things to inspect which he would not return. Then he is admonished by certain Syracusans — these certain ones were Verres's connections, whose wives Verres never thought belonged to others, Cleomenes and Aeschrio, who you will understand from the rest of the charges how powerful with him they were and on what disgraceful cause. These, as I say, admonish the man that the matter is splendid, packed with everything; but Heraclius himself is a man older in years, not most prompt; that besides the Marcelli, he had no patron whom he could approach or appeal to in his own right; that in that will, by which he had been written as heir, he ought to set up statues in the *palaestra*. "We shall arrange that the *palaestrites* say that they have not been set up in accordance with the will, and demand the inheritance, since they say it has been forfeited to the *palaestra*."

<sup>37</sup> The plan pleased Verres. For he so foresaw that, when so great an inheritance came into controversy and was sought in court, it could not be that he himself should depart without plunder. He approves the plan; he is the author that they should begin to act as soon as possible, and attack a man of that age (least litigious) as tumultuously as possible. A suit is laid against Heraclius. At first all wonder at the dishonesty of the

malicious prosecution. Then those who knew this man partly suspected, partly plainly saw that an eye had been cast at the inheritance. Meanwhile the day arrived on which Verres had edicted that he would by custom and by the *lex Rupilia* allot suits at Syracuse. He had come prepared for the allotment of this suit. Then Heraclius shows him that he could not be allotted on that day, because the *lex Rupilia* forbade a suit to be allotted within thirty days of when it had been written. Thirty days had not yet passed. Heraclius hoped that, if he should escape that day, before the next allotment *Quintus Arrius* (whom the province was then most eagerly expecting) would have succeeded.

<sup>38</sup> Verres put off the day of all the suits, and fixed that day so that he could allot this suit of Heraclius after thirty days, by the law. After that day came, Verres begins to pretend that he wishes to allot. Heraclius approaches with his advocates and asks that he be allowed to dispute on equal right with the *palaestrites*, that is, with the Syracusan people. The adversaries demand that judges be given for the matter, chosen from those cities which gathered at that *conventus*, those who seemed best to Verres. Heraclius on the contrary demands that judges be given by the *lex Rupilia*, that the institutions of his predecessors, the authority of the senate, the right of all the Sicilians be not departed from.

<sup>39</sup> Why should I demonstrate this man's lust and crimes in giving judgement? Who of you has not learned of his city jurisdiction? Who under this praetor was ever able, with Chelidon unwilling, to bring a lawsuit? The province did not corrupt this man, as it has not no one. He was the same as he had been at Rome. When Heraclius said what all understood — that there is a definite right for the Sicilians on what right they should contest among themselves; that there was a *lex Rupilia* which the consul *Publius Rupilius* had given by the opinion of the ten legates; that all consuls and praetors had always preserved this in Sicily — Verres said he would not allot by the *lex Rupilia*: he gave five judges, those whom he found convenient.

<sup>40</sup> What are you to do with this man? What punishment to find worthy of his lust? Although it had been written for you — most worthless and most shameless of men — in what fashion you should give judges among the Sicilians; although the authority of an imperator of the Roman people, the dignity of the ten legates, the most illustrious men, the senatorial decree intervened (by which senatorial decree *Publius Rupili-*

ius by the opinion of the ten legates had established laws in Sicily); although all before you as praetor had preserved the Rupilian laws both in other matters and especially in trials — did you dare for nothing in face of your plunder to count so many most sacred matters? Was no law to you, no religion, no shame for your reputation, no fear of trial? With you no man's authority weighty, no precedent which you wished to follow?

<sup>41</sup> But, as I had begun to say — with five judges given by no law, by no institution, by no rejection, by no allotment, out of his lust, not who would take cognizance of the cause but who would judge what had been ordered — on that day nothing was done. They are ordered to be present the next day. Heraclius meanwhile, when he saw all snares being laid against his fortunes by the praetor, takes counsel by the opinion of his friends and kinsmen not to be present at the trial. So he flees from Syracuse that night. Verres next morning, having risen much earlier than ever before, orders the judges to be summoned. When he learned that Heraclius was not present, he begins to compel them to condemn the absent Heraclius. They remind him that, if it seems good to him, he should use his own institution and not compel them before the tenth hour to give judgement against an absent man for one present. They obtain this.

<sup>42</sup> Meanwhile he himself and his friends and counsellors began to be much troubled, and to bear it ill that Heraclius had fled. They thought the condemnation of an absent man — especially of so great a sum — would be much more odious than if he had been condemned present. Added to this was that the judges had not been given by the *lex Rupilia*. They saw the matter would seem much more disgraceful and unjust. So while he wishes to correct this, his greed and dishonesty became more open. For he says he will not use those five judges. He orders — what should from the beginning have been done by the *lex Rupilia* — that Heraclius and those who had written the suit be summoned. He says he wishes to allot judges by the law. What he had not been able to obtain from him the day before — when Heraclius had begged and beseeched with many tears — it occurred to him the next day: that he ought by the *lex Rupilia* to allot the suits. He draws three from the urn. He orders them to condemn the absent Heraclius. So they condemn.

<sup>43</sup> What madness, in evil hour, was this! When did you ever think you would have to render an account of your deeds? When did you

reckon such men would hear of these matters? That an inheritance be claimed which is owed to no one for the praetor's plunder? That a city's name be interposed? That the foulest mask of malicious prosecution be put on a respectable city? Nor only this, but the matter so conducted that not even a pretence of equity be employed? For, by the immortal gods, what is the difference whether the praetor commands and compels by force someone to depart from all his goods, or gives a trial of this kind, by which trial without the case being heard he must be overturned from all his fortunes?

<sup>44</sup> For surely you cannot deny that you ought to have allotted judges by the *lex Rupilia*, especially when Heraclius demanded it. But if you say this — that with Heraclius's consent you departed from the law — you yourself will entangle yourself, you yourself will be implicated by your defence. For why first did he not wish to be present, when he had judges from that number whom he had demanded? Then why did you allot other judges after his flight, if those who had previously been given you had given by the will of both? Then all the other suits at that *conventus* the quaestor Marcus Postumius allotted: this one alone you will be found to have allotted at that gathering.

<sup>45</sup> "Therefore," someone will say, "he gave that inheritance to the Syracusan people." First, even if I were willing to confess this, you would still be necessarily condemned. For it is not permitted that with impunity we may snatch from someone and hand over to another. But you will find that he plundered that inheritance in such a way that he did very few things secretly: that the Syracusan people came into the greatest odium by his disgrace, by another's reward; that few Syracusans — those who now say they have come for the public laudation — both then were sharers of the plunder and now have come not to laud him but to a common assessment of suits. After he was condemned in absence, not only the inheritance which was disputed, which was three million sesterces, but all of Heraclius's own ancestral goods (which were not less in money) were handed over to the palaestra of the Syracusans, that is, to the Syracusans, in possession.

<sup>46</sup> What praetorship is this? You snatch an inheritance which had come from a kinsman, had come by will, had come by laws — those goods which the man who had made the will (somewhat before he died) had handed over to this Heraclius for use and possession; on which in-

heritance, since he had died somewhat before you became praetor, there had been no controversy, no one had made mention. But let it be so. Snatch the inheritance from kinsmen, give to palaestrites; plunder another's goods in the city's name; overthrow laws, wills, the wishes of the dead, the rights of the living. Was it also necessary to expel Heraclius from his ancestral goods? — which, as soon as he had fled, how shamelessly, how openly, how bitterly, immortal gods, were those goods plundered! How calamitous that affair seemed to Heraclius, profitable to Verres, disgraceful to the Syracusans, miserable to all! For it is at once seen to: whatever chased silver was in those goods is brought to him, whatever Corinthian vessels, much bedclothes. No one doubted but that not only from that captured and crushed house, but from the whole province, all things must be brought to him. The slaves he wished he led off, others he distributed; an auction was held, in which his unconquered staff lorded it.

<sup>47</sup> But this is splendid. The Syracusans who had presided over Heraclius's goods — in word over collecting them, in fact over distributing them — were rendering an account of these affairs in the senate. They said that several pairs of cups, valuable silver pitchers, much bedclothes, valuable slaves had been given to Verres. They said how much money had been given to each at his order. The Syracusans groaned, but yet endured. Suddenly it is read out that under one heading 300,000 sesterces had been given by the praetor's order. The greatest cry arose of all — not only of the best men nor of those to whom it had always seemed unworthy that the goods of a private man had been snatched in the people's name by the highest wrong, but even those very authors of the wrong and partners in some little portion of the plunder began to cry out that he should keep the inheritance for himself. So great a clamour arose in the senate-house that the people came running.

<sup>48</sup> The matter, learned by all the conventus, is quickly reported home to him. The man, hostile to those who had read it out, an enemy to all who had cried out, blazed with anger and bile. But yet he was then unlike himself. You know the man's face, you know his audacity. Yet then by the talk of the people and the cry and the manifest theft of a great sum he was disturbed. When he had collected himself, he calls the Syracusans to him. Since he could not deny that money had been given by them, he did not seek far away (for he could not have proved it), but the next-hand

man, almost a second son, whom he said had carried off that money. He shows that he will compel him to return it. He, after he heard this, took account of his own dignity, age, and nobility. He spoke before the senate, he showed that nothing concerned him; about Verres, what all saw, even he did not speak obscurely. So those Syracusans afterwards set up a statue, and he, as soon as he could, left Verres and departed from the province.

<sup>49</sup> And yet they say he is accustomed to complain sometimes that, wretched man, he is being weighed down not by his own offences and charges, but by those of his men. You held the province three years; your son-in-law, a chosen young man, was with you one year; your comrades, brave men, your legates, left you the first year. One legate, Publius Tadius, who remained, was not so long with you. Who, if he had always been with you, would yet most carefully have spared not only your reputation, but much more his own. What is it that you accuse others? What is it that you think you can not only divert your fault to someone, but share it with another?

<sup>50</sup> Those 300,000 sesterces are counted out to the Syracusans. How they later returned to Verres through the back door, by documents and witnesses, gentlemen, I shall make plain to you. From this iniquity and dishonesty of his, gentlemen, — because plunder from those goods had come to many Syracusans, against the will of the people and senate of Syracuse — those crimes also were committed (through Theomnastus and Aeschrio and Dionysodorus and Cleomenes) most against the will of the city: first, that the whole city be plundered, on which I have set apart another place for speaking; that all the statues, through those men I have named, all the ivory from sacred buildings, all painted panels everywhere, finally the very statues of the gods which he wished, he carried off. Then, that in the senate-house at Syracuse — that place which they call by the name "bouleuterion" — a most honourable and most distinguished place among them, where there is a bronze statue of that very Marcus Marcellus (who, at the law of war and victory which would have allowed him to take it, preserved that place for the Syracusans and gave it back), in that very place they should set up a gilded statue of Verres and another of his son: so that, while the memory of this man remained, the Syracusan senate could not be in the senate-house without tears and groans.

<sup>51</sup> Through these same partners of Verres's thefts, wrongs, and wives, the Marcelliae are abolished at Syracuse by his order, with the greatest groan and grief of the city. That festival they paid back as a debt to Gaius Marcellus's recent kindnesses, and bestowed on the line, name, and family of the Marcelli with the greatest goodwill. Mithridates in Asia, when he had occupied that whole province, did not abolish the Mucia. Although an enemy — and an enemy in other matters too fierce and savage — yet he did not wish to violate an honour to a man consecrated by the religion of the gods. Did you not wish to grant to the Syracusans one festal day to the Marcelli, through whom they obtained the power of celebrating the rest of their festal days?

<sup>52</sup> But you splendidly set up Verria for them to celebrate, and that for that day what was needed for the rites and feasts should be let out for several years! Now, in such great shamelessness of his, something seems to be remitted, lest we strain everything, lest we seem to do everything with grief. For day, voice, and lungs would fail me, if I should now wish to cry aloud how miserable and unworthy it is for a festal day to exist by his name among those who consider themselves utterly extinguished by his work! O splendid Verria! Where, please, did you go, where did you not bring this day with you? For what house, what city did you visit, what shrine, finally, did you not leave overturned and swept clean? Wherefore let those things be called Verria, which are seen to be established not by name but by your hands and nature.

<sup>53</sup> How easily wrong creeps in, and the habit of offending — how not easily it is checked — see, gentlemen. Bidis is a sufficiently slight town, not far from Syracuse. Here by far the first man of the city is a certain Epicrates. To him an inheritance of five hundred thousand sesterces had come from a certain woman, his kinswoman, and so close that — even if she had died intestate — Epicrates ought to be heir under the laws of the Bidini. That matter was recent which I described above, of Heraclius the Syracusan, who would not have lost his goods, had not an inheritance come to him. To this Epicrates also, as I said, an inheritance had come.

<sup>54</sup> His enemies began to think that no less under the same praetor he could be overthrown from his goods, by which Heraclius had been overthrown. They establish the matter secretly. Through his interpreters they bring it to Verres. So the case is set up that the palaestrites

of Bidis demand the inheritance from Epicrates, just as the Syracusan palaestrites had demanded it from Heraclius. You have never seen a praetor so palaestic. But he so defended the palaestrites that he himself went away the more anointed by them. Who at once, that something might be present, orders 80,000 sesterces to be counted out to one of his friends.

<sup>55</sup> The matter could not be sufficiently hidden. Through one of those who had been present Epicrates is informed. At first he began to make light of it and disregard it, because the case had nothing that could be argued. Then, when he thought of Heraclius and knew this man's lust, he thought it most expedient to leave the province secretly. So he did. He set out for Rhegium. When this was heard, those who had given the money were boiling. They thought nothing could be done with Epicrates absent. For Heraclius had at least been present when judges were first given. About this man, who, before going to court, before any mention of controversy was even made, had departed — they thought nothing could be done. The men set out for Rhegium. They meet Epicrates. They show, what he knew — that they had given 80,000 sesterces. They ask him to see to it for them, by what had departed from themselves of money, to take security from himself in whatever manner he pleased: that no one would prosecute Epicrates about that inheritance.

<sup>56</sup> Epicrates dismisses the men, badly received from him in many words. They return from Rhegium to Syracuse. They begin, as happens, to complain among many that they had given 80,000 sesterces in vain. The matter spread and began to be in everyone's mouth and talk. Verres returns to that Syracusan custom of his. He says he wishes to take cognizance about those 80,000 sesterces. He summons many. The Bidini say they gave to Volcatius. They do not add: "by his order." He calls Volcatius, orders the money to be returned. Volcatius, with most equal mind, brings the coins (who lost nothing), gives them back in the sight of many. The Bidini take the coins.

<sup>57</sup> Someone will say: "Why then do you blame Verres in this — a man who not only is no thief himself, but did not even allow another to be?" Pay attention; you will at once understand that this money, which only just appeared to leave him, returned by the same path. For what ought a praetor to have done, when, having taken cognizance with his council, he had learned that his companion had received money for the sake of corrupting the law, the decree, the judge — in which matter the

praetor's own life and reputation were concerned, but the Bidini had given money against the praetor's reputation and fortunes? Ought he not both to punish the man who had received and those who had given? You who had instituted to punish those who had judged wrongly — which often happens through ignorance — do you allow these to depart with impunity, who because of your decree, because of your judgement, thought money should be either given or received?

<sup>58</sup> The same Volcatius was afterwards with you, a Roman knight, after such great disgrace received. For what is more disgraceful for a free-born man, what less worthy of a free man, than to be compelled in a great gathering by a magistrate to return a theft? If he had been of the mind that not only a Roman knight but any free man ought to be of, he would not have been able to look at you afterwards. He would have been your foe, your enemy, after such great contumely received — unless he had then connived with you and served your reputation rather than his. How friendly to you he then was, not only as long as he was with you in the province, but even now when you have already been left by your other friends, both you understand and we can guess. Or is this the only argument that nothing was done with this man's knowledge — that Volcatius did not get angry with him? — that this man punished neither Volcatius nor the Bidini?

<sup>59</sup> It is a great argument, but the greatest is this: that those very Bidini — with whom this man ought to have been angry, from whom he learned that, because they could do nothing by right with Epicrates (even if he were present), for that reason his decree had been tested by money — to those men, I say, Verres handed over not only that inheritance which had come to Epicrates, but, as in the Syracusan Heraclius, so in this case too — somewhat more atrociously, because Epicrates had not been called at all — his ancestral goods and fortunes to the Bidini. For he showed in a new way: if anyone should claim anything from an absent man, he would hear it. The Bidini approach, demand the inheritance. The agents demand that he refer them to their own laws or order a suit to be written under the *lex Rupilia*. The adversaries did not dare to speak against. No way out was found. They allege that the man had departed for the sake of fraud. They demand that he order the goods to be possessed.

<sup>60</sup> Epicrates owed not a single penny to anyone. His friends said that, if anyone claimed anything, they would suffer a trial, would give se-

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curity for satisfying the judgement. When all plans were chilled, by Verres's prompting they began to allege that Epicrates had corrupted public records — from which suspicion he was furthest removed. They demand the action of that matter. Friends refuse, lest any trial or his own taking cognizance be established about his reputation in his absence. And at the same time they did not cease to demand that he refer them to their own laws.

## A note on the text

The Latin texts translated in this book are drawn from the Perseus Digital Library and, where Perseus does not yet hold a work, from the Latin Library. The order of the works follows the date of their composition or delivery as attested by ancient sources and the standard scholarly chronologies. Where dating is disputed — which is the case for many of the letters and a few of the early speeches — the choice has been recorded in the entry's metadata in the project repository (`meta/works.yaml`), and the contested date is flagged in the headnote.

Section numbers in the margin are those of the standard scholarly editions (Teubner and Oxford Classical Texts) and are how the works are cited in the secondary literature.

# Glossary of names

*To follow.* A glossary of the principal Romans, Greeks, and institutions named in the text will be assembled once the corpus is more fully translated.

# Index

*To follow.* A subject and name index will be produced after translation is complete.